

Core Statutes

A. Copyright (CO, Cap.528)

Section	Applicable Subject	Core Rule / What It Covers	Liability / Penalty / Remedy
s.2(1)	作者/权利人/被告	定义版权、作品等基础概念，是否进入版权法分析的入口条文。	本条主要为定义条；后续责任取决于受限制行为条文。
s.2(1)(a)	作者/权利人	确认受保护作品类别中的关键组成，决定主张路径。	无独立罚则；影响后续侵权成立。
s.4(1)(a)	文学作品创作者	将汇编等纳入文学作品范畴，前提是满足原创性要求。	可触发民事侵权救济。
s.4(1)(b)	程序开发者/权利人	计算机程序作为文学作品受保护。	未经许可复制/改编可生民事及可能刑责。
s.4(2)	文学/戏剧/音乐作品作者	要求作品固定于物质形式，未固定内容通常不受保护。	不满足则主张失败。
s.11(1)	自然人作者	一般规则：作者为实际创作人。	决定原始权利归属。
s.11(3)	电脑生成作品安排者	电脑生成作品由“作出必要安排的人”视为作者。	决定原始权利归属。
s.12(1)	合著作者	合著须各作者贡献不可分割并共同构成作品。	影响后续许可与诉权。
s.13	作者/雇主/受让人	确立第一所有权归属规则，并与雇佣、委托及合同安排形成可操作的分配路径。	归属一旦确定，即决定谁有资格起诉与授权。
s.14(1)	雇员/雇主	雇员在受雇过程中创作的作品，版权通常归雇主。	雇员擅自处分可构成违约/侵权。
s.15(1)	委托人/受托创作者	委托作品权利分配受条文和合同共同约束。	归属争议进入民事救济。
s.15(2)	委托双方	进一步规定委托场景下权利保留或转移的边界。	无独立刑责；决定民事责任主体。
s.17(2)	作者/继承人/使用者	一般保护期：作者终身加 50 年。	超过期限则进入公有领域。
s.17(6)	电脑生成作品权利人	电脑生成作品保护期为法定起算点后的 50 年。	期限届满后不可再主张专有权。
s.17(7)	合著作品权利人	合著作品按最后死亡作者计算期限。	决定权利终止时间。
s.194(2)	共同所有人	共同所有版权的授权/处分受共有规则约束。	未经必要同意处分可被禁止并追责。
s.198(1)	全部当事人	“writing”等解释条影响通知与同意形式是否有效。	形式不合规会影响诉讼成败。
s.198	经营者/机构	“business”等定义影响商业用途判断。	关系到民刑门槛判定。
s.22(1)	实施行为者	未经许可实施受限制行为构成主要侵权入口。	民事侵权：禁令、赔偿、利润交代等。
s.22(2)	平台/组织者/间接行为者	授权他人侵权可独立成立责任。	民事责任，可并连带后果。
s.22(2A)	全部当事人	强调“实质部分”标准而非机械数量标准。	取用实质部分即可成立侵权。
s.22(3)	原告/被告	处理受限制行为与侵权归责链条的连接。	影响侵权是否成立。
s.23	复制行为	复制包括以任何形式再现作品。	未经许可复制可负民责，严重商业案可涉刑。
s.23(2)	数字使用者/平台	把作品存入硬盘、服务器、缓存或其他电子介质都可能构成“复制”。	未经许可的电子存储本身即可成立民事侵权，即使未对外销售。
s.23(3)	技术服务场景	临时复制在特定条件下纳入或排除复制判断。	决定是否侵权。
s.23(4)	技术服务场景	进一步细化技术复制边界。	决定是否侵权。
s.23(5)	技术服务场景	对瞬时复制作条件限制。	不符条件即可可能侵权。
s.23(6)	技术服务场景	进一步限定短暂/技术性复制可被容许的条件，要求其仅为技术流程所必需。	超出技术必要范围时，短暂复制仍可构成侵权。
s.24	发行者	向公众发行复制品（首次流通）受专有权控制。	未经许可可发行可被禁令与赔偿。
s.25	出租者/平台	向公众出租受保护作品复制品属于受限制行为。	未经许可出租可负民责，情节重可涉刑。
s.27	表演者/场地经营者/传播者	公开表演、播放或展示需权利许可。	未经许可可公开使用可侵权。
s.28A(1)	线上平台/上传者	向公众传播（含网络）为独立专有权。	未经许可传播可负民责并可能涉刑。
s.28A(2)	线上服务商	细化“向公众传播”覆盖方式。	影响侵权构成判断。
s.28A(3)	线上服务商	涵盖 making available 场景。	按传播侵权处理。
s.29	改编者	改编权覆盖把作品转化为另一表达形式。	未经许可改编可构成侵权。
s.29(2)	软件改编者	程序相关转换或重写可落入改编。	未经许可可侵权。
s.29(3)(b)	软件改编者	程序翻译等行为作为改编受限制。	未经许可可侵权。
s.29(4)	改编传播者	改编后使用同样受下游控制。	可连续触发多项侵权。
s.30	进口/出口经营者	处理侵权复制品的输入输出行为受限制。	可负民责；商业规模可涉刑。
s.31	销售/分销者/零售链条	在业务过程中售卖、出租、分发、展示或为商业目的持有侵权复制品，构成次级侵权核心。	先负民事责任；若具商业规模与主观明知，再进入 s.118 刑事责任。
s.31(3)	经营者	强调知道或应知状态等门槛。	主观状态影响责任成立。
s.32(1)	持有人/供应者	为制作侵权复制品而持有或供应相关产品受限制。	可构成次级侵权。
s.32(2)	经营者	细化侵权工具相关责任。	可被禁令、赔偿及没收。
s.35(2)	全部当事人	界定何为侵权复制品。	决定后续民刑条文是否触发。
s.35(3)	法院/当事人	采用“若在本地制作会否侵权”的假设测试。	决定复制品合法性。
s.35A	程序进口者	电脑程序平行进口的特定处理规则。	影响是否落入侵权复制品。
s.36	被告	特定情况下可主张缺乏认知或其他抗辩。	影响责任减免。
s.107	原告/被告	民事诉讼中可请求禁令、损害赔偿、利润交代等。	民事救济主入口。
s.108+	原告/法院	连同 s.107 构成民事救济组：包括附加损害赔偿、交付侵权品、费用及其他命令。	用于拉高赔偿并阻断继续侵权。
s.117(1)(e)	商业经营者/公司负责人	该子段用于界定特定“为业务目的而处理侵权复制品”的刑事化行为类型，考试上需与 s.31 的民事“dealing”并列写。	一旦满足商业目的与主观要件，即进入刑事路径（罚款与监禁按该事项上限）。
s.118	商业侵权行为人	总则：把商业规模、牟利导向或对权利人造成实质市场损害的行为刑事化，不再只是民事侵权。	可判罚款及监禁；并可能没收侵权复制品与器材。
s.118(1)(d)	商业经营者	针对“在业务过程中处理侵权复制品”的具体行为类型之一（如为交易链条而持有/分销）。	满足“知道或应知”与业务目的时可定罪。
s.118(1)(e)	商业经营者	针对“为业务目的公开展示或分发侵权复制品”的类型之一，重点在公开性与业务关联。	可触发刑责；写题时要交代 audience 是否属公众。
s.118(1)(f)	商业经营者	针对“为业务目的分发并达到损害版权人程度”的类型之一，重点在市场替代与规模。	可触发刑责；规模、下载量、销售量是证据重点。
s.118(1)(g)	商业经营者	针对“为业务目的持有侵权复制品并准备交易/分发”的类型之一，强调准备阶段也可入罪。	未实际售出亦可能成立；主观认知与库存规模关键。
s.118(8B)	跨境相关行为/人/平台经营者	把“在业务过程中向公众传播作品并以营利或显著损害版权人利益”为核心的网络传播行为纳入刑事责任。	常用于串流/网站传播案件；与 s.28A 民事责任并行。
s.120(1)	香港境外制作者/组织者	在境外制作复制品并意图输港（且若在港制作会侵权）的行为可在香港被刑事追究。	关键要件是“非私人家用 + 明知侵权 + 输港关联”。

s.120(2)	香港境外器材制作者/供应者	在境外制造“专门用于复制特定作品侵权品”的器材，并知悉其拟在港用于商业侵权，可构成罪行。	跨境工具链也可入罪；常与工厂代工事实结合。
s.37(3)	援引抗辩者	公平处理采取多因素衡量（目的、比例、市场影响等）。	成立则可免侵权责任。
s.38	研究者/学生	研究与私人学习在公平范围内可豁免。	超范围则回到侵权责任。
s.38(2)(b)	研究者/学生	细化研究学习场景适用条件。	不符条件不豁免。
s.38(3)	研究者/学生	即使属研究/学习目的，复制比例、替代市场效果与取得方式仍须通过公平性审查。	一旦超出合理需要，抗辩失败并回到侵权责任。
s.39(1)	评论者/媒体	评论批评目的可在公平条件下使用作品。	成立可抗辩。
s.39(2)	评论者/媒体	时事评论场景下的使用条件。	需满足公平并通常需鸣谢。
s.39(3)	新闻传播者	报道时事使用作品的限定。	不公平使用则侵权。
s.39(4)	评论者/媒体	评论或报道所用内容必须与评论目的有实质关联，不能借评论名义大比例搬运原作。	若使用已替代原作消费，通常不属公平处理。
s.39(6)	评论者	充分鸣谢要求。	欠缺鸣谢会削弱抗辩。
s.39A	创作者/传播者	戏仿、讽刺、滑稽、模仿在公平条件下可豁免。	成立可抗辩。
s.39A(2)	创作者	细化该类使用的公平边界。	不符条件不豁免。
s.41A(1)	教师/教育机构	教学用途公平处理可豁免。	仅限法定教学场景。
s.41A(2)	教育机构	细化教学豁免条件。	不符条件不豁免。
s.41A(5)	教育机构	教学豁免只覆盖与教学活动直接相关且比例合理的使用，不保护与课程无关的扩散传播。	超出课堂必要范围会失去豁免并承担侵权责任。
ss.41-45	教育机构	教育类许可使用体系（课堂复制/表演等）。	合规使用可免侵权。
s.54	公共机构/公众	公共行政相关用途豁免。	限法定目的。
s.54A	公共机构/受法定授权者	为履行具体公共行政职能而进行必要复制或使用时可援引该豁免。	必须证明“法定职能关联+必要性”，否则不能适用。
s.54B	公共机构/受法定授权者	对 s.54A 的适用边界作进一步限定，防止把行政便利扩张成一般性许可。	与公共职能无直接关系的使用仍可构成侵权。
ss.55-59	诉讼/政府/机构	法律程序及相关官方用途豁免。	限必要范围。
ss.60-61	合法用户/技术服务	技术复制、浏览缓存等场景豁免。	仅限技术必要且不另行利用。
s.65	个人用户	媒介转换等私人合理使用豁免。	超出私人范围不适用。
s.65A	个人用户	私人技术使用仅限合法取得来源且用于个人/家居范围，不得变相再分发。	一旦外流到公众或商业场景，豁免即失效。
s.76A	合法用户	特定法定允许行为。	成立则抗辩。
ss.89-100	作者/使用者	精神权利（署名、反歪曲等）体系。	可生民事救济，通常非本课核心罚责。
s.103	排他被许可人	排他许可人的法律地位。	影响是否可独立起诉。
s.112	许可人/被许可人	明确在特定许可结构下，许可人与被许可人可并行主张救济或需互相通知。	实务上影响是否单独起诉、是否必须并案。
s.113	许可人/被许可人	并列诉讼权的程序安排。	影响救济路径。

B. PDPO (Cap.486)

Section	Applicable Subject	Core Rule / What It Covers	Liability / Penalty / Remedy
s.2(1)	数据使用者/资料当事人	定义 personal data, data user 等核心概念。	决定 PDPO 是否适用。
s.2(3)	相关人士	界定 relevant person（如未成年人监护场景）。	影响谁可行使法定请求权。
s.2(12)	数据使用者	定义 prescribed consent 的有效性要求。	无有效同意会导致违法使用。
s.4	数据使用者	将 DPP 赋予法律效力并要求遵从。	违反可被调查并执行通知。
DPP1	数据收集者	收集须合法、公平、必要，且告知目的。	不合规可触发执法。
DPP2	数据使用者	确保资料准确且保存不过度。	含保留期限合规义务。
DPP3	数据使用者	新目的使用须获订明同意。	违规属核心风险点。
DPP4	数据使用者/处理者	采取实务可行保安措施防止未授权访问。	泄露可引发执法及民事索偿。
DPP5	数据使用者	公开资料政策与处理实践。	透明义务不履行可被纠正。
DPP6	数据使用者	保障查阅和改正权。	拒绝须有法定理由。
s.26	数据使用者	资料不再需要时须删除。	可被认定违反 DPP2 保留要求。
ss.18-21	资料当事人/数据使用者	查阅请求制度与答复时限。	不依从可被投诉和执法。
ss.22-25	资料当事人/数据使用者	改正请求制度、记录及通知机制。	不依从可被投诉和执法。
s.18(5)	DAR 请求人	任何人为促使数据使用者依从查阅请求而故意提供虚假或误导性资料，可构成独立罪行。	属于程序滥用型罚责；可被检控并影响后续请求可信度。
s.22(4)	DCR 请求人	任何人为促使数据使用者依从更正请求而故意提供虚假或误导性资料，同样可构成罪行。	与 s.18(5) 并列，考试可写“查阅/更正双轨均禁止虚假请求”。
s.20(1)(a)	数据使用者	列明可拒绝查阅请求的一类法定理由。	拒绝须被法律支持并说明。
s.20(1)(b)	数据使用者	列明另一拒绝理由。	不当拒绝可被执法纠正。
s.20(1)(c)	数据使用者	列明另一拒绝理由。	不当拒绝可被执法纠正。
s.20(2)(a)	数据使用者	当请求资料夹杂第三方个人资料时，须先考虑是否可通过删改、遮蔽或分割方式处理。	核心不是“一刀切拒绝”，而是先做可行的局部依从。
s.20(2)(b)	数据使用者	若可在不当披露第三方资料下提供请求人资料，应采取该替代方案。	未尽遮蔽义务而直接拒绝，易被认定程序不合规。
s.20(3)(a)	数据使用者	条文允许在法定情形下仅就可分离部分资料依从请求。	可“部分披露+说明理由”，降低违法拒绝风险。
s.20(3)(b)	数据使用者	若某部分受法定拒绝理由覆盖，其余部分仍应尽量提供。	拒绝范围必须与拒绝理由严格对应。
s.20(3)(c)	数据使用者	对无法核实身份、请求范围不明确等程序性问题，可要求合理澄清后再处理。	应保留沟通记录，否则在投诉中不利。
s.20(3)(d)	数据使用者	在技术或组织上确有不可行部分时，就可可行部分先行依从。	强调比例原则与可行性证明责任。
s.20(3)(ea)	数据使用者	对特定敏感或受限场景设置额外处理条件，要求在拒绝与部分依从间做更精细化判断。	未逐项说明为何触发该条件，拒绝决定易被推翻。
s.20(4)	数据使用者	拒绝时需采取替代合规步骤。	程序不合规会加重风险。
s.21(1)(c)	数据使用者	拒绝或部分拒绝 DAR 时，须在答复中交代理由与法律基础，而非仅作结论式拒绝。	未给充分理由将增加专员介入与纠正风险。
s.24	数据使用者	收到有效 DCR 后，如确认资料不准确，应尽快更正并在系统中反映。	不更正可持续构成 DPP2 合规风险。
s.24(4)	数据使用者	更正后在法定情形下须通知先前接收该不准确资料的相关方。	防止错误资料继续扩散是本条重点。
s.25(1)(b)	数据使用者	拒绝 DCR 时须说明理由，并保留请求与处理记录供监管审查。	程序不透明会削弱拒绝的合法性。

Part 6A	数据使用者/直销者	直销合规总制度：先告知、后同意/不反对、可退出。	违反可触发刑责与执法。
s.35A(1)	数据使用者	定义 direct marketing 与相关同意概念。	决定 6A 是否触发。
s.35B	数据使用者	使用前通知义务。	不履行可违法。
s.35C	数据使用者	在进行直销前必须先完成法定告知，并取得资料当事人的同意或不反对。	违反可构成犯罪；案件注明最高可达 \$500,000 + 3 年监禁。
s.35C(3)	数据使用者	同意须可被证明且可追溯；企业需保存告知内容、同意方式与时间戳等证据链。	举证失败时，常被推定未取得有效同意。
s.35E	数据使用者	首次直销时的额外告知要求。	违反可构成犯罪；案件注明可达 \$500,000 + 3 年监禁。
s.35F	数据使用者	提供拒收渠道并处理退出。	违反可构成犯罪；案件注明可达 \$500,000 + 3 年监禁。
s.35G	数据使用者	收到退出后停止使用的义务。	违反可构成犯罪；案件注明可达 \$500,000 + 3 年监禁。
s.35H	数据使用者	特定情形下视为同意或处理规则。	适用错误会导致违法。
s.35I	数据使用者	在向第三方转移资料用于直销前，必须先向资料当事人清楚告知转移事实、资料类别、承接方用途及反对权。	未完成“先告知”即转移，可能触发刑责。
s.35J	数据使用者	转移前同意要求。	违反可构成犯罪：为得益 \$1,000,000 + 5 年；非为得益 \$500,000 + 3 年。
s.35K	数据使用者	涉及利益交换时更严格同意机制。	违反可构成犯罪：为得益 \$1,000,000 + 5 年；非为得益 \$500,000 + 3 年。
s.35L	数据使用者	第三方直销退出安排。	不遵从可违法。
s.35M	数据使用者	若已满足 s.35J（先告知）、s.35K（同意后提供）、s.35L（按要求停止）等条件，可在法定范围内视为已取得相关订明同意。	这是“合规推定”条，而非豁免条；任一前提缺失即不能援引。
s.14	私隐专员	处理投诉与初步行政程序。	可导向正式调查。
ss.15-16	私隐专员/被调查者	调查启动与信息要求权。	阻挠或不配合可生罪责。
s.31(4)	数据使用者	与调查/依从相关的程序后果条文。	不依从可被进一步执法。
s.36	私隐专员	在认定存在违规后，专员可发执行通知要求限期纠正、停止行为及采取补救措施。	执行通知是后续刑事追责（s.50/s.50A）的前置节点。
s.38	私隐专员/被调查者	专员可要求提交资料、作出解释及配合调查步骤。	拒绝、拖延或虚假回应会增加法律风险。
s.39	私隐专员	调查流程与程序保障。	程序不当可被司法审查。
s.50	受通知者	无合理辩解而不遵从执行通知可构成罪行。	属于“先行政命令、后刑责”结构；常见于持续违规案件。
s.50A	受通知者	在已被通知后继续违规或再次违规，可能触发加重处罚路径。	与 s.50 相比，强调重复性与持续性的不遵从。
s.50B	机构负责人/任何受查人士	妨碍、阻挠，不依从专员依法要求，或在调查中明知作出虚假陈述，可构成罪行。	个人可被直接检控；法人内部“执行层指示”通常不能当然免责。
s.64(1)	任何人	未经相关同意披露个人资料，且具有法定主观要素并导致或可能导致指明伤害，可构成起底相关罪行基础。	定罪核心是“未经同意 + 主观心态 + 指明伤害”三段式。
s.64(3)	任何人	起底罪的主要要素之一（意图/网顾）。	案件注明最高可达 \$1,000,000 + 5 年监禁。
s.64(3A)	任何人	加重型起底罪构成。	刑罚上限更高。
s.64(3B)	任何人	就特定起底行为在主观状态与伤害后果层面提供独立定罪节点，低于最重罪阶但仍属刑事罪。	案件注明可处第 6 级罚款 + 2 年监禁。
s.64(3C)	任何人	处理进一步加重情节（如持续披露或扩散）下的独立入罪路径。	常与 s.64(3D) 的较高刑罚上限联动。
s.64(3D)	任何人	针对更严重或持续扩散型起底行为设置更高刑责层级。	案件注明最高可达 \$1,000,000 + 5 年监禁。
s.64(4)	被告	若被告能证明其有合理理由相信披露已获相关同意，或具其他法定抗辩情形，可据此抗辩。	答题要单列“构成后再审抗辩”，避免把抗辩写入构成要件。
s.64(6)	法院/当事人	解释“相关同意”“指明伤害”等关键术语，直接影响入罪边界。	术语解释错误会导致整段结论偏差。
s.64C	平台/服务提供者	与起底内容相关的执法衔接条款。	不依从可受处分。
s.65(1)	雇主/机构	雇员在受雇中违法处理资料时，雇主可能负替代责任。	民事与合规风险并存。
s.65(3)	雇主	雇主免责门槛（已尽合理防范措施等）。	成立可减免责任。
s.65(4)	雇主/机构	细化替代责任适用边界：法院会看行为与受雇职责的关联程度及机构监管安排。	机构若缺乏有效监督与培训，较难主张免责。
s.66	受害资料当事人	可就违反 Ordinance 提起补偿诉讼。	民事赔偿。
s.66(2)	受害人	补偿范围可包括情感损害。	可获精神损害赔偿。
s.66A	私隐专员	协助受害人追偿机制。	提高维权可行性。
s.66B	私隐专员/受害资料当事人	专员可在法定条件下继续提供诉讼或程序协助（如文件、程序指引或个案支持）。	提升受害人实际追偿能力。
s.66D	私隐专员/执法机关	相关执法与检控支持条款。	促进追责。
s.66G	私隐专员	赋予与起底案件相关的程序推进权力，以便快速处理持续在线扩散。	重点在“及时制止继续损害”。
s.66H	私隐专员	与 s.66G 配套，支持专员在调查与检控衔接中的程序动作。	用于把行政发现转入可执行的执法步骤。
s.66K	私隐专员/被通知者	停止披露通知制度的发出基础。	需依法遵从。
s.66L	被通知者	通知送达与执行相关义务。	不遵从可违法。
s.66M	被通知者	复核/后续处理机制。	影响持续义务。
s.66O	被通知者/平台营运者	收到停止披露通知后仍继续发布、容许继续可得或不执行下架措施，可构成独立罪行。	与原始起底行为分离处罚；即使非最初披露者也可能入罪。
s.66O(2)	被通知者	加重或持续不遵从情形。	刑罚上限更高。
Part VIII	数据使用者	法定豁免总框架（非全面免责）。	仅在条文范围内减轻义务。
s.52	家庭/个人	家务用途豁免。	超出家务范围不适用。
s.53	雇主	雇佣相关处理豁免。	限必要范围。
s.55	当事人/机构	法律程序相关豁免。	限诉讼或法律执行需要。
s.55(2)	当事人/机构	法律程序豁免只覆盖与该程序直接相关且必要的资料使用，不包括超范围二次用途。	主张方需证明“程序关联性”，否则不能排除 DPP 义务。
s.56	医疗机构/专业人员	在医疗或健康保护场景下可有限放宽部分义务，但前提是保护当事人或公众健康所必需。	超出医疗必要范围的传播仍可能违法。
s.57	研究机构/统计机构	研究统计豁免通常要求用途为研究/统计而非个体决策，并采取去识别或等效保护措施。	若回溯识别个人并作出针对性决策，豁免大幅减弱。
s.58	执法机构	防止/侦查罪案等豁免。	限执法目的。
s.59	执法/监管机构	为维护公共安全、监管执法或防止严重不当行为所必需的资料使用可获有限豁免。	必须证明必要性及比例性，不能泛化为长期留存或任意共享。
s.61(1)	媒体/新闻机构	新闻活动豁免以“真诚信念下的新闻目的与公共利益”为核心，不保护八卦式披露。	若主要目的是吸睛或羞辱个体，豁免风险显著上升。
s.61(2)	媒体/新闻机构	要求新闻豁免与报道目的保持紧密关联，避免把可识别资料用于无关商业用途。	一旦转用于营销或画像，通常不再受该豁免保护。
s.61(3)	媒体/新闻机构	明确法院评估新闻豁免时会审查公共利益、必要性与资料处理方式是否相称。	若三项考量不成立，新闻豁免不适用且 DPP 责任恢复。
s.62	机构	兜底式特定豁免条，仅在条文明确情境下适用，不能自行扩张解释。	引用本条时必须指明具体情境与必要性。

C. Patent (Cap.514)

Section	Applicable Subject	Core Rule / What It Covers	Liability / Penalty / Remedy
s.2(1)	申请人/法院	material date 定义为新颖性与创造性判断的时间锚点。	决定对比文献范围。
s.9A	申请人	第一步先判定 claim 是否属于“发明”，并排除纯发现、抽象规则或非技术性内容。	若在 s.9A 即被排除，后续 9B/9C/9D 无需再审。
s.9A(2)	申请人	对应一组法定排除客体（如纯数学/商业规则等）并要求看 claim 的实质而非标题。	落入该类排除即不可专利。
s.9A(3)	申请人	列明另一组非可专利主题，防止申请人以措辞包装抽象概念为“技术发明”。	若缺少可验证技术贡献，通常会被直接排除。
s.9A(4)	申请人	治疗/诊断相关排除边界之一（课件重点）。	不具可专利性。
s.9A(5)	申请人	进一步限定排除条文的适用方式，强调需结合 claim 实际技术内容判断。	不能证明技术效果与技术手段时，仍会被排除。
s.9A(6)	申请人	处理边界型申请（部分技术、部分抽象）时的解释路径。	实务上常要求把非专利部分剥离后再评估。
s.9B	申请人/挑战者	新颖性要求：不得被现有技术公开。	不满足可被驳回或撤销。
s.9C	申请人/挑战者	创造性要求：对本领域技术人员不显而易见。	不满足可被驳回或撤销。
s.9D	申请人	工业实用性要求。	不满足不可授权。
s.9E	发明人/雇主/受让人	专利申请权归属规则。	归属错误可引发权属争议。
s.9E(3)	竞合申请人	先申请制在竞合中的优先规则。	后申请人可能失权。
s.11A	申请人	特定披露不损新颖性的例外。	须严守时限和条件，否则失效。
s.54(1)	共同专利权人	共同所有下实施权规则。	未经授权许可可能违法。
s.54(2)	共同专利权人	共同所有下处分/许可限制。	可引发禁令与赔偿。
s.54(3)	共同专利权人	在共有人意见分歧时，本款决定单方实施、许可或处分能否进行及其边界。	直接影响是否可单独对外授权和收取许可费。
s.57	雇员/雇主	判断发明是否在受雇职责范围或特别指派任务中完成，并据此分配权属与雇员报酬。	是考试“谁有权申请/持有专利”的核心条。
s.15	申请人	R 路径前段程序要求申请人在法定窗口内提交指定文件与声明。	漏交或逾期通常导致申请失效，且难以补救。
s.23	申请人	R 路径后段要求在指定期限内完成注册/记录动作，衔接前段申请。	错过时限会导致无法进入有效授权阶段。
s.37C	申请人	优先权主张规则。	不符形式或时限则不能主张优先。
s.39	专利权人	规定标准专利法定保护期及续展/维持逻辑，权利人须持续履行维持手续。	未按时维持会导致专利失效并失去后续救济基础。
s.91	挑战者/法院	被诉方可据不可专利、缺新颖性/创造性、说明不足、超范围修改等理由申请撤销。	撤销成功会使侵权主张基础被整体击穿。
s.73	制造商/进口商/销售者	专利侵权行为类型（制造、使用、处置、进口等）。	民事救济：禁令、赔偿、利润交代。
s.75	被告/研究者	私人非商业与实验用途等法定例外。	成立可抗辩免侵权。
s.88(1)	专利权人	公开后至授权前期间的临时保护效果。	授权后可追溯部分救济。
s.88(3)	专利权人/被告	限定授权后追溯救济的范围与前提，防止把临时保护无限扩张。	权利人需证明被告行为为最终授权权利要求实质对应。

Exam Playbook

A. Copyright Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Identify works	s.2(1), s.4	逐项拆分：文本、图表、源代码、目标代码、字幕、数据库结构等是否是独立作品类别。	“Relevant works include [...]. Each qualifies as [literary/artistic/etc.] under s.[...].”
Authorship & first ownership	s.11-s.15, s.13	先定作者，再定第一所有权；雇员职务作品通常归雇主；委托关系看合同。	“Authorship lies with [...], but first ownership vests in [...] under s.[...], subject to any contrary agreement.”
Freelancer/commissioned work	s.14(1), s.15(1), s.15(2)	先分流：employee 还是 independent contractor (freelancer)；若是雇员再看是否在 the course of employment；若是委托创作先看合同，没写明时补上 s.15(2) 的法定独占利用权 + 禁止不合理用途权。	“As X is a freelancer, ownership is governed primarily by contract under s.15(1); even absent express assignment, the commissioner may rely on s.15(2) statutory exploitation rights.”
Primary infringement	s.22 + s.23/24/25/27/28A/29	是否实施受限制行为；是否取用实质部分；有无许可；线上行为优先审 s.28A。	“By [copying/communicating/adapting] a substantial part without licence, D prima facie infringes under s.22 read with s.[...].”
Software modification	s.23, s.29(3)(b)	反编译、替换模块、翻译代码都要审查复制/改编；“自己写的新模块”不当然免除对原作取用。	“Even if D wrote new code, liability remains if substantial original code/ structure was copied or adapted.”
Secondary infringement	s.30-s.32, s.35	进口、持有、分销、售卖侵权复制品；是否知悉或应知。	“D dealt in infringing copies in the course of business and had at least reason to believe their status, engaging s.[...].”
Criminal copyright	s.118, s.120	商业规模、牟利性、跨境复制并回港等情形；民刑分流要写清。	“Civil liability arises under ss.30-32; criminal exposure may additionally arise under ss.118/120 on these commercial facts.”
Exclusive licensee standing	s.103, s.112, s.113	排他被许可人可否单独起诉，是否须并列权利人。	“LetFlix, as exclusive licensee, may sue under s.[...] subject to procedural joinder requirements.”
Fair dealing defences	s.37(3), s.38, s.39, s.39A, s.41A	目的、比例、市场替代效应、鸣谢；“非商业”声明不自动成立抗辩。	“The defence is unlikely because the use substituted the market for the original and exceeded what is fair under s.37(3).”
Internet/transmission	s.28A, s.65	串流、缓存、可下载性、向公众开放程度；浏览豁免边界。	“Uploading/streaming to subscribers is communication to the public under s.28A; s.65 does not excuse this commercial dissemination.”

B. PDPO Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Is it personal data?	s.2(1)	是否识别在世个人；数据是否由 data user 控制；是否来自 data processor 场景。	“The information (name + address + phone + account linkage) clearly constitutes personal data under s.2(1).”
New purpose use	DPP3 + s.2(12)	原收集目的与现用途是否一致；是否有订明同意。	“Using the data for direct marketing/doxxing is a new purpose and requires prescribed consent under DPP3.”
Data security incident	DPP4	是否采取合理保安措施；是否存在访问控制、最小权限、日志审计缺陷。	“The breach indicates likely non-compliance with DPP4 unless PFB can show practicable safeguards were in place.”
Data access request	ss.18-21, s.20	请求对象是否“personal data”；能否分离第三方信息；是否触发拒绝理由。	“Bstrade should provide call records as requester’s personal data, but may redact third-party data and rely on s.20 grounds where strictly applicable.”
Data correction	ss.22-25	是否属于不准确资料；更正后通知义务。	“If inaccuracy is established, the data user must correct and notify downstream recipients as required.”
Direct marketing	Part 6A, ss.35B-35M	先告知、同意/不反对、首次通知、退出机制、第三方转移条件。	“SWB’s use appears to contravene Part 6A because consent/notification prerequisites were not met before marketing use.”
Doxxing offences	s.64(1), (3A), (3C) + (3)/(3B)/(3D)	未经同意披露 + 意图/同顾造成指明伤害 + 实际后果。	“Alex’s postings likely satisfy doxxing elements: unauthorised disclosure, intent/recklessness, and specified harm.”
Commissioner powers	s.50A, s.50B, s.66K-66O	执行通知与停止披露通知是否已发；不遵从的独立刑责。	“If a cessation notice is served, continued disclosure would trigger separate offence exposure under s.66O.”
Compensation claim	s.66, s.66(2), s.65	资料当事人损失（含情感损害）；雇主替代责任与免责。	“Betty may seek compensation under s.66, including injury to feelings, and employer liability may arise via s.65 where applicable.”

C. Patent Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Excluded subject matter	s.9A, s.9A(2)-(6)	先定 claim 的“真正内容”；再逐项看是否落入发现/数学方法/商业方法/治疗方法等排除。若有技术效果与技术手段，论证其不只是抽象规则。	“The process claim should first be screened under s.9A. On these facts, the claim is [not merely abstract / likely an excluded method] because ... Therefore the claim is [not excluded / excluded] at this stage.”
Novelty attack	s.9B + s.2(1)	锁定 material date；找最接近现有技术；比对每个必要技术特征是否全部先公开。只要单一文献完整披露，即缺新颖性。	“The material date is [date]. If the prior use/publication already disclosed all essential integers of the claim, the claim lacks novelty under s.9B.”
Inventive step	s.9C	识别区别特征；判断对本领域技术人员是否显而易见；避免事后诸葛亮。若仅替换同等元件，通常显而易见。	“Compared with [closest prior art], the only distinguishing feature is [...]. This appears [obvious/non-obvious] to the skilled person, so s.9C is [not met/met].”
Industrial applicability	s.9D	能否在产业中制造或使用并重复实现技术效果。纯审美/纯智力步骤较难满足。	“The claimed invention is capable of industrial application because it can be repeatedly implemented in [...], satisfying s.9D.”
Employee invention ownership	s.57, s.9E	是否在受雇过程中作出；是否属受雇职责或特别指派任务；合同是否另有约定。	“Although X is named inventor, entitlement depends on s.57 and employment context. Since the invention was made [in/outside] normal duties, title should vest in [employer/employee].”
Co-ownership/licensing	s.54(1)-(3)	若为共同权利人，审查单方许可或处分是否需要他方同意。	“Under s.54, a co-owner cannot freely grant third-party rights beyond the statutory scope without the required concurrence.”
Revocation strategy	s.91, s.9A-9D, s.11A	被诉方应同时主张不可专利、新颖性缺失、创造性不足、说明不足等；并检视不损害披露例外是否可救。	“DreamToys should file revocation under s.91, relying primarily on [s.9B/s.9C], and pre-empt any s.11A exception by contesting its conditions.”
Pre-grant protection	s.88(1), s.88(3)	公开后到授权前是否可追溯；需证明后续授权权利覆盖相关行为。	“If grant is eventually obtained, s.88 may allow limited retrospective relief for acts done after publication, subject to statutory conditions.”

High Frequency Tests

A. Copyright Tests

Test / Doctrine	Authority	Checklist (Exam Steps)	Output Line
Employee vs freelancer ownership test	Cap.528 s.14(1), s.15(1), s.15(2)	1) 先定身份: employee 或 independent contractor; 2) employee 则查是否 in course of employment (事实判断); 3) freelancer/commissioned 则以合同分配为主; 4) 若合同未写明归属, 补写 s.15(2) 两项法定权利。	“Ownership does not automatically pass to the hiring party for freelancer work; absent assignment, analyse s.15(1) contract terms and s.15(2) statutory rights.”
Substantial part test (qualitative)	Cap.528 s.22(3); case law approach	判断“实质部分”看质不看量；是否取用了体现原创性的核心表达/结构/编排，而非仅看字节或行数。	“Although quantitatively limited, what was taken is qualitatively substantial, so s.22(3) is met.”
Moorhouse authorisation test	UNSW v Moorhouse; Cap.528 s.22(2), s.22(2A)	看被告是否控制侵权工具/平台、知悉或应知侵权风险、且未采取合理限缩措施；“仅便利”不当然等于授权。	“Given control + knowledge + inadequate preventive steps, D likely authorised primary infringement under s.22(2).”
Hypothetical manufacture test for infringing copy	Cap.528 s.35(3)	针对境外制作复制品：若“假设在香港制作”会侵权，则该复制品可被视为 infringing copy (并联动次级侵权)。	“Under s.35(3), the imported copies are treated as infringing copies because local hypothetical manufacture would infringe.”
Fair dealing 4-factor test	Cap.528 s.38(3), s.39(4), s.39A(2), s.41A(2), s.37(3)	四因素：用途性质、原作品性质、取用比例与实质性、对市场替代影响；并总览全部情境与正常利用冲突。	“On the four factors, the dealing substitutes the original market and is unlikely to be fair.”

B. PDPO Tests

Test / Doctrine	Authority	Checklist (Exam Steps)	Output Line
Personal data threshold test	Cap.486 s.2(1)	是否关乎在世个人 + 能否直接/间接识别 + 是否由 data user 控制/持有于相关处理场景。	“The dataset is personal data because individuals are identifiable from linked identifiers and account records.”
New purpose + prescribed consent test	DPP3 + Cap.486 s.2(12)	先定原收集目的，再看现用途是否“new purpose”；若是新用途，检查是否有有效订明同意与证据链。	“The marketing/doxxing use is a new purpose and is unlawful absent prescribed consent under DPP3.”
DPP4 practicable security test	DPP4	是否有合理可行保安措施：最小权限、访问控制、日志审计、离职权限回收、异常告警、供应商管理。	“Given weak access controls and missing audit safeguards, DPP4 non-compliance is likely.”
DAR partial compliance test	Cap.486 ss.18-21, esp. s.20	先审是否 requester 的 personal data；若夹杂第三方信息，优先删改/遮蔽后部分披露；拒绝须逐项给法定理由。	“The data user should provide a redacted response rather than blanket refusal, with specific s.20 reasons for withheld parts.”
Doxxing elements test	Cap.486 s.64(1), (3)/(3A)/(3B)/(3C)/(3D)	未经相关同意披露 + 意图或罔顾造成指明伤害 + (加重型) 实际伤害/持续扩散；最后单列抗辩。	“The postings likely satisfy unauthorised disclosure and harm-intent elements, engaging s.64 doxxing liability.”

C. Patent Tests

Test / Doctrine	Authority	Checklist (Exam Steps)	Output Line
Actavis 3-question equivalence test	Actavis UK v Eli Lilly [2017] UKSC 48; Cap.514 s.73	1) 变体是否以基本相同方式实现基本相同结果；2) 在优先权日假设知识下，该等同方式对本领域技术人员是否显而易见；3) 技术人员会否认为专利权人仍坚持字面严格遵守为必要要求。	“Applying Actavis, Q1/Q2 are yes and Q3 is no, so the variant is likely within claim scope by equivalence.”
Claim construction first	Cap.514 s.73; lecture method	先解释权利要求文字与必要技术特征，再做逐项比对；不要跳过 claim construction 直接谈侵权。	“The infringement analysis starts with claim construction; only then can the alleged product/process be mapped to each essential integer.”
Aerotel 4-step excluded subject matter test	Aerotel v Telco [2006] EWCA Civ 1371; Cap.514 s.9A(2)	1) properly construe claim; 2) identify actual contribution; 3) 看是否仅落入排除客体；4) 检查贡献是否具技术性质。	“On Aerotel step 3/4, the contribution is [pure business rule / technical], so s.9A exclusion [does / does not] apply.”
Novelty full anticipation check	Cap.514 s.9B + s.2(1)	锁定 material date；找单一最接近文献/公开使用；逐项核对必要特征是否已全部已公开 (enabling disclosure)。	“Because one prior disclosure contains all claim integers before the material date, novelty under s.9B is destroyed.”
Inventive step obviousness check	Cap.514 s.9C	识别区别特征；以本领域技术人员视角判断是否显而易见；避免 hindsight reasoning。	“The only difference is [...], which would be obvious to the skilled person; s.9C is therefore not satisfied.”

答卷句型

Scenario	Chinese-English Hybrid Sentence	Use When
法条引入	根据 Cap.[xxx] s.[xx]，法院先审查 [要件 1] 再审查 [要件 2]；On these facts, the key issue is whether the defendant has satisfied those statutory elements.	任何子问开头
结论保留	在现有事实下，X 很可能构成 [侵权/违法]；however, liability may be reduced if D proves [specific defence] under s.[xx].	需要平衡双方
最小假设	在不增加不必要假设的前提下，可合理假设 [A]，因为题目已明确 [B]。	老师要求 minimal assumptions
主体拆分	需分开分析 A（行为/人）、B（平台/雇主）、C（权利人）各自是否满足条文要件。	多主体题
民刑分流	同一事实可同时触发民事与刑事路径: civilly under s.[...], criminally under s.[...], with different thresholds.	版权/私隐常见

中英术语表

中文	English	Exam-use Note
受限制行为	restricted acts	版权侵权总入口；通常配 s.22。
实质部分	substantial part	质而非量；核心表达被取用即可。
向公众传播	communication to the public	网络上传、串流、on-demand 提供那要优先审此项。
改编	adaptation	含软件翻译、改写、结构性转换。
次级侵权	secondary infringement	处理侵权复制品的商业链条责任。
侵权复制品	infringing copy	常与 s.35 假设测试联动。
公平处理	fair dealing	多因素衡量，非绝对豁免。
排他许可	exclusive licence	可产生独立成并列诉权。
资料当事人	data subject	PDPO 权利主体。
资料使用者	data user	决定用途与处理方式者；核心义务主体。
资料处理者	data processor	替他人处理数据者，责任结构不同。

订明同意	prescribed consent	DPP3/Part 6A 高频术语。
直接促销	direct marketing	先通知、后同意、可退出。
查阅资料要求	data access request (DAR)	ss.18-21 程序题必备。
更正资料要求	data correction request (DCR)	ss.22-25 程序题必备。
停止披露通知	cessation notice	s.66K 起，违规可独立成罪。
起底	doxxing	对应 s.64 系列罪名。
重要日期	material date	专利新颖性与创造性的时间锚点。
可专利客体	patentable subject matter	先过 s.9A，再审 9B/9C/9D。
新颖性	novelty	看是否被现有技术完整公开。
创造性	inventive step	对本领域技术人员是否显而易见。
工业实用性	industrial applicability	可产业实施并产生技术效果。
先申请制	first-to-file	竞争申请按先提交优先。
撤销	revocation	被告反击专利有效性的关键程序。
权利要求解释	claim construction	侵权比对前必须先做。
必要技术特征	essential integers	专利侵权逐项比对的颗粒度。

Source Statutes

Section	Text
s.2(1)	(1) 版权是按照本部而存在于下列类别的作品的产 权 — (a) 原创的文学作品、戏剧作品、音乐作品或艺术作品; (b) 声音纪录、影片、广播或有线传播节目; 及 (c) 已发表版本的排印编排。 (1) Copyright is a property right which subsists in accordance with this Part in the following descriptions of work— (a) original literary, dramatic, musical or artistic works; (b) sound recordings, films, broadcasts or cable programmes; and (c) the typographical arrangement of published editions.
s.2(1)(a)	(a) 原创的文学作品、戏剧作品、音乐作品或艺术作品; (a) original literary, dramatic, musical or artistic works;
s.4(1)(a)	(a) 资料或其他材料的任何形式的编汇，且因其内容的选取或编排而构成智力创作，并包括(但不限于)列表; (a) a compilation of data or other material, in any form, which by reason of the selection or arrangement of its contents constitutes an intellectual creation, including but not limiting to a table;
s.4(1)(b)	(b) 电脑程式; 及 (b) a computer program; and
s.4(2)	(2) 除非文学作品、戏剧作品或音乐作品以书面或其他方式记录，否则版权并不存在于该等作品，而在该等作品经如此记录之前，其版权亦不存在; 在本部中，凡提述该等作品的制作时间，即提述该等作品经如此记录的时间。 (2) Copyright does not subsist in a literary, dramatic or musical work unless and until it is recorded, in writing or otherwise; and references in this Part to the time at which such a work is made are to the time at which it is so recorded.
s.11(1)	(1) 在本部中，作者 (author)就作品而言，指创作该作品的人。 (1) In this Part author (作者), in relation to a work, means the person who creates it.
s.11(3)	(3) 如文学作品、戏剧作品、音乐作品或艺术作品是电脑产生的，作出创作该作品所需的安排的人视为作者。 (3) In the case of a literary, dramatic, musical or artistic work which is computer-generated, the author is taken to be the person by whom the arrangements necessary for the creation of the work are undertaken.
s.12(1)	(1) 在本部中，合作作品 (work of joint authorship)指 2 名或多于 2 名作者合作制作的作品，而各名作者的贡献是不能明显地与另一或其他作者的贡献分开的。 (1) In this Part a work of joint authorship (合作作品) means a work made by the collaboration of 2 or more authors in which the contribution of each author is not distinct from that of the other author or authors.
s.13	13. 版权的第一拥有权除第 14、15 及 16 条另有规定外，作品的作者是该作品的任何版权的第一拥有人。 [比照 1988 c. 48 s. 11(1) U.K.] 13. First ownership of copyright The author of a work is the first owner of any copyright in it, subject to sections 14, 15 and 16 . [cf. 1988 c. 48 s. 11(1) U.K.]
s.14(1)	(1) 凡文学作品、戏剧作品、音乐作品或影片是由雇员在受雇工作期间制作的，则 — (a) 除任何协议有相反的规定外; 及 (b) 在符合第(2)款的规定下，该雇员的雇主是该作品的版权的第一拥有人。 (1) Where a literary, dramatic, musical or artistic work, or a film, is made by an employee in the course of his employment, his employer is the first owner of any copyright in the work subject to— (a) any agreement to the contrary; and (b) subsection (2).
s.15(1)	(1) 凡作品是某人委托制作的，而作者与委托人订订有就版权的享有权作出明确的规定的协议，则委托作品的版权属于根据该协议享有版权的人。 (1) Where a work is made on the commission of a person and there is an agreement between the author and the commissioner of the work which expressly provides for the entitlement to the copyright, copyright in the commissioned work belongs to the person who is entitled to the copyright under the agreement.
s.15(2)	(2) 尽管有第(1)款及第 13 及 103 条的规定，委托制作作品的人 — (a) 具有专用特许，可作为作者及该委托制作作品的人在委托制作作品时可合理地预料的目的，利用该委托作品; 及 (b) 有权制止为任何其他可合理地提出反对的目的而利用委托作品。 (2) Notwithstanding subsection (1) and sections 13 and 103, the person who commissioned the work— (a) has an exclusive licence to exploit the commissioned work for all purposes that could reasonably have been contemplated by the author and the person who commissioned the work at the time the work was commissioned; and (b) has the power to restrain any exploitation of the commissioned work for any purpose against which he could reasonably take objection.
s.17(2)	(2) 除以下条文另有规定外，如有关作者于某公历年死亡，版权在自该年年终起计的 50 年期间完结时届满。 (2) Copyright expires at the end of the period of 50 years from the end of the calendar year in which the author dies, subject as follows.
s.17(6)	(6) 如作品是由电脑产生而于某公历年制作的，则上述条文并不适用，而版权在自该年年终起计的 50 年期间完结时届满。 (6) If the work is computer-generated the above provisions do not apply and copyright expires at the end of the period of 50 years from the end of the calendar year in which the work was made.
s.17(7)	(7) 就合作作品而言，本条文须如以下般予以修改 — (a) 在第(2)款中，凡提述作者死亡须按以下规定解 释 — (i) 如所有作者的身分均为人所知，该提述即提述他们当中最后死亡的人的死亡; 及 (ii) 如其中一名或多于一名作者的身分为人所知，但其他的一名或多于一名作者的身分不为人所知，该提述即指为人所知的作者中最后死亡的 人的死亡; 及 (b) 在第(4)款中，凡提述作者的身分成为人所知，须解释为提述任何一个作者的身分成为人所知。 (7) The provisions of this section are adapted as follows in relation to a work of joint authorship— (a) the reference in subsection (2) to the death of the author is to be construed— (i) if the identity of all the authors is known, as a reference to the death of the last of them to die; and (ii) if the identity of one or more of the authors is known and the identity of one or more others is not, as a reference to the death of the last whose identity is known; and (b) the reference in subsection (4) to the identity of the author becoming known is to be construed as a reference to the identity of any of the authors becoming known.
s.194(2)	(2) 凡版权或版权的任何方面是由多于一人共同拥有的，则在本部中凡提述版权拥有人，即提述所有该等拥有人; 故此特别是 在须要取得版权拥有人特许的情况下，须要取得所有该等拥有人的特许。 [比照 1988 c. 48 s. 173 U.K.] (2) Where copyright (or any aspect of copyright) is owned by more than one person jointly, references in this Part to the copyright owner are to all the owners, so that, in particular, any requirement of the licence of the copyright owner requires the licence of all of them. [cf. 1988 c. 48 s. 173 U.K.]
s.198(1)	(1) 在本部中 — (由 2000 年第 64 号第 10 条 修订) 文章 (article) 在提及在期刊中的文章的文章中，包括任何类别的项目; 司法程序 (judicial proceedings) 包括在任何法院，审裁处或具有权限就影响任何人的法律权利或责任的任何事宜作出裁决的人席前进行的法律程序; 未经授权 (unauthorized) 就任何就作品而作出的事情而言 — (a) 指并非由版权拥有人作出或非在版权拥有人的特许下作出; (b) 如该项作品没有版权存在，指并非由作者作出或非在作者的特许下作出; 或在第 14(1)条 本会适用的情况下，并非由作者的雇主作出，或在作者的雇主的特许下作出; 或在 该两种情况的任何一种情况下，并非由合法地藉作者或其雇主而提出申索的人作出或非在 该人的特许下作出; 或 (c) 指并非依据第 57 条 (由政府对某些材料作出复制等)而作出; 字体 (typeface) 包括在印刷中使用的装饰花纹图案; 足够的卸责声明 (sufficient disclaimer) 就可构成侵犯 第 92 条 (反对作品受歧视处理的权利)所赋予权利的作为而言，指一项清晰和合理地显著 的表示，谓某作品已受到未经其作者或导演同意的处理，而 — (a) 该项表示是在作出上述作为之时作出的; 及 (b) 如作者或导演当时已被识别，则该项表示是与该识别并排出现的; 足够的确认声明 (sufficient acknowledgement) 指藉有关作品的名称或其他描述而确认该项作品并除在以下情况外识别其作者的声 明 — (a) 就已发表作品而言，该项作品是不具名发表的; (b) 就未发表作品而言，任何人不能藉合理查究而确定其作者的身分; 受雇 (employed)，雇员 (employee)，雇主 (employer) 及 雇用 (employment) 指雇用合约或学徒训练合约下的雇用; 指明课程 (specified course of study) 指符合任何以下描述的研习课程 — (a) 为教授根据附表 1A 指明的机构或当局发出或审批的课程指引发展的课程 (不论如何称述)而提供; 或 (b) 包含对学员在有关研习课程所涵盖的范围内的能力的评核而令学员获授予任何资格; (由 2007 年第 15 号第 47 条 增补) 音乐视觉纪录 (musical visual recording) 指任何附同完全是或有主要部分是由整项或部分音乐作品或由整项或部分音乐作品及有关的整项或部分文学作品所构成的声带的影片; (由 2003 年第 27 号第 5 条 增补) 书面 (writing) 包括任何形式的记号或代码，不论是否手写的，亦不论其记录的方法或所记录于的媒体; 而 写出 (written) 亦须此解释; 租赁权 (rental right) 指版权拥有人授权租赁或禁止租赁任何以下作品的复制品的权 利 — (a) 电脑程式; (b) 声音纪录; (c) 影片; (d) 收录在声音纪录内的文学作品... (1) In this Part— (Amended 64 of 2000 s. 10) article (文章), in the context of an article in a periodical, includes an item of any description; article in transit (过境物品) means an article which— (a) is brought into Hong Kong solely for the purpose of taking it out of Hong Kong; and (b) remains at all times in or on the vessel or aircraft in or on which it is brought into Hong Kong; authorized officer (获授权人员) means any public officer authorized in writing by the Commissioner to exercise any of the powers and perform any of the duties conferred or imposed on an authorized officer under this Ordinance; business (业务) includes— (a) a trade or profession; and (b) business conducted otherwise than for profit; (Replaced 15 of 2007 s. 47) collective work (汇集作品) means— (a) a work of joint authorship; or (b) a work in which there are distinct contributions by different authors or in which works or parts of works of different authors are incorporated; Commissioner (关长) means the Commissioner of Customs and Excise and any Deputy or Assistant Commissioner of Customs and Excise; (Replaced 22 of 1999 s. 3) computer-generated (电脑产生), in relation to a work, means that the work is generated by computer in circumstances such that there is no human author of the work; electronic (电子) means actuated by electric, magnetic, electro-magnetic, electro-chemical or electro-mechanical en...
s.198	198. 次要定义 (1) 在本部中 — (由 2000 年第 64 号第 10 条 修订) 文章 (article) 在提及在期刊中的文章的文章中，包括任何类别的项目; 司法程序 (judicial proceedings) 包括在任何法院，审裁处或具有权限就影响任何人的法律权利或责任的任何事宜作出裁决的人席前进行的法律程序; 未经授权 (unauthorized) 就任何就作品而作出的事情而言 — (a) 指并非由版权拥有人作出或非在版权拥有人的特许下作出; (b) 如该项作品没有版权存在，指并非由作者作出或非在作者的特许下作出; 或在第 14(1)条 本会适用的情况下，并非由作者的雇主作出，或在作者的雇主的特许下作出; 或在 该两种情况的任何一种情况下，并非由合法地藉作者或其雇主而提出申索的人作出或非在 该人的特许下作出; 或 (c) 指并非依据第 57 条 (由政府对某些材料作出复制等)而作出; 字体 (typeface) 包括在印刷中使用的装饰花纹图案; 足够的卸责声明 (sufficient disclaimer) 就可构成侵犯 第 92 条 (反对作品受歧视处理的权利)所赋予权利的作为而言，指一项清晰和合理地显著的表示，谓某作品已受到未经其作者或导演同意的处理，而 — (a) 该项表示是在作出上述作为之时作出的; 及 (b) 如作者或导演当时已被识别，则该项表示是与该识别并排出现的; 足够的确认声明 (sufficient acknowledgement) 指藉有关作品的名称或其他描述而确认该项作品并除在以下情况外识别其作者的声 明 — (a) 就已发表作品而言，该项作品是不具名发表的; (b) 就未发表作品而言，任何人不能藉合理查究而确定其作者的身分; 受雇 (employed)，雇员 (employee)，雇主 (employer) 及 雇用 (employment) 指雇用合约或学徒训练合约下的雇用; 指明课程 (specified course of study) 指符合任何以下描述的研习课程 — (a) 为教授根据附表 1A 指明的机构或当局发出或审批的课程指引发展的课程 (不论如何称述)而提供; 或 (b) 包含对学员在有关研习课程所涵盖的范围内的能力的评核而令学员获授予任何资格; (由 2007 年第 15 号第 47 条 增补) 音乐视觉纪录 (musical visual recording) 指任何附同完全是或有主要部分是由整项或部分音乐作品或由整项或部分音乐作品及有关的整项或部分文学作品所构成的声带的影片; (由 2003 年第 27 号第 5 条 增补) 书面 (writing) 包括任何形式的记号或代码，不论是否手写的，亦不论其记录的方法或所记录于的媒体; 而 写出 (written) 亦须此解释; 租赁权 (rental right) 指版权拥有人授权租赁或禁止租赁任何以下作品的复制品的权 利 — (a) 电脑程式; (b) 声音纪录; (c) 影片; (d) 收录在... (1) In this Part— (a) 指并非由版权拥有人作出或非在版权拥有人的特许下作出; (b) 如该项作品没有版权存在，指并非由作者作出或非在作者的特许下作出; 或在第 14(1)条 本会适用的情况下，并非由作者的雇主作出，或在作者的雇主的特许下作出; 或在 该两种情况的任何一种情况下，并非由合法地藉作者或其雇主而提出申索的人作出或非在 该人的特许下作出; 或 (c) 指并非依据第 57 条 (由政府对某些材料作出复制等)而作出; 字体 (typeface) 包括在印刷中使用的装饰花纹图案; 足够的卸责声明 (sufficient disclaimer) 就可构成侵犯 第 92 条 (反对作品受歧视处理的权利)所赋予权利的作为而言，指一项清晰和合理地显著的表示，谓某作品已受到未经其作者或导演同意的处理，而 — (a) 该项表示是在作出上述作为之时作出的; 及 (b) 如作者或导演当时已被识别，则该项表示是与该识别并排出现的; 足够的确认声明 (sufficient acknowledgement) 指藉有关作品的名称或其他描述而确认该项作品并除在以下情况外识别其作者的声 明 — (a) 就已发表作品而言，该项作品是不具名发表的; (b) 就未发表作品而言，任何人不能藉合理查究而确定其作者的身分; 受雇 (employed)，雇员 (employee)，雇主 (employer) 及 雇用 (employment) 指雇用合约或学徒训练合约下的雇用; 指明课程 (specified course of study) 指符合任何以下描述的研习课程 — (a) 为教授根据附表 1A 指明的机构或当局发出或审批的课程指引发展的课程 (不论如何称述)而提供; 或 (b) 包含对学员在有关研习课程所涵盖的范围内的能力的评核而令学员获授予任何资格; (由 2007 年第 15 号第 47 条 增补) 音乐视觉纪录 (musical visual recording) 指任何附同完全是或有主要部分是由整项或部分音乐作品或由整项或部分音乐作品及有关的整项或部分文学作品所构成的声带的影片; (由 2003 年第 27 号第 5 条 增补) 书面 (writing) 包括任何形式的记号或代码，不论是否手写的，亦不论其记录的方法或所记录于的媒体; 而 写出 (written) 亦须此解释; 租赁权 (rental right) 指版权拥有人授权租赁或禁止租赁任何以下作品的复制品的权 利 — (a) 电脑程式; (b) 声音纪录; (c) 影片; (d) 收录在...

	198. Minor definitions (1) In this Part— (Amended 64 of 2000 s. 10) article (文章), in the context of an article in a periodical, includes an item of any description; article in transit (过境物品) means an article which— (a) is brought into Hong Kong solely for the purpose of taking it out of Hong Kong; and (b) remains at all times in or on the vessel or aircraft in or on which it is brought into Hong Kong; authorized officer (获授权人员) means any public officer authorized in writing by the Commissioner to exercise any of the powers and perform any of the duties conferred or imposed on an authorized officer under this Ordinance; business (业务) includes— (a) a trade or profession; and (b) business conducted otherwise than for profit; (Replaced 15 of 2007 s. 47) collective work (汇集作品) means— (a) a work of joint authorship; or (b) a work in which there are distinct contributions by different authors or in which works or parts of works of different authors are incorporated; Commissioner (关长) means the Commissioner of Customs and Excise and any Deputy or Assistant Commissioner of Customs and Excise; (Replaced 22 of 1999 s. 3) computer-generated (电脑产生), in relation to a work, means that the work is generated by computer in circumstances such that there is no human author of the work; electronic (电子) means actuated by electric, magnetic, electro-magnetic, electro-chemical o...
s.198(2)	(2) In the 31(2)、 32(3)、 95(1A)、 96(6A)、 109(1A) 及 120(2A)条中, 经营 (dealing in)包括买入、出售、出租、输入、输出及分发。(由 2000 年第 64 号第 10 条增补。由 2007 年第 15 号第 47 条修订)
s.198(3)	(2) In sections 31(2)、 32(3)、 95(1A)、 96(6A)、 109(1A) and 120(2A), dealing in (经营) includes buying, selling, letting for hire, importing, exporting and distributing. (Added 64 of 2000 s. 10 . Amended 15 of 2007 s. 47) (3) 在本部中, 就在某国家、地区或地方制作的任何作品的复制品而言 — (a) 合法地制作 (lawfully made)指该复制品由下述的人制作 — (i) 在该国家、地区或地方(视属何情况而定)享有该作品的版权的人; 或 (ii) 获第(i)节所述的人的特许在该国家、地区或地方(视属何情况而定)制作该复制品的人; 但 (b) 如该复制品在某国家、地区或地方制作, 而该国家、地区或地方没有保障该作品的版权的法律, 或该作品在该国家、地区或地方的版权已期限届满, 则 合法地制作 (lawfully made)不包括该复制品。(由 2007 年第 15 号第 47 条代替) (3) In this Part, lawfully made (合法地制作), in relation to a copy of a work made in a country, territory or area— (a) means that the copy was made by— (i) a person who is entitled to the copyright in the work in the country, territory or area, as the case may be; or (ii) a person who is licensed by the person referred to in subparagraph (i) to make the copy in the country, territory or area, as the case may be; but (b) does not include a copy that was made in a country, territory or area where there is no law protecting copyright in the work or where the copyright in the work has expired. (Replaced 15 of 2007 s. 47)
s.198(4)	(4) 商务及经济发展局局长可藉于宪报刊登的公告修订 附表 1A 。 (由 2007 年第 15 号第 47 条 增补) [比照 1988 c. 48 s. 178 U.K.]
s.198(3a)	(4) The Secretary for Commerce and Economic Development may, by notice published in the Gazette, amend Schedule 1A . (Added 15 of 2007 s. 47) [cf. 1988 c. 48 s. 178 U.K.] (3A) 本部的文本中的附注, 仅供备知, 并无立法效力。(由 2022 年第 16 号第 74 条 增补)
s.22(1)	(3A) A note in the text of this Part is for information only and has no legislative effect. (Added 16 of 2022 s. 74) (1) 作品的版权的拥有人按照本分部的以下条文, 具有在香港作出以下作为的独有权利 — (a) 复制该作品(参阅 第 23 条); (b) 向公众发放该作品的复制品(参阅 第 24 条); (c) 租赁该作品的复制品予公众(参阅 第 25 条); (由 2007 年第 15 号第 5 条代替) (d) (由 2022 年第 16 号第 10 条废除) (e) 公开表演、放映或播放该作品(参阅 第 27 条); (f) (由 2022 年第 16 号第 10 条废除) (fa) 向公众传播该作品(参阅第 28A 条); (由 2022 年第 16 号第 10 条 增补) (g) 制作该作品的改编本, 或就该等改编本而作出任何上述作为(参阅 第 29 条), 而上述作为在本部中称为 受版权所限制的作为 (acts restricted by the copyright)。(编辑修订 — 2019 年第 2 号编辑修订记录)
s.22(2)	(1) The owner of the copyright in a work has, in accordance with the following provisions of this Division, the exclusive right to do the following acts in Hong Kong— (a) to copy the work (see section 23); (b) to issue copies of the work to the public (see section 24); (c) to rent copies of the work to the public (see section 25); (Replaced 15 of 2007 s. 5) (d) (Repealed 16 of 2022 s. 10) (e) to perform, show or play the work in public (see section 27); (f) (Repealed 16 of 2022 s. 10) (fa) to communicate the work to the public (see section 28A); (Added 16 of 2022 s. 10) (g) to make an adaptation of the work or do any of the above in relation to an adaptation (see section 29), and those acts are referred to in this Part as the acts restricted by the copyright (受版权所限制的作为) . (Amended E.R. 2 of 2019) (2) 任何人未获作品的版权拥有人的特许, 而自行或授权他人作出任何受版权所限制的作为, 即属侵犯该作品的版权。
s.22(2A)	(2) Copyright in a work is infringed by a person who without the licence of the copyright owner does, or authorizes another to do, any of the acts restricted by the copyright. (2A) For the purposes of subsection (2), in determining whether a person has authorized another person to do any of the acts restricted by the copyright in a work, the court may take into account all the circumstances of the case and, in particular— (a) the extent of that person’ s power (if any) to control or prevent the infringement; (b) the nature of the relationship (if any) between that person and that other person; and (c) whether that person has taken any reasonable steps to limit or stop the infringement. (Added 16 of 2022 s. 10) (2A) For the purposes of subsection (2), in determining whether a person has authorized another person to do any of the acts restricted by the copyright in a work, the court may take into account all the circumstances of the case and, in particular— (a) the extent of that person’ s power (if any) to control or prevent the infringement; (b) the nature of the relationship (if any) between that person and that other person; and (c) whether that person has taken any reasonable steps to limit or stop the infringement. (Added 16 of 2022 s. 10)
s.22(3)	(2A) 为施行第(2)款, 法院在裁定某人是否授权另一人作出任何受作品的版权所限制的作为时, 可考虑有关个案的整体情况, 并尤其可考虑 — (a) 该人控制或防止有关侵犯版权行为的权力(如有的话)的范围; (b) 该人与该另一人之间的关系(如有的话)的性质; 及 (c) 该人是否有采取任何合理步骤, 以限制或遏止有关侵犯版权行为。(由 2022 年第 16 号第 10 条 增补) (3) References in this Part to the doing of an act restricted by the copyright in a work are to the doing of it— (a) in relation to the work as a whole or any substantial part of it; and (b) either directly or indirectly, and it is immaterial whether any intervening acts themselves infringe copyright.
s.23	23. 因复制而侵犯版权 (1) 复制有关作品是受任何类别的版权作品的版权所限制的作为; 在本部中, 凡提述复制及复制品, 均按以下条文解释。(2) 复制任何作品指以任何实质形式复制该作品, 并包括藉电子方法将作品贮存于任何媒体。(3) 就艺术作品而言, 复制包括将平面作品制成立体的复制品以及将立体作品制成平面的复制品。(4) 就影片、电视广播或有线传播节目而言, 复制包括制作构成该影片、广播或有线传播节目的全部或任何实质部分的任何影像的照片。(5) 就已发表版本的排印编排而言, 复制指制作该编排的精确复制品。(6) 就任何类别的作品而言, 复制包括制作该等作品的短暂存在的复制品或为该等作品的其他用途而附带制作复制品。 [比照 1988 c. 48 s. 17 U.K.] 23. Infringement of copyright by copying (1) The copying of the work is an act restricted by the copyright in every description of copyright work; and references in this Part to copying and copies are construed as follows. (2) Copying of a work means reproducing the work in any material form. This includes storing the work in any medium by electronic means. (3) In relation to an artistic work copying includes the making of a copy in 3 dimensions of a 2-dimensional work and the making of a copy in 2 dimensions of a 3-dimensional work. (4) Copying in relation to a film, television broadcast or cable programme includes making a photograph of the whole or any substantial part of any image forming part of the film, broadcast or cable programme. (5) Copying in relation to the typographical arrangement of a published edition means making a facsimile copy of the arrangement. (6) Copying in relation to any description of work includes the making of copies which are transient or are incidental to some other use of the work. [cf. 1988 c. 48 s. 17 U.K.]
s.23(1)	(1) 复制有关作品是受任何类别的版权作品的版权所限制的作为; 在本部中, 凡提述复制及复制品, 均按以下条文解释。
s.23(2)	(1) The copying of the work is an act restricted by the copyright in every description of copyright work; and references in this Part to copying and copies are construed as follows. (2) 复制任何作品指以任何实质形式复制该作品, 并包括藉电子方法将作品贮存于任何媒体。
s.23(3)	(2) Copying of a work means reproducing the work in any material form. This includes storing the work in any medium by electronic means. (3) 就艺术作品而言, 复制包括将平面作品制成立体的复制品以及将立体作品制成平面的复制品。
s.23(4)	(3) In relation to an artistic work copying includes the making of a copy in 3 dimensions of a 2-dimensional work and the making of a copy in 2 dimensions of a 3-dimensional work. (4) 就影片、电视广播或有线传播节目而言, 复制包括制作构成该影片、广播或有线传播节目的全部或任何实质部分的任何影像的照片。
s.23(5)	(4) Copying in relation to a film, television broadcast or cable programme includes making a photograph of the whole or any substantial part of any image forming part of the film, broadcast or cable programme. (5) 就已发表版本的排印编排而言, 复制指制作该编排的精确复制品。
s.23(6)	(5) Copying in relation to the typographical arrangement of a published edition means making a facsimile copy of the arrangement. (6) 就任何类别的作品而言, 复制包括制作该等作品的短暂存在的复制品或为该等作品的其他用途而附带制作复制品。 [比照 1988 c. 48 s. 17 U.K.]
s.24	(6) Copying in relation to any description of work includes the making of copies which are transient or are incidental to some other use of the work. [cf. 1988 c. 48 s. 17 U.K.] 24. 以向公众发放复制品方式侵犯版权 (1) 向公众发放有关作品的复制品, 是受任何类别的版权作品的版权所限制的作为。(2) 在本部中, 凡提述向公众发放作品的复制品, 即提述由版权拥有人或在其同意下将以前从未在香港或其他地方发行的复制品发行的作为。(3) 在本部中, 凡提述向公众发放作品的复制品, 并不包括 — (a) 以前曾发行的复制品的任何其后的分发、售卖、租赁或借出(但参阅 第 25 条: 以租赁方式侵犯版权); 或 (b) 该等复制品其后输入香港。(4) 在本部中, 凡提述发放作品的复制品, 包括发放原本的作品及发放电子形式的复制品。 [比照 1988 c. 48 s. 18 U.K.] 24. Infringement by issue of copies to the public (1) The issue of copies of the work to the public is an act restricted by the copyright in every description of copyright work. (2) References in this Part to the issue of copies of a work to the public are to the act of putting into circulation copies not previously put into circulation, in Hong Kong or elsewhere, by or with the consent of the copyright owner. (3) References in this Part to the issue of copies of a work to the public do not include— (a) any subsequent distribution, sale, hiring or loan of copies previously put into circulation (but see section 25 : infringement by rental); or (b) any subsequent importation of those copies into Hong Kong. (4) References in this Part to the issue of copies of a work include the issue of the original and the issue of copies in electronic form. (Amended E.R. 2 of 2019) [cf. 1988 c. 48 s. 18 U.K.]
s.24(1)	(1) 向公众发放有关作品的复制品, 是受任何类别的版权作品的版权所限制的作为。
s.24(2)	(1) The issue of copies of the work to the public is an act restricted by the copyright in every description of copyright work. (2) 在本部中, 凡提述向公众发放作品的复制品, 即提述由版权拥有人或在其同意下将以前从未在香港或其他地方发行的复制品发行的作为。
s.24(3)	(2) References in this Part to the issue of copies of a work to the public are to the act of putting into circulation copies not previously put into circulation, in Hong Kong or elsewhere, by or with the consent of the copyright owner. (3) 在本部中, 凡提述向公众发放作品的复制品, 并不包括 — (a) 以前曾发行的复制品的任何其后的分发、售卖、租赁或借出(但参阅 第 25 条: 以租赁方式侵犯版权); 或 (b) 该等复制品其后输入香港。
s.24(4)	(3) References in this Part to the issue of copies of a work to the public do not include— (a) any subsequent distribution, sale, hiring or loan of copies previously put into circulation (but see section 25 : infringement by rental); or (b) any subsequent importation of those copies into Hong Kong. (4) 在本部中, 凡提述发放作品的复制品, 包括发放原本的作品及发放电子形式的复制品。 [比照 1988 c. 48 s. 18 U.K.]
s.25	(4) References in this Part to the issue of copies of a work include the issue of the original and the issue of copies in electronic form. (Amended E.R. 2 of 2019) [cf. 1988 c. 48 s. 18 U.K.] 25. 以租赁作品予公众方式侵犯版权 (1) 租赁任何以下作品的复制品予公众, 是受该作品的版权所限制的作为 — (a) 电脑程式; (b) 声音纪录; (c) 影片; (d) 收录在声音纪录内的文学作品、戏剧作品或音乐作品。(由 2007 年第 15 号第 6 条代替。由 2022 年第 16 号第 11 条 修订) (2) 在本部中, 除本条以下条文另有规定外, 租赁 (rental)指为直接或间接的经济或商业利益, 而令作品的复制品在该复制品将予或可予归还的条款下供人使用。(3) 租赁 (rental)一词不包括 — (a) 提供作公开表演、播放或放映之用, 或作向公众传播之用; (由 2022 年第 16 号第 11 条 修订) (b) 提供作公开陈列之用; 或 (由 2007 年第 15 号第 6 条 修订) (c) 提供作即场参考之用。(4) 在本部中, 凡提述租赁作品的复制品, 包括租赁原本的作品。 [比照 1988 c. 48 s. 18A U.K.] 25. Infringement by rental of work to the public (1) The rental of copies of any of the following works to the public is an act restricted by the copyright in the work— (a) a computer program; (b) a sound recording; (c) a film; (d) a literary, dramatic or musical work included in a sound recording. (Replaced 15 of 2007 s. 6 . Amended 16 of 2022 s. 11) (2) In this Part, subject to the following provisions of this section, rental (租赁) means making a copy of the work available for use, on terms that it will or may be returned, for direct or indirect economic or commercial advantage. (3) The expression rental (租赁) does not include— (a) making available for the purpose of public performance, playing or showing in public or communicating to the public. (Amended 16 of 2022 s. 11) (b) making available for the purpose of exhibition in public; or (c) making available for on-the-spot reference use. (4) References in this Part to the rental of copies of a work include the rental of the original. [cf. 1988 c. 48 s. 18A U.K.]
s.25(1)	(1) 租赁任何以下作品的复制品予公众, 是受该作品的版权所限制的作为 — (a) 电脑程式; (b) 声音纪录; (c) 影片; (d) 收录在声音纪录内的文学作品、戏剧作品或音乐作品。(由 2007 年第 15 号第 6 条代替。由 2022 年第 16 号第 11 条 修订) (1) The rental of copies of any of the following works to the public is an act restricted by the copyright in the work— (a) a computer program; (b) a sound recording; (c) a film; (d) a literary, dramatic or musical work included in a sound recording. (Replaced 15 of 2007 s. 6 . Amended 16 of 2022 s. 11)
s.25(2)	(2) 在本部中, 除本条以下条文另有规定外, 租赁 (rental)指为直接或间接的经济或商业利益, 而令作品的复制品在该复制品将予或可予归还的条款下供人使用。
s.25(3)	(2) In this Part, subject to the following provisions of this section, rental (租赁) means making a copy of the work available for use, on terms that it will or may be returned, for direct or indirect economic or commercial advantage. (3) 租赁 (rental)一词不包括 — (a) 提供作公开表演、播放或放映之用, 或作向公众传播之用; (由 2022 年第 16 号第 11 条 修订) (b) 提供作公开陈列之用; 或 (由 2007 年第 15 号第 6 条 修订) (c) 提供作即场参考之用。

	(3) The expression rental (租赁) does not include— (a) making available for the purpose of public performance, playing or showing in public or communicating to the public; (Amended 16 of 2022 s. 11) (b) making available for the purpose of exhibition in public; or (c) making available for on-the-spot reference use.
s.25(4)	(4) 在本部中，凡提述租赁作品的复制品，包括租赁原本的作品。 [比照 1988 c. 48 s. 18A U.K.]
s.27	(4) References in this Part to the rental of copies of a work include the rental of the original. [cf. 1988 c. 48 s. 18A U.K.] 27. 以公开表演、放映或播放作品方式侵犯版权 (1) 公开表演有关作品是受文学作品、戏剧作品或音乐作品的版权所限制的作为。(2) 在本部中，就作品而言，表演 (performance) —— (a) 包括讲课、讲话、演说及讲道；及 (b) 一般而言，包括藉任何视像或有声方式表达，并包括藉声音纪录、影片、广播或有线传播节目表达。(3) 公开播放或放映有关作品，是受声音纪录、影片、广播或有线传播节目的版权所限制的作为。(4) 如以器具接收藉电子方法传送的影像或声音而将作品公开表演、播放或放映，因而侵犯该作品的版权，则发送影像或声音的人及(如属表演)表演者，均不视为对侵犯版权负责。 [比照 1988 c. 48 s. 19 U.K.] 27. Infringement by performance, playing or showing of work in public (1) The performance of the work in public is an act restricted by the copyright in a literary, dramatic or musical work. (2) In this Part performance (表演), in relation to a work—(a) includes delivery in the case of lectures, addresses, speeches and sermons; and (b) in general, includes any mode of visual or acoustic presentation, including presentation by means of a sound recording, film, broadcast or cable programme of the work. (3) The playing or showing of the work in public is an act restricted by the copyright in a sound recording, film, broadcast or cable programme. (4) Where copyright in a work is infringed by its being performed, played or shown in public by means of apparatus for receiving visual images or sounds transmitted by electronic means, the person by whom the visual images or sounds are sent, and in the case of a performance the performers, shall not be regarded as responsible for the infringement. [cf. 1988 c. 48 s. 19 U.K.]
s.27(1)	(1) 公开表演有关作品是受文学作品、戏剧作品或音乐作品的版权所限制的作为。
s.27(2)	(1) The performance of the work in public is an act restricted by the copyright in a literary, dramatic or musical work. (2) 在本部中，就作品而言，表演 (performance) —— (a) 包括讲课、讲话、演说及讲道；及 (b) 一般而言，包括藉任何视像或有声方式表达，并包括藉声音纪录、影片、广播或有线传播节目表达。
s.27(3)	(2) In this Part performance (表演), in relation to a work—(a) includes delivery in the case of lectures, addresses, speeches and sermons; and (b) in general, includes any mode of visual or acoustic presentation, including presentation by means of a sound recording, film, broadcast or cable programme of the work. (3) 公开播放或放映有关作品，是受声音纪录、影片、广播或有线传播节目的版权所限制的作为。
s.27(4)	(3) The playing or showing of the work in public is an act restricted by the copyright in a sound recording, film, broadcast or cable programme. (4) 如以器具接收藉电子方法传送的影像或声音而将作品公开表演、播放或放映，因而侵犯该作品的版权，则发送影像或声音的人及(如属表演)表演者，均不视为对侵犯版权负责。 [比照 1988 c. 48 s. 19 U.K.]
s.28A(1)	(4) Where copyright in a work is infringed by its being performed, played or shown in public by means of apparatus for receiving visual images or sounds transmitted by electronic means, the person by whom the visual images or sounds are sent, and in the case of a performance the performers, shall not be regarded as responsible for the infringement. [cf. 1988 c. 48 s. 19 U.K.] (1) 向公众传播某作品(不论属任何类别)，是受该作品的版权所限制的作为。
s.28A(2)	(1) The communication of a work of any description to the public is an act restricted by the copyright in the work. (2) 在本部中，凡提述向公众传播某作品，即提述向公众以电子传播该作品，包 括 —— (a) 将该作品广播；(b) 将该作品包括在有线传播节目服务内；及 (c) 向公众提供该作品。
s.28A(3)	(2) References in this Part to the communication of a work to the public are references to the electronic communication of the work to the public, including— (a) the broadcasting of the work; (b) the inclusion of the work in a cable programme service; and (c) the making available of the work to the public. (3) 在本部中，凡提述向公众提供某作品，即提述以有线或无线的方式，提供该作品，而提供的方式，使在香港或其他地方的公众人士可于其各自选择的地点及时间，接达该作品(例如将该作品透过互联网提供)。
s.29	(3) References in this Part to making a work available to the public are references to making the work available, by wire or wireless means, in such a way that members of the public in Hong Kong or elsewhere may access the work from a place and at a time individually chosen by them (such as by making works available through the Internet). 29. 以改编或作出与改编有关的方式侵犯版权 (1) 制作有关作品的改编本，是受文学作品、戏剧作品或音乐作品的版权所限制的作为。就此而言，当以书面或其他方式记录该等作品，即为制作改编本。(2) 就文学作品、戏剧作品或音乐作品的改编本而作出 第 23、24、25、27 或 28A 条 或第(1)款所指明的作为中的任何作为，亦属受该等作品的版权所限制的作为。就此而言，在作出该作为时该改编本是否已经以书面或其他方式记录，并不具关键性。(由 2022 年第 16 号第 15 条 修订) —— (a) 就文学作品(电脑程式除外)或戏剧作品而言，指 —— (i) 该作品的翻译本；(ii) 由戏剧作品转为非戏剧作品的戏剧作品的版本，或由非戏剧作品转为戏剧作品的非戏剧作品的版本(视属何情况而定)；(iii) 全部或主要藉图画表达故事或动作的该作品的任何版本，而该等图画是适宜在书本或在报章、杂志或相类期刊上复制的；(b) 就电脑程式而言，指该程式的编排版本或经更改的版本，或其翻译本；(c) 就音乐作品而言，指该作品的乐曲编排或改编谱。(4) 就电脑程式而言，翻译本 (translation) 包括由电脑程式转为电脑语言或代码的电脑程式的版本或由电脑语言或代码转为电脑程式的电脑程式的版本，或由一种电脑语言或代码转为另一种电脑语言或代码的电脑程式的版本。(5) 不得自本条而推论什么构成或并不构成复制某作品。 [比照 1988 c. 48 s. 21 U.K.] 29. Infringement by making adaptation or act done in relation to adaptation (1) The making of an adaptation of the work is an act restricted by the copyright in a literary, dramatic or musical work. For this purpose an adaptation is made when it is recorded, in writing or otherwise. (2) The doing of any of the acts specified in section 23, 24, 25, 27 or 28A, or subsection (1), in relation to an adaptation of the work is also an act restricted by the copyright in a literary, dramatic or musical work. For this purpose it is immaterial whether the adaptation has been recorded, in writing or otherwise, at the time the act is done. (Amended 16 of 2022 s. 15) (3) In this Part adaptation (改编本)—(a) in relation to a literary work, other than a computer program, or dramatic work, means— (i) a translation of the work; (ii) a version of a dramatic work in which it is converted into a non-dramatic work or, as the case may be, of a non-dramatic work in which it is converted into a dramatic work; (iii) a version of the work in which the story or action is conveyed wholly or mainly by means of pictures in a form suitable for reproduction in a book, or in a newspaper, magazine or similar periodical; (b) in relation to a computer program, means an arrangement or altered version of the program or a translation of it; (c) in relation to a musical work, means an arrangement or transcript...
s.29(1)	(1) 制作有关作品的改编本，是受文学作品、戏剧作品或音乐作品的版权所限制的作为。就此而言，当以书面或其他方式记录该等作品，即为制作改编本。
s.29(2)	(1) The making of an adaptation of the work is an act restricted by the copyright in a literary, dramatic or musical work. For this purpose an adaptation is made when it is recorded, in writing or otherwise. (2) 就文学作品、戏剧作品或音乐作品的改编本而作出 第 23、24、25、27 或 28A 条 或第(1)款所指明的作为中的任何作为，亦属受该等作品的版权所限制的作为。就此而言，在作出该作为时该改编本是否已经以书面或其他方式记录，并不具关键性。(由 2022 年第 16 号第 15 条 修订)
s.29(3)	(2) The doing of any of the acts specified in section 23, 24, 25, 27 or 28A, or subsection (1), in relation to an adaptation of the work is also an act restricted by the copyright in a literary, dramatic or musical work. For this purpose it is immaterial whether the adaptation has been recorded, in writing or otherwise, at the time the act is done. (Amended 16 of 2022 s. 15) (3) 在本部中改编本 (adaptation) —— (a) 就文学作品(电脑程式除外)或戏剧作品而言，指 —— (i) 该作品的翻译本；(ii) 由戏剧作品转为非戏剧作品的戏剧作品的版本，或由非戏剧作品转为戏剧作品的非戏剧作品的版本(视属何情况而定)；(iii) 全部或主要藉图画表达故事或动作的该作品的任何版本，而该等图画是适宜在书本或在报章、杂志或相类期刊上复制的；(b) 就电脑程式而言，指该程式的编排版本或经更改的版本，或其翻译本；(c) 就音乐作品而言，指该作品的乐曲编排或改编谱。
s.29(4)	(3) In this Part adaptation (改编本)—(a) in relation to a literary work, other than a computer program, or dramatic work, means— (i) a translation of the work; (ii) a version of a dramatic work in which it is converted into a non-dramatic work or, as the case may be, of a non-dramatic work in which it is converted into a dramatic work; (iii) a version of the work in which the story or action is conveyed wholly or mainly by means of pictures in a form suitable for reproduction in a book, or in a newspaper, magazine or similar periodical; (b) in relation to a computer program, means an arrangement or altered version of the program or a translation of it; (c) in relation to a musical work, means an arrangement or transcription of the work. (4) 就电脑程式而言，翻译本 (translation) 包括由电脑程式转为电脑语言或代码的电脑程式的版本或由电脑语言或代码转为电脑程式的电脑程式的版本，或由一种电脑语言或代码转为另一种电脑语言或代码的电脑程式的版本。
s.29(5)	(4) In relation to a computer program a translation (翻译本) includes a version of the program in which it is converted into or out of a computer language or code or into a different computer language or code. (5) 不得自本条而推论什么构成或并不构成复制某作品。 [比照 1988 c. 48 s. 21 U.K.]
s.29(3)(b)	(5) No inference is to be drawn from this section as to what does or does not amount to copying a work. [cf. 1988 c. 48 s. 21 U.K.] (b) 就电脑程式而言，指该程式的编排版本或经更改的版本，或其翻译本；
s.30	(b) in relation to a computer program, means an arrangement or altered version of the program or a translation of it; 30. 间接侵犯版权：输入或输出侵犯版权复制品 任何人未获作品的版权拥有人的特许，将该作品的复制品输入或输出香港，而他知道或有理由相信该复制是该作品的侵犯版权复制品，而且他输入或输出该复制品并非供自己私人及家居使用，即属侵犯该作品的版权。 [比照 1988 c. 48 s. 22 U.K.]
s.31	30. Secondary infringement: importing or exporting infringing copy The copyright in a work is infringed by a person who, without the licence of the copyright owner, imports into Hong Kong or exports from Hong Kong, otherwise than for his private and domestic use, a copy of the work which is, and which he knows or has reason to believe to be, an infringing copy of the work. [cf. 1988 c. 48 s. 22 U.K.] 31. 间接侵犯版权：进行侵犯版权复制品交易 (由 2022 年第 16 号第 16 条 修订) (1) 任何人未获作品的版权拥有人的特许，就该作品的复制品作出以下作为，而他知道或有理由相信该复制品是该作品的侵犯版权复制品，即属侵犯该作品的版权 —— (由 2000 年第 64 号第 2 条 修订) (a) 为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该复制品；(由 2000 年第 64 号第 2 条 代替。由 2007 年第 15 号第 7 条 修订) (b) 将该复制品出售、出租、要约出售或要约出租，或为出售或出租而展示该复制品；(c) 为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该复制品；或 (由 2000 年第 64 号第 2 条 代替。由 2007 年第 15 号第 7 条 修订) (d) 并非为任何贸易或业务的目的，亦并非在任何贸易或业务的过程中，分发该复制品并达到损害版权拥有人的程度。(由 2000 年第 64 号第 2 条 修订；由 2007 年第 15 号第 7 条 修订) (2) 就第 (1) (a) 及 (c) 款而言，有关的贸易或业务是否包含经营版权作品的侵犯版权复制品并不具关键性。(由 2000 年第 64 号第 2 条 增补) (3) 就第 (1) (d) 款而言，法院在裁定某作品的侵犯版权复制品的分发有否达到损害版权拥有人的权利的程度时，可考虑有关个案的整体情况，并尤其可考 虑 —— (a) 该项分发的目的；(b) 该作品的性质，包括其商业价值(如有的话)；(c) 相对于该作品的整体，被分发的遭复制部分所占的数量及实质分量；(d) 该项分发的方式；及 (e) 因应该项分发而对版权拥有人所造成的经济损害(如有的话)，包括该项分发对该作品的潜在市场或价值的影响。(由 2022 年第 16 号第 16 条 增补) [比照 1988 c. 48 s. 23 U.K.] 31. Secondary infringement: dealing with infringing copy (Amended 16 of 2022 s. 16) (1) The copyright in a work is infringed by a person who, without the licence of the copyright owner— (Amended 64 of 2000 s. 2) (a) possesses for the purpose of or in the course of any trade or business; (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (b) sells or lets for hire, or offers or exposes for sale or hire; (c) exhibits in public or distributes for the purpose of or in the course of any trade or business; or (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (d) distributes (otherwise than for the purpose of or in the course of any trade or business) to such an extent as to affect prejudicially the owner of the copyright, (Amended 64 of 2000 s. 2 ; 15 of 2007 s. 7) a copy of a work which is, and which he knows or has reason to believe to be, an infringing copy of the work. (2) It is immaterial for the purpose of subsection 1) (a) and (c) whether or not the trade or business consists of dealing in infringing copies of copyright works. (Added 64 of 2000 s. 2) (3) For the purposes of subsection 1) (d), in determining whether any distribution of an infringing copy of a work is made to such an extent as to affect prejudicially the owner of the copyright, the court may take into account all the circumstances of the case and, in particular— (a) the purpose of the distribu...
s.31(1)	(1) 任何人未获作品的版权拥有人的特许，就该作品的复制品作出以下作为，而他知道或有理由相信该复制品是该作品的侵犯版权复制品，即属侵犯该作品的版权 —— (由 2000 年第 64 号第 2 条 修订) (a) 为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该复制品；(由 2000 年第 64 号第 2 条 代替。由 2007 年第 15 号第 7 条 修订) (b) 将该复制品出售、出租、要约出售或要约出租，或为出售或出租而展示该复制品；(c) 为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该复制品；或 (由 2000 年第 64 号第 2 条 代替。由 2007 年第 15 号第 7 条 修订) (d) 并非为任何贸易或业务的目的，亦并非在任何贸易或业务的过程中，分发该复制品并达到损害版权拥有人的程度。(由 2000 年第 64 号第 2 条 修订；由 2007 年第 15 号第 7 条 修订)
s.31(2)	(1) The copyright in a work is infringed by a person who, without the licence of the copyright owner—(Amended 64 of 2000 s. 2) (a) possesses for the purpose of or in the course of any trade or business; (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (b) sells or lets for hire, or offers or exposes for sale or hire; (c) exhibits in public or distributes for the purpose of or in the course of any trade or business; or (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (d) distributes (otherwise than for the purpose of or in the course of any trade or business) to such an extent as to affect prejudicially the owner of the copyright, (Amended 64 of 2000 s. 2 ; 15 of 2007 s. 7) a copy of a work which is, and which he knows or has reason to believe to be, an infringing copy of the work. (2) 就第 (1) (a) 及 (c) 款而言，有关的贸易或业务是否包含经营版权作品的侵犯版权复制品并不具关键性。(由 2000 年第 64 号第 2 条 增补)
s.31(3)	(2) It is immaterial for the purpose of subsection 1) (a) and (c) whether or not the trade or business consists of dealing in infringing copies of copyright works. (Added 64 of 2000 s. 2) (3) For the purposes of subsection 1) (d), in determining whether any distribution of an infringing copy of a work is made to such an extent as to affect prejudicially the owner of the copyright, the court may take into account all the circumstances of the case and, in particular— (a) the purpose of the distribution; (b) the nature of the work, including its commercial value (if any); (c) the amount and substantiality of the portion copied (in relation to the work as a whole) that was distributed; (d) the mode of the distribution; and (e) the economic prejudice (if any) caused to the owner of the copyright as a consequence of the distribution, including the effect of the distribution on the potential market for, or value of, the work. (Added 16 of 2022 s. 16) (3) For the purposes of subsection 1) (d), in determining whether any distribution of an infringing copy of a work is made to such an extent as to affect prejudicially the owner of the copyright, the court may take into account all the circumstances of the case and, in particular— (a) the purpose of the distribution; (b) the nature of the work, including its commercial value (if any); (c) the amount and substantiality of the portion copied (in relation to the work as a whole)

	that was distributed; (d) the mode of the distribution; and (e) the economic prejudice (if any) caused to the owner of the copyright as a consequence of the distribution, including the effect of the distribution on the potential market for, or value of, the work. (Added 16 of 2022 s. 16)
s.32(1)	(1) 任何人未获作品的版权所有人的特许 而 —— (a) 制作物品; (b) 将物品输入或输出香港; (c) 为任何贸易或业务的目的或在任何贸易或业务的过程中, 管有物品; 或 (由 2000 年第 64 号第 3 条代替。由 2007 年第 15 号第 8 条修订) (d) 将物品出售、出租、要约出售或要约出租, 或为出售或出租而展示该物品, 而该物品是经特定设计或改装, 用以制作该作品的复制品, 而该人是在知道或有理由相信该物品是将以制作该等侵犯版权复制品的情况下作出上述作为, 则该人即属侵犯该作品的版权。 (1) Copyright in a work is infringed by a person who, without the licence of the copyright owner— (a) makes; (b) imports into Hong Kong or exports from Hong Kong; (c) possesses for the purpose of or in the course of any trade or business; or (Amended 64 of 2000 s. 3; 15 of 2007 s. 8) (d) sells or lets for hire, or offers or exposes for sale or hire, an article specifically designed or adapted for making copies of that work, knowing or having reason to believe that it is to be used to make infringing copies.
s.32(2)	(2) 任何人未获作品的版权所有人的特许, 藉电讯系统传送该作品(但并非藉向公众传播而传送), 而他是在知道或有理由相信将有作品的侵犯版权复制品藉在香港或其他地方接收该传送而制作的情况下作出该传送, 则该人即属侵犯该作品的版权。(由 2022 年第 16 号第 17 条修订) (2) Copyright in a work is infringed by a person who, without the licence of the copyright owner, transmits the work by means of a telecommunications system (otherwise than by communicating to the public), knowing or having reason to believe that infringing copies of the work will be made by means of the reception of the transmission in Hong Kong or elsewhere. (Amended 16 of 2022 s. 17)
s.35(2)	(2) 如某作品的复制品的制作构成侵犯有关作品的版权, 则该复制品即属侵犯版权复制品。 (2) A copy of a work is an infringing copy if its making constituted an infringement of the copyright in the work in question.
s.35(3)	(3) 除 35A 或 35B 条 另有规定外, 如 —— (由 2003 年第 27 号第 2 条 修订; 由 2007 年第 15 号第 9 条 修订) (a) 某作品的复制品(附属作品的复制品除外)已输入或拟输入香港; 及 (b) 该复制品(附属作品的复制品除外)假使是在香港制作即会构成侵犯有关作品的版权, 或违反关乎该作品的专用特许协议, 该复制品(附属作品的复制品除外)亦属侵犯版权复制品(附属作品的复制品除外)。 (3) Except as otherwise provided in section 35A or 35B, a copy of a work other than a copy of an accessory work is also an infringing copy if— (Amended 27 of 2003 s. 2; 15 of 2007 s. 9) (a) it has been or is proposed to be imported into Hong Kong; and (b) its making in Hong Kong would have constituted an infringement of the copyright in the work in question, or a breach of an exclusive licence agreement relating to that work.
s.35A	35A. 电脑程式的复制品或与电脑程式载于同一物品的某些其他作品的复制品并非第 35(3)条 所指的 侵犯版权复制品 (1) 如本款适用的作品的复制品是在制作它的所在国家、地区或地方合法地制作的, 则它并非第 35(3)条 所指的侵犯版权复制品。 (2) 如某作品的复制品 —— (a) 属电脑程式的复制品; 或 (b) 不属于电脑程式的复制品, 但与电脑程式的复制品载于同一物品, 且并非第(3)或(4)款所规定者, 而假使没有第(1)款, 该复制品便会是 第 35(3)条 所指的侵犯版权复制品, 则第(1)款适用于该复制品。 (3) 任何第 (2) (b) 款所述的作品(复制品)如符合以下说明, 则第(1)款不适用于该复制品 —— (a) 该复制品是或实质上是整出电影或电视剧或电视电影的复制品; 或 (b) 如该复制品是某电影或电视剧或电视电影的部分的复制品, 则 —— (i) 该电影或电视剧或电视电影的所有部分(指其复制品载于有关物品的部分)合起来构成或实质上构成整出该电影或电视剧或电视电影; 或 (ii) 该电影或电视剧或电视电影的所有部分(指其复制品载于有关物品的部分的总计观看时间(就电影而言)超过 15 分钟, 或(就电视剧或电视电影而言)超过 10 分钟, 而在 (a) 及 (b) (i) 段中对电视剧或电视电影的提述, 就由一集或多于一集剧情组成的电视剧或电视电影而言, 即为对该电视剧或电视电影的一集剧情的提述。 (4) 任何第 (2) (b) 款所描述的作品(复制品)如 属 —— (a) 电影或电视剧或电视电影的复制品(第(3)款适用者除外); (b) 音乐录音纪录或音乐电视纪录的复制品; 或 (c) 构成电子书的一部分的复制品, (指明作品复制品)则在下述情况下, 第(1)款不适用于该复制品: 某人在获取载有该指明作品复制品的物品供自己使用时, 其目的是为了获取载于该物品的各指明作品复制品的可能性, 大于为了获取载于该物品的不属于指明作品复制品的各作品的复制品的可能性。 (5) 就第(4)款而言, 于考虑获取某物品的目的是为了获取载于该物品的某作品的复制品的可能性时, 任何电脑程式中如有任何部分的功能是提供方法以进行以下活动, 则该等部分的复制品须被视为指明作品复制品的部分 —— (a) 观看或收听载于该物品的指明作品复制品, 或(如该作品经编码处理)就该产品进行解码, 以便能够观看或收听该指明作品复制品; 或 (b) 搜索载于该物品的指明作品复制品的任何特定部分。 (6) 在本条中, 电子书(e-book)指载于单一物品的作品的复制品的组合, 而该组合包 含 —— (a) 以下每项作品的一份或多于一份复制品 —— (i) 电脑程式; 及 (ii) 文学作品(电脑程式除外)、戏剧作品、音乐作品或艺术作品(主要作品), 而其编排方式令主要作品的复制品以书本、杂志或期刊的电子版本的形式呈现; 及 (b) 一份或多于一份影片或声音纪录的复制品(如该复制品或该等复制品是附同主要作品说明用途的)。 (7) 为免疑问, 在本条(第(6)款除外)中, 对作品的复制品的提述, 即为对整项作品的复制品或作品的任何实质部分的复制品的提述。(由 2003 年第 27 号第 3 条 增补) 35A. Copy of a computer program, or of certain other works embodied in the same article as a computer program, not an infringing copy for the purposes of section 35(3) (1) A copy of a work to which this subsection applies is not an infringing copy for the purposes of section 35(3) if it was lawfully made in the country, territory or area where it was made. (2) Subsection (1) applies to— (a) a copy of a computer program; or (b) except as provided in subsection (3) or (4), a copy of a work other than a computer program, which copy is embodied in an article that also embodies a copy of a computer program, that, but for subsection (1), would be an infringing copy for the purposes of section 35(3). (3) Subsection (1) does not apply to any copy of a work described in subsection (2) (b) — (a) that is a copy of the whole or substantially the whole of a movie or a television drama; or (b) that is a copy of a part of a movie or a television drama if — (i) all those parts of the movie or television drama copies of which are embodied in the article together constitute the whole or substantially the whole of the movie or television drama; or (ii) the viewing time of all those parts of the movie or television drama copies of which are embodied in the article is, in the case of a movie, more than 15 minutes in aggregate or, in the case of a television drama, more than 10 minutes in aggreg...
s.35A(1)	(1) 如本款适用的作品的复制品是在制作它的所在国家、地区或地方合法地制作的, 则它并非第 35(3)条 所指的侵犯版权复制品。 (1) A copy of a work to which this subsection applies is not an infringing copy for the purposes of section 35(3) if it was lawfully made in the country, territory or area where it was made.
s.35A(2)	(2) 如某作品的复制品 —— (a) 属电脑程式的复制品; 或 (b) 不属于电脑程式的复制品, 但与电脑程式的复制品载于同一物品, 且并非第(3)或(4)款所规定者, 而假使没有第(1)款, 该复制品便会是 第 35(3)条 所指的侵犯版权复制品, 则第(1)款适用于该复制品。 (2) Subsection (1) applies to— (a) a copy of a computer program; or (b) except as provided in subsection (3) or (4), a copy of a work other than a computer program, which copy is embodied in an article that also embodies a copy of a computer program, that, but for subsection (1), would be an infringing copy for the purposes of section 35(3).
s.35A(3)	(3) 任何第 (2) (b) 款所描述的作品(复制品)如符合以下说明, 则第(1)款不适用于该复制品 —— (a) 该复制品是或实质上是整出电影或电视剧或电视电影的复制品; 或 (b) 如该复制品是某电影或电视剧或电视电影的部分的复制品, 则 —— (i) 该电影或电视剧或电视电影的所有部分(指其复制品载于有关物品的部分)合起来构成或实质上构成整出该电影或电视剧或电视电影; 或 (ii) 该电影或电视剧或电视电影的所有部分(指其复制品载于有关物品的部分的总计观看时间(就电影而言)超过 15 分钟, 或(就电视剧或电视电影而言)超过 10 分钟, 而在 (a) 及 (b) (i) 段中对电视剧或电视电影的提述, 就由一集或多于一集剧情组成的电视剧或电视电影而言, 即为对该电视剧或电视电影的一集剧情的提述。 (3) Subsection (1) does not apply to any copy of a work described in subsection (2) (b) — (a) that is a copy of the whole or substantially the whole of a movie or a television drama; or (b) that is a copy of a part of a movie or a television drama if— (i) all those parts of the movie or television drama copies of which are embodied in the article together constitute the whole or substantially the whole of the movie or television drama; or (ii) the viewing time of all those parts of the movie or television drama copies of which are embodied in the article is, in the case of a movie, more than 15 minutes in aggregate or, in the case of a television drama, more than 10 minutes in aggregate, and in paragraphs (a) and (b) (i), reference to a television drama, in the case of a television drama comprising one or more episodes, is reference to an episode of the television drama.
s.35A(4)	(4) 任何第 (2) (b) 款所描述的作品(复制品)如 属 —— (a) 电影或电视剧或电视电影的复制品(第(3)款适用者除外); (b) 音乐录音纪录或音乐电视纪录的复制品; 或 (c) 构成电子书的一部分的复制品, (指明作品复制品)则在下述情况下, 第(1)款不适用于该复制品: 某人在获取载有该指明作品复制品的物品供自己使用时, 其目的是为了获取载于该产品的各指明作品复制品的可能性, 大于为了获取载于该产品的不属于指明作品复制品的各作品的复制品的可能性。 (4) Subsection (1) does not apply to any copy of a work described in subsection (2) (b) that is— (a) a copy of a movie or a television drama (other than a copy to which subsection (3) applies); (b) a copy of a musical sound recording or a musical visual recording; or (c) a copy that forms part of an e-book, (a specified copy of a work) if the article in which the specified copy is embodied is likely, in being acquired by a person for his own use, to be acquired for the purpose of acquiring the specified copies of works that are embodied in it more so than for the purpose of acquiring the copies of works other than specified copies that are embodied in it.
s.35A(5)	(5) 就第(4)款而言, 于考虑获取某物品的目的是为了获取载于该物品的某作品的复制品的可能性时, 任何电脑程式中如有任何部分的功能是提供方法以进行以下活动, 则该等部分的复制品须被视为指明作品复制品的部分 —— (a) 观看或收听载于该物品的指明作品复制品, 或(如该作品经编码处理)就该产品进行解码, 以便能够观看或收听该指明作品复制品; 或 (b) 搜索载于该产品的指明作品复制品的任何特定部分。 (5) For the purposes of subsection (4), in considering the extent to which an article is likely to be acquired for the purpose of acquiring a particular copy of a work that is embodied in it, a copy of those parts of any computer program the function of which is to provide a means of— (a) viewing or listening to a specified copy of a work that is embodied in the article (or, where that work is in encrypted form, a means of decrypting it so as to enable such viewing or listening); or (b) searching for any specific part of a specified copy of a work that is embodied in the article, shall be regarded as part of the specified copy of a work.
s.35A(6)	(6) 在本条中, 电子书(e-book)指载于单一物品的作品的复制品的组合, 而该组合包 含 —— (a) 以下每项作品的一份或多于一份复制品 —— (i) 电脑程式; 及 (ii) 文学作品(电脑程式除外)、戏剧作品、音乐作品或艺术作品(主要作品), 而其编排方式令主要作品的复制品以书本、杂志或期刊的电子版本的形式呈现; 及 (b) 一份或多于一份影片或声音纪录的复制品(如该复制品或该等复制品是附同主要作品说明用途的)。 (6) In this section, e-book (电子书) means a combination of copies of works embodied in a single article and comprising— (a) one or more copies of each of— (i) a computer program; and (ii) a literary work (other than a computer program), a dramatic work, a musical work or an artistic work (main work), so arranged as to provide for the copy of the main work to be presented in the form of an electronic version of a book, magazine or periodical; and (b) where a main work is accompanied for illustrative purposes by any copy or copies of films or sound recordings, that copy or those copies.
s.35A(7)	(7) 为免疑问, 在本条(第(6)款除外)中, 对作品的复制品的提述, 即为对整项作品的复制品或作品的任何实质部分的复制品的提述。 (7) For the avoidance of doubt, reference in this section, other than subsection (6), to a copy of a work is reference to a copy of the whole or a substantial part of a work.
s.36	36. 就第 30 及 31 条 而言的免费辩护 (1) 现声明如有某作品的复制品是在制作它的所在国家、地区或地方合法地制作的, 且它仅凭第 35(3)条 而属侵犯版权复制品, 则就第 30 及 31 条 而言以及为免疑问, 在根据第 30 或 31 条 而就某作品的复制品进行的侵犯版权诉讼中, 如被告人证明 —— (由 2007 年第 15 号第 11 条 修订) (a) 他已作出合理查究足以使他自己信纳该已输入或输入香港的该作品的复制品并非该作品的侵犯版权复制品; (b) 他基于合理理由而信纳在有关个案的情况下, 该复制品并非侵犯版权复制品; 及 (c) 没有其他本会致使他合理地怀疑该复制品是侵犯版权复制品的情況, 则他已证明他没有理由相信该复制品是侵犯版权复制品。 (2) 法院在裁定被告人是否已根据第(1)款证明他没有理由相信该复制品是侵犯版权复制品时, 可顾及的因素包括(但不限于)以下事项 —— (a) 他是否已就有关类别作品向有关的行业团体作出查究; (b) 他是否已给予通知促请有关的版权所有人或专用特许持有人注意他在输入和出售该作品的复制品方面的权益; (c) 他是否已遵从就有关类别作品的供应而可能存在的实务守则; (d) 对被告作出的该等查究的回应(如有的话)是否合理和及时; (e) 他是否已获提供有关的版权拥有人或专用特许持有人(视属何情况而定)的姓名或名称、地址及其联络之详细资料; (f) 他是否已获提供有关作品首日发表之日期; (g) 他是否已获提供任何有关专用特许之证明。 (3) 凡某人一如第 30 或 31 条 所述该侵犯版权, 在针对该人侵犯版权的诉讼中, 如该人证明以下事项, 即可以此作为免费辩护 —— (a) 他已向版权拥有人或专用特许持有人(视属何情况而定)订购该作品的复制品, 以获得该作品的复制品的供应; (b) 他已向某人作出订购, 但某人基于不合理理由而不作出提供或在合理的条款下始同意提供, 故此其作为并不合理; 及 (c) 有关输入是在版权拥有人或专用特许持有人作出该不合理的行为之后并且是在 第 35(4) (b) 条 指明的期间届满之后进行的。 (4) 法院在裁定版权所有人或专用特许持有人是否已作出合理的行为时, 须将个别行业行为有秩序地分发给该类别作品的复制品而既及, 尤其须考虑该订单如获履行, 会否与版权所有人或专用特许持有人对该作品的正常利用有所抵触, 或会否不合理地损害版权所有人或专用特许持有人的合法权益。 (5) 法院在裁定是否基于不合理理由而不作出提供或在合理的条款下始同意提供时, 须考虑个别行业或个别公众的合理需求, 包括但不限于价格及提货时间、该行业对在香港存货之处理、该行业对个别媒体、类别或语言的产品之一般处理、订单之大小、已作之查询以及有无人士以前曾向个别供应商订货而未有得到见覆。 36. Defences for the purposes of sections 30 and 31 (1) For the purposes of sections 30 and 31 and for the avoidance of doubt, it is declared that if in an action for infringement of copyright under section 30 or 31 in respect of a copy of a work which is an infringing copy by virtue only of section 35(3) and which was lawfully made in the country, territory or area where it was made, the defendant proves that— (Amended 15 of 2007 s. 11) (a) he had made reasonable enquiries sufficient to satisfy himself that the copy of the work imported or proposed to be imported into Hong Kong was not an infringing copy of the work; (b) he had reasonable grounds to be satisfied in the circumstances of the case that the copy was not an infringing copy; and (c) there were no other circumstances which would have led him reasonably to suspect that the copy was an infringing copy, he has proved that he did not have reason to believe that the copy was an infringing copy. (2) In determining whether a defendant has proved under subsection (1) that he did not have reason to believe that the copy was an infringing copy of the work, the court may have regard to, including but not limited to, the following— (a) whether he had made enquiries with a relevant trade body in respect of that category of work; (b) whether he had given any notice drawing attention of the copyright owner or exclusive licensee to his interest in import and to sell the copy of the work; (c) whether he had complied with any code of practice that may exist in respect of the supply of that category of work; (d) whether the response, if any, to those enquiries made by the defendant was reasonable and timely; (e) whether he was provided with the name, address and contact details of the copyright owner or exclusive licensee (as the case may be); (f) whether he was provided with the date of first day of publication of the work; (g) whether he was provided with proof of any relevant exclusive licence. (3)凡某人一如第 30 或 31 条 所述该侵犯版权, 在针对该人侵犯版权的诉讼中, 如该人证明以下事项, 即可以此作为免费辩护 —— (a) 他已向版权拥有人或专用特许持有人(视属何情况而定)订购该作品的复制品, 以获得该作品的复制品的供应; (b) 他已向某人作出订购, 但某人基于不合理理由而不作出提供或在合理的条款下始同意提供, 故此其作为并不合理; 及 (c) 有关输入是在版权拥有人或专用特许持有人作出该不合理的行为之后并且是在 第 35(4) (b) 条 指明的期间届满之后进行的。
s.36(1)	(1) 现声明如有某作品的复制品是在制作它的所在国家、地区或地方合法地制作的, 且它仅凭第 35(3)条 而属侵犯版权复制品, 则就第 30 及 31 条 而言以及为免疑问, 在根据第 30 或 31 条 而就某作品的复制品进行的侵犯版权诉讼中, 如被告人证明 —— (由 2007 年第 15 号第 11 条 修订) (a) 他已作出合理查究足以使他自己信纳该已输入或拟输入香港的该作品的复制品并非该作品的侵犯版权复制品; (b) 他基于合理理由而信纳在有关个案的情况下, 该复制品并非侵犯版权复制品; 及 (c) 没有其他本会致使他合理地怀疑该复制品是侵犯版权复制品的情況, 则他已证明他没有理由相信该复制品是侵犯版权复制品。 (1) For the purposes of sections 30 and 31 and for the avoidance of doubt, it is declared that if in an action for infringement of copyright under section 30 or 31 in respect of a copy of a work which is an infringing copy by virtue only of section 35(3) and which was lawfully made in the country, territory or area where it was made, the defendant proves that— (Amended 15 of 2007 s. 11) (a) he had made reasonable enquiries sufficient to satisfy himself that the copy of the work imported or proposed to be imported into Hong Kong was not an infringing copy of the work; (b) he had reasonable grounds to be satisfied in the circumstances of the case that the copy was not an infringing copy; and (c) there were no other circumstances which would have led him reasonably to suspect that the copy was an infringing copy, he has proved that he did not have reason to believe that the copy was an infringing copy.
s.36(2)	(2) 法院在裁定被告人是否已根据第(1)款证明他没有理由相信该复制品是侵犯版权复制品时, 可顾及的因素包括(但不限于)以下事项 —— (a) 他是否已就有关类别作品向有关的行业团体作出查究; (b) 他是否已给予通知促请有关的版权所有人或专用特许持有人注意他在输入和出售该作品的复制品方面的权益; (c) 他是否已遵从就有关类别作品的供应而可能存在的实务守则; (d) 对被告作出的该等查究的回应(如有的话)是否合理和及时; (e) 他是否已获提供有关的版权拥有人或专用特许持有人(视属何情况而定)的姓名或名称、地址及其联络之详细资料; (f) 他是否已获提供有关作品首日发表之日期; (g) 他是否已获提供任何有关专用特许之证明。 (2) In determining whether a defendant has proved under subsection (1) that he did not have reason to believe that the copy was an infringing copy of the work, the court may have regard to, including but not limited to, the following— (a) whether he had made enquiries with a relevant trade body in respect of that category of work; (b) whether he had given any notice drawing attention of the copyright owner or exclusive licensee to his interest in import and to sell the copy of the work; (c) whether he had complied with any code of practice that may exist in respect of the supply of that category of work; (d) whether the response, if any, to those enquiries made by the defendant was reasonable and timely; (e) whether he was provided with the name, address and contact details of the copyright owner or exclusive licensee (as the case may be); (f) whether he was provided with the date of first day of publication of the work; (g) whether he was provided with proof of any relevant exclusive licence.
s.36(3)	(3) 凡某人一如第 30 或 31 条 所述该侵犯版权, 在针对该人侵犯版权的诉讼中, 如该人证明以下事项, 即可以此作为免费辩护 —— (a) 他已向版权拥有人或专用特许持有人(视属何情况而定)订购该作品的复制品, 以获得该作品的复制品的供应; (b) 他已向某人作出订购, 但某人基于不合理理由而不作出提供或在合理的条款下始同意提供, 故此其作为并不合理; 及 (c) 有关输入是在版权拥有人或专用特许持有人作出该不合理的行为之后并且是在 第 35(4) (b) 条 指明的期间届满之后进行的。

	(3) In an action against a person for infringement of copyright under section 30 or 31, it is a defence for that person to prove that— (a) he had placed an order with the copyright owner or the exclusive licensee, as the case may be, for the supply of copies of the work; (b) the person with whom he placed the order had acted unconscionably by either withholding supply on unreasonable grounds or by agreeing to supply on unreasonable terms; and (c) the import took place after that unconscionable act by the copyright owner or exclusive licensee and after the expiration of the period referred to in section 35(4) (b). (4) 法院在裁定版权拥有人或专用特持有人是否已作出合理的行为时，须将个别行业为有秩序地分发类别作品的复制品而既有的惯常做法列为考虑因素，尤其须考虑该订单如获履行，会否与版权拥有人或专用特持有人对该作品的正常利用有所抵触，或会否不合理地损害版权拥有人或专用特持有人的合法权益。 (4) In determining whether the copyright owner or exclusive licensee had acted unconscionably, the court shall take into consideration the established practices of the particular trade for the orderly distribution of copies of that category of work and, in particular, whether the order, if fulfilled, would conflict with a normal exploitation of the work by the copyright owner or the exclusive licensee, or would unreasonably prejudice the legitimate interests of the copyright owner or exclusive licensee.
s.36(4)	(5) 法院在裁定是否基于不合理理由而不作出提供或在合理的条款下同意提供时，须考虑个别行业或个别公众的合理需求，包括但不限于价格及交货时间、该行业对在香港存货之处理、该行业对个别媒体、类别或语言的产品一般处理、订单之大小、已作之查询以及有无何人士以前曾经向个别供应商订货而未得到兑现。 (5) In determining whether supply is withheld on unreasonable grounds or whether the agreement to supply is on unreasonable terms the court shall have regard to the reasonable requirements of the particular trade or particular public, including but not limited to price and delivery times, the practice of the trade with existing stocks in Hong Kong, the practice of the trade generally for the product in its particular medium, category or language, the size of the order, enquiries made and whether or not any person has previously had unfulfilled orders with the particular supplier.
s.107	107. 版权拥有人可就侵犯版权提起诉讼 (1) 版权拥有人可就侵犯版权提起诉讼。(2) 在就侵犯版权进行的诉讼中，原告人可得损害赔偿、强制令、交出利润或其他形式的救济，与就侵犯任何其他产权而可得者相同。(3) 本条在本分部的以下条文的规限下具有效力。 [比照 1988 c. 48 s. 96 U.K.] 107. Infringement actionable by copyright owner (1) An infringement of copyright is actionable by the copyright owner. (2) In an action for infringement of copyright all such relief by way of damages, injunctions, accounts or otherwise is available to the plaintiff as is available in respect of the infringement of any other property right. (3) This section has effect subject to the following provisions of this Division. [cf. 1988 c. 48 s. 96 U.K.]
s.107(1)	(1) 版权拥有人可就侵犯版权提起诉讼。
s.107(2)	(1) An infringement of copyright is actionable by the copyright owner. (2) 在就侵犯版权进行的诉讼中，原告人可得损害赔偿、强制令、交出利润或其他形式的救济，与就侵犯任何其他产权而可得者相同。
s.107(3)	(2) In an action for infringement of copyright all such relief by way of damages, injunctions, accounts or otherwise is available to the plaintiff as is available in respect of the infringement of any other property right. (3) 本条在本分部的以下条文的规限下具有效力。 [比照 1988 c. 48 s. 96 U.K.]
s.108+	(3) This section has effect subject to the following provisions of this Division. [cf. 1988 c. 48 s. 96 U.K.] 108. 关于侵犯版权诉讼中的损害赔偿的规定 (1) 在就侵犯版权进行的诉讼中，如证明在侵犯版权时，被告人不知道也没有理由相信该诉讼所关涉的作品版权存在，则原告人无权向被告要求损害赔偿，但任何其他补救则不受影响。(2) 在就侵犯版权进行的诉讼中，法院在顾及案件的所有情况，尤其是以下情况后——(a) 该等权利受侵犯的昭彰程度；(b) 因侵犯版权行为而归于被告人的利益；(由 2022 年第 16 号第 61 条 修订) (c) 被告人的业务帐目和纪录的完整程度、准确程度及可靠程度；(由 2022 年第 16 号第 61 条 修订) (d) 构成该项侵犯的行为发生后，被告人的任何不合理行为，包括在原告人将该项侵犯告知被告人后，被告人作出的(或企图作出的)毁灭、隐藏或掩饰该项侵犯的证据的行为；及 (由 2022 年第 16 号第 61 条 增补) (e) 由于该项侵犯而令侵犯版权复制品厂广泛流传的可能性。(由 2022 年第 16 号第 61 条 增补) 或可在该案件下致公正所需而给额外损害赔偿。 [比照 1988 c. 48 s. 97 U.K.] 108. Provisions as to damages in infringement action (1) Where in an action for infringement of copyright it is shown that at the time of the infringement the defendant did not know, and had no reason to believe, that copyright subsisted in the work to which the action relates, the plaintiff is not entitled to damages against him, but without prejudice to any other remedy. (2) The court may in an action for infringement of copyright having regard to all the circumstances, and in particular to— (a) the flagrancy of the infringement; (b) any benefit accruing to the defendant by reason of the infringement; (Amended 16 of 2022 s. 61) (c) the completeness, accuracy and reliability of the defendant's business accounts and records; (Amended 16 of 2022 s. 61) (d) any unreasonable conduct of the defendant after the act constituting the infringement occurred, including any act done or attempted made by the defendant to destroy, conceal or disguise evidence of the infringement after having been informed of the infringement by the plaintiff; and (Added 16 of 2022 s. 61) (e) the likelihood of widespread circulation of infringing copies as a result of the infringement, (Added 16 of 2022 s. 61) award such additional damages as the justice of the case may require. [cf. 1988 c. 48 s. 97 U.K.]
s.117(1)(e)	117. 与有政府版权的作品有关的推定 如文学作品、戏剧作品或音乐作品有政府版权存在，并且该作品的已印制复制品上附有一项陈述，述明该作品作首次商业发表的年份，则在凭借本分部就该作品而提起的法律程序中，该项陈述可获接纳为所述明事实的证据，并且在没有相反证据的情况下，该项陈述须推定为正确的。 [比照 1988 c. 48 s. 106 U.K.] 117. Presumptions relevant to works subject to Government copyright In proceedings brought by virtue of this Division with respect to a literary, dramatic or musical work in which Government copyright subsists, where there appears on printed copies of the work a statement of the year in which the work was first published commercially, that statement is admissible as evidence of the fact stated and is presumed to be correct in the absence of evidence to the contrary. [cf. 1988 c. 48 s. 106 U.K.]
s.118	118. 关于制作侵犯版权物品等或进行侵犯版权物品等交易的罪行 (由 2007 年第 15 号第 31 条 修订) (1) 任何人如未获版权作品(该作品)的版权拥有人的特许而作出以下作为，即属犯罪——(a) 制作该作品的侵犯版权复制品，以作出出售或出租之用；(b) 将该作品的侵犯版权复制品输入香港，但并非供他私人和家庭使用；(c) 将该作品的侵犯版权复制品输出香港，但并非供他私人和家庭使用；(d) 为任何贸易或业务的目的或在任何贸易或业务的过程中，出售、出租、或要约出售或要约出租或为出售或出租而展示该作品的侵犯版权复制品；(e) 为何何包含经版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中，公开陈列或分发该作品的侵犯版权复制品；(f) 管有该作品的侵犯版权复制品，以期令——(i) 某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，出售或出租该侵犯版权复制品；或 (ii) 某人可为任何包含经版权作品的侵犯版权复制品的贸易或业务的目的，亦并非在任何该等贸易或业务的过程中分发，达到损害版权拥有人的权利的程度。(由 2007 年第 15 号第 31 条 代替) (1A) 凡——(a) 任何人为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发版权作品的侵犯版权复制品；而 (b) 如此陈列或分发该侵犯版权复制品，令入合理地怀疑该贸易或业务包含经版权作品的侵犯版权复制品，则就任何根据第 1(1)(c) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经版权作品的侵犯版权复制品的贸易或业务。(由 2007 年第 15 号第 31 条 增补) (1B) 凡——(a) 任何人管有版权作品的侵犯版权复制品，以期令某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该侵犯版权复制品；而 (b) 如此管有该侵犯版权复制品，令入合理地怀疑该贸易或业务包含经版权作品的侵犯版权复制品，则就任何根据第 1(1)(f)(i) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经版权作品的侵犯版权复制品的贸易或业务。(由 2007 年第 15 号第 31 条 增补) (2) 第 1(b) 及 (4) (b) 及 (c) 款并不适用于过境物品。(2A) 就第 1(j) 款而言，法院在裁定某作品的侵犯版权复制品的分发有否达到损害版权拥有人的权利的程度时——(a) 可考虑有关个案的整体情况；并 (b) 尤其可考虑该项分发的后果，是否对版权拥有人造成经济损害，在考虑时，可顾及及经如此分发的侵犯版权复制品，是否构成该作品的替代品。(由 2022 年第 16 号第 63 条 增补) (2A) 任何人如未获本款适用的版权作品的版权拥有人的特许，而为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该作品的侵犯版权复制品，以期令某人可为该贸易或业务的目的或在任何贸易或业务的过程中，使用该侵犯版权复制品，该首述的人即属犯罪。(由 2007 年第 15 号第 31 条 增补)...
s.118(1)	118. Offences in relation to making or dealing with infringing articles, etc. (Amended 15 of 2007 s. 31) (1) A person commits an offence if he, without the licence of the copyright owner of a copyright work— (a) makes for sale or hire an infringing copy of the work; (b) imports an infringing copy of the work into Hong Kong otherwise than for his private and domestic use; (c) exports an infringing copy of the work from Hong Kong otherwise than for his private and domestic use; (d) sells, lets for hire, or offers or exposes for sale or hire an infringing copy of the work for the purpose of or in the course of any trade or business; (e) exhibits in public or distributes an infringing copy of the work for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; (f) possesses an infringing copy of the work with a view to— (i) its being sold or let for hire by any person for the purpose of or in the course of any trade or business; or (ii) its being exhibited in public or distributed by any person for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; or (g) distributes an infringing copy of the work (otherwise than for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works) ... (1) 任何人如未获版权作品(该作品)的版权拥有人的特许而作出以下作为，即属犯罪——(a) 制作该作品的侵犯版权复制品，以作出出售或出租之用；(b) 将该作品的侵犯版权复制品输入香港，但并非供他私人和家庭使用；(c) 将该作品的侵犯版权复制品输出香港，但并非供他私人和家庭使用；(d) 为任何贸易或业务的目的或在任何贸易或业务的过程中，出售、出租、或要约出售或要约出租或为出售或出租而展示该作品的侵犯版权复制品；(e) 为何何包含经版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中，公开陈列或分发该作品的侵犯版权复制品；(f) 管有该作品的侵犯版权复制品，以期令——(i) 某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，出售或出租该侵犯版权复制品；或 (ii) 某人可为任何包含经版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中，公开陈列或分发该侵犯版权复制品；或 (g) 分发该作品的侵犯版权复制品(但并非为任何包含经版权作品的侵犯版权复制品的贸易或业务的目的，亦并非在任何该等贸易或业务的过程中分发)，达到损害版权拥有人的权利的程度。(由 2007 年第 15 号第 31 条 代替) (1) A person commits an offence if he, without the licence of the copyright owner of a copyright work— (a) makes for sale or hire an infringing copy of the work; (b) imports an infringing copy of the work into Hong Kong otherwise than for his private and domestic use; (c) exports an infringing copy of the work from Hong Kong otherwise than for his private and domestic use; (d) sells, lets for hire, or offers or exposes for sale or hire an infringing copy of the work for the purpose of or in the course of any trade or business; (e) exhibits in public or distributes an infringing copy of the work for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; (f) possesses an infringing copy of the work with a view to— (i) its being sold or let for hire by any person for the purpose of or in the course of any trade or business; or (ii) its being exhibited in public or distributed by any person for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; or (g) distributes an infringing copy of the work (otherwise than for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works) to such an extent as to affect prejudicially the copyright owner. (Replaced 15 of 2007 s. 31)
s.118(2)	(2) 第 1(b) 及 (c) 及 (4) (b) 及 (c) 款并不适用于过境物品。
s.118(3)	(2) Subsections (1) (b) and (c) and (4) (b) and (c) do not apply to an article in transit. (3) 任何被控(4)款或(2A)款所订罪行的人如证明他不知道亦无理相信有关的复制品是版权作品的侵犯版权复制品，即可以此作为免责辩护。(由 2007 年第 15 号第 31 条 修订) (3) It is a defence for the person charged with an offence under subsection (1) or (2A), to prove that he did not know and had no reason to believe that the copy in question was an infringing copy of the copyright work. (Amended 15 of 2007 s. 31)
s.118(4)	(4) 如任何人——(a) 制作任何物品；(b) 将任何物品输入香港；(c) 将任何物品输出香港；(d) 管有任何物品；或 (e) 出售、出租、要约出售或要约出租任何物品，或为出售或出租而展示任何物品，而该物品是经特定设计或改装以供制作某版权作品的复制品，并且是用作或拟用作制作版权作品的侵犯版权复制品以供出售或出租，或以供为任何贸易或业务的目的或在任何贸易或业务的过程中使用，该人即属犯罪。(由 2000 年第 64 号第 7 条 修订；由 2007 年第 15 号第 31 条 修订) (4) A person commits an offence if he— (a) makes; (b) imports into Hong Kong; (c) exports from Hong Kong; (d) possesses; or (e) sells or lets for hire, or offers or exposes for sale or hire, an article specifically designed or adapted for making copies of a particular copyright work which article is used or intended to be used to make infringing copies of the copyright work for sale or hire or for use for the purpose of or in the course of any trade or business. (Amended 64 of 2000 s. 7; 15 of 2007 s. 31)
s.118(5)	(5) 任何被控(4)款所订罪行的人如证明他不知道亦无理相信该物品是用作或拟用作制作侵犯版权复制品以供出售或出租，或以供为任何贸易或业务的目的或在任何贸易或业务的过程中使用，即可以此作为免责辩护。(由 2000 年第 64 号第 7 条 修订；由 2007 年第 15 号第 31 条 修订) (5) It is a defence for the person charged with an offence under subsection (4) to prove that he did not know and had no reason to believe that the article was used or was intended to be used to make the infringing copies for sale or hire or for use for the purpose of or in the course of any trade or business. (Amended 64 of 2000 s. 7; 15 of 2007 s. 31)
s.118(6)	(6) 如某版权作品的复制品仅凭第 35(3)条 而属侵犯版权复制品，并且没有根据第 35(4)条 不被包括在内，而该复制品是在制作它的所在国家、地区或地方合法地制作的，则就第 1(b) 及 (3) 款而言，任何就该版权作品的复制品而被控第(1)款所订罪行的人如证明——(由 2007 年第 15 号第 31 条 修订) (a) 他已作出合理查究足以使用他自己信纳有关的复制品并非该作品的侵犯版权复制品；(b) 他基于合理理由而信纳在有关个案的情况下该复制品并非侵犯版权复制品；(c) 没有其他本会致使他合理地怀疑该复制品是侵犯版权复制品，则他已证明他没有理由相信有关的复制品是版权作品的侵犯版权复制品。 (6) For the purpose of subsections (1) (b) and (3), where a person is charged with an offence under subsection (1) in respect of a copy of a copyright work which is an infringing copy by virtue only of section 35(3) and not being excluded under section 35(4) and which was lawfully made in the country, territory or area where it was made, if he proves that— (Amended 15 of 2007 s. 31) (a) he had made reasonable enquiries sufficient to satisfy himself that the copy in question was not an infringing copy of the work; (b) he had reasonable grounds to be satisfied in the circumstances of the case that the copy was not an infringing copy; (c) there were no other circumstances which would have led him reasonably to suspect that the copy was an infringing copy, he has proved that he had no reason to believe that the copy in question was an infringing copy of the copyright work.
s.118(7)	(7) 法院在裁定被告人是否已根据第(6)款证明他没有理由相信有关的复制品是版权作品的侵犯版权复制品时，可顾及的因素包括(但不限于)以下事项——(a) 他是否已就有关类别作品向有关的行业团体作出查究；(b) 他是否已给予通知促请有关的版权拥有人或专用特持有人注意他在输入及/或输出该作品的复制品方面的权利；(c) 他是否已遵从是就有关类别作品的供应可能存在的实务守则；(d) 对被控人作出的该等查究的回应(如有的话)是否合理和及时；(e) 他是否已获得提供有关版权拥有人或专用特持有人(视乎属何情况而定)之姓名、地址及其联络之详细资料；(f) 他是否已获得有关作品首次发表之日期；(g) 他是否已获提供任何有关专用特许之证明。 (7) In determining whether the person charged has proved under subsection (6) that he had no reason to believe that the copy in question was an infringing copy of the work, the court may have regard to, including but not limited to, the following— (a) whether he had made enquiries with a relevant trade body in respect of that category of work; (b) whether he had given any notice drawing attention of the copyright owner or exclusive licensee to his interest to import and to sell the copy of the work; (c) whether he had complied with any code of practice that may exist in respect of the supply of that category of work; (d) whether the response, if any, to those enquiries made by the defendant was reasonable

	and timely; (e) whether he was provided with the name, address and contact details of the copyright owner or exclusive licensee (as the case may be); (f) whether he was provided with the date of first day of publication of the work; (g) whether he was provided with proof of any relevant exclusive licence.
s.118(8)	(8) 任何人如管有任何物品，而他知道或有理由相信该物品是用作或拟用作制作任何版权作品的侵犯版权复制品以供出售或出租，或以为为任何贸易或业务的目的或在任何贸易或业务的过程中使用，该人即属犯罪。(由 2000 年第 64 号第 7 条 修订；由 2007 年第 15 号第 31 条 修订) (8) A person commits an offence if he has in his possession an article knowing or having reason to believe that it is used or is intended to be used to make infringing copies of any copyright work for sale or hire or for use for the purpose of or in the course of any trade or business. (Amended 64 of 2000 s. 7; 15 of 2007 s. 31)
s.118(9)	(9) 第 115 至 117 条 (与版权有关的各种事宜的推定)不适用于就本案所订罪行而提起的法律程序。
s.118(10)	(9) Sections 115 to 117 (presumptions as to various matters connected with copyright) do not apply to proceedings for an offence under this section. (10) 在本条中，经销 (dealing in)指出售、出租或为牟利或报酬而分发。(由 2007 年第 15 号第 31 条 增补) [比照 1988 c. 48 s. 107 U.K.]
s.118(1a)	(10) In this section, dealing in (经销) means selling, letting for hire, or distributing for profit or reward. (Added 15 of 2007 s. 31) [cf. 1988 c. 48 s. 107 U.K.] (1A) 凡 — (a) 任何人以任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发版权作品的侵犯版权复制品；而 (b) 如此陈列或分发该侵犯版权复制品的情况，令人合理地怀疑该贸易或业务包含经销版权作品的侵犯版权复制品，则就任何根据第 (1) (c) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经销版权作品的侵犯版权复制品的贸易或业务。(由 2007 年第 15 号第 31 条 增补)
s.118(1b)	(1A) Where— (a) a person exhibits in public or distributes an infringing copy of a copyright work for the purpose of or in the course of any trade or business; and (b) the circumstances in which the infringing copy is so exhibited or distributed give rise to a reasonable suspicion that the trade or business consists of dealing in infringing copies of copyright works, then, unless there is evidence to the contrary, the trade or business is presumed, for the purposes of any proceedings instituted under subsection (1) (c), to be a trade or business which consists of dealing in infringing copies of copyright works. (Added 15 of 2007 s. 31) (1B) 凡 — (a) 任何人管有版权作品的侵犯版权复制品，以期令某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该侵犯版权复制品；而 (b) 如此管有该侵犯版权复制品的情况，令人合理地怀疑该贸易或业务包含经销版权作品的侵犯版权复制品，则就任何根据第 (1) (f) (i) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经销版权作品的侵犯版权复制品的贸易或业务。(由 2007 年第 15 号第 31 条 增补)
s.118(2a)	(1B) Where— (a) a person possesses an infringing copy of a copyright work with a view to its being exhibited in public or distributed by any person for the purpose of or in the course of any trade or business; and (b) the circumstances in which the infringing copy is so possessed give rise to a reasonable suspicion that the trade or business consists of dealing in infringing copies of copyright works, then, unless there is evidence to the contrary, the trade or business is presumed, for the purposes of any proceedings instituted under subsection (1) (f) (ii), to be a trade or business which consists of dealing in infringing copies of copyright works. (Added 15 of 2007 s. 31) (2A) 任何人如未获本款适用的版权作品的版权拥有人的特许，而为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该作品的侵犯版权复制品，以期令某人可为该贸易或业务的目的在该贸易或业务的过程中，使用该侵犯版权复制品，该首述的人即属犯罪。(由 2007 年第 15 号第 31 条 增补)
s.118(2aa)	(2A) A person commits an offence if he, without the licence of the copyright owner of a copyright work to which this subsection applies, possesses an infringing copy of the work for the purpose of or in the course of any trade or business with a view to its being used by any person for the purpose of or in the course of that trade or business. (Added 15 of 2007 s. 31) (2AA) 就第 (1) (c) 款而言，法院在裁定某作品的侵犯版权复制品的分发有否达到损害版权拥有人的权利的程度时 — (a) 可考虑有关个案的整体情况；并 (b) 尤其可考虑该项分发的后果，是否对版权拥有人造成经济损害，在考虑时，可顾及经如此分发的侵犯版权复制品，是否构成该作品的替代品。(由 2022 年第 16 号第 63 条 增补)
s.118(2b)	(2AA) For the purposes of subsection (1) (g) , in determining whether any distribution of an infringing copy of the work is made to such an extent as to affect prejudicially the copyright owner, the court— (a) may take into account all the circumstances of the case; and (b) in particular, may take into account whether economic prejudice is caused to the copyright owner as a consequence of the distribution, having regard to whether the infringing copy so distributed amounts to a substitution for the work. (Added 16 of 2022 s. 63) (2B) 第(2A)款适用于属以下项目的版权作品 — (a) 电脑程式；(b) 电影；(c) 电视剧或电视电影；(d) 音乐声音纪录；或(e) 音乐影像纪录。(由 2007 年第 15 号第 31 条 增补)
s.118(2c)	(2B) Subsection (2A) applies to a copyright work that is— (a) a computer program; (b) a movie; (c) a television drama; (d) a musical sound recording; or (e) a musical visual recording. (Added 15 of 2007 s. 31) (2C) 第(2A)款不适用于任何属刊印形式的电脑程式的侵犯版权复制品。(由 2007 年第 15 号第 31 条 增补)
s.118(2d)	(2C) Subsection (2A) does not apply to an infringing copy of a computer program in a printed form. (Added 15 of 2007 s. 31) (2D) 在以下情况下，第(2A)款并不就管有电脑程式的侵犯版权复制品一事而适用 — (a) 该电脑程式包含本身不属于电脑程式的作品的全部或其任何部分，而获提供该作品的复制品的任何公众人士观看或聆听该作品，在技术层面上需有该电脑程式；或 (b) 该电脑程式包含在本身不属于电脑程式的作品内作为其部分，而获提供该作品的复制品的任何公众人士观看或聆听该作品，在技术层面上需有该电脑程式。(由 2007 年第 15 号第 31 条 增补。由 2022 年第 16 号第 63 条 修订)
s.118(2e)	(2D) Subsection (2A) does not apply to the possession of an infringing copy of a computer program if— (a) the computer program incorporates the whole or any part of a work that is not a computer program itself, and the computer program is technically required for the viewing or listening of the work by a member of the public to whom a copy of the work is made available; or (b) the computer program is incorporated in a work that is not a computer program itself, and the computer program is technically required for the viewing or listening of the work by a member of the public to whom a copy of the work is made available. (Added 15 of 2007 s. 31) (2E) 在以下情况下，第(2A)款并不适用于指定图书馆、指定博物馆或指定档案室为保存文物的目的而管有电影、电视剧或电视电影、音乐声音纪录或音乐影像纪录的侵犯版权复制品 — (由 2022 年第 16 号第 63 条 修订) (a) 该侵犯版权复制品是由公众捐赠或提供予该图书馆、博物馆或档案室的；或 (b) 该侵犯版权复制品是由该图书馆、博物馆或档案室制作的，而制作目的是保存或替代(a)段所提及的侵犯版权复制品，以对应丧失、损耗或损毁。(由 2007 年第 15 号第 31 条 增补。由 2022 年第 16 号第 63 条 修订)
s.118(2f)	(2E) Subsection (2A) does not apply to the possession of an infringing copy of a movie, television drama, musical sound recording or musical visual recording by a designated library, museum or archive for the purpose of heritage conservation if— (Amended 16 of 2022 s. 63) (a) the infringing copy was donated or given to the library, museum or archive by the public; or (b) the infringing copy was made by the library, museum or archive to preserve or replace the infringing copy referred to in paragraph (a) against loss, deterioration or damage. (Added 15 of 2007 s. 31. Amended 16 of 2022 s. 63) (2F) 在以下情况下，第(2A)款并不适用于指定图书馆、指定博物馆或指定档案室为就电影、电视剧或电视电影、音乐声音纪录或音乐影像纪录的侵犯版权复制品作出任何作为的目的(该项目的为第(2E)款所提及的目的以外者)而管有该侵犯版权复制品 — (由 2022 年第 16 号第 63 条 修订) (a) 该侵犯版权复制品是由该图书馆、博物馆或档案室的侵犯版权复制品；或 (ii) 由该图书馆、博物馆或档案室制作的，而制作目的是保存或替代(i)节所提及的侵犯版权复制品，以对应丧失、损耗或损毁；(由 2022 年第 16 号第 63 条 修订) (b) 不可能经合理查究而确定有关作品的版权拥有人的身分及联络方法的详细资料；及 (c) 不能按合意的商业条款而取得有关作品的并非侵犯版权复制品的复制品。(由 2007 年第 15 号第 31 条 增补)
s.118(2fa)	(2F) Subsection (2A) does not apply to the possession of an infringing copy of a movie, television drama, musical sound recording or musical visual recording by a designated library, museum or archive for the purpose of doing any act in relation to the infringing copy (other than for the purpose referred to in subsection (2E)) if— (Amended 16 of 2022 s. 63) (a) the infringing copy was— (i) an infringing copy donated or given to the library, museum or archive by the public; or (ii) an infringing copy made by the library, museum or archive to preserve or replace the infringing copy referred to in subparagraph (i) against loss, deterioration or damage; (Amended 16 of 2022 s. 63) (b) it is not possible by reasonable enquiry to ascertain the identity and contact details of the copyright owner of the work in question; and (c) a copy (other than an infringing copy) of the work in question cannot be obtained on reasonable commercial terms. (Added 15 of 2007 s. 31) (2FA) 在第(2E)及(2F)款中，凡提及指定图书馆、指定博物馆或指定档案室，即为提述 — (a) 由政府拥有的图书馆、博物馆或档案室；或 (b) 商务及经济发展局局长根据第(2FB)款指定的图书馆、博物馆或档案室。(由 2022 年第 16 号第 63 条 增补)
s.118(2fb)	(2FA) In subsections (2E) and (2F), references to a designated library, museum or archive are references to— (a) a library, museum or archive owned by the Government; or (b) a library, museum or archive designated by the Secretary for Commerce and Economic Development under subsection (2FB). (Added 16 of 2022 s. 63) (2FB) 为施行第 (2FA) (b) 款，商务及经济发展局局长可在顾及康乐及文化事务署长的意见下，藉于宪报刊登的公告，指定符合以下说明的图书馆、博物馆或档案室 — (a) 由根据《税务条例》(第 112 章) (第 112 章) 第 88 条 获豁免缴税的属公共性质的慈善机构或慈善信托所拥有的；或 (b) 由以下团体或公司所拥有的 — (i) 根据第 112 章 以外的其他条例获豁免缴税的法定团体；或 (ii) 该等法定团体的附属公司。(由 2022 年第 16 号第 63 条 增补)
s.118(2fc)	(2FB) For the purposes of subsection (2FA) (b) , the Secretary for Commerce and Economic Development may, having regard to the advice of the Director of Leisure and Cultural Services, by notice published in the Gazette, designate any library, museum or archive that is— (a) owned by a charitable institution or trust of a public character that is exempt from tax under section 88 of the Inland Revenue Ordinance (Cap. 112) (Cap. 112); or (b) owned by— (i) a statutory body that is exempt from tax under an Ordinance other than Cap. 112; or (ii) a subsidiary of such a statutory body. (Added 16 of 2022 s. 63) (2FC) 在第 (2FB) (b) 款中 — 法定团体 (statutory body) 指由某条例设立或组成的团体，或根据某条例所授权力而设立或组成的团体；附属公司 (subsidiary) 具有《公司条例》(第 622 章) 第 15 条 所给予的涵义。(由 2022 年第 16 号第 63 条 增补)
s.118(2g)	(2FC) In subsection (2FB) (b) — statutory body (法定团体) means a body established or constituted by or under the authority of an Ordinance; subsidiary (附属公司) has the meaning given by section 15 of the Companies Ordinance (Cap. 622). (Added 16 of 2022 s. 63) (2G) 在以下情况下，第(2A)款不适用 — (a) 管有侵犯版权复制品的人，是为了就该侵犯版权复制品提供法律服务而管有该复制品的，及 — (i) 该人属在根据《法律执业者条例》(第 159 章) 备存的律师登记册或大律师登记册上登记的人；或 (ii) 该人已在香港以外司法管辖区获许作为法律执业者；(b) 管有侵犯版权复制品的人，是正在根据《大律师(认许资格及实务)规则》(第 159 章，附属法规 AC) 跟随某大律师从事实务大律师，而他管有该侵犯版权复制品，是为了协助该大律师就该侵犯版权复制品提供法律服务；(c) 管有侵犯版权复制品的人，是为了向有关版权作品的版权拥有人或专用特许持有人提供关于该复制品的调查服务，而管有该复制品的；或 (d) 管有侵犯版权复制品的人，是在其当事人的处所管有该复制品，而该复制品是其当事人向他提供的。(由 2007 年第 15 号第 31 条 增补)
s.118(2h)	(2G) Subsection (2A) does not apply if— (a) the person who possesses an infringing copy does so for the purpose of providing legal service in relation to the infringing copy, and— (i) the person is enrolled on the roll of solicitors or the roll of barristers kept under the Legal Practitioners Ordinance (Cap. 159); or (ii) the person has been admitted as a legal practitioner in a jurisdiction other than Hong Kong; (b) the person who possesses an infringing copy is serving a pupillage under the Barristers (Qualification for Admission and Pupillage) Rules (Cap. 159 sub. leg. AC) and he possesses the infringing copy for the purpose of assisting the barrister with whom he serves the pupillage in providing legal service in relation to the infringing copy; (c) the person who possesses an infringing copy does so for the purpose of providing investigation service in relation to the infringing copy to the copyright owner or exclusive licensee of the copyright work concerned; or (d) the person who possesses an infringing copy does so on his client' s premises and the infringing copy is provided to him by his client. (Added 15 of 2007 s. 31) (2H) 在不损害 第 125 条 的原则下，凡任何法人团体或合伙作出第(2A)款所提及的任何作为，则除非有证据显示下述的人并没有授权作出该作为，否则该人须被推定为亦曾作出该作为 — (a) 就法人团体而言 — (i) 于该作为作出之时负责该法人团体的内部管理的该法人团体的董事；或 (ii) (如没有上述董事) 于该作为作出之时在该法人团体的董事的直接授权下负责该法人团体的内部管理的人；(b) 就合伙而言 — (i) 于该作为作出之时负责该合伙的内部管理的该合伙的合伙人；或 (ii) (如没有上述合伙人) 于该作为作出之时在该合伙的合伙人的直接授权下负责该合伙的内部管理的人。(由 2007 年第 15 号第 31 条 增补)
s.118(2i)	(2H) Without prejudice to section 125, where a body corporate or a partnership has done an act referred to in subsection (2A), the following person shall, unless there is evidence showing that he did not authorize the act to be done, be presumed also to have done the act— (i) any director of the body corporate who, at the time when the act was done, was responsible for the internal management of the body corporate; or (ii) if there was no such director, any person who, at the time when the act was done, was responsible under the immediate authority of the directors of the body corporate for the internal management of the body corporate; (b) in the case of the partnership— (i) any partner in the partnership who, at the time when the act was done, was responsible for the internal management of the partnership; or (ii) if there was no such partner, any person who, at the time when the act was done, was responsible under the immediate authority of the partners in the partnership for the internal management of the partnership. (Added 15 of 2007 s. 31) (2I) 任何凭第(2H)款而被控第(2A)款所订罪行的被告人，在以下情况下须视为他并没有作出有关作为 — (a) 所举出的证据已足够被他并没有授权作出有关作为为带出争论点；而且 (b) 控方没有提出足以排除合理疑点的相反证明。(由 2007 年第 15 号第 31 条 增补)
s.118(2j)	(2I) A defendant charged with an offence under subsection (2A) by virtue of subsection (2H) is taken not to have done the act in question if— (a) sufficient evidence is adduced to raise an issue that he did not authorize the act to be done; and (b) the contrary is not proved by the prosecution beyond reasonable doubt. (Added 15 of 2007 s. 31) (2J) 就第 (2I) (a) 款而言 — (a) 如法院信纳以下情况，则有关被告人须视为已举出足够的证据 — (i) 有关被告人已安排有关法人团体或合伙拔出财务资源，以取得足够数量的关于该法律程序的版权作品的复制品(该复制品不属于侵犯版权复制品)以供该法人团体或合伙使用，而有关被告人亦已指示该等资源用作上述用途；或 (ii) 有关法人团体或合伙已为取得足够数量的关于该法律程序的版权作品的复制品(该复制品不属于侵犯版权复制品)以供该法人团体或合伙使用，而招致开支；(b) 在不抵触(a)段的情况下，法院在裁定是否已举出足够证据时，可顾及(包括(但不限于)) — (i) 有关被告人是否已引入禁止该法人团体或合伙使用版权作品的侵犯版权复制品的政策或常规；(ii) 有关被告人是否已采取行动，以防止该法人团体或合伙使用版权作品的侵犯版权复制品。(由 2007 年第 15 号第 31 条 增补)
	(2J) For the purposes of subsection (2I) (a) — (a) the defendant shall be taken to have adduced sufficient evidence if the court is satisfied that— (i) the defendant has caused the body corporate or partnership concerned to set aside financial resources, and has directed the use of the resources, for the acquisition of a sufficient number of copies of the copyright work to which the proceedings relate, which are not infringing copies, for the use of the body corporate or partnership; or (ii) the body corporate or partnership concerned has incurred expenditure for the acquisition of a sufficient number of copies of the copyright work to which the proceedings relate, which are not infringing copies, for the use of the body corporate or partnership; (b) subject to paragraph (a), in determining whether sufficient evidence is adduced, the court may have regard to, including but not limited to, the following— (i) whether the defendant has

	introduced policies or practices against the use of infringing copies of copyright works by the body corporate or partnership; (ii) whether the defendant has taken action to prevent the use of infringing copies of copyright works by the body corporate or partnership. (Added 15 of 2007 s. 31)
s.118(3a)	(3A) 任何被控犯第(2A)款所订罪行的人如证明以下事宜, 即可以此作为免责辩护 —— (a) 他在受雇工作期间, 管有有关的侵犯版权复制品; 及 (b) 有关的侵犯版权复制品是其雇主或代表其雇主的人向他提供, 让他在他受雇工作期间使用的。 (由 2007 年 第 15 号第 31 条 增补)
	(3A) It is a defence for the person charged with an offence under subsection (2A) to prove that— (a) he possessed the infringing copy in question in the course of his employment; and (b) the infringing copy in question was provided to him by or on behalf of his employer for use in the course of his employment. (Added 15 of 2007 s. 31)
s.118(3b)	(3B) 第(3A)款不适用于 —— (a) 在获取有关的侵犯版权复制品之时, 职分属能够作出或影响关乎获取该复制品的决定的雇员; 或 (b) 在有关罪行发生时, 职分属能够作出或影响关乎使用或清除有关的侵犯版权复制品的决定的雇员。 (由 2007 年 第 15 号第 31 条 增补)
	(3B) Subsection (3A) does not apply to an employee— (a) who, at the time when the infringing copy in question was acquired, was in a position to make or influence a decision regarding the acquisition of the infringing copy; or (b) who, at the time when the offence in question was committed, was in a position to make or influence a decision regarding the use or removal of the infringing copy in question. (Added 15 of 2007 s. 31)
s.118(8a)	(8A) (由 2007 年 第 15 号第 31 条 废除)
	(8A) (Repealed 15 of 2007 s. 31)
s.118(8b)	(8B) 任何人以下述方式侵犯某作品(有关作品)的版权, 即属犯 罪 —— (a) 为任何包含为牟利或报酬而向公众传播作品的贸易或业务的目的, 或在任何该等贸易或业务的过程中, 向公众传播有关作品; 或 (b) 向公众传播有关作品(但并非为任何包含为牟利或报酬而向公众传播作品的贸易或业务的目的, 亦并非在该等贸易或业务的过程中传播), 达到损害版权拥有人的权利的程度。 (由 2022 年 第 16 号第 63 条 增补)
	(8B) A person commits an offence if the person infringes copyright in a work by— (a) communicating the work to the public for the purpose of or in the course of any trade or business that consists of communicating works to the public for profit or reward; or (b) communicating the work to the public (otherwise than for the purpose of or in the course of any trade or business that consists of communicating works to the public for profit or reward) to such an extent as to affect prejudicially the copyright owner. (Added 16 of 2022 s. 63)
s.118(8c)	(8C) 就第 (8B) (b) 款而言, 法院在裁定任何向公众传播有关作品的作为有否达到损害版权拥有人的权利的程度时 —— (a) 可考虑有关个案的整体情况; 并 (b) 尤其可考虑该项传播的后果, 是否对版权拥有人造成经济损害, 在考虑时, 可顾及该项传播, 是否构成有关作品的替代品。 (由 2022 年 第 16 号第 63 条 增补)
	(8C) For the purposes of subsection (8B) (b) , in determining whether any communication of the work to the public is made to such an extent as to affect prejudicially the copyright owner, the court— (a) may take into account all the circumstances of the case; and (b) in particular, may take into account whether economic prejudice is caused to the copyright owner as a consequence of the communication, having regard to whether the communication amounts to a substitution for the work. (Added 16 of 2022 s. 63)
s.118(8d)	(8D) 任何被控犯第(8B)款所订罪行的人如证明, 自己不知道亦无须由相信在第 (8B) (a) 或 (b)款所描述的情况下将有关作品传播属侵犯有关作品的版权, 即可以此作为免责辩护。 (由 2022 年 第 16 号第 63 条 增补)
	(8D) It is a defence for the person charged with an offence under subsection (8B) to prove that the person did not know and had no reason to believe that, by communicating the work in question in the circumstances described in subsection (8B) (a) or (b), the person was infringing the copyright in the work. (Added 16 of 2022 s. 63)
s.118(1)(d)	(d) 为任何贸易或业务的目的或在任何贸易或业务的过程中, 出售、出租、或要约出售或要约出租或为出售或出租而展示该作品的侵犯版权复制品;
	(d) sells, lets for hire, or offers or exposes for sale or hire an infringing copy of the work for the purpose of or in the course of any trade or business;
s.118(1)(e)	(e) 为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中, 公开陈列或分发该作品的侵犯版权复制品;
	(e) exhibits in public or distributes an infringing copy of the work for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works;
s.118(1)(f)	(f) 管有该作品的侵犯版权复制品, 以期 —— (i) 某人可为任何贸易或业务的目的或在任何贸易或业务的过程中, 出售或出租该侵犯版权复制品; 或 (ii) 某人可为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中, 公开陈列或分发该侵犯版权复制品; 或
	(f) possesses an infringing copy of the work with a view to— (i) its being sold or let for hire by any person for the purpose of or in the course of any trade or business; or (ii) its being exhibited in public or distributed by any person for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; or
s.118(1)(g)	(g) 分发该作品的侵犯版权复制品(但并非为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的, 亦并非在任何该等贸易或业务的过程中分发), 达到损害版权拥有人的权利的程度。 (由 2007 年 第 15 号第 31 条 代替)
	(g) distributes an infringing copy of the work (otherwise than for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works) to such an extent as to affect prejudicially the copyright owner. (Replaced 15 of 2007 s. 31)
s.118(8B)	(8B) 任何人以下述方式侵犯某作品(有关作品)的版权, 即属犯 罪 —— (a) 为任何包含为牟利或报酬而向公众传播作品的贸易或业务的目的, 或在任何该等贸易或业务的过程中, 向公众传播有关作品; 或 (b) 向公众传播有关作品(但并非为任何包含为牟利或报酬而向公众传播作品的贸易或业务的目的, 亦并非在该等贸易或业务的过程中传播), 达到损害版权拥有人的权利的程度。 (由 2022 年 第 16 号第 63 条 增补)
	(8B) A person commits an offence if the person infringes copyright in a work by— (a) communicating the work to the public for the purpose of or in the course of any trade or business that consists of communicating works to the public for profit or reward; or (b) communicating the work to the public (otherwise than for the purpose of or in the course of any trade or business that consists of communicating works to the public for profit or reward) to such an extent as to affect prejudicially the copyright owner. (Added 16 of 2022 s. 63)
s.120(1)	(1) 任何人如在香港以外地方制作任何输往香港而非供私人和家庭使用的物品, 而他知道该物品假使在香港制作即会构成版权作品的侵犯版权复制品, 该人即属犯罪。
	(1) A person commits an offence if he makes outside Hong Kong, for export to Hong Kong otherwise than for his private and domestic use, any article that he knows would, if it were made in Hong Kong, constitute an infringing copy of a copyright work.
s.120(2)	(2) 任何人如在香港以外地方制作经特定设计或改装以供制作属版权作品的复制品的物品, 而他知道或有理由相信该物品将会在香港用作或拟在香港用作制作该版权作品的侵犯版权复制品以供出售或出租, 或以供为任何贸易或业务的目的或在任何贸易或业务的过程中使用, 该人即属犯罪。 (由 2000 年 第 64 号第 9 条 修订; 由 2007 年 第 15 号第 34 条 修订)
	(2) A person commits an offence if he makes outside Hong Kong an article specifically designed or adapted for making copies of a particular copyright work knowing or having reason to believe that it is to be used or is intended to be used in Hong Kong for making an infringing copy of the copyright work for sale or hire or for use for the purpose of or in the course of any trade or business. (Amended 64 of 2000 s. 9 ; 15 of 2007 s. 34)
s.37(3)	(3) 在决定本分部指明的事项是否可在尽管有版权存在的情况下就版权作品而作出时, 基本考虑因素是该项作为并不与版权拥有人对作品的正常利用有所抵触, 以及该项作为并没有不合理地损害版权拥有人的合法权益。
	(3) In determining whether an act specified in this Division may be done in relation to a copyright work notwithstanding the subsistence of copyright, the primary consideration is that the act does not conflict with a normal exploitation of the work by the copyright owner and does not unreasonably prejudice the legitimate interests of the copyright owner.
s.38	38. 研究及私人研习 (1) 为研究或私人研习而公平处理任何作品, 不属侵犯该等作品的任何版权, 就已发表版本而言, 亦不属侵犯其排印编排的版权。 (由 2007 年 第 15 号第 12 条 修订) (2) 由非属研究者或学生的人在以下的情况下进行复制, 不属公平处理 —— (a) 由图书馆馆长或代其行事的人作出根据 第 49 条 订立的规则不允许根据 第 47 或 48 条 作出的事情(文章或已发表作品的部分: 对制造多份相同材料的复制品的限制); 或 (b) 在其他情况下, 进行复制的人知道或有理由相信如此复制会造成实质上相同材料的复制品在实质上相同的时间提供予多于一人作实质上相同的用途。 (3) 法院在裁定对作品的处理是否第(1)款所指的公平处理时, 须考虑有关个案的整体情况, 并尤其须考虑 —— (a) 该项处理的目的及性质, 包括该项处理是否为非牟利的目的而作出以及是否属商业性质; (b) 该作品的性质; (c) 就该作品的整项而言, 被处理的部分所占的数量及实质分量; 及 (d) 该项处理对该作品的潜在市场或价值的影响。 (由 2007 年 第 15 号第 12 条 代替) [比照 1988 c. 48 s. 29 U.K.]
	38. Research and private study (1) Fair dealing with a work for the purposes of research or private study does not infringe any copyright in the work or, in the case of a published edition, in the typographical arrangement. (Amended 15 of 2007 s. 12) (2) Copying by a person other than the researcher or student himself is not fair dealing if— (a) in the case of a librarian, or a person acting on behalf of a librarian, he does anything which regulations under section 49 would not permit to be done under section 47 or 48 (articles or parts of published works: restriction on multiple copies of same material); or (b) in any other case, the person doing the copying knows or has reason to believe that it will result in copies of substantially the same material being provided to more than one person at substantially the same time and for substantially the same purpose. (3) In determining whether any dealing with a work is fair dealing under subsection (1), the court shall take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for ...
s.38(1)	(1) 为研究或私人研习而公平处理任何作品, 不属侵犯该等作品的任何版权, 就已发表版本而言, 亦不属侵犯其排印编排的版权。 (由 2007 年 第 15 号第 12 条 修订)
	(1) Fair dealing with a work for the purposes of research or private study does not infringe any copyright in the work or, in the case of a published edition, in the typographical arrangement. (Amended 15 of 2007 s. 12)
s.38(2)	(2) 由非属研究者或学生的人在以下的情况下进行复制, 不属公平处理 —— (a) 由图书馆馆长或代其行事的人作出根据 第 49 条 订立的规则不允许根据 第 47 或 48 条 作出的事情(文章或已发表作品的部分: 对制造多份相同材料的复制品的限制); 或 (b) 在其他情况下, 进行复制的人知道或有理由相信如此复制会造成实质上相同材料的复制品在实质上相同的时间提供予多于一人作实质上相同的用途。
	(2) Copying by a person other than the researcher or student himself is not fair dealing if— (a) in the case of a librarian, or a person acting on behalf of a librarian, he does anything which regulations under section 49 would not permit to be done under section 47 or 48 (articles or parts of published works: restriction on multiple copies of same material); or (b) in any other case, the person doing the copying knows or has reason to believe that it will result in copies of substantially the same material being provided to more than one person at substantially the same time and for substantially the same purpose.
s.38(3)	(3) 法院在裁定对作品的处理是否第(1)款所指的公平处理时, 须考虑有关个案的整体情况, 并尤其须考虑 —— (a) 该项处理的目的及性质, 包括该项处理是否为非牟利的目的而作出以及是否属商业性质; (b) 该作品的性质; (c) 就该作品的整项而言, 被处理的部分所占的数量及实质分量; 及 (d) 该项处理对该作品的潜在市场或价值的影响。 (由 2007 年 第 15 号第 12 条 代替) [比照 1988 c. 48 s. 29 U.K.]
	(3) In determining whether any dealing with a work is fair dealing under subsection (1), the court shall take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for or value of the work. (Replaced 15 of 2007 s. 12) [cf. 1988 c. 48 s. 29 U.K.]
s.38(2)(b)	(b) 在其他情况下, 进行复制的人知道或有理由相信如此复制会造成实质上相同材料的复制品在实质上相同的时间提供予多于一人作实质上相同的用途。
	(b) in any other case, the person doing the copying knows or has reason to believe that it will result in copies of substantially the same material being provided to more than one person at substantially the same time and for substantially the same purpose.
s.39(1)	(1) 为批评或评论某作品(有关作品)或另一作品, 或为批评或评论某作品的表演, 而公平处理有关作品, 只要符合以下条件, 即不属侵犯有关作品的任何版权, 而就有关作品的已发表版本而言, 亦不属侵犯其排印编排的版权 —— (a) 有关作品已向公众发行或传播; 及 (b) 该项处理附有足够的确认声明(第(6)款另有规定者除外)。
	(1) Fair dealing with a work (the work) for the purpose of criticism or review of the work or another work, or of a performance of a work, does not infringe any copyright in the work or, for a published edition of the work, in the typographical arrangement of the published edition, if— (a) the work has been released or communicated to the public; and (b) (subject to subsection (6)) the dealing is accompanied by a sufficient acknowledgement.
s.39(2)	(2) 不论为批评、评论或其他目的而引用某作品, 只要符合以下条件, 即不属侵犯该作品的版权 —— (a) 该作品已向公众发行或传播; (b) 该项引用, 属公平处理该作品; (c) 该作品是为某特定目的而引用, 而引用的程度, 不超越该目所需的程度; 及 (d) 该项引用附有足够的确认声明(第(6)款另有规定者除外)。
	(2) Copyright in a work is not infringed by the use of a quotation from the work (whether for the purpose of criticism, review or otherwise) if— (a) the work has been released or communicated to the public; (b) the use of the quotation is fair dealing with the work; (c) the extent of the quotation is no more than is required by the specific purpose for which it is used; and (d) (subject to subsection (6)) the use of the quotation is accompanied by a sufficient acknowledgement.
s.39(3)	(3) 为报道或评论时事而公平处理某作品, 只要附有足够的确认声明(第(6)款另有规定者除外), 即不属侵犯该作品的任何版权, 而就有关作品的已发表版本而言, 亦不属侵犯其排印编排的版权。
	(3) Fair dealing with a work for the purpose of reporting or commenting on current events does not infringe any copyright in the work or, for a published edition of the work, in the typographical arrangement of the published edition, if (subject to subsection (6)) the dealing is accompanied by a sufficient acknowledgement.
s.39(4)	(4) 法院在裁定处理作品是否第(1)、(2) (b) 或(3)款所指的公平处理时, 须考虑有关个案的整体情况, 并尤其须考虑 —— (a) 该项处理的目的及性质, 包括该项处理是否为非牟利的目的而作出, 以及是否属商业性质; (b) 该作品的性质; (c) 相对于该作品的整体, 被处理的部分所占的数量及实质分量; 及 (d) 该项处理对该作品的潜在市场或价值的影响。
	(4) In determining whether the dealing is fair dealing under subsection (1), (2) (b) or (3) the court shall take into account all the circumstances of the case, and in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the extent of the dealing in relation to the work as a whole; and (d) the effect of the dealing on the potential market for or value of the work.

	(4) In determining whether any dealing with a work is fair dealing under subsection (1), (2) (b) or (3), the court must take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for, or value of, the work.
s.39(6)	(6) 就第 1 (b)、(2) (d) 及 (3) 款而言，如将足够的确认声明附于有关处理，并非合理地切实可行，则该项处理不须附有该声明。
s.39A	(6) For the purposes of subsections (1) (b), (2) (d) and (3), it is not necessary to accompany the relevant dealing with a sufficient acknowledgement if it is not reasonably practicable to do so. 39A. 戏仿、讽刺、营造滑稽或模仿 (1) 为戏仿、讽刺、营造滑稽或模仿的目的而公平处理某作品，不属侵犯该作品的任何版权。(2) 法院在裁定处理作品是否为第(1)款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑 — (a) 该项处理的目的及性质，包括该项处理是否为非牟利目的而作出，以及是否属商业性质；(b) 该作品的性质；(c) 相对于该作品的整体，被处理的部分所占的数量及实质分量；及 (d) 该项处理对该作品的潜在市场或价值的影响。(由 2022 年第 16 号第 20 条 增补) 39A. Parody, satire, caricature and pastiche (1) Fair dealing with a work for the purpose of parody, satire, caricature or pastiche does not infringe any copyright in the work. (2) In determining whether any dealing with a work is fair dealing under subsection (1), the court must take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for, or value of, the work. (Added 16 of 2022 s. 20)
s.39A(1)	(1) 为戏仿、讽刺、营造滑稽或模仿的目的而公平处理某作品，不属侵犯该作品的任何版权。
s.39A(2)	(1) Fair dealing with a work for the purpose of parody, satire, caricature or pastiche does not infringe any copyright in the work. (2) 法院在裁定处理作品是否为第(1)款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑 — (a) 该项处理的目的及性质，包括该项处理是否为非牟利目的而作出，以及是否属商业性质；(b) 该作品的性质；(c) 相对于该作品的整体，被处理的部分所占的数量及实质分量；及 (d) 该项处理对该作品的潜在市场或价值的影响。 (2) In determining whether any dealing with a work is fair dealing under subsection (1), the court must take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for, or value of, the work.
s.41A(1)	(1) 在由教育机构提供的指明课程中，教师或任何代表他人或学生如为教学或接受教学的目的而公平处理任何作品，即不属侵犯该作品的版权，而就已发表版本而言，此举亦不属侵犯其排印编排的版权。
s.41A(2)	(1) Fair dealing with a work by or on behalf of a teacher or by a pupil for the purposes of giving or receiving instruction in a specified course of study provided by an educational establishment does not infringe the copyright in the work or, in the case of a published edition, in the typographical arrangement. (2) 法院在裁定对作品的处理是否第(1)款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑 — (a) 该项处理的目的及性质，包括该项处理是否为非牟利目的而作出以及是否属商业性质；(b) 该作品的性质；(c) 就该作品的整项而言，被处理的部分所占的数量及实质分量；及 (d) 该项处理对该作品的潜在市场或价值的影响。 (2) In determining whether any dealing with a work is fair dealing under subsection (1), the court shall take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for or value of the work.
s.41A(5)	(5) 凡对作品的处理，涉及透过全部或部分由某教育机构控制的有线或无线网络，而传播该作品 — (由 2022 年第 16 号第 28 条 修订) (a) 如该教育机构没有 — (i) 采用科技措施，限制透过该网络而取用该作品，以令该作品只向符合以下说明的人传播：该人在有关指明课程中，为教学或接受教学的目的，或为保养或管理该网络的目的，有需要使用该作品，或 (ii) 确保将该作品贮存于该网络中的期间，不超过在有关指明课程中为教学或接受教学的目的而有需要保留的期间或(在任何情况下) 不超过连续 12 个月的期间，则该项处理不属第(1)款所指的公平处理；而 (b) 如该教育机构 — (i) 采用科技措施，限制透过该网络而取用该作品，以令该作品只向符合以下说明的人传播：该人在有关指明课程中，为教学或接受教学的目的，有需要使用该作品，或为保养或管理该网络的目的，有需要使用该作品；及 (ii) 确保将该作品贮存于该网络中的期间，不超过在有关指明课程中为教学或接受教学的目的而有需要保留的期间或(在任何情况下) 不超过连续 12 个月的期间，则第(2)款适用于裁定该项处理是否属第(1)款所指的公平处理。(由 2022 年第 16 号第 28 条 修订) (5) Where any dealing with a work involves the communication of the work through a wire or wireless network wholly or partly controlled by an educational establishment— (Amended 16 of 2022 s. 28) (a) if the educational establishment fails to— (i) adopt technological measures to restrict access to the work through the network so that the work is communicated only to persons who need to use the work for the purposes of giving or receiving instruction in the specified course of study in question or for the purposes of maintaining or managing the network; or (ii) ensure that the work is not stored in the network for a period longer than is necessary for the purposes of giving or receiving instruction in the specified course of study in question or, in any event, for a period longer than 12 consecutive months, the dealing is not fair dealing under subsection (1); and (b) if the educational establishment— (i) adopts technological measures to restrict access to the work through the network so that the work is communicated only to persons who need to use the work for the purposes of giving or receiving instruction in the specified course of study in question or for the purposes of maintaining or managing the network; and (ii) ensures that the work is not stored in the network for a period longer than is necessary for the purposes of giving or receiving instruction in the specified ...
ss.41-45	Section 41: 41. 为教学或考试的目的而作出的事情 (1) 如在教学或教学准备过程中在合理的范围内复制文学作品、戏剧作品、音乐作品或艺术作品，而该复制 — (a) 由教学或接受教学的人作出；及 (b) 并非藉翻印程序进行，则该复制不属侵犯该作品的版权。(2) 在影片制作或影片声带制作的教学中或教学准备过程中，因制作影片声带而由教学或接受教学的人复制声音纪录、影片、广播或有线传播节目，并不属侵犯该作品的版权。(3) 为考试的目的并模拟出试题，向考生传达试题或解答试题而作出的任何事情，不属侵犯版权。(4) 第(3)款并不延伸而适用于制作音乐作品的翻印复制品供考生表演该作品之用。(5) 凡任何复制品(假若非因本条该复制品即属侵犯版权复制品)按照本条制作，但其后该复制品用作交易，则就该项交易而言，该复制品须视为侵犯版权复制品，又如该项交易提供版权，则就所有其后的目的而言，该复制品须视为侵犯版权复制品。(由 2022 年第 16 号第 29 条 修订) (6) 就第(5)款而言，如 — (a) 在并非为教学或考试的目之情况下，为任何贸易或业务的过程中，或在任何贸易或业务的过程中，管有... Section 42: 42. 供教育用途的选录 (1) 凡从已发表的文字作品或戏剧作品中摘录短的片段而将其包括在集合本中，而该集合本 — (a) 是拟在教育机构中使用的，并且在集合本中及由发表集合本的发表人发表的宣传作品中均如此描述；及 (b) 主要是由没有版权存在的材料构成的，则只要该等作品本身并非拟在该教育机构中使用并且将该等作品包括在该集合本中是附有足够的确认声明的，将该片段包括在该集合本中并不属侵犯该作品的版权。(2) 第(1)款并不授权同一发表人在任何 5 年期间内，从同一作者制作的版权作品中抽取多于 2 项摘录，以包括在该发表人所发表的集合本中。(3) 就作品的任何特定片段而言，第(2)款所述的由同一作者制作的作品中抽取摘录 — (a) 须视为包括从由该作者与他人共同制作的作品中抽取摘录；及 (b) 如有关片段是从该等作品中抽取的，则须视为包括从由其中任何一位作者制作的作品(不论该作品为该作者单独制作或与另一作者共同制作)中抽取摘录。(4) 在本条中，凡提述在教育机构中使用作品，即提述为该等机构的教育目的而使用。[比照 1988 c. 48 s. 3... Section 43: 43. 在教育机构的活动过程中表演、播放或放映作品 (1) 凡 — (a) 在教育机构的活动过程中由教师或学生表演文学作品、戏剧作品或音乐作品；或 (b) 在教育机构中由任何人为教学的目的而表演文学作品、戏剧作品或音乐作品，而观众或听众只包括或主要包括该机构的教师和学生，该机构的学生的父母或监护人与及与该机构的活动有直接关联的其他人，则就侵犯版权而言，该表演不属公开表演。(由 2007 年第 15 号第 15 条 修订) (2) 为教学或接受教学的目的而在教育机构中向上述观众或听众播放或放映声音纪录、影片、广播或有线传播节目，就侵犯版权而言，不属公开播放或放映有关作品。(由 2007 年第 15 号第 15 条 修订) (3) (由 2007 年第 15 号第 15 条 废除) [比照 1988 c. 48 s. 34 U.K.] Section 44: 44. 由教育机构制作纪录或复制品或作出传播：广播或有线传播节目 (由 2022 年第 16 号第 30 条 修订) (1) 任何广播或有线传播节目的纪录或该纪录的复制品，在以下情况之下，可由教育机构或代教育机构为该机构的教育目的而制作，而不属侵犯该广播或有线传播节目或包括在其中的任何作品的版权 — (a) 该机构制作的该纪录已包含确认作者的声明或确认被记录的作品所载的其他创作努力的声明；及 (b) 并非为图利而制作。(1A) 获某教育机构授权的人，可向获授权收入人按照第(1)款制作的广播或有线传播节目的纪录，或该纪录的复制品，该项传播只要符合以下规定，便不属侵犯版权 — (a) 该人是为了该机构的教育目的，而作出该项传播；及 (b) 该机构采取一切合理步骤，以确保 — (i) 只有获授权收入人接收该项传播；及 (ii) 该等获授权收入人不会制作该项传播的复制品，亦不会将该项传播作进一步传递。(由 2022 年第 16 号第 30 条 增补) (2) 如有特许计划下的特许，授权进行有关纪录或复制，或授权作出有关传播，而制作有关纪录或复制品的人或作出该项传播的人，已知道或应已... Section 45: 45. 由教育机构或学生制作复制品或作出传播：已发表作品中的片段或摘录 (由 2007 年第 15 号第 16 条 修订) (由 2022 年第 16 号第 31 条 修订) (1) 教育机构或代教育机构为教学目的，而学生亦可为在任由由教育机构提供的指明课程中接受教学的目的，在合理的范围内制作艺术作品或已发表的文字作品、戏剧作品或音乐作品的片段或已发表的声音纪录或影片的摘录的复制品，而不属侵犯该等作品的版权，排印编排的版权，或该声音纪录或影片的版权(视属何情况而定)。(由 2007 年第 15 号第 16 条 修订；由 2022 年第 16 号第 31 条 修订) (1A) 获某教育机构授权的人，可向获授权收入人按照第(1)款制作的艺术作品、已发表的文字作品、戏剧作品或音乐作品的片段或已发表的声音纪录或影片的摘录的复制品，该项传播只要符合以下规定，便不属侵犯版权 — (a) 该人是为了该机构的教育目的，而作出该项传播；及 (b) 该机构采取一切合理步骤，以确保 — (i) 只有获授权收入人接收该项传播；及 (ii) 该等获授权收入人不会制作该项传播的复制品，亦不会将该项传播作进一步传递。(由 2022 年第 16...) Section 41: 41. Things done for purposes of instruction or examination (1) Copyright in a literary, dramatic, musical or artistic work is not infringed by its being copied, to a reasonable extent, in the course of instruction or of preparation for instruction, if the copying— (a) is done by a person giving or receiving instruction; and (b) is not by means of a reprographic process. (2) Copyright in a sound recording, film, broadcast or cable programme is not infringed by its being copied by making a film... Section 42: 42. Anthologies for educational use (1) The inclusion of a short passage from a published literary or dramatic work in a collection which— (a) is intended for use in educational establishments and is so described in its title, and in any advertisements issued by or on behalf of the publisher; and (b) consists mainly of material in which no copyright subsists, does not infringe the copyright in the work if the work itself is not intended for use in such establishments and the inclusion is acco... Section 43: 43. Performing, playing or showing work in course of activities of educational establishments (1) The performance of a literary, dramatic or musical work before an audience consisting wholly or mainly of teachers and pupils at an educational establishment, parents or guardians of pupils at the establishment, and other persons directly connected with the activities of the establishment— (Amended 15 of 2007 s. 15) (a) by a teacher or pupil in the course of the activities of the establishment; ... Section 44: 44. Recording, copying or communication by educational establishments: broadcasts or cable programmes (Amended 16 of 2022 s. 30) (1) A recording of a broadcast or cable programme, or a copy of such a recording may be made by or on behalf of an educational establishment for the educational purposes of that establishment without thereby infringing the copyright in the broadcast or cable programme, or in any work included in it, if— (a) an acknowledgement of authorship or other creative effort ... Section 45: 45. Copying or communication by educational establishments or pupils: passages or extracts from published works (Amended 15 of 2007 s. 16 ; 16 of 2022 s. 31) (1) Copies of artistic works or of passages from published literary, dramatic or musical works, or extracts from published sound recordings or films, may, to a reasonable extent, be made by or on behalf of an educational establishment for the purposes of giving instruction, or by a pupil for the purposes of receiving instruction in a sp...
s.54	54. 司法程序 (由 2007 年第 15 号第 18 条 修订) (1) 为司法程序的目的而作出任何事情，并不属侵犯版权。(2) 为报道司法程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。(由 2022 年第 16 号第 111 条 修订) (由 1999 年第 22 号第 3 条 修订；由 2007 年第 15 号第 18 条 修订) [比照 1988 c. 48 s. 45 U.K.] 54. Judicial proceedings (Amended 15 of 2007 s. 18) (1) Copyright is not infringed by anything done for the purposes of judicial proceedings. (Amended 15 of 2007 s. 18) (2) Copyright is not infringed by anything done for the purposes of reporting such proceedings; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. [cf. 1988 c. 48 s. 45 U.K.]
s.54(1)	(1) 为司法程序的目的而作出任何事情，并不属侵犯版权。
s.54(2)	(1) Copyright is not infringed by anything done for the purposes of judicial proceedings. (Amended 15 of 2007 s. 18) (2) 为报道司法程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。(由 2022 年第 16 号第 111 条 修订) (2) Copyright is not infringed by anything done for the purposes of reporting such proceedings; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. [cf. 1988 c. 48 s. 45 U.K.]
s.54A	54A. 为公共行政的目的而公平处理 (1) 政府、行政会议、司法机构或任何区议会如为有效率地处理紧急事务的目的，而公平处理任何作品，即不属侵犯该作品的版权，而就已发表版本而言，此举亦不属侵犯其排印编排的版权。(2) 法院在裁定对作品的处理是否第(1)款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑 — (a) 该项处理的目的及性质，包括该项处理是否为非牟利目的而作出以及是否属商业性质；(b) 该作品的性质；(c) 就该作品的整项而言，被处理的部分所占的数量及实质分量；及 (d) 该项处理对该作品的潜在市场或价值的影响。(3) 凡任何复制品(若非因本条即属侵犯版权复制品者)按照本条制作，但其后该复制品用作交易，则 — (由 2022 年第 16 号第 42 条 修订) (a) 就该交易而言，该复制品须视为侵犯版权复制品；及 (b) 如该交易侵犯版权，则就所有其后的目的而言，该复制品须视为侵犯版权复制品。(4) 就第(3)款而言，如 — (a) 在并非为第(1)款所述的目的之情况下，为任何贸易或业务的目的，或在任何贸易或业务的过程中，管有、公开陈列或分发某复制品；或 (b) 出售或出租某复制品、要约出售或要约出租某复制品，或为出售或出租而展示某复制品，该复制品即属用作交易。(由 2022 年第 16 号第 42 条 代替) (由 2007 年第 15 号第 17 条 增补) 54A. Fair dealing for purposes of public administration (1) Fair dealing with a work by the Government, the Executive Council, the Judiciary or any District Council for the purposes of efficient administration of urgent business does not infringe the copyright in the work or, in the case of a published edition, in the typographical arrangement. (2) In determining whether any dealing with a work is fair dealing under subsection (1), the court shall take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for or value of the work. (3) Where a copy which apart from this section would be an infringing copy is made in accordance with this section but is subsequently dealt with, it is to be treated as an infringing copy— (a) for the purpose of that dealing; and (b) if that dealing infringes copyright, for all subsequent purposes. (4) For the purposes of subsection (3), a copy is dealt with if it is— (a) possessed, exhibited in public or distributed (otherwise than for the purposes mentioned in subsection (1)) for the purpose of or ...
s.54A(1)	(1) 政府、行政会议、司法机构或任何区议会如为有效率地处理紧急事务的目的，而公平处理任何作品，即不属侵犯该作品的版权，而就已发表版本而言，此举亦不属侵犯其排印编排的版权。
s.54A(2)	(1) Fair dealing with a work by the Government, the Executive Council, the Judiciary or any District Council for the purposes of efficient administration of urgent business does not infringe the copyright in the work or, in the case of a published edition, in the typographical arrangement. (2) 法院在裁定对作品的处理是否第(1)款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑 — (a) 该项处理的目的及性质，包括该项处理是否为非牟利目的而作出以及是否属商业性质；(b) 该作品的性质；(c) 就该作品的整项而言，被处理的部分所占的数量及实质分量；及 (d) 该项处理对该作品的潜在市场或价值的影响。 (2) In determining whether any dealing with a work is fair dealing under subsection (1), the court shall take into account all the circumstances of the case and, in particular— (a) the purpose and nature of the dealing, including whether the dealing is for a non-profit-making purpose and whether the dealing is of a commercial nature; (b) the nature of the work; (c) the amount and substantiality of the portion dealt with in relation to the work as a whole; and (d) the effect of the dealing on the potential market for or value of the work.
s.54A(3)	(3) 凡任何复制品(若非因本条即属侵犯版权复制品者)按照本条制作，但其后该复制品用作交易，则 — (由 2022 年第 16 号第 42 条 修订) (a) 就该交易而言，该复制品须视为侵犯版权复制品；及 (b) 如该交易侵犯版权，则就所有其后的目的而言，该复制品须视为侵犯版权复制品。

	(3) Where a copy which apart from this section would be an infringing copy is made in accordance with this section but is subsequently dealt with, it is to be treated as an infringing copy— (a) for the purpose of that dealing; and (b) if that dealing infringes copyright, for all subsequent purposes.
s.54A(4)	(4) 就第(3)款而言，如——(a) 在并非为第(1)款所述的目的之情况下，为任何贸易或业务的目的，或在任何贸易或业务的过程中，冒有、公开陈列或分发某复制品；或(b) 出售或出租某复制品、要约出售或要约出租某复制品，或为出售或出租而展示某复制品，该复制品即属作交易。 (由 2022 年第 16 号 第 42 条 代替)
s.54B	(4) For the purposes of subsection (3), a copy is dealt with if it is— (a) possessed, exhibited in public or distributed (otherwise than for the purposes mentioned in subsection (1)) for the purpose of or in the course of any trade or business; or (b) sold or let for hire, or offered or exposed for sale or hire. (Replaced 16 of 2022 s. 42.) 54B. 立法会 (1) 以下作为不属于侵犯版权——(a) 为立法会程序的目的而作出任何事情；或(b) 为行使立法会的权力及执行其职能的目的而——(i) 由立法会议员或任何人代立法会议员；或(ii) 由立法会行政管理委员会或任何人代立法会行政管理委员会，作出任何事情。(2) 为报道立法会程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。(由 2022 年第 16 号 第 111 条 修订)(由 2007 年第 15 号 第 17 条 增补)
s.54B(1)	54B. Legislative Council (1) Copyright is not infringed by— (a) anything done for the purposes of the proceedings of the Legislative Council; or (b) anything done by or on behalf of— (i) the members of the Legislative Council; or (ii) The Legislative Council Commission, for the purposes of the exercise and discharge by the Legislative Council of its powers and functions. (2) Copyright is not infringed by anything done for the purposes of reporting the proceedings of the Legislative Council; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. (Added 15 of 2007 s. 17.) (1) 以下作为不属于侵犯版权——(a) 为立法会程序的目的而作出任何事情；或(b) 为行使立法会的权力及执行其职能的目的而——(i) 由立法会议员或任何人代立法会议员；或(ii) 由立法会行政管理委员会或任何人代立法会行政管理委员会，作出任何事情。
s.54B(2)	(1) Copyright is not infringed by— (a) anything done for the purposes of the proceedings of the Legislative Council; or (b) anything done by or on behalf of— (i) the members of the Legislative Council; or (ii) The Legislative Council Commission, for the purposes of the exercise and discharge by the Legislative Council of its powers and functions. (2) 为报道立法会程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。(由 2022 年第 16 号 第 111 条 修订)
ss.55-59	(2) Copyright is not infringed by anything done for the purposes of reporting the proceedings of the Legislative Council; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. Section 55: 55. 法定研讯 (1) 为法定研讯的程序的目的而作出任何事情，并不属侵犯版权。(2) 为报道公开进行的该等程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。(由 2022 年第 16 号 第 111 条 修订)(3) 向公众传播法定研讯的报告书(载有某作品或其材料者)，或向公众发放该报告书的文本，并不属侵犯该作品的版权。(由 2022 年第 16 号 第 43 条 修订)(4) 在本条中——法定研讯 (statutory inquiry) 指——(a) 依据《调查委员会条例》(第 86 章) 进行的研讯或调查；或(b) 由条例或根据条例所施加的责任或由条例或根据条例所赋予的权力，而进行的研讯或调查。[比照 1988 c. 48 s. 46 U.K.] Section 56: 56. 开放予公众查阅或在公事登记册内的材料 (1) 依据法定例规定须开放予公众查阅的材料，或法定登记册内的材料，如由适当的人或在其授权下复制，并且只复制该材料中属于任何类别的事实资料，而复制的目的并不涉及向公众传播该等材料或向公众发放该等材料的复制品，则该项复制并不属侵犯版权。(由 2022 年第 16 号 第 44 条 修订)(2) 凡依据法定例规定，某些材料须开放予公众查阅，如由适当的人或在其授权下，复制该等材料、向公众传播该等材料或向公众发放该等材料的复制品，而目的是让公众可在较方便的时间或地点查阅该等材料，或是为方便行使某权利(该法定例规定是为其行使而施加的)，则该项复制、传播或发放并不属侵犯版权。(由 2022 年第 16 号 第 44 条 修订)(3) 凡依据法定例规定须开放予公众查阅的材料，或法定登记册内的材料，载有一般人感兴趣的科学、技术、商业或经济方面的资料，如由适当的人或在其授权下，复制该等材料、向公众传播该等材料或向公众发放该等材料的复制品，而目的是使该资料得以传播，则该项复制、传播或发放并不属侵犯版权。(由 2022 年第 16 号 第 44 条 第 1 款 修订)(4) 行政长官可藉规例规定，Section 57: 57. 在公务过程中供给政府的材料 (由 2022 年第 16 号 第 45 条 修订)(1) 凡任何作品在公务过程中，已由版权拥有人或在版权所有人的特许下为任何目的而供给政府，而记录或收录该作品的文件或其他实物，是由政府拥有或由政府保管或控制的，本条即适用。(2) 凡某作品已为某目的供给政府，则政府可为该目的或为版权拥有人可合理预期的有关连目的，复制该作品、向公众传播该作品或向公众发放该作品的复制品，而不属侵犯该作品的版权。(3) 如某作品先前已发表，但并非系凭借本条发表的，则政府不得凭借本条复制该作品、向公众传播该作品或向公众发放该作品的复制品。(4) 在第(1)款中，公务 (public business) 包括政府进行的任何活动。(5) 本条在政府与版权拥有人订立的协议的规限下具有效力。(由 2022 年第 16 号 第 45 条 修订)[比照 1988 c. 48 s. 48 U.K.] Section 58: 58. 公共纪录 (1) 开放予公众查阅的公共纪录内的材料可予复制，其复制品亦可供应予任何人，而该项复制及供应并不属侵犯版权。(2) 在本条中，公共纪录 (public record) 指在立法会程序、司法程序或行政事务的过程中制作、收到或取得的属任何性质或类别的纪录，并包括构成纪录的一部分或附连于纪录或在其他方面与纪录有关的证物和其他具关键性的证据，而该等纪录是由任何政府部门或须由任何政府部门保管，或可能转移给政府的任何部门或其取得的。(由 1999 年第 22 号 第 3 条 修订)[比照 1988 c. 48 s. 49 U.K.] Section 59: 59. 根据法定权限所作出的作为 (1) 凡某条例(不论何时制定)明确授权作出某作为，则除非该条例另有规定，否则作出该作为不属于侵犯版权。(2) 本条不得解释为令任何可根据或凭借任何条例而提出的法定权限负责辩护不得提出。[比照 1988 c. 48 s. 50 U.K.]
ss.60-61	Section 55: 55. Statutory inquiries (1) Copyright is not infringed by anything done for the purposes of the proceedings of a statutory inquiry. (2) Copyright is not infringed by anything done for the purposes of reporting any such proceedings held in public; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. (3) Copyright in a work is not infringed by communicating to the public the report of a statutory inquiry containing the work... Section 56: 56. Material open to public inspection or on official register (1) Where material is open to public inspection pursuant to a statutory requirement, or is on a statutory register, copyright is not infringed by the copying of so much of the material as contains factual information of any description, by or with the authority of the appropriate person, for a purpose which does not involve communicating the material to the public or issuing copies of the material to the public. (Amended 16 of 202... Section 57: 57. Material provided to the Government in the course of public business (Amended 16 of 2022 s. 45) (1) This section applies where a work has in the course of public business been provided to the Government for any purpose, by or with the licence of the copyright owner and a document or other material thing recording or embodying the work is owned by or in the custody or control of the Government. (2) The Government may, for the purpose for which the work was provided to it, or any related p... Section 58: 58. Public records (1) Material which is comprised in public records which are open to public inspection may be copied, and a copy may be supplied to any person without infringement of copyright. (2) In this section public records (公共纪录) means the records of any nature or description which have been made, received or acquired in the course of proceedings of the Legislative Council, judicial proceedings or executive transaction, together with the exhibits and other material evidence which fo... Section 59: 59. Acts done under statutory authority (1) Where the doing of a particular act is specifically authorized by an Ordinance, whenever enacted, then, unless the Ordinance provides otherwise, the doing of that act does not infringe copyright. (2) Nothing in this section is to be construed as excluding any defence of statutory authority otherwise available under or by virtue of any Ordinance. [cf. 1988 c. 48 s. 50 U.K.] Section 60: 60. 合法使用者可制作电脑程式的后备复制品 (1) 电脑程式的复制品的合法使用者如需要该程式的后备复制品供作他的合法用途，可制作该程式的后备复制品，而不属侵犯该程式的版权。(2) 就本条及第 61 条而言，某人如有合约权利使用某电脑程式，该人即为该程式的合法使用者。(3) 本条在任何与本条条文的协议的规限下具有效力。[比照 1988 c. 48 s. 50A U.K.] Section 61: 61. 合法使用者可复制或改编程式 (1) 如电脑程式的复制品的合法使用者为其合法用途所需而复制或改编该程式，则他进行该项复制或改编并不属侵犯该程式的版权。(2) 如为合法使用电脑程式而有此需要，该电脑程式的复制品的合法使用者尤为为更正该程式的错误所需而复制或改编该程式。(3) 本条不适用于根据 第 60 条而允许的任何复制或改编。[比照 1988 c. 48 s. 50C U.K.] Section 60: 60. Lawful user may make back-up copy of computer program (1) A lawful user of a copy of a computer program may make a back-up copy of the program without infringing the copyright in the program if it is necessary for him to have the back-up copy for the purposes of his lawful use. (2) For the purposes of this section and section 61 a person is a lawful user of a computer program if he has a contractual right to use the program. (3) This section has effect subject to any agreement to the cont... Section 61: 61. Lawful user may copy or adapt computer program (1) A lawful user of a copy of a computer program may copy or adapt the program without infringing the copyright in the program if the copying or adapting is necessary for his lawful use. (2) A lawful user of a copy of a computer program may, in particular, if it is necessary for the lawful use of the program, copy the program or adapt it for the purpose of correcting errors in it. (3) This section does not apply to any copying or adapting pe...
s.65	65. 因向公众传播作品而允许作出的某些作为 (由 2022 年第 16 号 第 46 条 修订) 凡某作品向公众传播，而为了让何公众人士观看或聆听该作品，而在技术上需要制作一项短暂存在和附带的复制品，则尽管有 第 23 条 的规定，该项制作并不属侵犯该作品的版权。(由 2022 年第 16 号 第 46 条 修订)
s.65A	65. Certain acts permitted where works communicated to the public (Amended 16 of 2022 s. 46) Notwithstanding section 23, copyright in a work is not infringed by the making of a transient and incidental copy which is technically required for the viewing or listening of the work by a member of the public to whom the work is communicated. (Amended 16 of 2022 s. 46) 65A. 由服务提供者作出的暂时复制 (1) 在符合以下规定的情况下，服务提供者制作及储存某作品的复制品，并不属侵犯该作品的版权——(a) 制作及储存该复制品的唯一目的，是令该提供者能更有效率地通过网络传送该作品；(b) 制作及储存该复制品是某科技过程中一个自动及必要的部分，而该过程并不改动该作品，亦不干扰合法使用科技以取得该作品的使用情况的数据；(c) 储存该复制品是暂时的；(d) 该提供者按照合理的行业常规，更新储存该复制品的数据库；(e) 该提供者遵守传达该作品的条件(如有)；及(f) 该提供者一旦实际知悉以下任何一项事实，便从速移除该复制品，或使其不能被接达——(i) 该复制品是来自某来源处制作的，而该作品已能从该处被移除；(ii) 该复制品是来自某来源处制作的，而该作品已不能在从该处被接达。(2) 在本条中——服务提供者 (service provider) 指藉电子设备或网络(或同时两者)，提供任何联网服务或为任何联网服务操作设施的人；寄存 (hosting) 指应使用者的指令，在网络伺服器或任何电子检索系统中提供空间，以储存资料或材料；资料搜寻工具 (information location tools) 指连接或指引使用者至某联线位置的工 具，例如目录、索引、参考点、指示器或超文本连结；路由选择 (routing) 指引或选择传送数据的方法或路径；联线服务 (online service) 包括——(a) 传送使用者所选择的资料或材料，或为该资料或材料的数码联线通讯提供连接，而该等数码联线通讯，是在使用者指明的超过一个点之间或之中进行的；(b) 寄存使用者能接达的资料或材料；(c) 在使用者能接达的系统或网络储存资料或材料；(d) 藉使用资料搜寻工具，连接或指引使用者至某联线位置；及(e) 向使用者提供联线社交网络服务。
s.65A(1)	65A. Temporary reproduction by service providers (1) The copyright in a work is not infringed by the making and storage of a copy of the work by a service provider if— (a) the sole purpose of the making and storage is to enable more efficient transmission of the work by the provider through a network; (b) the making and storage forms an automatic and essential part of a technological process, and that process neither modifies the work, nor interferes with the lawful use of technology to obtain data on the use of the work; (c) the storage is temporary; (d) the provider updates the database in which the copy is stored in accordance with reasonable industry practice; (e) the provider complies with conditions (if any) on access to the work; and (f) the provider acts promptly to remove the copy or disable access to the copy in the event that either of the following facts comes to the provider’s actual knowledge— (i) the work has been removed from the original source from which the copy was made; (ii) access to the work at the original source from which the copy was made has been disabled. (2) In this section— hosting (寄存) means providing space on a network server or any electronic retrieval system for storage of information or material at the direction of a user; information location tools (资料搜寻工具) means tools such as directories, indexes, references, pointers, or hypertext...
s.65A(2)	(1) 在符合以下规定的情况下，服务提供者制作及储存某作品的复制品，并不属侵犯该作品的版权——(a) 制作及储存该复制品的唯一目的，是令该提供者能更有效率地通过网络传送该作品；(b) 制作及储存该复制品是某科技过程中一个自动及必要的部分，而该过程并不改动该作品，亦不干扰合法使用科技以取得该作品的使用情况的数据；(c) 储存该复制品是暂时的；(d) 该提供者按照合理的行业常规，更新储存该复制品的数据库；(e) 该提供者遵守传达该作品的条件(如有)；及(f) 该提供者一旦实际知悉以下任何一项事实，便从速移除该复制品，或使其不能被接达——(i) 该复制品是来自某来源处制作的，而该作品已能从该处被移除；(ii) 该复制品是来自某来源处制作的，而该作品已不能在从该处被接达。 (1) The copyright in a work is not infringed by the making and storage of a copy of the work by a service provider if— (a) the sole purpose of the making and storage is to enable more efficient transmission of the work by the provider through a network; (b) the making and storage forms an automatic and essential part of a technological process, and that process neither modifies the work, nor interferes with the lawful use of technology to obtain data on the use of the work; (c) the storage is temporary; (d) the provider updates the database in which the copy is stored in accordance with reasonable industry practice; (e) the provider complies with conditions (if any) on access to the work; and (f) the provider acts promptly to remove the copy or disable access to the copy in the event that either of the following facts comes to the provider’s actual knowledge— (i) the work has been removed from the original source from which the copy was made; (ii) access to the work at the original source from which the copy was made has been disabled.
s.76A	(2) 在本条中——服务提供者 (service provider) 指藉电子设备或网络(或同时藉两者)，提供任何联网服务或为任何联网服务操作设施的人；寄存 (hosting) 指应使用者的指令，在网络伺服器或任何电子检索系统中提供空间，以储存资料或材料；资料搜寻工具 (information location tools) 指连接或指引使用者至某联线位置的工 具，例如目录、索引、参考点、指示器或超文本连结；路由选择 (routing) 指引或选择传送数据的方法或路径；联线服务 (online service) 包括——(a) 传送使用者所选择的资料或材料，或为该资料或材料作出路由选择，或为该资料或材料的数码联线通讯提供连接，而该等数码联线通讯，是在使用者指明的超过一个点之间或之中进行的；(b) 寄存使用者能接达的资料或材料；(c) 在使用者能接达的系统或网络储存资料或材料；(d) 藉使用资料搜寻工具，连接或指引使用者至某联线位置；及(e) 向使用者提供联线社交网络服务。 (2) In this section— hosting (寄存) means providing space on a network server or any electronic retrieval system for storage of information or material at the direction of a user; information location tools (资料搜寻工具) means tools such as directories, indexes, references, pointers, or hypertext links that link or refer users to an online location; online service (联线服务) includes— (a) the transmission, routing, or provision of connections for digital online communications, between or among points specified by a user, of information or material of the user’s choosing; (b) the hosting of information or material that can be accessed by a user; (c) the storing of information or material on a system or network that can be accessed by a user; (d) the linking or referral of users to an online location by the use of information location tools; and (e) the provision of online social networking services to users; routing (路由选择) means directing or choosing the means or routes for the transmission of data; service provider (服务提供者) means a person who, by means of electronic equipment or a network, or both, provides, or operates facilities for, any online services.
s.76A(1)	76A. 供私人及家居使用而复制声音纪录 (1) 在符合以下条件的情况下，制作声音纪录的复制品(私人复制品)，并不属侵犯该声音纪录或任何收录在该声音纪录内的文学作品、戏剧作品或音乐作品的版权——(a) 用以制作该项私人复制品的声音纪录(原件)不是侵犯版权复制品；(b) 该项私人复制品是由原件的合法拥有人(拥有人)制作，只供该拥有人或该拥有人居住的住户中的成员私人及家居使用；(c) 在拥有人合法拥有的每一件器件内制作及储存、由原件制成的私人复制品，不多于一份；及(d) 拥有人保留原件及私人复制品两者的所有权。(2) 若非因第(1)款即属侵犯版权复制品的私人复制品，在以下情况下，须视为侵犯版权复制品——(a) 该私人复制品并非用于第(1)(b)款所述的用途；或(b) 第(1)(c)或(d)款所述的条件遭违反。(由 2022 年第 16 号 第 54 条 增补) 76A. Copying sound recordings for private and domestic use (1) Copyright in a sound recording or in any literary, dramatic or musical work included in a sound recording is not infringed by the making of a copy of the sound recording (private copy) if— (a) the copy of the sound recording from which the private copy is made (original copy) is not an infringing copy; (b) the private copy is made by the lawful owner of the original copy (owner) solely for the private and domestic use by the owner or a member of the household in which the owner lives; (c) not more than one private copy of the original copy is made and stored in each device lawfully owned by the owner; and (d) the owner retains the ownership of both the original copy and the private copy.
s.76A(2)	(1) 在符合以下条件的情况下，制作声音纪录的复制品(私人复制品)，并不属侵犯该声音纪录或任何收录在该声音纪录内的文学作品、戏剧作品或音乐作品的版权——(a) 用以制作该项私人复制品的声音纪录(原件)不是侵犯版权复制品；(b) 该项私人复制品是由原件的合法拥有人(拥有人)制作，只供该拥有人或该拥有人居住的住户中的成员私人及家居使用；(c) 在拥有人合法拥有的每一件器件内制作及储存、由原件制成的私人复制品，不多于一份；及(d) 拥有人保留原件及私人复制品两者的所有权。 (1) Copyright in a sound recording or in any literary, dramatic or musical work included in a sound recording is not infringed by the making of a copy of the sound recording (private copy) if— (a) the copy of the sound recording from which the private copy is made (original copy) is not an infringing copy; (b) the private copy is made by the lawful owner of the original copy (owner) solely for the private and domestic use by the owner or a member of the household in which the owner lives; (c) not more than one private copy of the original copy is made and stored in each device lawfully owned by the owner; and (d) the owner retains the ownership of both the original copy and the private copy.

	(2) A private copy that, but for subsection (1), would be an infringing copy is to be treated as an infringing copy if— (a) it is used otherwise than for the purpose mentioned in subsection (1) (b) ; or (b) the condition mentioned in subsection (1) (c) or (d) is broken.
ss.89-100	Section 89: 89. 被识别为作者或导演的权利 (1) 具有版权的文学作品、戏剧作品、音乐作品或艺术作品的作者以及具有版权的影片的导演, 在本条提及的情况下具有被识别为作品的作者或导演的权利; 但除非该权利已按照 第 90 条 显示, 否则该权利并未遭侵犯。 (由 2007 年 第 15 号 第 22 条 修订) (2) 凡有文学作品(但拟在音乐伴随下唱出或讲出的文字则除外)或戏剧作 品 — (a) 作商业发表、公开表演或向公众传播; 或 (b) 包括在某影片或声音纪录中, 而该影片或声音纪录向公众提供的, 或该影片或声音纪录的复制品是向公众发放的, (由 2022 年 第 16 号 第 57 条 代替) 则该作品的作者即具有被识别的权利; 如有人将该作品的改编本作任何上述用途, 则该权利包括被识别为该改编本所根据的原来作品的作者的权利。 (3) 凡有音乐作品, 或由拟在音乐伴随下唱出或讲出的文字所构成的文学作品 — (a) 作商业发表、公开表演或向公众传播; 或 (b) 被制或声音纪录, 而该声音纪录是向公众提供的, 或该声音纪录是向公众发放的; 或 (由 2022 年 第 16 号 第 57 条 代替) (c) 包括在某影片的声带中, 而该影片, Section 90: 90. 被识别的权利必须宣示 (由 2007 年 第 15 号 第 23 条 修订) (1) 除非 第 89 条 (被识别为作者或导演的权利)所赋予的权利已按照以下条文宣示, 以作出该条款所提及作为的人就他作出该作为加以约束, 否则任何人作出该条款提及的作为, 并不属侵犯该权利。 (2) 该权利可藉以下方式一般性地宣示, 或就何项指明为或指明类别的作为宣示 — (由 2007 年 第 15 号 第 23 条 修订) (a) 在转让作品的版权时, 在转让出权的文书中加入说明作者或导演就该作品宣示其被识别的权利的陈述; 或 (b) 由作者或导演签署的文书。 (3) 被识别的权利可藉以下公开陈列的艺术作品而宣示 — (由 2007 年 第 15 号 第 23 条 修订) (a) 凡作者或其他版权拥有一拥有放弃对艺术作品原版的管有或放弃对艺术作品复制品(由他人人所制作或在他指示或控制下所制作的)的管有, 则确保作者在当时已在该原版或复制品上被识别, 或在已附连原版或复制品的框架、装裱或其他东西上被识别; 或 (b) 在作的版权第一拥有人授权制作的复制品的设计中, 加入一项由指出作作的人签署或由他人代其签署的书面陈述, 该陈述指出如... Section 91: 91. 权利的例外情况 (1) 第 89 条 (被识别为作者或导演的权利)所赋予的权利有以下例外情况: (2) 该权利并不就以下类别的作品而适用 — (a) 电脑程式; (b) 字体设计; (c) 任何由电脑产生的作品。 (3) 如作品版权原本是本凭第 141(c)条 (雇员的作品的版权)而归属作者的雇主, 则该权利不适用于由有关版权所有人或在其授权下所作出的任何事情。 (4) 如任何作为凭借以下任何条文而不属侵犯作品的版权, 则该作为亦不属侵犯被识别的权利 — (a) 第 39 条 (批评、评论、引用及报道和评论时事); (由 2022 年 第 16 号 第 58 条 代替) (ab) 第 39A 条 (戏仿、讽刺、营造滑稽及模仿); (由 2022 年 第 16 号 第 58 条 增补) (b) 第 40 条 (附带地将作品包括在某艺术作品、声音纪录、影片、广播或有线传播节目内); (c) 第 41(3)条 (试题); (ca) 第 54B 条 (立法会); (由 2007 年 第 15 号 第 24 条 增补) (d) 第 54 条 (司法程序); (由 1999 年 第 22 号 第 3 条 修订; 由 2007 年 第 15 号 第 24 条 修订) (e) 第 55... Section 92: 92. 反对作品受侵权处理的权利 (1) 具有版权的文学作品、戏剧作品、音乐作品或艺术作品的作者以及具有版权的影片的导演, 在本条提及及理由使其作品不受侵权处理的权利。 (2) 就本条而言 — (a) 处理 (treatment) 作品指对作品进行任何增加、删除、修改或改编, 但不包 括 — (i) 翻译文学作品或戏剧作品; 或 (ii) 将音乐作品编曲或改作而只涉及转调或转音域; 及 (b) 如该作品处理后受歪曲或残缺不全, 或在其他方面对作者或导演的荣誉或声誉具损害性, 则该项处理属侵权处理, 而在以下条文中, 凡所述作品受侵权处理, 即须照此解释。 (3) 就文学作品、戏剧作品或音乐作品而言, 任何人 如 — (a) 将受侵权处理的作品作商业发表、公开表演或向公众传播; 或 (由 2022 年 第 16 号 第 59 条 修订) (b) 向公众提供受侵权处理的作品影片或声音纪录, 或向公众提供包括受侵权处理的作品在内的影片或声音纪录, 或向公众发放该等影片或声音纪录的复制品, (由 2022 年 第 16 号 第 59 条 代替) 该人即属侵犯该权利。 (4) 就艺术作品而言, 任何人 如 — (a)... Section 93: 93. 权利的例外情况 (1) 第 92 条 (反对作品受侵权处理的权利)所赋予的权利有以下例外情况: (2) 该权利不适用于电脑程式或任何由电脑产生的作品。 (3) 该权利不就被为报道时事的目的制作的作品而适用。 (由 2022 年 第 16 号 第 111 条 修改) (4) 如制作文学作品、戏剧作品、音乐作品或艺术作品的目的是将该等作品 — (a) 拒载、杂志或报章期刊发表; 或 (b) 百科全书、字典、词典、年鉴或其他参考性汇集作品发表, 或作者同意为上述刊物发表而提供作品, 则该作者就不就该作品作上述修改发表而适用。如该等作品在其已发表版本没有修改的情况下后在其他地方被利用, 则该权利亦不就该利用而适用。 (5) 如任何作为凭借 第 66 或 75 条 (在基于关于版权期限届满等的假设而允许作出的作为)而不属侵犯权利, 则作为亦不属侵犯该权利。 (6) 在符合第(7)款的规下, 任何为以下目的而作出的事情均不属侵犯该权利 — (a) 避免犯罪; 或 (b) 履行由成文法或根据成文法所施加的责任。 (7) 凡作者或导演在第(6)款所指的有关作为作出之时被识别, 或先前已在已发表的... Section 94: 94. 在某些情况下权利受限制 (1) 凡 — (a) 某作品凭借 第 141(c)条 (在受雇工作期间制作的作品)而原本归属作者的雇主; (b) 有政府版权或立法会版权存在某作品; 及 (由 1999 年 第 22 号 第 3 条 修订) (c) 某作品的版权凭第 188 条 而原本归属某国际组织, 则本条适用于该作品。 (2) 第 92 条 (反对作品受侵权处理的权利)所赋予的权利, 不适用于由第(1)款所述作品的版权所有人或在其授权下就该等作品所作的任何事情, 但如作者或导演 — (a) 在有关作为作出之时被识别; 或 (b) 先前已在已发表的复制品之内或之上被识别, 则属例外, 而凡该权利在该情况下适用, 则只有足够的脚费声明, 该权利不属遭侵犯。 [比照 1988 c. 48 s. 82 U.K.] Section 95: 95. 管有侵权物品或进行侵权物品物的交易而侵犯权利 (1) 任何人知道或有理由相信某物品属侵权物品而将该物品作以下处置, 即属侵犯 第 92 条 (反对作品受侵权处理的权利)所赋予的权 利 — (a) 为任何贸易或业务的目的或任何贸易或业务的过程中, 管有该物品; (由 2000 年 第 64 号 第 4 条 代替) (b) 将该物品出售、出租、要约出售或要约出租, 或为出售或出租而展示该物品; (c) 为任何贸易或业务的目的或在任何贸易或业务的过程中, 公开陈列或分发该物品; 或 (由 2000 年 第 64 号 第 4 条 代替) (d) 并非为任何贸易或业务的目的亦并非在任何贸易或业务的过程中, 分发该物品致使作者或导演的荣誉或声誉蒙受影响。 (由 2000 年 第 64 号 第 4 条 增补; 由 2007 年 第 15 号 第 26 条 修订) (1A) 就第 1 (a) 及 (c) 款而言, 有关的贸易或业务是否包括经营侵权物品并不具关键性。 (由 2000 年 第 64 号 第 4 条 增补) (2) 侵权物品(infringing article)指某项作品或该作品的复制品, 而该作品或复制品 — (a) 曾受... Section 96: 96. 作品的虚假署名 (1) 任何人在本条提及情况下具 有 — (a) 免被虚假地署名为某文学作品、戏剧作品、音乐作品或艺术作品的作者的权利; 及 (b) 免被虚假地署名为某影片的导演的权利, 而在本条中, 署名 (attribution) 就上述作品而言, 指道出谁是作者或导演的陈述(明示或隐含的)。 (2) 任何人 如 — (a) 向公众发表任何在里或上面有虚假署名的上述类别作品的复制品; (由 2022 年 第 16 号 第 60 条 修订) (b) 公开陈列在里或上面有虚假署名的艺术品的复制品, (由 2007 年 第 15 号 第 27 条 修订) 即属侵犯该权利。 (3) 任何人 如 — (a) 将文学作品、戏剧作品或音乐作品当作某人的作品公开表演或将该作品向公众传播; 或 (b) 将影片当作某人所导演的影片而公开放映或将该影片向公众传播, 而他知道或有理由相信有关署名是虚假的, 他亦属侵犯该权利。 (由 2022 年 第 16 号 第 60 条 修订) (4) 凡有材料载有与第(2)(c)款提及的作为有关的虚假署名, 任何人如向公众发放或提供或公开展示该材料, 亦属侵犯该权利。 (5) ... Section 97: 97. 权利的期限 (1) 第 89 条 (被识别为作者或导演的权利)所赋予的权利以及 第 92 条 (反对作品受侵权处理的权利)所赋予的权利持续存在, 直至有关的人死后 20 年为止。 [比照 1988 c. 48 s. 86 U.K.] Section 98: 98. 同意及放弃权利 (1) 具有本分部所赋予的任何权利的人如同同意作出某作, 则其作出作为并不属侵犯该权利。 (2) 任何该等权利可藉由放弃权利的人签署的文书而放弃。 (3) 放弃权利 — (a) 可关乎特定作品、某指明类别的作品或一般地关乎所有作品, 以及可关乎现在或未来的作品; 及 (b) 可以是有条件或无条件的, 可明示示为可予撤回的, 而放弃权利如是惠及该项放弃权利所关乎的作品的所有人或被准有人而作出的, 则可推定该项放弃权利亦延伸而适用于该指有人或被准有人及所有后继人, 但如明示有相反的意见, 则属例外。 (4) 本分部不得解释为解除与任何关于第(1)款提及的权利的非正式放弃或其他处理有关的一般合同法或不容许违法法的施行。 [比照 1988 c. 48 s. 87 U.K.] Section 99: 99. 对合作作品适用的条文 (1) 就合作作品而言, 第 89 条 (被识别为作者或导演的权利)所赋予的权利为每名合作作者被识别为合作作者的权利, 而该权利须由每名合作作者按照 第 90 条 就其本身而宣示。 (由 2007 年 第 15 号 第 28 条 修订) (2) 就合作作品而言, 第 92 条 (反对作品受侵权处理的权利)所赋予的权利为每名合作作者的权利; 如合作者同意作品接受有关的处理, 则属体现其权利。 (由 2007 年 第 15 号 第 28 条 修订) (3) 合作作者中的其中一人若根据其 第 98 条 放弃其该等权利, 并不影响其他合作作者的该等权利。 (4) 在 第 96 条 (虚假署名)提及的情况下 — (a) 任何有关合作作品的作者的虚假陈述; 及 (b) 就单人作品虚假地以合作作者署名, 均属侵犯 第 96 条 所赋予的权利, 而上述虚假署名亦属侵犯每名被署名(不论该署名是否正确)为任何类别作者的人的权利。 (5) 本条条文经必要的修改后, 亦适用于合作导演(或被指称为合作导演)的影片, 一如该等条文适用于合作作品(或被指称为合作作品)的作品一样。 如某影片是由 2 名或多于 2 名导演合作作, 而每名导演的贡献是... Section 100: 100. 对作品的部分适用的条文 (1) 第 89 条 (被识别为作者或导演的权利)所赋予的权利就作品的整项或其任何实质部分而适用。 (2) 第 92 条 (反对作品受侵权处理的权利)所赋予的权利以及 第 96 条 (虚假署名)所赋予的权利, 均就作品的整项或其任何部分而适用。 [比照 1988 c. 48 s. 89 U.K.]
	Section 89: 89. Right to be identified as author or director (1) The author of a copyright literary, dramatic, musical or artistic work, and the director of a copyright film, has the right to be identified as the author or director of the work in the circumstances mentioned in this section; but the right is not infringed unless it has been asserted in accordance with section 90. (2) The author of a literary work (other than words intended to be sung or spoken with music) or a dramatic work has the right... Section 90: 90. Requirement that right be asserted (1) A person does not infringe the right conferred by section 89 (right to be identified as author or director) by doing any of the acts mentioned in that section unless the right has been asserted in accordance with the following provisions so as to bind him in relation to that act. (2) The right may be asserted generally, or in relation to any specified act or description of acts— (a) on an assignment of copyright in the work, by including in the instr... Section 91: 91. Exceptions to right (1) The right conferred by section 89 (right to be identified as author or director) is subject to the following exceptions. (2) The right does not apply in relation to the following descriptions of work— (a) a computer program; (b) the design of a typeface; (c) any computer-generated work. (3) The right does not apply to anything done by or with the authority of the copyright owner where copyright in the work originally vested in the author’ s employer by virtue of sec... Section 92: 92. Right to object to derogatory treatment of work (1) The author of a copyright literary, dramatic, musical or artistic work, and the director of a copyright film, has the right in the circumstances mentioned in this section not to have his work subjected to derogatory treatment. (2) For the purposes of this section— (a) treatment (‘处理’) of a work means any addition, deletion from or alteration to or adaptation of the work, other than— (i) a translation of a literary or dramatic work; or... Section 93: 93. Exceptions to right (1) The right conferred by section 92 (right to object to derogatory treatment of work) is subject to the following exceptions. (2) The right does not apply to a computer program or to any computer-generated work. (3) The right does not apply in relation to any work made for the purpose of reporting current events. (4) The right does not apply in relation to the publication in— (a) a newspaper, magazine or similar periodical; or (b) an encyclopaedia, dictionary, yearbook... Section 94: 94. Qualification of right in certain cases (1) This section applies to— (a) works in which copyright originally vested in the author’ s employer by virtue of section 14(1) (works produced in course of employment); (b) works in which Government copyright or Legislative Council copyright subsists; and (c) works in which copyright originally vested in an international organization by virtue of section 188. (2) The right conferred by section 92 (right to object to derogatory treatment of work) d... Section 95: 95. Infringement of right by possessing or dealing with infringing article (1) The right conferred by section 92 (right to object to derogatory treatment of work) is also infringed by a person who— (a) possesses for the purpose of or in the course of any trade or business; (Replaced 64 of 2000 s. 4) (b) sells or lets for hire, or offers or exposes for sale or hire; or (c) exhibits in public or distributes for the purpose of or in the course of any trade or business; or (Replaced 64 of 2000 s. 4... Section 96: 96. False attribution of work (1) A person has the right in the circumstances mentioned in this section— (a) not to have a literary, dramatic, musical or artistic work falsely attributed to him as author; and (b) not to have a film falsely attributed to him as director, and in this section an attribution (‘署名’), in relation to such a work, means a statement (express or implied) as to who is the author or director. (2) The right is infringed by a person who— (a) issues to the public copies of ... Section 97: 97. Duration of rights (1) The rights conferred by section 89 (right to be identified as author or director) and section 92 (right to object to derogatory treatment of work) continue to subsist so long as copyright subsists in the work. (2) The right conferred by section 96 (false attribution) continues to subsist until 20 years after a person’ s death. [cf. 1988 c. 48 s. 86 U.K.] Section 98: 98. Consent and waiver of rights (1) It is not an infringement of any of the rights conferred by this Division to do any act to which the person entitled to the right has consented. (2) Any of those rights may be waived by instrument in writing signed by the person giving up the right. (3) A waiver— (a) may relate to a specific work, to works of a specified description or to works generally, and may relate to existing or future works; and (b) may be conditional or unconditional and may be exp... Section 99: 99. Application of provisions to joint works (1) The right conferred by section 89 (right to be identified as author or director) is, in the case of a work of joint authorship, a right of each joint author to be identified as a joint author and must be asserted in accordance with section 90 by each joint author in relation to himself. (2) The right conferred by section 92 (right to object to derogatory treatment of work) is, in the case of a work of joint authorship, a right of each joint author... Section 100: 100. Application of provisions to parts of works (1) The right conferred by section 89 (right to be identified as author or director) applies in relation to the whole or any substantial part of a work. (2) The rights conferred by section 92 (right to object to derogatory treatment of work) and section 96 (false attribution) apply in relation to the whole or any part of a work. [cf. 1988 c. 48 s. 89 U.K.]
s.103	103. 专用特许 (1) 在本部中, 专用特许 (exclusive licence)指由版权拥有人签署或由他人代其签署的书面特许, 授权特许持有人 在删除所有其他人(包括担出该特许的人)的情况下行使本应属该版权拥有人可行使的独有权利。 (2) 在专用特许下的特许持有人所具有的相对于受特许约束的所有版权人而言的权利, 与其所具有的相对于担出该特许的人而言的权利相同。 [比照 1988 c. 48 s. 92 U.K.] 103. Exclusive licences (1) In this Part an exclusive licence (‘专用特许’) means a licence in writing signed by or on behalf of the copyright owner authorizing the licensee to the exclusion of all other persons, including the person granting the licence, to exercise a right which would otherwise be exercisable exclusively by the copyright owner. (2) The licensee under an exclusive licence has the same rights against a successor in title who is bound by the licence as he has against the person granting the licence. [cf. 1988 c. 48 s. 92 U.K.]
s.103(1)	(1) 在本部中, 专用特许 (exclusive licence)指由版权拥有人签署或由他人代其签署的书面特许, 授权特许持有人 在删除所有其他人(包括担出该特许的人)的情况下行使本应属该版权拥有人可行使的独有权利。 (1) In this Part an exclusive licence (‘专用特许’) means a licence in writing signed by or on behalf of the copyright owner authorizing the licensee to the exclusion of all other persons, including the person granting the licence, to exercise a right which would otherwise be exercisable exclusively by the copyright owner.
s.103(2)	(2) 在专用特许下的特许持有人所具有的相对于受特许约束的所有版权人而言的权利, 与其所具有的相对于担出该特许的人而言的权利相同。 [比照 1988 c. 48 s. 92 U.K.] (2) The licensee under an exclusive licence has the same rights against a successor in title who is bound by the licence as he has against the person granting the licence. [cf. 1988 c. 48 s. 92 U.K.]
s.112	112. 专用特许持有人的权利和补救 (1) 专用特许持有人就特许批出之后所发生的事项, 具有在犹如该项特许是一项转让的情况下相同的权利和补救。 但相对于版权拥有人而言, 则属例外。 (2) 专用特许持有人的权利和补救与版权拥有人的权利和补救是同时具有的; 而在本部的有关条文中, 凡提及版权拥有人, 亦据此解释。 (3) 在专用特许持有人凭借本条而提起的诉讼中, 被告人可引用的免责辩护, 与在假使该诉讼是版权的拥有人提起的情况下被告人可引用的免责辩护相同。 [比照 1988 c. 48 s. 101 U.K.] 112. Rights and remedies of exclusive licensee (1) An exclusive licensee has, except against the copyright owner, the same rights and remedies in respect of matters occurring after the grant of the licence as if the licence had been an assignment. (2) His rights and remedies are concurrent with those of the copyright owner; and references in the relevant provisions of this Part to the copyright owner shall be construed accordingly. (3) In an action brought by an exclusive licensee by virtue of this section a defendant may avail himself of any defence which would have been available to him if the action had been brought by the copyright owner. [cf. 1988 c. 48 s. 101 U.K.]
s.112(1)	(1) 专用特许持有人就特许批出之后所发生的事项, 具有在犹如该项特许是一项转让的情况下相同的权利和补救。 但相对于版权拥有人而言, 则属例外。
s.112(2)	(1) An exclusive licensee has, except against the copyright owner, the same rights and remedies in respect of matters occurring after the grant of the licence as if the licence had been an assignment. (2) 专用特许持有人的权利和补救与版权拥有人的权利和补救是同时具有的; 而在本部的有关条文中, 凡提及版权拥有人, 亦据此解释。
s.112(3)	(2) His rights and remedies are concurrent with those of the copyright owner; and references in the relevant provisions of this Part to the copyright owner shall be construed accordingly. (3) 在专用特许持有人凭借本条而提起的诉讼中, 被告人可引用的免责辩护, 与在假使该诉讼是版权的拥有人提起的情况下被告人可引用的免责辩护相同。 [比照 1988 c. 48 s. 101 U.K.] (3) In an action brought by an exclusive licensee by virtue of this section a defendant may avail himself of any defence which would have been available to him if the action had been brought by the copyright owner. [cf. 1988 c. 48 s. 101 U.K.]
s.113	113. 行使同时具有的权利 (1) 在符合第(2)款的规下, 凡版权拥有人或专用特许持有人就侵犯版权提起诉讼, 而该版权拥有人及专用特许持有人就该诉讼(全部或部分)所关乎的侵犯版权同时具有诉讼权, 则除非另一方加入作为原告或被告人, 否则该版权拥有人或专用特许持有人(视属何情况而定)如没有法院许可, 不得进行该诉讼。 (2) 凡专用特许持有人就侵犯版权提起诉讼, 而该诉讼(全部或部分)关乎 第 35(3)条 所指侵犯版权复制品所涉的侵犯版权, 则除非版权拥有人加入作为原告人, 否则专用特许持有人如没有法院许可, 不得进行该诉讼。 (3) 如专用特许持有人根据第(2)款申请在没有版权拥有人加入作为原告人进行诉讼的情况下, 则除非有其他非版权拥有人或专用特许持有人所能控制的特别情况, 而该等情况并非为诉讼方便而考虑, 否则法院不得批出许可。 (4) 依据第(1)款加入作为被告人的版权拥有人或专用特许持有人, 除非参与法律程序, 否则无须对诉讼的任何诉讼费负上法律责任。 (5) 本条的条文不影响法院应版权拥有人或专用特许持有人的单独申请而批准非正式救济。 (6) 凡就侵犯版权提起诉讼, 而版权拥有人及专用特许持有人不论是在或过去就该诉讼(已全部或部分)所关乎的侵犯版权同时具有诉讼权, 则 — (a) 法院在评估损害赔偿时须考 虑 — (i) 特许的条款; 及 (ii) 版权拥有人或专用特许持有人已就侵犯版权获判或可得到的金钱上的补救; (b) 如法院已就侵犯版权向他们当中的任何一方作出损害赔偿, 或已指示交出所得利润予另一方, 则法院不得借此作出所得利润; 及 (c) 如有作出所得利润的指示, 法院须在它们之间的利益的限下按法院认为公正而将利润分配给他们。 人, 不论版权拥有人或专用特许持有人是否同时是诉讼的一方, 此等条文仍然适用。 (7) 版权拥有人在申请根据 第 109 条 (交付令)作出的命令之前, 须通知与他同时具有权利的任何专用特许持有人; 而法院可应用专用特许持有人的申请, 在顾及该特许的条款后根据 第 109 条 作出其认为合适的命令。 [比照 1988 c. 48 s. 102 U.K.] 113. Exercise of concurrent rights (1) Subject to subsection (2), where an action for infringement of copyright brought by the copyright owner or an exclusive licensee relates (wholly or partly) to an infringement in respect of which they have concurrent rights of action, the copyright owner or, as the case may be, the exclusive licensee may not, without the leave of the court, proceed with the action unless the other is either joined as a plaintiff or added as a defendant. (2) Where an action for infringement of copyright brought by an exclusive licensee relates (wholly or partly) to an infringement in respect of an infringing copy within the meaning of section 35(3), the exclusive licensee may not, without the leave of the court, proceed with the action unless the copyright owner is joined as a plaintiff. (3) In an application for leave under subsection (2) to proceed without joining the copyright owner as plaintiff, the court shall not grant leave

	unless there are exceptional circumstances, other than costs considerations, beyond the control of the copyright owner or exclusive licensee. (4) A copyright owner or exclusive licensee who is added as a defendant in pursuance of subsection (1) is not liable for any costs in the action unless he takes part in the proceedings. (5) The provisions of this section do not affect the granting of interlocutory relief on an application...
s.113(1)	(1) 在符合第(2)款的规定下, 凡版权拥有人或专用特许持有人就侵犯版权提起诉讼, 而该版权拥有人及专用特许持有人就该诉讼(全部或部分)所关乎的侵犯版权同时具有诉讼权, 则除非另一方加入作为原告人或被告人, 否则该版权拥有人或专用特许持有人(视属何情况而定)如没有法院许可, 不得进行该诉讼。
s.113(2)	(1) Subject to subsection (2), where an action for infringement of copyright brought by the copyright owner or an exclusive licensee relates (wholly or partly) to an infringement in respect of which they have concurrent rights of action, the copyright owner or, as the case may be, the exclusive licensee may not, without the leave of the court, proceed with the action unless the other is either joined as a plaintiff or added as a defendant.
s.113(3)	(2) 凡专用特许持有人就侵犯版权提起诉讼, 而该诉讼(全部或部分)关乎 第 35(3)条 所指的侵犯版权复制品所涉的侵犯版权, 则除非版权拥有人加入作为原告人, 否则专用特许持有人如没有法院许可, 不得进行该诉讼。
	(2) Where an action for infringement of copyright brought by an exclusive licensee relates (wholly or partly) to an infringement in respect of an infringing copy within the meaning of section 35(3), the exclusive licensee may not, without the leave of the court, proceed with the action unless the copyright owner is joined as a plaintiff.
	(3) 如专用特许持有人根据第(2)款申请在没有版权拥有人加入作为原告人的情况下进行诉讼的许可, 则除非有其他非版权拥有人或专用特许持有人所能控制的特殊情况, 而该等情况并非为讼费方面的考虑, 否则法院不得批出许可。
	(3) In an application for leave under subsection (2) to proceed without joining the copyright owner as plaintiff, the court shall not grant leave unless there are exceptional circumstances, other than costs considerations, beyond the control of the copyright owner or exclusive licensee.
s.113(4)	(4) 依据第(1)款加入作为被告人的版权拥有人或专用特许持有人, 除非参与法律程序, 否则无须对诉讼的任何讼费负上法律责任。
s.113(5)	(4) A copyright owner or exclusive licensee who is added as a defendant in pursuance of subsection (1) is not liable for any costs in the action unless he takes part in the proceedings.
	(5) 本条的条文不影响法院应版权拥有人或专用特许持有人的单独申请而批予非正审济助。
	(5) The provisions of this section do not affect the granting of interlocutory relief on an application by a copyright owner or exclusive licensee alone.
s.113(6)	(6) 凡就侵犯版权提起诉讼, 而版权拥有人及专用特许持有人不论现在或过去就该诉讼(全部或部分)所关乎的侵犯版权同时具有诉讼权, 则 — (a) 法院在评估损害赔偿时须考虑 — (i) 特许的条款; 及 (ii) 版权拥有人或专用特许持有人已就侵犯版权获判给或可得到的金钱上的补救; (b) 如法院已就侵犯版权向他们当中的另一方判给损害赔偿, 或已指示交出所得利润予另一方, 则法院不得指示交出所得利润; 及 (c) 如有交出所得利润的指示, 法院须在他们之间的协议的规限下按法院认为公正而将利润分给他们。 不论版权拥有人或专用特许持有人是否同时是诉讼的一方, 此等条文仍然适用。
	(6) Where an action for infringement of copyright is brought which relates (wholly or partly) to an infringement in respect of which the copyright owner and an exclusive licensee have or had concurrent rights of action— (a) the court shall in assessing damages take into account— (i) the terms of the licence; and (ii) any pecuniary remedy already awarded or available to either of them in respect of the infringement; (b) the court shall not direct an account of profits if an award of damages has been made, or an account of profits has been directed, in favour of the other of them in respect of the infringement; and (c) the court shall if an account of profits is directed apportion the profits between them as the court considers just, subject to any agreement between them, and these provisions apply whether or not the copyright owner and the exclusive licensee are both parties to the action.
s.113(7)	(7) 版权拥有人在申请根据 第 109 条 (交付令)作出的命令之前, 须通知与他同时具有权利的任何专用特许持有人; 而法院可专用特许持有人的申请, 在顾及该特许的条款后根据 第 109 条 作出其认为合适的命令。 [比照 1988 c. 48 s. 102 U.K.]
	(7) The copyright owner shall notify any exclusive licensee having concurrent rights before applying for an order under section 109 (order for delivery up); and the court may on the application of the licensee make such order under section 109 as it thinks fit having regard to the terms of the licence. [cf. 1988 c. 48 s. 102 U.K.]

Section	Text
s.2(1)	(1) 在本条例中, 除文意另有所指外 — (一) 不利行动 (adverse action), 就个人而言, 指可对该人的权利、利益、特权、责任或权益(包括合法期望)有不利影响的任何行动; 不准确 (inaccurate), 就个人资料而言, 指资料是不正确的、有误导性的、不完全的或过时的; 切实可行 (practicable) 指合理地切实可行; 文件 (document) 除包括书面文件外, 包括 — (a) 包含视觉影像以外资料的纪录碟、纪录带或其他器件, 而所包含的资料能够在有或没有其他设备的辅助下, 从该纪录碟、纪录带或器件重现; 及 (b) 包含视觉影像的胶卷、纪录带或其他器件, 而所包含的影像能够在有或没有其他设备的辅助下, 从该胶卷、纪录带或器件重现; 有关人士 (relevant person), 就个人(不论如何描述该个人)而言 — (a) 如该个人是未成年人, 指对该未成年人士负有作为父母亲的责任的人; (b) 如该个人无能力处理其本身事务, 指由法庭委任以处理该等事务的人; (c) 如该个人属《精神健康条例》(第 136 章) 第 2 条所指的精神上无行为能力 — (i) 根据该条例第 44A、59O 或 59Q 条 获委任担任该名个人的监护人的人; 或 (ii) (如根据该条例第 44B(2A)或(2B)或 59T(1)或(2)条, 该名个人的监护转归社会福利署署长或任何其他人士, 或该监护人的职能由社会福利署署长或任何其他人士执行)社会福利署署长或该其他人; (由 2012 年第 18 号第 3 条 代替) 有关资料使用者 (relevant data user) — (a) 就一项视察而言, 指使用某个个人资料系统的资料使用者, 而该系统是该项视察的对象; (b) 就一项投诉而言, 指该项投诉所指明的资料使用者; (c) 就 — (i) 由一项投诉引发的调查而言, 指该项投诉所指的资料使用者; (ii) 其他调查而言, 指属该项调查的对象的资料使用者; (d) 就执行通知而言, 指送达该通知的资料使用者; 作为 (act) 包括故意的不作为; 投诉 (complaint) 指根据 第 37 条 作出的投诉; 投诉人 (complainant) 指已作出投诉的个人或已代表一名人作出投诉的有关人士; 改正 (correction), 就个人资料而言, 指更正、删除或填补; 改正资料要求 (data correction request) 指根据 第 22(1)条 提出的要求; 每日罚款 (daily penalty) 指就在定罪后该罪行持续的每一日所处的罚款; 使用 (use), 就个人资料而言, 包括披露或转移该资料; (由 2012 年第 18 号第 2 条 修订) 披露 (disclosing), 就个人资料而言, 包括披露自资料推断所得的资讯; 法律规则 (rule of law) 指 — (a) 普通法规则或衡平法规则; 或 (b) 习惯法; (由 2012 年第 18 号第 3 条 增补) 保障资料原则 (data protection principle) 指在 附表 1 列明的任何保障资料原则; 指定日 (appointed day) 指根据 第 1(2)条 指定的日子; 指明 (specified), 就格式而言, 指根...
	(1) In this Ordinance, unless the context otherwise requires— act (作为) includes a deliberate omission; adverse action (不利行动), in relation to an individual, means any action that may adversely affect the individual’s rights, benefits, privileges, obligations or interests (including legitimate expectations); appointed day (指定日) means the day appointed under section 1(2); approved code of practice (核准实务守则) means a code of practice approved under section 12; change notice (变更通知) means a notice served on the Commissioner under section 14(8) and, if applicable, corrected under section 14A(5); (Added 18 of 2012 s. 3) code of practice (实务守则) includes— (a) a standard; (b) a specification; and (c) any other documentary form of practical guidance; Commissioner (专员) means the Privacy Commissioner for Personal Data established under section 5(1); Committee (咨询委员会) means the Personal Data (Privacy) Advisory Committee established under section 11(1); complainant (投诉人) means the individual, or the relevant person on behalf of an individual, who has made a complaint; complaint (投诉) means a complaint under section 37; correction (改正), in relation to personal data, means rectification, erasure or completion; daily penalty (每日罚款) means a penalty for each day on which the offence is continued after conviction thereof; data (资料) means any representation of inform...
s.2(3)	(3) 凡根据本条例任何作为可经某人(不论如何描述该人)的订明同意而作出, 该同意 — (a) 指该人自愿给予的明示同意; (b) 不包括已藉向给予同意的人送书面通知而予以撤回的任何同意(但不损害在该通知送达前的任何时间依据该同意所作出的所有作为)。
	(3) Where under this Ordinance an act may be done with the prescribed consent of a person (and howsoever the person is described), such consent— (a) means the express consent of the person given voluntarily; (b) does not include any consent which has been withdrawn by notice in writing served on the person to whom the consent has been given (but without prejudice to so much of that act that has been done pursuant to the consent at any time before the notice is so served).
s.2(12)	(12) 如某人纯粹代另一人持有、处理或使用的任何个人资料, 而该首述的人并非为其任何本身目的而持有、处理或使用(视属何情况而定)该资料, 则(但亦只有在此情况下该首述的人就该个人资料而言不算是资料使用者。 (由 2012 年第 18 号第 2 条 修订)
	(12) A person is not a data user in relation to any personal data which the person holds, processes or uses solely on behalf of another person if, but only if, that first-mentioned person does not hold, process or use, as the case may be, the data for any of his own purposes. (Amended 18 of 2012 s. 2)
s.4	4. 保障资料原则 资料使用者不得作出违反任何保障资料原则的作为或从事违反任何该等原则的行为, 但如该作为或行为(视属何情况而定)是根据本条例规定须作出或进行或准许作出或进行的, 则属例外。
	4. Data protection principles A data user shall not do an act, or engage in a practice, that contravenes a data protection principle unless the act or practice, as the case may be, is required or permitted under this Ordinance.
DPP1	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
DPP2	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
DPP3	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
DPP4	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
DPP5	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
DPP6	NOT FOUND in Cap.486
	NOT FOUND in Cap.486
s.26	26. 删除不再需要的个人资料 (1) 凡资料使用者持有的个人资料是用于某目的(包括与该目的有直接关系的目的), 但已不再为该等目的而属有需要的, 则除在以下情况外, 该资料使用者须采取所有切实可行步骤删除该资料 — (由 2012 年第 18 号第 2 及 17 条 修订) (a) 该等删除根据任何法律是被禁止的; 或 (b) 不删除该资料是符合公众利益(包括历史方面的利益)。 (由 2012 年第 18 号第 2 条 修订) (2) 为免疑问, 现声明 — (a) 即使任何其他资料使用者(前者)控制(不论是完全控制或部分控制)该资料的处理, 持有有关资料的资料使用者(后者)须按照第(1)款, 采取所有切实可行步骤删除个人资料; (由 2012 年第 18 号第 2 及 17 条 修订) (b) 后者不得就该等删除而在前者为损害赔偿而提出的诉讼中负法律责任。
	26. Erasure of personal data no longer required (1) A data user must take all practicable steps to erase personal data held by the data user where the data is no longer required for the purpose (including any directly related purpose) for which the data was used unless— (Amended 18 of 2012 s. 17) (a) any such erasure is prohibited under any law; or (b) it is in the public interest (including historical interest) for the data not to be erased. (2) For the avoidance of doubt, it is hereby declared that— (a) a data user must take all practicable steps to erase personal data in accordance with subsection (1) notwithstanding that any other data user controls (whether in whole or in part) the processing of the data; (Amended 18 of 2012 s. 17) (b) the first-mentioned data user shall not be liable in an action for damages at the suit of the second-mentioned data user in respect of any such erasure.
s.26(1)	(1) 凡资料使用者持有的个人资料是用于某目的(包括与该目的有直接关系的目的), 但已不再为该等目的而属有需要的, 则除在以下情况外, 该资料使用者须采取所有切实可行步骤删除该资料 — (由 2012 年第 18 号第 2 及 17 条 修订) (a) 该等删除根据任何法律是被禁止的; 或 (b) 不删除该资料是符合公众利益(包括历史方面的利益)。 (由 2012 年第 18 号第 2 条 修订)
	(1) A data user must take all practicable steps to erase personal data held by the data user where the data is no longer required for the purpose (including any directly related purpose) for which the data was used unless— (Amended 18 of 2012 s. 17) (a) any such erasure is prohibited under any law; or (b) it is in the public interest (including historical interest) for the data not to be erased.
s.26(2)	(2) 为免疑问, 现声明 — (a) 即使任何其他资料使用者(前者)控制(不论是完全控制或部分控制)该资料的处理, 持有有关资料的资料使用者(后者)须按照第(1)款, 采取所有切实可行步骤删除个人资料; (由 2012 年第 18 号第 2 及 17 条 修订) (b) 后者不得就该等删除而在前者为损害赔偿而提出的诉讼中负法律责任。
	(2) For the avoidance of doubt, it is hereby declared that— (a) a data user must take all practicable steps to erase personal data in accordance with subsection (1) notwithstanding that any other data user controls (whether in whole or in part) the processing of the data; (Amended 18 of 2012 s. 17) (b) the first-mentioned data user shall not be liable in an action for damages at the suit of the second-mentioned data user in respect of any such erasure.
ss.18-21	Section 18: 18. 查阅资料要求 (1) 任何个人或代表一个个人的有关人士可提出内容如下的要求 — (a) 要求资料使用者告知他该使用者是否持有该名个人属其资料当事人的个人资料; (b) 如该资料使用者持有该资料, 要求该使用者提供一份该资料的副本。 (由 2012 年第 18 号第 2 条 修订) (2) 在第(1)款(a)及(b)段下的查阅资料要求, 须视为单一一项要求, 而本条例的条文依据此解释。 (3) 在没有相反证据的情况下, 第(1)款(a)段下的查阅资料要求须视为该款(a)及(b)段下的查阅资料要求, 而本条例的条文(包括第(2)款)须据此解释。 (4) 就个人资料而言, 如某资料使用者 — (由 2012 年第 18 号第 2 条 修订) (a) 不是持有该资料的; 但 (b) 控制该资料的使用, 而控制的方式禁止实际持有该资料的另一资料使用者依从(不论是完全依从或部分依从)该资料使用者的查阅资料要求, (由 2012 年第 18 号第 2 条 修订) 则他须当作持有该资料, 而本条例的条文(包括本条)须据此解释。 (由 2012 年第 18 号第 2 条 修订) (5) 任何人在查阅资料要求中, 为了令有关资料使用者 — ... Section 19: 19. 依从查阅资料要求 (1) 在符合第(2)款及第 20 及 28(5)条 的规定下, 资料使用者须在收到由某人提出的查阅资料要求后的 40 日内, 以下列方式, 依从该项要求 — (a) 如该资料使用者持有属该项要求的标的之个人资料; (b) 以书面告知提出该要求者该资料使用者持有该资料; 及 (ii) 提供一份该资料的副本; 或 (b) 如该资料使用者并无持有属该项要求的标的之个人资料, 以书面告知提出该要求者该资料使用者并无持有该资料。 (由 2012 年第 18 号第 12 条 代替) (1A) 尽管有第 (1) (b) 款的规定 — (a) 有人就香港警务处是否持有某名个人的任何刑事犯罪纪录, 向香港警务处提出查阅资料要求; 而 (b) 香港警务处并无持有该纪录, 香港警务处须以下述方式依从该项要求: 在接获该要求后的 40 日内, 以口头告知提出该要求者香港警务处并无持有该项纪录。 (由 2012 年第 18 号第 12 条 增补) (2) 凡资料使用者不能在第(1)或(1A)款指明的期间内依从查阅资料要求, 他 — (由 2012 年第 18 号第 12 条 修订) (a) 须在该期间届满前, Section 20: 20. 资料使用者须在或在何种情况下拒绝依从查阅资料要求 (1) 在以下情况, 资料使用者须拒绝依从查阅资料要求 — (a) 该资料使用者不获提供他合理地要求 — (i) 以令他信纳提出要求者的身分的资讯; (ii) (如提出要求者看来是就另一名个人而属有关人士)以令他 — (A) 信纳该另一名个人的身分; 及 (B) 信纳提出要求者确是就该另一名个人而属有关人士, 的资讯; (b) (在符合第(2)款的规定下)该资料使用者不能在披露另一名个人属其资料当事人的个人资料的情况下依从该项要求; 但如该资料使用者信纳该另一名个人已同意向该提出要求者披露该资料, 则属例外; 或 (由 2012 年第 18 号第 2 条 修订) (c) (在其他情况下)在其当时, 依从该要求根据本条例或任何其他条款是被禁

	止的。(由 2012 年第 18 号第 13 条 修订) (2) 第 1) (b) 款的施行不得 — (a) 令该款提述另一名人属其资料当事人的个人资料之处, 包括提述识辨该名个人为有关的查阅资料要求所关乎的个人资料的来源的资讯(但如该名个人在该等资讯被点名或该等资讯以其他方式明确识辨该... Section 21: 21. 拒绝依从查阅资料要求的通知 (1) 在不抵触第(2)款的条文下, 依据 第 20 条 拒绝依从某项查阅资料的资料使用者, 须在收到该项要求后的 40 日内, 于切实可行范围内尽快以书面通知告知提出要求者 — (a) 拒绝该项要求一事; (b) (在不抵触第(2)款的条文下)拒绝的理由; 及 (c) (如 第 20(3) (d) 条 适用)有关的另一资料使用者使用的地址及姓名或名称。 (2) 如 — (a) 资料使用者已依据 第 20 条 拒绝依从查阅资料要求; 而 (b) 该项要求凭借 第 63 条 亦是与 第 18(1) (a) 条 有关, 则该资料使用者可在根据第(1)款发出的有关通知中, 告知有关的提出要求者该资料使用者并没有向他须向该提出要求者披露其是否存在的个人资料(或相似信息的来源), 而不是告知该资料使用者须根据第(1)款告知该提出要求者的事宜。 Section 18: 18. Data access request (1) An individual, or a relevant person on behalf of an individual, may make a request— (a) to be informed by a data user whether the data user holds personal data of which the individual is the data subject; (b) if the data user holds such data, to be supplied by the data user with a copy of such data. (2) A data access request under both paragraphs of subsection (1) shall be treated as being a single request, and the provisions of this Ordinance shall be construed ac... Section 19: 19. Compliance with data access request (1) Subject to subsection (2) and sections 20 and 28(5), a data user must comply with a data access request within 40 days after receiving the request by — (a) if the data user holds any personal data which is the subject of the request— (i) informing the requestor in writing that the data user holds the data; and (ii) supplying a copy of the data; or (b) if the data user does not hold any personal data which is the subject of the request, informing the... Section 20: 20. Circumstances in which data user shall or may refuse to comply with data access request (1) A data user shall refuse to comply with a data access request— (a) if the data user is not supplied with such information as the data user may reasonably require— (i) in order to satisfy the data user as to the identity of the requestor; (ii) where the requestor purports to be a relevant person, in order to satisfy the data user— (A) as to the identity of the individual in relation to whom the requ... Section 21: 21. Notification of refusal to comply with data access request (1) Subject to subsection (2), a data user who pursuant to section 20 refuses to comply with a data access request shall, as soon as practicable but, in any case, not later than 40 days after receiving the request, by notice in writing inform the requestor— (a) of the refusal; (b) subject to subsection (2), of the reasons for the refusal; and (c) where section 20(3) (d) is applicable, of the name and address of the other data use...
ss.22-25	Section 22: 22. 改正资料要求 (1) 在不抵触第(1A)及(2)款的条文下, 如 — (由 2012 年第 18 号第 15 条 修订) (a) 资料使用者已依从查阅资料要求而提供个人资料的副本; 及 (b) 属有关的资料当事人的个人或代表该名个人的有关人士认为该资料不准确, 则该名个人或有关人士(视属何情况而定)可提出要该资料使用者对该资料作出所需的改正的要求。(由 2012 年第 18 号第 2 条 修订) (1A) 如某个人以书面控制某人代表该名个人作出查阅资料要求, 而该人仅因为该项授权而属该名个人的有关人士, 该人无权提出改正资料要求。(由 2012 年第 18 号第 15 条 增补) (2) 就个人资料而言, 如某资料使用者 — (由 2012 年第 18 号第 2 条 修订) (a) 不是持有该资料的; 但 (b) 控制该资料的处理, 而控制的方式, 禁止实际持有该资料的另一资料使用者就关于该资料的改正资料要求遵守(不论是完全遵守或部分遵守) 第 23(1)条, 则他须当作可向其提出该项要求的资料使用者, 而本条例的条文(包括第(1)款)须据此解释。(由 2012 年第 18 号第 2 条 修订) (3) 在不损害 第 2... Section 23: 23. 依从改正资料要求 (1) 除第(2)款及 第 24 条 另有规定外, 如资料使用者信纳改正资料要求所关乎的个人资料属不准确, 在收到该项要求后的 40 日 内 — (a) 他须对该资料作出所需的改正; (b) 他须向提出要求者提供经如此改正的该资料的副本一份; 及 (c) 除第(3)款另有规定外, 如 — (i) 在紧接作出有关改正之前的 12 个月内该资料曾被露予第三者; 及 (ii) 该资料是为某目的(包括任何直接有关的目的)披露予该第三者, 而该资料使用者没有理由相信该第三者已停止将该资料用于该目的, 他须采取所有切实可行的步骤, 向该第三者提供经如此改正的该资料的副本一份, 并附同一份述明改正理由的书面通知。(2) 如资料使用者不能在第(1)款指明期间内就某项改正资料要求遵守该款, 他 — (a) 须在该期间届满前 — (i) 藉书面通知告知提出要求者他不能如此遵守该款, 以及其理由; 及 (ii) 在他能遵守该款的范围(如有的话)内, 遵守该款; 及 (b) 须在该期间届满后, 在切实可行的范围内尽快遵守或尽快完全遵守(视属何情况而定)该款。(3) 凡将个人资料向第三者作有... Section 24: 24. 资料使用者须在或可在何种情况下拒绝依从改正资料要求 (1) 除第(2)款另有规定外, 如资料使用者不获提供他合理地要求 — (a) 以令他信纳提出有关的改正资料要求的人的身分的资讯; (b) (如提出要求者看来是就另一人而属有关人士)以令 他 — (i) 信纳该另一人的身分; 及 (ii) 信纳提出要求者确是就该另一人而属有关人士, 的资讯, 他须拒绝就该项要求遵守 第 23(1)条。(2) 如改正资料要求是因为查阅资料要求而产生, 而两项要求是由同一人提出的, 则第(1)款不适用于该项改正资料要求。(3) 在以下情况, 资料使用者可拒绝就某项改正资料要求遵守 第 23(1)条 — (a) 该项要求既不是采用中文而以书面作出, 亦不是采用英文而以书面作出; (b) 该资料使用者不获提供该要求所关乎的个人资料属不准确; (c) 该资料使用者合理地要求某些资讯, 以确定该项要求所关乎的个人资料在哪些方面不准确, 但是他未获提供该等资讯; (d) 资料使用者不获提供该项要求的标的之改正是准确的; 或 (e) (在符合第(4)款的规定下)有另一资料使用者控制该资料的处理, 而控制的方式... Section 25: 25. 拒绝依从改正资料要求等的通知 (1) 依据 第 24 条 拒绝就某项改正资料要求遵守 第 23(1)条 的资料使用者, 须在收到该项要求后的 40 日内, 于切实可行范围内尽快以书面通知告知提出要求者 — (a) 拒绝该项要求一事及拒绝的理由; 及 (b) (如 第 24(3) (e) 条 适用)有关的另一资料使用者的地址及姓名或名称。(2) 在不损害第(1)款的概括性原则下, 凡 — (a) 改正资料要求所关乎的个人资料是一项意见表达; 而 (b) 有关的资料使用者不获该项意见属不准确, 则 — (i) (A) 如提出要求者就某些事宜认为该意见属不准确, 该资料使用者须作一项关于该等事宜的附注(不论是附于该资料或附于别处); 而 (B) 作出该项附注的方式, 须令任何人(包括该资料使用者及第三者)不能在读人不会注意到该项附注的情况下及不能在该项附注不能供他人查阅的情况下, 使用该资料; 及 (由 2012 年第 18 号第 2 条 修订) (ii) 该资料使用者须将该项附注的副本一份, 附于第(1)款所述述的关于该项要求的通知书上。(3) 在本条中 — 意见表达 (expression...
s.18(5)	Section 22: 22. Data correction request (1) Subject to subsections (1A) and (2), where— (Amended 18 of 2012 s. 15) (a) a copy of personal data has been supplied by a data user in compliance with a data access request; and (b) the individual, or a relevant person on behalf of the individual, who is the data subject considers that the data is inaccurate, (Amended 18 of 2012 s. 15) then that individual or relevant person, as the case may be, may make a request that the data user make the necessary correct... Section 23: 23. Compliance with data correction request (1) Subject to subsection (2) and section 24, a data user who is satisfied that personal data to which a data correction request relates is inaccurate shall, not later than 40 days after receiving the request— (Amended 18 of 2012 s. 2) (a) make the necessary correction to the data; (b) supply the requestor with a copy of the data as so corrected; and (c) subject to subsection (3), if— (i) the data has been disclosed to a third party during the 12 ... Section 24: 24. Circumstances in which data user shall or may refuse to comply with data correction request (1) Subject to subsection (2), a data user shall refuse to comply with data correction request if the data user is not supplied with such information as the data user may reasonably require— (a) in order to satisfy the data user as to the identity of the requestor; (b) where the requestor purports to be a relevant person, in order to satisfy the data user— (i) as to t... Section 25: 25. Notification of refusal to comply with data correction request, etc. (1) A data user who pursuant to section 24 refuses to comply with section 23(1) in relation to a data correction request shall, as soon as practicable but, in any case, not later than 40 days after receiving the request, by notice in writing inform the requestor— (a) of the refusal and the reasons for the refusal; and (b) where section 24(3) (e) is applicable, of the name and address of the other data user concerned. (2...
s.22(4)	(5) 任何人在查阅资料要求中, 为了令有关资料使用者 — (a) 告知他人该资料使用者是否持有属该要求的标的之个人资料; 及 (b) (如适用)提供一份该资料的副本, 而提供在要项上属虚假或具误导性的资讯, 即属犯罪。(由 2012 年第 18 号第 11 条 增补) (5) A person commits an offence if the person, in a data access request, supplies any information which is false or misleading in a material particular for the purposes of having the data user— (a) inform the person whether the data user holds any personal data which is the subject of the request; and (b) if applicable, supply a copy of the data. (Added 18 of 2012 s. 11) (4) 任何人在改正资料要求中, 为了令有关个人的个人资料得以按该要求所示的方式改正, 而提供在要项上属虚假或具误导性的资讯, 即属犯罪, 一经定罪, 可处第 3 级罚款及监禁 6 个月。(由 2012 年第 18 号第 15 条 增补) (4) A person who, in a data correction request, supplies any information which is false or misleading in a material particular for the purpose of having the personal data corrected as indicated in the request, commits an offence and is liable on conviction to a fine at level 3 and to imprisonment for 6 months. (Added 18 of 2012 s. 15)
s.20(1)(a)	(a) 该资料使用者不获提供他合理地要求 — (i) 以令他信纳提出要求者的身分的资讯; (ii) (如提出要求者看来是就另一名人而属有关人士)以令 他 — (A) 信纳该另一名个人的身分; 及 (B) 信纳提出要求者确是就该另一名人而属有关人士, 的资讯; (a) if the data user is not supplied with such information as the data user may reasonably require— (i) in order to satisfy the data user as to the identity of the requestor; (ii) where the requestor purports to be a relevant person, in order to satisfy the data user— (A) as to the identity of the individual in relation to whom the requestor purports to be such a person; and (B) that the requestor is such a person in relation to that individual;
s.20(1)(b)	(b) (在符合第(2)款的规定下)该资料使用者不能在披露另一名人属其资料当事人的个人资料的情况下依从该项要求; 但如该资料使用者信纳该另一名人已同意向该提出要求者披露该资料, 则属例外; 或 (由 2012 年第 18 号第 2 条 修订) (b) subject to subsection (2), if the data user cannot comply with the request without disclosing personal data of which any other individual is the data subject user is satisfied that the other individual has consented to the disclosure of the data to the requestor; or
s.20(1)(c)	(c) (在其他情况下)在其当时, 依从该要求根据本条例或任何其他条例是被禁止的。(由 2012 年第 18 号第 13 条 修订) (c) in any other case, if compliance with the request is for the time being prohibited under this or any other Ordinance. (Amended 18 of 2012 s. 13)
s.20(2)(a)	(a) 令该款提述另一名人属其资料当事人的个人资料之处, 包括提述识辨该名个人为有关的查阅资料要求所关乎的个人资料的来源的资讯(但如该名个人在该等资讯被点名或该等资讯以其他方式明确识辨该名个人的身分则除外); (a) so that the reference in that subsection to personal data of which any other individual is the data subject includes a reference to information identifying that individual as the source of the personal data to which the data access request concerned relates unless that information names or otherwise explicitly identifies that individual;
s.20(2)(b)	(b) 令资料使用者无须在不披露该另一名人(不论是藉着略去姓名或其他能识辨身分的详情或以其他方式)的情况下, 在有关的查阅资料要求是可予依从的范围内依从该项要求。 (b) so as to excuse a data user from complying with the data access request concerned to the extent that the request may be complied with without disclosing the identity of the other individual, whether by the omission of names, or other identifying particulars, or otherwise.
s.20(3)(a)	(a) 该项要求既不是采用中文而以书面作出, 亦不是采用英文而以书面作出; (a) the request is not in writing in the Chinese or English language;
s.20(3)(b)	(b) 该资料使用者不获提供他为找出该项要求所关乎的个人资料而合理地要求的资讯; (b) the data user is not supplied with such information as the data user may reasonably require to locate the personal data to which the request relates;
s.20(3)(c)	(c) 该项要求关乎个人资料, 并是在由 — (由 2012 年第 18 号第 2 条 修订) (i) 就该资料属资料当事人的个人; (由 2012 年第 18 号第 2 条 修订) (ii) 一名或一名以上代表该名个人的有关人士; 或 (iii) 该名个人及该等有关人士的任何组合, 所提出的 2 项或 2 项以上的类似要求之后提出, 而在所有有关情况下, 要该资料使用者依从该项要求是不合理的; (由 2012 年第 18 号第 2 条 修订) (c) the request follows 2 or more similar requests made by— (i) the individual who is the data subject in respect of the personal data to which the request relates; (ii) one or more relevant persons on behalf of that individual; or (iii) any combination of that individual and those relevant persons, and it is unreasonable in all the circumstances for the data user to comply with the request;
s.20(3)(d)	(d) (在符合第(4)款的规定下)有另一资料使用者控制该资料的使用, 而控制的方式禁止本款所述的第一位资料使用者依从(不论是完全依从或部分依从)该项要求; (由 2012 年第 18 号第 2 条 修订) (d) subject to subsection (4), any other data user controls the use of the data in such a way as to prohibit the first-mentioned data user from complying (whether in whole or in part) with the request;
s.20(3)(ea)	(ea) 根据本条例或任何其他条例, 该资料使用者有权不依从该项要求; 或 (由 2012 年第 18 号第 13 条 增补) (ea) the data user is entitled under this or any other Ordinance not to comply with the request; or (Added 18 of 2012 s. 13)
s.20(4)	(4) 如 — (a) 查阅资料要求与 第 18(1) (a) 条 有关, 第 3) (d) 款的施行不得令有关的资料使用者在任何范围内无须依从该项要求; (b) 查阅资料要求与 第 18(1) (b) 条 有关, 第 3) (d) 款的施行, 不得令有关的资料使用者无须在能不违反有关禁制而依从该项要求的范围内依从该项要求。 (4) Subsection 3) (d) shall not operate so as to excuse a data user from complying with the data access request concerned— (a) in so far as the request relates to section 18(1) (a) , to any extent; (b) in so far as the request relates to section 18(1) (b) , to any extent that the data user can comply with the request without contravening the prohibition concerned.
s.21(1)(c)	(c) (如 第 20(3) (d) 条 适用)有关的另一资料使用者的地址及姓名或名称。 (c) where section 20(3) (d) is applicable, of the name and address of the other data user concerned.
s.24	24. 资料使用者须在或在何种情况下拒绝依从改正资料要求 (1) 除第(2)款另有规定外, 如资料使用者不获提供他合理地要求 — (a) 以令他信纳提出有关的改正资料要求的人的身分的资讯; (b) (如提出要求者看来是就另一人而属有关人士)以令 他 — (i) 信纳该另一人的身分; 及 (ii) 信纳提出要求者确是就该另一人而属有关人士, 的资讯, 他须拒绝就该项要求遵守 第 23(1)条。(2) 如改正资料要求是因为查阅资料要求而产生, 而两项要求是由同一人提出的, 则第(1)款不适用于该项改正资料要求。(3) 在以下情况, 资料使用者可拒绝就某项改正资料要求遵守 第 23(1)条 — (a) 该项要求既不是采用中文而以书面作出, 亦不是采用英文而以书面作出; (b) 该资料使用者不获提供该项要求所关乎的个人资料属不准确; (c) 该资料使用者合理地要求某些资讯, 以确定该项要求所关乎的个人资料在哪些方面不准确, 但是他未获提供该等资讯; (d) 资料使用者不获提供该项要求的标的之改正是准确的; 或 (e) (在符合第(4)款的规定下)有另一资料使用者控制该资料的处理, 而控制的方式禁止本款所述的第一位资料使用者遵守(不论是完全遵守或部分遵守)该款。(由 2012 年第 18 号第 2 条 修订) (4) 第 3) (e) 款的施行, 不得令资料使用者在能不违反有关禁制而遵守 第 23(1)条 的范围内, 无须遵守该款。 24. Circumstances in which data user shall or may refuse to comply with data correction request (1) Subject to subsection (2), a data user shall refuse to comply with section 23(1) in relation to a data correction request if the data user is not supplied with such information as the data user may reasonably require— (a) in order to satisfy the data user as to the identity of the requestor; (b) where the requestor purports to be a relevant person, in order to satisfy the data user— (i) as to the identity of the individual in relation to whom the requestor purports to be such a person; and (ii) that the requestor is such a person in relation to that individual. (2) Subsection (1) shall not apply to a data correction request where the requestor is the same person as the requestor in respect of the data access request which gave rise to the data correction request. (3) A data user may refuse to comply with section 23(1) in relation to a data correction request if— (a) the request is not in writing in the Chinese or English language; (b) the data user is not satisfied that the personal data to which the request relates is inaccurate; (Amended 18 of 2012 s. 2) (c) the data user is not supplied with such information as the data user may reasonably require to ascertain in what way the personal data to which the request relates is inaccurate; (Amended 18 of 2012 s. 2) (d) the data ...
s.24(1)	(1) 除第(2)款另有规定外, 如资料使用者不获提供他合理地要求 — (a) 以令他信纳提出有关的改正资料要求的人的身分的资讯; (b) (如提出要求者看来是就另一人而属有关人士)以令 他 — (i) 信纳该另一人的身分; 及 (ii) 信纳提出要求者确是就该另一人而属有关人士, 的资讯, 他须拒绝就该项要求遵守 第 23(1)条。 (1) Subject to subsection (2), a data user shall refuse to comply with section 23(1) in relation to a data correction request if the data user is not supplied with such information as the data user may reasonably require— (a) in order to satisfy the data user as to the identity of the requestor; (b) where the requestor purports to be a relevant person, in order to satisfy the data user— (i) as to the identity of the individual in relation to whom the requestor purports to be such a person; and (ii) that the requestor is such a person in relation to that individual.
s.24(2)	(2) 如改正资料要求是因为查阅资料要求而产生, 而两项要求是由同一人提出的, 则第(1)款不适用于该项改正资料要求。

	(2) Subsection (1) shall not apply to a data correction request where the requestor is the same person as the requestor in respect of the data access request which gave rise to the data correction request. (3) 在以下情况，资料使用者可拒绝就某项改正资料要求遵守 第 23(1)条 —— (a) 该项要求既不是采用中文而以书面作出，亦不是采用英文而以书面作出； (b) 该资料使用者不信赖该项要求所关乎的个人资料属不准确； (c) 该资料使用者合理地要求某些资讯，以确定该项要求所关乎的个人资料在哪些方面不准确，但是他不提供该等资讯； (d) 资料使用者不信赖属该项要求的标的之改正准确的；或 (e) (在符合第(4)款的规定下)有另一资料使用者控制该资料的处理，而控制的方式禁止本款所述的第一位资料使用者遵守(不论是完全遵守或部分遵守)该条。(由 2012 年第 18 号 第 2 条 修订) (3) A data user may refuse to comply with section 23(1) in relation to a data correction request if— (a) the request is not in writing in the Chinese or English language; (b) the data user is not satisfied that the personal data to which the request relates is inaccurate; (Amended 18 of 2012 s.2) (c) the data user is not supplied with such information as the data user may reasonably require to ascertain in what way the personal data to which the request relates is inaccurate; (Amended 18 of 2012 s.2) (d) the data user is not satisfied that the correction which is the subject of the request is accurate; or (e) subject to subsection (4), any other data user controls the processing of the personal data to which the request relates in such a way as to prohibit the first-mentioned data user from complying (whether in whole or in part) with that section.
s.24(3)	(4) 第(3)(e)款的施行，不得令资料使用者在能不违反有关禁制而遵守 第 23(1)条 的范围内，无须遵守该条。 (4) Subsection (3)(e) shall not operate so as to excuse a data user from complying with section 23(1) in relation to the data correction request concerned to the extent that the data user can comply with that section without contravening the prohibition concerned.
s.24(4)	(b) (如 第 24(3)(e)条 适用)有关的另一资料使用者的地址及姓名或名称。 (b) where section 24(3)(e) is applicable, of the name and address of the other data user concerned.
s.25(1)(b)	collection if, but only if, the data user concerned has complied with the provisions of data protection principle 1(3) in respect of the subsequent collection. 第 6A 部 在直接促销中使用个人资料及提供个人资料以供用于直接促销 (第 6A 部 由 2012 年第 18 号 第 21 条 增补) Part 6A Use of Personal Data in Direct Marketing and Provision of Personal Data for Use in Direct Marketing (Part 6A added 18 of 2012 s. 21) 35A. 第 6A 部的 释义 (1) 在本部中 — 同意 (consent) 就在直接促销中使用个人资料而言，或就提供个人资料以供在直接促销中使用而言，包括表示不反对该项使用或提供； 回应途径 (response channel) 指由资料使用者根据 第 35C(2)(c) 或 35(2)(c) 条 向资料当事人提供的途径； 直接促销 (direct marketing) 指通过直接促销方法 — (a) 要约提供货品、设施或服务，或为该等货品、设施或服务可予提供而进行广告宣传；或 (b) 为慈善、文化、公益、康体、政治或其他目的索求捐赠或贡献； 直接促销方法 (direct marketing means) 指 — (a) 藉邮件、图文传真、电子邮件或其他形式的通讯，向指名特定人士递交资讯或货品；或 (b) 以特定人士为致电对象的电话通讯； 促销标的 (marketing subject) 就直接促销而言，指 — (a) 被要约提供或就其可予提供而进行广告宣传的任何货品、设施或服务；或 (b) 任何索求捐赠或贡献的目的； 许可种类个人资料 (permitted kind of personal data) 就资料当事人对某项拟进行的个人资料使用或提供的同意而言，指符合以下条件的种类的个人资料 — (a) 该种类的个人资料是在该当事人根据 第 35C(2)(b)(i) 或 35(2)(b)(ii) 条 获提供的资讯中指明的；及 (b) 该同意是就该种类的个人资料给予的； 许可类别人士 (permitted class of persons) 就资料当事人对某项拟进行的个人资料提供的同意而言，指符合以下条件的类别的人士 — (
Part 6A	collection if, but only if, the data user concerned has complied with the provisions of data protection principle 1(3) in respect of the subsequent collection. 第 6A 部 在直接促销中使用个人资料及提供个人资料以供用于直接促销 (第 6A 部 由 2012 年第 18 号 第 21 条 增补) Part 6A Use of Personal Data in Direct Marketing and Provision of Personal Data for Use in Direct Marketing (Part 6A added 18 of 2012 s. 21) 35A. 第 6A 部的 释义 (1) 在本部中 — 同意 (consent) 就在直接促销中使用个人资料而言，或就提供个人资料以供在直接促销中使用而言，包括表示不反对该项使用或提供； 回应途径 (response channel) 指由资料使用者根据 第 35C(2)(c) 或 35(2)(c) 条 向资料当事人提供的途径； 直接促销 (direct marketing) 指通过直接促销方法 — (a) 要约提供货品、设施或服务，或为该等货品、设施或服务可予提供而进行广告宣传；或 (b) 为慈善、文化、公益、康体、政治或其他目的索求捐赠或贡献； 直接促销方法 (direct marketing means) 指 — (a) 藉邮件、图文传真、电子邮件或其他形式的通讯，向指名特定人士递交资讯或货品；或 (b) 以特定人士为致电对象的电话通讯； 促销标的 (marketing subject) 就直接促销而言，指 — (a) 被要约提供或就其可予提供而进行广告宣传的任何货品、设施或服务；或 (b) 任何索求捐赠或贡献的目的； 许可种类个人资料 (permitted kind of personal data) 就资料当事人对某项拟进行的个人资料使用或提供的同意而言，指符合以下条件的种类的个人资料 — (a) 该种类的个人资料是在该当事人根据 第 35C(2)(b)(i) 或 35(2)(b)(ii) 条 获提供的资讯中指明的；及 (b) 该同意是就该种类的个人资料给予的； 许可类别人士 (permitted class of persons) 就资料当事人对某项拟进行的个人资料提供的同意而言，指符合以下条件的类别的人士 — (
s.35A(1)	(1) 在本部中 — 同意 (consent) 就在直接促销中使用个人资料而言，或就提供个人资料以供在直接促销中使用而言，包括表示不反对该项使用或提供； 回应途径 (response channel) 指由资料使用者根据 第 35C(2)(c) 或 35(2)(c) 条 向资料当事人提供的途径； 直接促销 (direct marketing) 指通过直接促销方法 — (a) 要约提供货品、设施或服务，或为该等货品、设施或服务可予提供而进行广告宣传；或 (b) 为慈善、文化、公益、康体、政治或其他目的索求捐赠或贡献； 直接促销方法 (direct marketing means) 指 — (a) 藉邮件、图文传真、电子邮件或其他形式的通讯，向指名特定人士递交资讯或货品；或 (b) 以特定人士为致电对象的电话通讯； 促销标的 (marketing subject) 就直接促销而言，指 — (a) 被要约提供或就其可予提供而进行广告宣传的任何货品、设施或服务；或 (b) 任何索求捐赠或贡献的目的； 许可种类个人资料 (permitted kind of personal data) 就资料当事人对某项拟进行的个人资料使用或提供的同意而言，指符合以下条件的种类的个人资料 — (a) 该种类的个人资料是在该当事人根据 第 35C(2)(b)(i) 或 35(2)(b)(ii) 条 获提供的资讯中指明的；及 (b) 该同意是就该种类的个人资料给予的； 许可类别人士 (permitted class of persons) 就资料当事人对某项拟进行的个人资料提供的同意而言，指符合以下条件的类别的人士 — (a) 该类别的人士是在该当事人根据 第 35(2)(b)(i) 或 35(2)(b)(ii) 条 获提供的资讯中指明的；及 (b) 该同意是就该类别的人士给予的； 许可类别促销标的 (permitted class of marketing subjects) 就资料当事人对某项拟进行的个人资料使用或提供的同意而言，指符合以下条件的类别的促销标的 — (a) 该类别的促销标的是在该当事人根据 第 35C(2)(b)(i) 或 35(2)(b)(iv) 条 获提供的资讯中指明的；及 (b) 该同意是就该类别的促销标的给予的。 (1) In this Part— consent (同意), in relation to a use of personal data in direct marketing or a provision of personal data for use in direct marketing, includes an indication of no objection to the use or provision; direct marketing (直接促销) means— (a) the offering, or advertising of the availability, of goods, facilities or services; or (b) the solicitation of donations or contributions for charitable, cultural, philanthropic, recreational, political or other purposes, through direct marketing means; direct marketing means (直接促销方法) means— (a) sending information or goods, addressed to specific persons by name, by mail, fax, electronic mail or other means of communication; or (b) making telephone calls to specific persons; marketing subject (促销标的), in relation to direct marketing, means— (a) any goods, facility or service offered, or the availability of which is advertised; or (b) any purpose for which donations or contributions are solicited; permitted class of marketing subjects (许可类别促销标的), in relation to a consent by a data subject to an intended use or provision of personal data, means a class of marketing subjects— (a) that is specified in the information provided to the data subject under section 35C(2)(b)(i) or 35(2)(b)(iv); and (b) in relation to which the consent is given; permitted class of persons (许可类别人士), in relation to a consent by a data su...
s.35B	35B. 适用范围 本分部并不就要约提供以下服务或就有以下服务可予提供而进行广告宣传而适用 — (a) 由社会福利署办、资助或津贴的社会服务； (b) 由医院管理局或卫生署提供的医疗服务；或 (c) 符合以下说明的任何其他社会或医疗服务： 该项服务拟向某个人提供，而如不向该个人提供该项服务，便相当可能会对以下人士的身体或精神健康造成严重损害 — (i) 该个人；或 (ii) 任何其他个人。 35B. Application This Division does not apply in relation to the offering, or advertising of the availability, of— (a) social services run, subvented or subsidized by the Social Welfare Department; (b) health care services provided by the Hospital Authority or Department of Health; or (c) any other social or health care services which, if not provided, would be likely to cause serious harm to the physical or mental health of— (i) the individual to whom the services are intended to be provided; or (ii) any other individual.
s.35B(a)	(a) 由社会福利署办、资助或津贴的社会服务； (a) social services run, subvented or subsidized by the Social Welfare Department;
s.35B(b)	(b) 由医院管理局或卫生署提供的医疗服务；或 (b) health care services provided by the Hospital Authority or Department of Health; or
s.35B(c)	(c) 符合以下说明的任何其他社会或医疗服务： 该项服务拟向某个人提供，而如不向该个人提供该项服务，便相当可能会对以下人士的身体或精神健康造成严重损害 — (i) 该个人；或 (ii) 任何其他个人。 (c) any other social or health care services which, if not provided, would be likely to cause serious harm to the physical or mental health of— (i) the individual to whom the services are intended to be provided; or (ii) any other individual.
s.35C	35C. 资料使用者将个人资料用于直接促销，须采取指明行动 (1) 除 第 35D 条 另有规定外，资料使用者如拟在直接促销中，使用某资料当事人的个人资料，须采取第(2)款指明的一项行动。(2) 资料使用者须 — (a) 告知有关资料当事人 — (i) 该资料使用者拟如此使用有关个人资料；及 (ii) 该资料使用者须收到该当事人对该拟进行的使用的同意，否则不得如此使用该资料； (b) 向该当事人提供关于该拟进行的使用的以下资讯 — (i) 拟使用的个人资料的种类；及 (ii) 该资料拟就什么类别的促销标的而使用；及 (c) 向该当事人提供一个途径，让该当事人可在无需向该资料使用者缴费的情况下，通过该途径，传达该当事人对上述的拟进行的使用的同意。(3) 不论个人资料是否由有关资料使用者从有关资料当事人收集的，第(1)款均适用。(4) 根据第 (2)(a) 及 (b) 款提供的资讯，须以易于理解的方式显示，如属书面资讯，则亦须以易于阅读的方式显示。(5) 除 第 35D 条 另有规定外，资料使用者未经采取第(2)款指明的一项行动，而在直接促销中，使用某资料当事人的个人资料，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。(6) 在为第(5)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。(7) 凡有法律程序为第(5)款所订罪行而提起，在该程序之中，有关资料使用者负有举证责任，证明由于 第 35D 条，本条并不适用。 35C. Data user to take specified action before using personal data in direct marketing (1) Subject to section 35D, a data user who intends to use a data subject’s personal data in direct marketing must take each of the actions specified in subsection (2). (2) The data user must— (a) inform the data subject— (i) that the data user intends to so use the personal data; and (ii) that the data user may not so use the data unless the data user has received the data subject’s consent to the intended use; (b) provide the data subject with the following information in relation to the intended use— (i) the kinds of personal data to be used; and (ii) the classes of marketing subjects in relation to which the data is to be used; and (c) provide the data subject with a channel through which the data subject may, without charge by the data user, communicate the data subject’s consent to the intended use. (3) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user. (4) The information provided under subsection (2)(a) and (b) must be presented in a manner that is easily understandable and, if in written form, easily readable. (5) Subject to section 35D, a data user who uses a data subject’s personal data in direct marketing without taking each of the actions specified in subsection (2) commits an offence and is liable on convi...
s.35C(1)	(1) 除 第 35D 条 另有规定外，资料使用者如拟在直接促销中，使用某资料当事人的个人资料，须采取第(2)款指明的一项行动。 (1) Subject to section 35D, a data user who intends to use a data subject’s personal data in direct marketing must take each of the actions specified in subsection (2).
s.35C(2)	(2) 资料使用者须 — (a) 告知有关资料当事人 — (i) 该资料使用者拟如此使用有关个人资料；及 (ii) 该资料使用者须收到该当事人对该拟进行的使用的同意，否则不得如此使用该资料； (b) 向该当事人提供关于该拟进行的使用的以下资讯 — (i) 拟使用的个人资料的种类；及 (ii) 该资料拟就什么类别的促销标的而使用；及 (c) 向该当事人提供一个途径，让该当事人可在无需向该资料使用者缴费的情况下，通过该途径，传达该当事人对上述的拟进行的使用的同意。 (2) The data user must— (a) inform the data subject— (i) that the data user intends to so use the personal data; and (ii) that the data user may not so use the data unless the data user has received the data subject’s consent to the intended use; (b) provide the data subject with the following information in relation to the intended use— (i) the kinds of personal data to be used; and (ii) the classes of marketing subjects in relation to which the data is to be used; and (c) provide the data subject with a channel through which the data subject may, without charge by the data user, communicate the data subject’s consent to the intended use.
s.35C(3)	(3) 不论个人资料是否由有关资料使用者从有关资料当事人收集的，第(1)款均适用。 (3) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user.
s.35C(4)	(4) 根据第 (2)(a) 及 (b) 款提供的资讯，须以易于理解的方式显示，如属书面资讯，则亦须以易于阅读的方式显示。 (4) The information provided under subsection (2)(a) and (b) must be presented in a manner that is easily understandable and, if in written form, easily readable.
s.35C(5)	(5) 除 第 35D 条 另有规定外，资料使用者未经采取第(2)款指明的一项行动，而在直接促销中，使用某资料当事人的个人资料，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。 (5) Subject to section 35D, a data user who uses a data subject’s personal data in direct marketing without taking each of the actions specified in subsection (2) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years.
s.35C(6)	(6) 在为第(5)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 (6) In any proceedings for an offence under subsection (5), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35C(7)	(7) 凡有法律程序为第(5)款所订罪行而提起，在该程序之中，有关资料使用者负有举证责任。证明由于 第 35D 条，本条并不适用。 (7) In any proceedings for an offence under subsection (5), the burden of proving that this section does not apply because of section 35D lies on the data user.
s.35E	35E. 如无资料当事人同意，资料使用者不得将个人资料用于直接促销 (1) 已遵守 第 35C 条 的资料使用者不得在直接促销中，使用有关资料当事人的个人资料，但如以下条件获符合，则不在此限 — (a) 该资料使用者已收到该当事人对拟如此使用(如该资料使用者根据 第 35C(2)(b) 条 提供的资讯所描述者)该个人资料的意见，不论是一般的同意或是选择性的同意； (b) (如该项同意属口头同意)该资料使用者已自收到该项同意起计的 14 日内，向该当事人发出确认以下事宜的书面确认 — (i) 收到该项同意的日期； (ii) 有关许可种类个人资料；及 (iii) 有关许可类别促销标的；及 (c) 该项使用符合该当事人的同意。(2) 就第(1)(c)款而言，如 — (a) 有关个人资料属某许可种类个人资料；及 (b) 该资料是就某促销标的而使用，而该促销标的属某许可类别促销标的，则该项使用即属符合该当事人的同意。(3) 资料当事人可透过回应途径或其他方法，向资料使用者传达对使用个人资料的意见。(4) 资料使用者违反第(1)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。(5) 在为第(4)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 35E. Data user must not use personal data in direct marketing without data subject’s consent (1) A data user who has complied with section 35C must not use the data subject’s personal data in direct marketing unless— (a) the data user has received the data subject’s consent to the intended use of personal data, as described in the information provided by the data user under section 35C(2)(b), either generally or selectively; (b) if the consent is given orally, the data user has, within 14 days from receiving the consent, sent a written confirmation to the data subject, confirming— (i) the date of receipt of the consent; (ii) the permitted kind of personal data; and (iii) the permitted class of marketing subjects; and (c) the use is consistent with the data subject’s consent. (2) For the purposes of subsection (1)(c), the use of personal data is consistent with the data subject’s consent if— (a) the personal data falls within a permitted kind of personal data; and (b) the marketing subject in relation to which the data is used falls within a permitted class of marketing subjects. (3) A data subject may communicate to a data user the consent to a use of personal data either through a response channel or other means. (4) A data user who contravenes subsection (1) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years. (5) In a...

s.35E(1)	(1) 已遵守 第 35C 条 的资料使用者不得在直接促销中，使用有关资料当事人的个人资料，但如以下条件获符合，则不在此限 — (a) 该资料使用者已收到该当事人对拟如此使用(如该资料使用者根据 第 35C(2)(b)条 提供的资讯所描述者)该个人资料的意见，不论是一般的同意或是选择性的同意； (b) (如该项同意属口头同意)该资料使用者已自收到该项同意起计的 14 日内，向该当事人发出确认以下事宜的书面确认 — (i) 收到该项同意的日期； (ii) 有关何种种类个人资料；及 (iii) 有关何种可类别促销标的；及 (c) 该项使用符合该当事人的同意。 (1) A data user who has complied with section 35C must not use the data subject’s personal data in direct marketing unless— (a) the data user has received the data subject’s consent to the intended use of personal data, as described in the information provided by the data user under section 35C(2)(b), either generally or selectively; (b) if the consent is given orally, the data user has, within 14 days from receiving the consent, sent a written confirmation to the data subject, confirming— (i) the date of receipt of the consent; (ii) the permitted kind of personal data; and (iii) the permitted class of marketing subjects; and (c) the use is consistent with the data subject’s consent.
s.35E(2)	(2) 就第 (1)(c) 款而言，如 — (a) 有关个人资料属属某许可种类个人资料；及 (b) 该资料是就某促销标的而使用，而该促销标的属某许可类别促销标的， 则该项使用即属符合该当事人的同意。 (2) For the purposes of subsection (1)(c), the use of personal data is consistent with the data subject’s consent if— (a) the personal data falls within a permitted kind of personal data; and (b) the marketing subject in relation to which the data is used falls within a permitted class of marketing subjects.
s.35E(3)	(3) 资料当事人可透过回应途径或其他方法，向资料使用者传达对使用个人资料的意见。
s.35E(4)	(3) A data subject may communicate to a data user the consent to a use of personal data either through a response channel or other means. (4) 资料使用者违反第(1)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。
s.35E(5)	(4) A data user who contravenes subsection (1) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years. (5) 在为第(4)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 (5) In any proceedings for an offence under subsection (4), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35F	35F. 资料使用者首次将个人资料用于直接促销时须通知资料当事人 (1) 在将某资料当事人的个人资料首次于直接促销中使用时，资料使用者须告知该当事人，如该当事人要求该资料使用者停止在直接促销中使用该资料，该资料使用者须在向该当事人收费的情况下，停止在直接促销中使用该资料。 (2) 不论个人资料是否由有关资料使用者从有关资料当事人收集的，第(1)款均适用。 (3) 资料使用者违反第(1)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。 (4) 在为第(3)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 35F. Data user must notify data subject when using personal data in direct marketing for first time (1) A data user must, when using a data subject’s personal data in direct marketing for the first time, inform the data subject that the data user must, without charge to the data subject, cease to use the data in direct marketing if the data subject so requires. (2) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user. (3) A data user who contravenes subsection (1) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years. (4) In any proceedings for an offence under subsection (3), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35F(1)	(1) 在将某资料当事人的个人资料首次于直接促销中使用时，资料使用者须告知该当事人，如该当事人要求该资料使用者停止在直接促销中使用该资料，该资料使用者须在向该当事人收费的情况下，停止在直接促销中使用该资料。 (1) A data user must, when using a data subject’s personal data in direct marketing for the first time, inform the data subject that the data user must, without charge to the data subject, cease to use the data in direct marketing if the data subject so requires.
s.35F(2)	(2) 不论个人资料是否由有关资料使用者从有关资料当事人收集的，第(1)款均适用。 (2) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user.
s.35F(3)	(3) 资料使用者违反第(1)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。 (3) A data user who contravenes subsection (1) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years.
s.35F(4)	(4) 在为第(3)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 (4) In any proceedings for an offence under subsection (3), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35G	35G. 资料当事人可要求资料使用者停止将个人资料用于直接促销 (1) 资料当事人可随时要求资料使用者停止在直接促销中使用该当事人的个人资料。 (2) 不论有关资料当事人 — (a) 是否已自有关资料使用者，收到 第 35C(2)条 规定须就使用有关个人资料提供的资讯；或 (b) 有否在较早前，向该资料使用者或第三者给予对该项使用的同意， 第(1)款均适用。 (3) 资料使用者如收到资料当事人根据第(1)款作出的要求，须在向该当事人收费的情况下，依从该项要求。 (4) 资料使用者违反第(3)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。 (5) 在为第(4)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 (6) 本条不影响 第 26 条 的施行。 35G. Data subject may require data user to cease to use personal data in direct marketing (1) A data subject may, at any time, require a data user to cease to use the data subject’s personal data in direct marketing. (2) Subsection (1) applies irrespective of whether the data subject— (a) has received from the data user the information required to be provided in relation to the use of personal data under section 35C(2); or (b) has earlier given consent to the data user or a third person to the use. (3) A data user who receives a requirement from a data subject under subsection (1) must, without charge to the data subject, comply with the requirement. (4) A data user who contravenes subsection (3) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years. (5) In any proceedings for an offence under subsection (4), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence. (6) This section does not affect the operation of section 26.
s.35G(1)	(1) 资料当事人可随时要求资料使用者停止在直接促销中使用该当事人的个人资料。 (1) A data subject may, at any time, require a data user to cease to use the data subject’s personal data in direct marketing.
s.35G(2)	(2) 不论有关资料当事人 — (a) 是否已自有关资料使用者，收到 第 35C(2)条 规定须就使用有关个人资料提供的资讯；或 (b) 有否在较早前，向该资料使用者或第三者给予对该项使用的同意， 第(1)款均适用。 (2) Subsection (1) applies irrespective of whether the data subject— (a) has received from the data user the information required to be provided in relation to the use of personal data under section 35C(2); or (b) has earlier given consent to the data user or a third person to the use.
s.35G(3)	(3) 资料使用者如收到资料当事人根据第(1)款作出的要求，须在向该当事人收费的情况下，依从该项要求。 (3) A data user who receives a requirement from a data subject under subsection (1) must, without charge to the data subject, comply with the requirement.
s.35G(4)	(4) 资料使用者违反第(3)款，即属犯罪，一经定罪，可处罚款 \$500,000 及监禁 3 年。 (4) A data user who contravenes subsection (3) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years.
s.35G(5)	(5) 在为第(4)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 (5) In any proceedings for an offence under subsection (4), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35G(6)	(6) 本条不影响 第 26 条 的施行。 (6) This section does not affect the operation of section 26.
s.35H	35H. 第 3 保障资料原则规定的对在直接促销中使用个人资料的保护原则 尽管有 第 2(3)条 的规定，凡根据第 3 保障资料原则，资料使用者在直接促销中使用某资料当事人的任何个人资料，须获该当事人的订明同意，该资料使用者如没有违反 第 35C、 35E 或 35G 条， 即视为已取得该项同意。 35H. Prescribed consent for using personal data in direct marketing under data protection principle 3 Despite section 2(3), where a data user requires, under data protection principle 3, the prescribed consent of a data subject for using any personal data of the data subject in direct marketing, the data user is to be taken to have obtained the consent if the data user has not contravened section 35C, 35E or 35G.
s.35I	35I. 适用范围 (1) 如资料使用者并非为得益而将某资料当事人的个人资料，提供予另一人，以供该人用于要约提供以下服务或就以下服务可予提供而进行广告 传 — (a) 由社会福利署、资助或津贴的社会服务； (b) 由医院管理局或卫生署提供的医疗服务；或 (c) 符合以下说明的任何其他社会或医疗服务： 该项服务拟向某个人提供，而如向该某个人提供该项服务，便相当可能会对以下人士的身体或精神健康造成严重损害 — (i) 该某个人；或 (ii) 任何其他个人， 则本分部不适用。 (2) 如资料使用者将某资料当事人的个人资料，提供予该资料使用者的代理人，以供该代理人在代表该资料使用者进行直接促销的过程中使用， 则本分部不适用。 35I. Application (1) This Division does not apply if a data user provides, otherwise than for gain, personal data of a data subject to another person for use by that other person in offering, or advertising the availability, of— (a) social services run, subvented or subsidized by the Social Welfare Department; (b) health care services provided by the Hospital Authority or Department of Health; or (c) any other social or health care services which, if not provided, would be likely to cause serious harm to the physical or mental health of— (i) the individual to whom the services are intended to be provided; or (ii) any other individual. (2) This Division does not apply if a data user provides personal data of a data subject to an agent of the data user for use by the agent in carrying out direct marketing on the data user’s behalf.
s.35I(1)	(1) 如资料使用者并非为得益而将某资料当事人的个人资料，提供予另一人，以供该人用于要约提供以下服务或就以下服务可予提供而进行广告 传 — (a) 由社会福利署、资助或津贴的社会服务； (b) 由医院管理局或卫生署提供的医疗服务；或 (c) 符合以下说明的任何其他社会或医疗服务： 该项服务拟向某个人提供，而如向该某个人提供该项服务，便相当可能会对以下人士的身体或精神健康造成严重损害 — (i) 该某个人；或 (ii) 任何其他个人， 则本分部不适用。 (1) This Division does not apply if a data user provides, otherwise than for gain, personal data of a data subject to another person for use by that other person in offering, or advertising the availability, of— (a) social services run, subvented or subsidized by the Social Welfare Department; (b) health care services provided by the Hospital Authority or Department of Health; or (c) any other social or health care services which, if not provided, would be likely to cause serious harm to the physical or mental health of— (i) the individual to whom the services are intended to be provided; or (ii) any other individual.
s.35I(2)	(2) 如资料使用者将某资料当事人的个人资料，提供予该资料使用者的代理人，以供该代理人在代表该资料使用者进行直接促销的过程中使用， 则本分部不适用。 (2) This Division does not apply if a data user provides personal data of a data subject to an agent of the data user for use by the agent in carrying out direct marketing on the data user’s behalf.
s.35J	35J. 资料使用者若提供个人资料前，须采取指明行动 (1) 资料使用者如拟将某资料当事人的个人资料提供予另一人，以供该人在直接促销中使用， 该资料使用者须采取第(2)款指明的每一项行动。 (2) 资料使用者须 — (a) 以书面告知有关资料当事人 — (i) 该资料使用者拟如此提供有关个人资料；及 (ii) 该资料使用者须收到该当事人对该拟进行的提供的书面同意，否则不得如此提供该资料； (b) 向该当事人提供关于该拟进行的提供的以下书面资讯 — (i) (如该资料是拟为得益而提供的)该资料是拟如此提供的； (ii) 拟提供的个人资料的种类； (iii) 该资料拟提供予什么类别的人士；及 (iv) 该资料拟就什么类别的促销标的而使用；及 (c) 向该当事人提供一个途径，让该当事人可在无需向该资料使用者缴费的情况下，透过该途径，以书面传达该当事人对上述的拟进行的提供的同意。 (3) 不论个人资料是否由有关资料使用者从有关资料当事人收集的，第(1)款均适用。 (4) 根据第 (2)(a) 及 (b) 款提供的资讯，须易于理解和阅读的方式显示。 (5) 资料使用者若未经采取第(2)款指明的每一项行动，而将某资料当事人的个人资料提供予另一人，以供该人在直接促销中使用，即属犯罪，一经定罪 — (a) 在资料是作为得益而提供的情况下，可处罚款 \$1,000,000 及监禁 5 年；或 (b) 在该资料并非是为得益而提供的情况下，可处罚款 \$500,000 及监禁 3 年。 (6) 在为第(5)款所订罪行而提起的法律程序中，被控告的资料使用者如证明自己已采取所有合理预防措施，并已作出一切应作出的努力，以避免犯该罪行，即可以此作为免责辩护。 35J. Data user to take specified action before providing personal data (1) A data user who intends to provide a data subject’s personal data to another person for use by that other person in direct marketing must take each of the actions specified in subsection (2). (2) The data user must— (a) inform the data subject in writing— (i) that the data user intends to so provide the personal data; and (ii) that the data user may not so provide the data unless the data user has received the data subject’s written consent to the intended provision; (b) provide the data subject with the following written information in relation to the intended provision— (i) if the data is to be provided for gain, that the data is to be so provided; (ii) the kinds of personal data to be provided; (iii) the classes of persons to which the data is to be provided; and (iv) the classes of marketing subjects in relation to which the data is to be used; and (c) provide the data subject with a channel through which the data subject may, without charge by the data user, communicate the data subject’s consent to the intended provision in writing. (3) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user. (4) The information provided under subsection (2)(a) and (b) must be presented in a manner that is easily understandable and easily readable. (...)
s.35J(1)	(1) 资料使用者如拟将某资料当事人的个人资料提供予另一人，以供该人在直接促销中使用， 该资料使用者须采取第(2)款指明的每一项行动。 (1) A data user who intends to provide a data subject’s personal data to another person for use by that other person in direct marketing must take each of the actions specified in subsection (2).
s.35J(2)	(2) 资料使用者须 — (a) 以书面告知有关资料当事人 — (i) 该资料使用者拟如此提供有关个人资料；及 (ii) 该资料使用者须收到该当事人对该拟进行的提供的书面同意，否则不得如此提供该资料； (b) 向该当事人提供关于该拟进行的提供的以下书面资讯 — (i) (如该资料是拟为得益而提供的)该资料是拟如此提供的； (ii) 拟提供的个人资料的种类； (iii) 该资料拟提供予什么类别的人士；及 (iv) 该资料拟就什么类别的促销标的而使用；及 (c) 向该当事人提供一个途径，让该当事人可在无需向该资料使用者缴费的情况下，透过该途径，以书面传达该当事人对上述的拟进行的提供的同意。 (2) The data user must— (a) inform the data subject in writing— (i) that the data user intends to so provide the personal data; and (ii) that the data user may not so provide the data unless the data user has received the data subject’s

	written consent to the intended provision; (b) provide the data subject with the following written information in relation to the intended provision— (i) if the data is to be provided for gain, that the data is to be so provided; (ii) the kinds of personal data to be provided; (iii) the classes of persons to which the data is to be provided; and (iv) the classes of marketing subjects in relation to which the data is to be used; and (c) provide the data subject with a channel through which the data subject may, without charge by the data user, communicate the data subject’s consent to the intended provision in writing.
s.35J(3)	(3) 不论个人资料是否由有关资料使用者从有关资料当事人收集的, 第(1)款均适用。
s.35J(4)	(3) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user. (4) 根据第 (2) (a) 及 (b) 款提供的资讯, 须以易于理解和阅读的方式显示。
	(4) The information provided under subsection (2) (a) and (b) must be presented in a manner that is easily understandable and easily readable.
s.35J(5)	(5) 资料使用者若未经采取第(2)款指明的每一项行动, 而将某资料当事人的个人资料提供予另一人, 以供该人在直接促销中使用, 即属犯罪, 一经定罪 — (a) 在该资料是为得益而提供的情况下, 可处罚款 \$1,000,000 及监禁 5 年; 或 (b) 在该资料并非是为得益而提供的情况下, 可处罚款 \$500,000 及监禁 3 年。
	(5) A data user who provides personal data of a data subject to another person for use by that other person in direct marketing without taking each of the actions specified in subsection (2) commits an offence and is liable on conviction—
s.35J(6)	(a) if the data is provided for gain, to a fine of \$1,000,000 and to imprisonment for 5 years; or (b) if the data is provided otherwise than for gain, to a fine of \$500,000 and to imprisonment for 3 years. (6) 在为第(5)款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。
s.35K	(6) In any proceedings for an offence under subsection (5), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence. 35K. 如无资料当事人同意, 资料使用者不得提供个人资料以供用于直接促销 (1) 已遵守 第 35J 条 的资料使用者, 不得将有关资料当事人的个人资料提供予另一人, 以供该人在直接促销中使用, 但如以下条件符合, 则不在此限 — (a) 该资料使用者已收到该当事人对拟如此提供(如该资料使用者根据 第 35J(2) (b) 条 提供的资讯所描述者)该个人资料的书面同意, 不论是一般的同意或是选择性的同意; (b) (如该资料使用者是为得益而提供该资料的)拟如此提供该资料的意向, 已在 第 35J(2) (b) (i) 条 所指的资讯中指明; 及 (由 2014 年第 18 号第 172 条 修订) (c) 该项提供符合该当事人的同意。 (2) 就第 (1) (c) 款而言, 如 — (a) 有关个人资料属某许可种类个人资料; (b) 获提供该资料的人属某许可类别人士; 及 (c) 该资料是就某促销标的而使用, 而该促销标的属某许可类别促销标的, 则该项提供即属符合该当事人的同意。 (3) 资料当事人可透过回应途径或其他书面方法, 向资料使用者传达对提供个人资料的意见。 (4) 资料使用者违反第(1)款, 即属犯罪, 一经定罪 — (a) 在该资料使用者是为得益而提供有关个人资料的情况下, 可处罚款 \$1,000,000 及监禁 5 年; 或 (b) 在该资料使用者并非是为得益而提供有关个人资料的情况下, 可处罚款 \$500,000 及监禁 3 年。 (5) 在为第(4)款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。
	35K. Data user must not provide personal data for use in direct marketing without data subject’s consent (1) A data user who has complied with section 35J must not provide the data subject’s personal data to another person for use by that other person in direct marketing unless— (a) the data user has received the data subject’s written consent to the intended provision of personal data, as described in the information provided by the data user under section 35J(2) (b), either generally or selectively; (b) if the data is provided for gain, the intention to so provide was specified in the information under section 35J(2) (b) (i); and (c) the provision is consistent with the data subject’s consent. (2) For the purposes of subsection (1) (c), the provision of personal data is consistent with the data subject’s consent if— (a) the personal data falls within a permitted kind of personal data; (b) the person to whom the data is provided falls within a permitted class of persons; and (c) the marketing subject in relation to which the data is to be used falls within a permitted class of marketing subjects. (3) A data subject may communicate to a data user the consent to a provision of personal data either through a response channel or other written means. (4) A data user who contravenes subsection (1) commits an offence and is liable on conviction— (a) if the data user provide...
s.35K(1)	(1) 已遵守 第 35J 条 的资料使用者, 不得将有关资料当事人的个人资料提供予另一人, 以供该人在直接促销中使用, 但如以下条件符合, 则不在此限 — (a) 该资料使用者已收到该当事人对拟如此提供(如该资料使用者根据 第 35J(2) (b) 条 提供的资讯所描述者)该个人资料的书面同意, 不论是一般的同意或是选择性的同意; (b) (如该资料使用者是为得益而提供该资料的)拟如此提供该资料的意向, 已在 第 35J(2) (b) (i) 条 所指的资讯中指明; 及 (由 2014 年第 18 号第 172 条 修订) (c) 该项提供符合该当事人的同意。
	(1) A data user who has complied with section 35J must not provide the data subject’s personal data to another person for use by that other person in direct marketing unless— (a) the data user has received the data subject’s written consent to the intended provision of personal data, as described in the information provided by the data user under section 35J(2) (b), either generally or selectively; (b) if the data is provided for gain, the intention to so provide was specified in the information under section 35J(2) (b) (i); and (c) the provision is consistent with the data subject’s consent.
s.35K(2)	(2) 就第 (1) (c) 款而言, 如 — (a) 有关个人资料属某许可种类个人资料; (b) 获提供该资料的人属某许可类别人士; 及 (c) 该资料是就某促销标的而使用, 而该促销标的属某许可类别促销标的, 则该项提供即属符合该当事人的同意。
	(2) For the purposes of subsection (1) (c), the provision of personal data is consistent with the data subject’s consent if— (a) the personal data falls within a permitted kind of personal data; (b) the person to whom the data is provided falls within a permitted class of persons; and (c) the marketing subject in relation to which the data is to be used falls within a permitted class of marketing subjects.
s.35K(3)	(3) 资料当事人可透过回应途径或其他书面方法, 向资料使用者传达对提供个人资料的意见。
	(3) A data subject may communicate to a data user the consent to a provision of personal data either through a response channel or other written means.
s.35K(4)	(4) 资料使用者违反第(1)款, 即属犯罪, 一经定罪 — (a) 在该资料使用者是为得益而提供有关个人资料的情况下, 可处罚款 \$1,000,000 及监禁 5 年; 或 (b) 在该资料使用者并非是为得益而提供有关个人资料的情况下, 可处罚款 \$500,000 及监禁 3 年。
	(4) A data user who contravenes subsection (1) commits an offence and is liable on conviction— (a) if the data user provides the personal data for gain, to a fine of \$1,000,000 and to imprisonment for 5 years; or (b) if the data user provides the personal data otherwise than for gain, to a fine of \$500,000 and to imprisonment for 3 years.
s.35K(5)	(5) 在为第(4)款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。
	(5) In any proceedings for an offence under subsection (4), it is a defence for the data user charged to prove that the data user took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35L	35L. 资料当事人可要求资料使用者停止提供个人资料以供用于直接促销 (1) 获资料使用者根据 第 35J(2) (b) 条 提供资讯的资料当事人可随时要求该资料使用者 — (a) 停止将该当事人的个人资料提供予任何其他人, 以供该人在直接促销中使用; 及 (b) 通知获得如此提供该资料的任何人, 停止在直接促销中使用该资料。 (2) 不论有关资料当事人有否在较早前, 同意有关个人资料提供, 第(1)款均适用。 (3) 资料使用者如收到资料当事人根据第(1)款作出的要求, 须在不向该当事人收费的情况下, 依从该项要求。 (4) 如资料使用者须按第 (1) (b) 款所述的要求, 通知某人停止在直接促销中使用有关资料当事人的个人资料, 该资料使用者须将该事宜以书面通知该人。 (5) 某人如收到资料使用者根据第(4)款发出的书面通知, 须按照该通知, 停止在直接促销中使用有关个人资料。 (6) 资料使用者违反第(3)款, 即属犯罪, 一经定罪 — (a) 在该项违反涉及为得益而提供某资料当事人的个人资料的情况下, 可处罚款 \$1,000,000 及监禁 5 年; 或 (b) 在其他情况下, 可处罚款 \$500,000 及监禁 3 年。 (7) 任何人违反第(5)款, 即属犯罪, 一经定罪, 可处罚款 \$500,000 及监禁 3 年。 (8) 在为第(6)或(7)款所订罪行而提起的法律程序中, 被控告的资料使用者或人士如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。 (9) 本条不影响 第 26 条 的施行。
	35L. Data subject may require data user to cease to provide personal data for use in direct marketing (1) A data subject who has been provided with information by a data user under section 35J(2) (b) may, at any time, require the data user — (a) to cease to provide the data subject’s personal data to any other person for use by that other person in direct marketing; and (b) to notify any person to whom the data has been so provided to cease to use the data in direct marketing. (2) Subsection (1) applies irrespective of whether the data subject has earlier given consent to the provision of the personal data. (3) A data user who receives a requirement from a data subject under subsection (1) must, without charge to the data subject, comply with the requirement. (4) If a data user is required to notify a person to cease to use a data subject’s personal data in direct marketing under a requirement referred to in subsection (1) (b), the data user must so notify the person in writing. (5) A person who receives a written notification from a data user under subsection (4) must cease to use the personal data in direct marketing in accordance with the notification. (6) A data user who contravenes subsection (3) commits an offence and is liable on conviction— (a) if the contravention involves a provision of personal data of a data subject for gain, to a fine of \$1,000,000 and to impr...
s.35L(1)	(1) 获资料使用者根据 第 35J(2) (b) 条 提供资讯的资料当事人可随时要求该资料使用者 — (a) 停止将该当事人的个人资料提供予任何其他人, 以供该人在直接促销中使用; 及 (b) 通知获得如此提供该资料的任何人, 停止在直接促销中使用该资料。
	(1) A data subject who has been provided with information by a data user under section 35J(2) (b) may, at any time, require the data user— (a) to cease to provide the data subject’s personal data to any other person for use by that other person in direct marketing; and (b) to notify any person to whom the data has been so provided to cease to use the data in direct marketing.
s.35L(2)	(2) 不论有关资料当事人有否在较早前, 同意有关个人资料的提供, 第(1)款均适用。
	(2) Subsection (1) applies irrespective of whether the data subject has earlier given consent to the provision of the personal data.
s.35L(3)	(3) 资料使用者如收到资料当事人根据第(1)款作出的要求, 须在不向该当事人收费的情况下, 依从该项要求。
	(3) A data user who receives a requirement from a data subject under subsection (1) must, without charge to the data subject, comply with the requirement.
s.35L(4)	(4) 如资料使用者须按第 (1) (b) 款所述的要求, 通知某人停止在直接促销中使用有关资料当事人的个人资料, 该资料使用者须将该事宜以书面通知该人。
	(4) If a data user is required to notify a person to cease to use a data subject’s personal data in direct marketing under a requirement referred to in subsection (1) (b), the data user must so notify the person in writing.
s.35L(5)	(5) 某人如收到资料使用者根据第(4)款发出的书面通知, 须按照该通知, 停止在直接促销中使用有关个人资料。
	(5) A person who receives a written notification from a data user under subsection (4) must cease to use the personal data in direct marketing in accordance with the notification.
s.35L(6)	(6) 资料使用者违反第(3)款, 即属犯罪, 一经定罪 — (a) 在该项违反涉及为得益而提供某资料当事人的个人资料的情况下, 可处罚款 \$1,000,000 及监禁 5 年; 或 (b) 在其他情况下, 可处罚款 \$500,000 及监禁 3 年。
	(6) A data user who contravenes subsection (3) commits an offence and is liable on conviction— (a) if the contravention involves a provision of personal data of a data subject for gain, to a fine of \$1,000,000 and to imprisonment for 5 years; or (b) in any other case, to a fine of \$500,000 and to imprisonment for 3 years.
s.35L(7)	(7) 任何人违反第(5)款, 即属犯罪, 一经定罪, 可处罚款 \$500,000 及监禁 3 年。
	(7) A person who contravenes subsection (5) commits an offence and is liable on conviction to a fine of \$500,000 and to imprisonment for 3 years.
s.35L(8)	(8) 在为第(6)或(7)款所订罪行而提起的法律程序中, 被控告的资料使用者或人士如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。
	(8) In any proceedings for an offence under subsection (6) or (7), it is a defence for the data user or person charged to prove that the data user or person took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.
s.35L(9)	(9) 本条不影响 第 26 条 的施行。
	(9) This section does not affect the operation of section 26.
s.35M	35M. 第 3 保障资料原则规定的对提供个人资料以供用于直接促销的书面同意 尽管有 第 2(3)条 的规定, 凡根据第 3 保障资料原则, 资料使用者将某资料当事人的个人资料提供予另一人, 以供在直接促销中使用, 须获该当事人的书面同意, 该资料使用者如没有违反 第 35J、 35K 或 35L 条, 即视为已取得该项同意。
	35M. Prescribed consent for providing personal data for use in direct marketing under data protection principle 3 Despite section 2(3), where a data user requires, under data protection principle 3, the prescribed consent of a data subject for providing any personal data of the data subject to another person for use in direct marketing, the data user is to be taken to have obtained the consent if the data user has not contravened section 35J, 35K or 35L.
s.14	14. 资料使用者申报表 (1) 在符合第(2)款的规定下, 专员可藉宪报公布指明本条所适用的某类别的资料使用者。 (2) 专员在根据第(1)款以公布指明某类别的资料使用者之前, 须 — (a) 諮詢他认为合适的并代表属于该类别的资料使用者的团体; 及 (b) 諮詢他认为合适的其他利害关系的人。 (3) 除非资料使用者属正在生效的第(1)款下的公告中指明某类别的资料使用者, 否则本条不适用于该资料使用者。 (4) 资料使用者须向专员呈交一份申报表, 该份申报表 — (由 2012 年第 18 号第 7 条 修订) (a) 须符合指明类别; (b) 须载有由该申报表就该资料使用者规定须有的书面同意; (c) 如是 由 — (i) 在指明有关类别的资料使用者的第(1)款下的公告开始生效当日即属于该类别的资料使用者呈交的, 须于该日后的每年同月同日当日或之前的 3 个月内呈交; (ii) 在指明有关类别的资料使用者的第(1)款下的公告开始生效日期之后的某日才首次属于该类别的资料使用者呈交的, 须于该某日之后的每年同月同日当日或之前的 3 个月内呈交; 及 (d) 须附同订明费用。 (5) 专员须安排在每段 6 个月期间内最少刊登一次公告, 该公告 — (a) 须 — (i) 在宪报刊登; 及 (ii) 在 1 份或 1 份以上的中文报章以中文刊登及在 1 份或多于 1 份的英文报章以英文刊登, 该等报章须是每日在香港行销的; 及 (b) 在不抵触第(6)款的规定下, 须为本条的施行而指明资料使用者申报表在何处及哪些时间内可供资料使用者领取。 (6) 专员不得行使他在第 (5) (b) 款下的权力而指明属政府办公室的地方, 除非及直至他已获政制及内地事务局局长的书面批准。 (由 1997 年第 362 号法律公告 修订; 由 2007 年第 130 号法律公告 修订) (7) 专员须安排资料使用者申报表可供资料使用者 — (a) 免费领取; 及 (b) 在根据第(5)款刊登的最近一份公告所指明的地方及时间内领取。 (8) 凡根据第(4)款由资料使用者呈交予专员的资料使用者申报表中所载的订明资讯, 在申报表呈交后有所变更 — (a) 如(但只有在以下情况下) — (i) 该等资讯在该申报表中指明为本条所适用的资讯; 及 (ii) 该申报表载有或附 — (A) 本款的文本一份; 或 (B) 一项摘要说明本款能加予资料使用者规定的陈述, 该资料使用者须向专员送达指明该等变更的书面通知; 及 (b) 该资料使用者须在该等变更发生后的 30 日内向专员送达上述通知。 (9) 现声明 — (a) 第(1)款下的公告是附属法规; 及 (由 2012 年第 18 号第 7 条 修订) (b) 凡某资料使用者属于在正在生效的 2 份或 2 份以上的第(1)款下的公告中指明的 2 个或 2 个以上的资料使用者类别, 则就本条而言, 该资料使用者须当属于在宪报刊登的该等公告之中的第一份所指明的资料使用者类别。 (由 2012 年第 18 号第 7 条 修订) (c) (由 2012 年第 18 号第 7 条 废除) (10) (由 2012 年第 18 号第 7 条 废除) (11) 任何资料使用者明知或罔顾实地在资料使用者申报表中, 或在变更通知中, 提供任何在要项上属虚假或具误导性的资讯, 充作遵守第(4)或(8)款, 即属犯罪, 一经定罪, 可处第 3 级罚款及监禁 6 个月...
	14. Data user returns (1) Subject to subsection (2), the Commissioner may, by notice in the Gazette, specify a class of data users to which this section shall apply. (2) The Commissioner shall, before specifying a class of data users in a notice under subsection (1), consult with— (a) such bodies representative of data users belonging to that class; and (b) such other interested persons, as he thinks fit. (3) This section shall not apply to a data user except a data user belonging to a class of data users specified in a notice under subsection (1) which is in force. (4) A data user shall submit to the Commissioner a return— (Amended 18 of 2012 s. 7) (a) in the specified form; (b) containing the prescribed information

	required by the return in relation to the data user; (c) in the case of— (i) a data user which belongs to the class of data users concerned on the day on which the notice under subsection (1) specifying that class commences, not earlier than 3 months before, and not later than, each anniversary of that day; (ii) a data user which first belongs to the class of data users concerned on a day after the day on which the notice under subsection (1) specifying that class commences, not earlier than 3 months before, and not later than, each anniversary of that first-mentioned day; and (d) accompanied by the prescribed fee. (5) The Commissioner shall cause a notice to b...
s.14(1)	(1) 在符合第(2)款的规定下, 专员可藉发表公告指明本条所适用的某类别的资料使用者。
s.14(2)	(1) Subject to subsection (2), the Commissioner may, by notice in the Gazette, specify a class of data users to which this section shall apply. (2) 专员在根据第(1)款以公告指明某类别的资料使用者之前, 须 — (a) 諮詢他认为合适的并代表属于该类别的资料使用者的团体; 及 (b) 諮詢他认为合适的其他有利关系的人。
s.14(3)	(2) The Commissioner shall, before specifying a class of data users in a notice under subsection (1), consult with— (a) such bodies representative of data users belonging to that class; and (b) such other interested persons, as he thinks fit. (3) 除非资料使用者属正在生效的第(1)款下的公告中指明某类别的资料使用者, 否则本条不适用于该资料使用者。
s.14(4)	(3) This section shall not apply to a data user except a data user belonging to a class of data users specified in a notice under subsection (1) which is in force. (4) 资料使用者须向专员呈交一份申报表, 该份申报 — (由 2012 年第 18 号第 7 条 修订) (a) 须符合指明格式; (b) 须载有由该申报表就该资料使用者规定须有的订明资讯; (c) 如是 由 — (i) 在指明有关类别的资料使用者的第(1)款下的公告开始生效当日即属于该类别的资料使用者呈交的, 须于该日后的每年同月同日当日或之前的 3 个月内呈交; (ii) 在指明有关类别的资料使用者的第(1)款下的公告开始生效日期之后的某日才首次属于该类别的资料使用者呈交的, 须于该某日之后的每年同月同日当日或之前的 3 个月内呈交; 及 (d) 须附同订明费用。 (4) A data user shall submit to the Commissioner a return— (Amended 18 of 2012 s. 7) (a) in the specified form; (b) containing the prescribed information required by the return in relation to the data user; (c) in the case of— (i) a data user which belongs to the class of data users concerned on the day on which the notice under subsection (1) specifying that class commences, not earlier than 3 months before, and not later than, each anniversary of that day; (ii) a data user which first belongs to the class of data users concerned on a day after the day on which the notice under subsection (1) specifying that class commences, not earlier than 3 months before, and not later than, each anniversary of that first-mentioned day; and (d) accompanied by the prescribed fee.
s.14(5)	(5) 专员须安排在每段 6 个月期间内最少刊登一次公告, 该公告 — (a) 须 — (i) 在宪报刊登; 及 (ii) 在 1 份或 1 份以上的中文报章以中文刊登及在 1 份或多于 1 份的英文报章以英文刊登, 该等报章须是每日在香港行销的; 及 (b) 在不抵触第(6)款的规定下, 须为本条的施行而指明资料使用者申报表在何处及哪些时间可供资料使用者领取。 (5) The Commissioner shall cause a notice to be published not less than once during every period of 6 months— (a) in— (i) the Gazette; and (ii) not less than 1 Chinese language newspaper (and in the Chinese language) and not less than 1 English language newspaper (and in the English language), each of which shall be a newspaper circulating generally in Hong Kong; and (b) subject to subsection (6), specifying the places at which and the hours during which data user returns are available to data users for the purposes of this section. (Amended 18 of 2012 s. 7)
s.14(6)	(6) 专员不得行使他在第 (5) (b) 款下的权力而指明属政府办公室的地方, 除非及直至他已获政府及内地事务局局长的书面批准。(由 1997 年第 362 号法律公告 修订; 由 2007 年第 130 号法律公告 修订) (6) The Commissioner shall not exercise his power under subsection (5) (b) to specify places which are Government offices unless and until he has the approval in writing of the Secretary for Constitutional and Mainland Affairs to do so. (Amended L.N. 130 of 2007)
s.14(7)	(7) 专员须安排资料使用者申报表可供资料使用者 — (a) 免费领取; 及 (b) 在根据第(5)款刊登的最近一份公告所指明的地方及时间内领取。
s.14(8)	(7) The Commissioner shall cause data user returns to be available to data users— (Amended 18 of 2012 s. 7) (a) free of charge; and (b) at the places and during the hours specified in the last notice published under subsection (5). (8) 凡根据第(4)款由资料使用者呈交予专员的资料使用者申报表中所载的订明资讯, 在申报表呈交后有所变 更 — (a) 如(但只有在以下情况下) — (i) 该等资讯在该申报表中指明为本款所适用的资讯; 及 (ii) 该申报表载有或附 有 — (A) 本款的文本一份; 或 (b) 一项摘要说明本款能加予资料使用者的规定的陈述, 该资料使用者须向专员送达指明该等变更的书面通知; 及 (b) 该资料使用者须在该等变更发生后的 30 日内向专员送达上述通知。 (8) Where any prescribed information contained in a data user return submitted under subsection (4) to the Commissioner by a data user changes subsequent to the submission, then the data user shall serve a notice in writing on the Commissioner specifying such change— (a) if, but only if— (i) such information is specified in the return as information to which this subsection applies; and (ii) the return contains, or has annexed to it— (A) a copy of this subsection; or (B) a statement summarizing the requirement imposed by this subsection on the data user; and (b) not later than 30 days after such change.
s.14(9)	(9) 现声 明 — (a) 第(1)款下的公告是附属法规; 及 (由 2012 年第 18 号第 7 条 修订) (b) 凡某资料使用者属于在正生效的 2 份或 2 份以上的第(1)款下的公告中指明的 2 个或 2 个以上的资料使用者类别, 则就本条而言, 该资料使用者须当作属于在宪报刊登的该等公告之中的第一份所指明的资料使用者类别。(由 2012 年第 18 号第 7 条 修订) (c) (由 2012 年第 18 号第 7 条 废除) (9) It is hereby declared that— (a) a notice under subsection (1) is subsidiary legislation; and (Amended 18 of 2012 s. 7) (b) where a data user belongs to 2 or more classes of data users specified in 2 or more notices under subsection (1) which are in force, then, for the purposes of this section, that data user shall be deemed to belong only to that class of data users specified in the first of those notices to be published in the Gazette. (Amended 18 of 2012 s. 7) (c) (Repealed 18 of 2012 s. 7)
s.14(10)	(10) (由 2012 年第 18 号第 7 条 废除) (10) (Repealed 18 of 2012 s. 7)
s.14(11)	(11) 任何资料使用者明知或罔顾实情地在资料使用者申报表中, 或在变更通知中, 提供任何在要项上属虚假或具误导性的资讯, 充作遵守第(4)或(8)款, 即属犯罪, 一经定罪, 可处第 3 级罚款及监禁 6 个月。(由 2012 年第 18 号第 7 条 增补) (11) A data user who, in purported compliance with subsection (4) or (8), knowingly or recklessly in a data user return or change notice supplies any information which is false or misleading in a material particular, commits an offence and is liable on conviction to a fine at level 3 and to imprisonment for 6 months. (Added 18 of 2012 s. 7)
ss.15-16	Section 15: 15. 资料使用者登记册 (1) 专员须使用资料使用者申报表及变更通知的资讯, 以保存及维持一份已呈交该等申报表的资料使用者的登记册。(由 2012 年第 18 号第 9 条 代替) (2) 登记册 须 — (a) 采用数据库的形式; 及 (b) 就每一名已呈交资料使用者申报表的资料使用者, 载有在该申报表及任何变更通知中提供并且是专认为合适的资讯的详情。(由 2012 年第 18 号第 9 条 修订) (3) 凡专员为在登记册与某资料使用者有关的范围内保存及维持登记册而合理地需要关于该资料使用者的订明资讯, 专员可藉送达予该资料使用者的书面通知, 要求该资料使用者呈交载有该等资讯并符合指明格式的通知, 而该资料使用者须在专员所送达的通知中规定的期间(该期间不得迟于通知送达后的 30 日)内, 以专员在通知中规定的方式, 呈交该符合指明格式的通知。(由 2012 年第 18 号第 9 条 修订) (4) 凡根据第(3)款由某资料使用者呈交予专员的订明资讯在呈交后有所变 更 — (a) 如(但只有在以下情况下) — (i) 该等资讯在该款下的有关的通知中指明为本款所适用的资讯, 及 (ii) 第(ii)节所述述的... Section 16: 16. 登记册的查阅 (1) 专员须提供设施以令登记册中所载详 情 — (a) 可供任何人查阅; (b) 可藉可观看及可阅读的形式供查阅; (c) 可在一般办公时间内供查阅; 及 (d) 可免费供查阅。(2) 如专员 — (a) 收到由某人提出的符合指明格式的申请; 及 (b) 收到订明费用, 他须以书面提供登记册所载的关于该申请所指明的某资料使用者(或某类别的资料使用者)详情的复本。 Section 15: 15. Register of data users (1) The Commissioner must keep and maintain a register of data users who have submitted data user returns, using information in those returns and in any change notices. (Replaced 18 of 2012 s. 9) (2) The register shall— (a) be in the form of a database; and (b) contain, in respect of each data user who has submitted a data user return, such particulars of the information supplied in that return and any change notice as the Commissioner thinks fit. (Amended 18 of 20... Section 16: 16. Inspection of register (1) The Commissioner shall provide facilities for making the particulars contained in the register available for inspection— (a) by any person; (b) in visible and legible form; (c) during ordinary office hours; and (d) free of charge. (2) The Commissioner shall— (a) on receipt of an application in the specified form from a person; and (b) on payment of the prescribed fee, provide a copy in writing of the particulars contained in the register in respect of the data u...
s.31(4)	(4) 任何资料使用者在根据第(1)款提出的核对程序要求中, 为了取得专员进行该项要求所关乎的核对程序的同意, 而提供在要项上属虚假或具误导性的资讯, 即属犯罪, 一经定罪, 可处第 3 级罚款及监禁 6 个月。(由 2012 年第 18 号第 18 条 增补) (4) A data user who, in a matching procedure request made under subsection (1), supplies any information which is false or misleading in a material particular for the purpose of obtaining the Commissioner’ s consent to the carrying out of the matching procedure to which the request relates, commits an offence and is liable on conviction to a fine at level 3 and to imprisonment for 6 months. (Added 18 of 2012 s. 18)
s.36	36. 个人资料系统的视察 在不损害 第 38 条 的概括性原则上, 专员可 对 — (a) 资料使用者所使用的任何个人资料系统; 或 (b) 属于某资料使用者类别的资料使用者所使用的任何个人资料系统, 进行视察, 旨在确定资讯以协助专 员 — (i) 在 — (A) (a)段适用时, 向有关的资料使用者; (B) (b)段适用时, 向有关的资料使用者所属于的一个类别的资料使用者, 作出建议; 及 (ii) 作出关于促进有关的资料使用者或有关的资料使用者所属于的一个类别的资料使用者(视属何情况而定)遵守本条例的条文(尤其是各保障资料原则)的建议。 36. Inspections of personal data systems Without prejudice to the generality of section 38 , the Commissioner may carry out an inspection of— (a) any personal data system used by a data user; or (b) any personal data system used by a data user belonging to a class of data users, for the purposes of ascertaining information to assist the Commissioner in making recommendations— (i) to— (A) where paragraph (a) is applicable, the relevant data user; (B) where paragraph (b) is applicable, the class of data users to which the relevant data user belongs; and (ii) relating to the promotion of compliance with the provisions of this Ordinance, in particular the data protection principles, by the relevant data user, or the class of data users to which the relevant data user belongs, as the case may be.
s.36(a)	(a) 资料使用者所使用的任何个人资料系统; 或 (a) any personal data system used by a data user; or
s.36(b)	(b) 属于某资料使用者类别的资料使用者所使用的任何个人资料系统。 (b) any personal data system used by a data user belonging to a class of data users,
s.36(i)	(i) 在 — (A) (a)段适用时, 向有关的资料使用者; (B) (b)段适用时, 向有关的资料使用者所属于的一个类别的资料使用者, 作出建议; 及 (i) to— (A) where paragraph (a) is applicable, the relevant data user; (B) where paragraph (b) is applicable, the class of data users to which the relevant data user belongs; and
s.36(ii)	(ii) 作出关于促进有关的资料使用者或有关的资料使用者所属于的一个类别的资料使用者(视属何情况而定)遵守本条例的条文(尤其是各保障资料原则)的建议。 (ii) relating to the promotion of compliance with the provisions of this Ordinance, in particular the data protection principles, by the relevant data user, or the class of data users to which the relevant data user belongs, as the case may be.
s.38	38. 由专员进行的调查 凡专员 — (a) 收到一项投诉; 或 (b) 有合理理由相信有符合以下说明的作为或行为 — (i) 已经或正在(视属何情况而定)由资料使用者作出或从事的; (ii) 关乎个人资料; 及 (iii) 可能违反本条例下的规定的, 则 — (i) 如(a)段适用, 除 第 39 条 另有规定外, 专员须就有关的资料使用者进行调查, 以确定在有关的投诉中指明的作为或行为是否属违反本条例下的规定; (ii) 如(b)段适用, 专员可就有关的资料使用者进行调查, 以确定该段所述述的作为或行为是否属违反本条例下的规定。 38. Investigations by Commissioner Where the Commissioner— (a) receives a complaint; or (b) has reasonable grounds to believe that an act or practice— (i) has been done or engaged in, or is being done or engaged in, as the case may be, by a data user; (ii) relates to personal data; and (iii) may be a contravention of a requirement under this Ordinance, then— (i) where paragraph (a) is applicable, the Commissioner shall, subject to section 39 , carry out an investigation in relation to the relevant data user to ascertain whether the act or practice specified in the complaint is a contravention of a requirement under this Ordinance; (ii) where paragraph (b) is applicable, the Commissioner may carry out an investigation in relation to the relevant data user to ascertain whether the act or practice referred to in that paragraph is a contravention of a requirement under this Ordinance.
s.38(a)	(a) 收到一项投诉; 或 (a) receives a complaint; or
s.38(b)	(b) 有合理理由相信有符合以下说明的作为或行为 — (i) 已经或正在(视属何情况而定)由资料使用者作出或从事的; (ii) 关乎个人资料; 及 (iii) 可能违反本条例下的规定的。 (b) has reasonable grounds to believe that an act or practice— (i) has been done or engaged in, or is being done or engaged in, as the case may be, by a data user; (ii) relates to personal data; and (iii) may be a contravention of a requirement under this Ordinance.
s.38(i)	(i) 如(a)段适用, 除 第 39 条 另有规定外, 专员须就有关的资料使用者进行调查, 以确定在有关的投诉中指明的作为或行为是否属违反本条例下的规定; (i) where paragraph (a) is applicable, the Commissioner shall, subject to section 39 , carry out an investigation in relation to the relevant data user to ascertain whether the act or practice specified in the complaint is a contravention of a requirement under this Ordinance;
s.38(ii)	(ii) 如(b)段适用, 专员可就有关的资料使用者进行调查, 以确定该段所述述的作为或行为是否属违反本条例下的规定。 (ii) where paragraph (b) is applicable, the Commissioner may carry out an investigation in relation to the relevant data user to ascertain whether the act or practice referred to in that paragraph is a contravention of a requirement under this Ordinance.
s.39	39. 对由投诉引发的调查的限制 (1) 即使由本条例赋予专员的权力有其概括性, 在以下情况下, 专员可拒绝进行或决定终止由投诉引发的调查 — (由 2012 年第 18 号第 22 条 修订) (a) 投诉人(如投诉人是就某个人而属有关人士的有关人士, 则指该个人)在超过紧接专员收到该投诉当日之前的 2 年的时间内, 已实际知悉有在该投诉中指明的作为或行为, 但如专员接纳在该案的所有情况下, 进行或不终止(视属何情况而定)该项调查是恰当的, 则属例外; (b) 该项投诉是匿名者作出的; (c) 投诉人的身分无法识辨或无法

	寻获投诉人；(d) 就该项投诉所指明的作为或行为而言，以下所有条件均不获符合——(i) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间——(A) 投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)是居于香港的；或 (B) 有关的资料使用者能够在香港控制有关的个人资料收集、持有、处理或使用或能够由香港行使该项控制的；(ii) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间，投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)是在香港的； (iii) 专员认为有关的作为或行为(视属何情况而定)可能损害投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)强制执行在香港获取或产生的权利或行使在香港获取或产生的特权；(由 2021 年第 32 号第 4 条 修订) (e) 专员信纳有关的资料使用者在不少于紧接专员收到该项投诉当日之前的 2 年的期间内，不曾是资料使用者；或 (由 2021 年第 32 号第 4 条 修订) (f) 专员认为该项投诉关乎 第 64(1)、(3A) 或 (3C) 条 所订罪行，并决定进行 第 66C 条 所界定的指明调查。(由 2021 年第 32 号第 4 条 增补) (2) 如专员在顾及及有关案的所有情况后，信纳有以下情况，他可拒绝进行或决定终止由投诉引发的调查——(由 2012 年第 18 号第 22 条 增补) (a) 该项投诉人是在香港的；(b) 在调查过程中，专员在调查过程中信纳有违反本条例下的规定的情况；(b) 在该项投诉中指明的作为或行为微不足道；(c) 该项投诉属琐碎无聊或无理取闹，或不是真诚作出的；(ca) 该项投诉所指明的作为或行为显示，该项投诉的主要标的事宜，与关乎个人资料的个人隐私无关；或 (由 2012 年第 18 号第 22 条 增补) (d) 因为任何其他理由，调查或进一步调查是不必要的。(3) 凡专员根据本条拒绝进行一项由投诉引发的调查，他须于收到该项投诉后的 45 日内，在切实可行范围内，尽快藉向投诉人送达一份附同第(4)款的文本的书面通知，告知该投诉人——(由 2012 年第 18 号第 22 条 修订) (a) 该项拒绝一事；及 (b) 拒绝的理由。(3A) 如在一项由投诉引发的调查完成之前，专员决定终止该项调查，专员须在切实可行范围内，尽快向有关投诉人送达附第(4)款的文本的书面通知，将以下事宜告知该投诉人——(a) 该项决定；及 (b) 该项决定的理由。(由 2012 年第 18 号第 22 条 增补) (4) 反对——(a) 第(3)款下的通知所指明的拒绝或第(3A)款下的通知所指明的终止... 39. Restrictions on investigations initiated by complaints (1) Notwithstanding the generality of the powers conferred on the Commissioner by this Ordinance, the Commissioner may refuse to carry out or decide to terminate an investigation initiated by a complaint if— (Amended 18 of 2012 s. 22) (a) the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) has had actual knowledge of the act or practice specified in the complaint for more than 2 years immediately preceding the date on which the Commissioner received the complaint, unless the Commissioner is satisfied that in all the circumstances of the case it is proper to carry out or not to terminate, as the case may be, the investigation; (b) the complaint is made anonymously; (c) the complainant cannot be identified or traced; (d) none of the following conditions is fulfilled in respect of the act or practice specified in the complaint—(i) either— (A) the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) was resident in Hong Kong; or (B) the relevant data user was able to control, in or from Hong Kong, the collection, holding, processing or use of the personal data concerned, at any time the act or practice was done or engaged in, as the case may be; (ii) the complainant (or,...
s.39(1)	(1) 即使由本条例赋予专员的权力有其概括性，在以下情况下，专员可拒绝进行或决定终止由投诉引发的调查——(由 2012 年第 18 号第 22 条 增补) (a) 投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)在超过紧接专员收到该项投诉当日之前的 2 年的期间内，已实际知悉有在该投诉中指明的作为或行为，但如专员信纳在该个案的所有情况下，进行或不终止(视属何情况而定)该项调查是恰当的，则属例外；(b) 该项投诉是匿名者作出的；(c) 投诉人的身分无法识辨或无法寻获投诉人；(d) 就该项投诉所指明的作为或行为而言，以下所有条件均不获符合——(i) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间——(A) 投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)是居于香港的；或 (B) 有关的资料使用者能够在香港控制有关的个人资料收集、持有、处理或使用或能够由香港行使该项控制的；(ii) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间，投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)是在香港的；(iii) 专员认为有关的作为或行为(视属何情况而定)可能损害投诉人(如投诉人是就某个人而属有关人士的有关人士，则指该名个人)强制执行在香港获取或产生的权利或行使在香港获取或产生的特权；(由 2021 年第 32 号第 4 条 修订) (e) 专员信纳有关的资料使用者在不少于紧接专员收到该项投诉当日之前的 2 年的期间内，不曾是资料使用者；或 (由 2021 年第 32 号第 4 条 修订) (f) 专员认为该项投诉关乎 第 64(1)、(3A) 或 (3C) 条 所订罪行，并决定进行 第 66C 条 所界定的指明调查。(由 2021 年第 32 号第 4 条 增补) (1) Notwithstanding the generality of the powers conferred on the Commissioner by this Ordinance, the Commissioner may refuse to carry out or decide to terminate an investigation initiated by a complaint if— (Amended 18 of 2012 s. 22) (a) the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) has had actual knowledge of the act or practice specified in the complaint for more than 2 years immediately preceding the date on which the Commissioner received the complaint, unless the Commissioner is satisfied that in all the circumstances of the case it is proper to carry out or not to terminate, as the case may be, the investigation; (b) the complaint is made anonymously; (c) the complainant cannot be identified or traced; (d) none of the following conditions is fulfilled in respect of the act or practice specified in the complaint—(i) either— (A) the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) was resident in Hong Kong; or (B) the relevant data user was able to control, in or from Hong Kong, the collection, holding, processing or use of the personal data concerned, at any time the act or practice was done or engaged in, as the case may be; (ii) the complainant (or, if the complainant is a relevant person, the individual in...
s.39(2)	(2) 如专员在顾及有关案的所有情况后，信纳有以下情况，他可拒绝进行或决定终止由投诉引发的调查——(由 2012 年第 18 号第 22 条 增补) (a) 该项投诉人是在香港的；(b) 在调查过程中，专员在调查过程中信纳有违反本条例下的规定的情况；(b) 在该项投诉中指明的作为或行为微不足道；(c) 该项投诉属琐碎无聊或无理取闹，或不是真诚作出的；(ca) 该项投诉所指明的作为或行为显示，该项投诉的主要标的事宜，与关乎个人资料的个人隐私无关；或 (由 2012 年第 18 号第 22 条 增补) (d) 因为任何其他理由，调查或进一步调查是不必要的。 (2) The Commissioner may refuse to carry out or decide to terminate an investigation initiated by a complaint if he is of the opinion that, having regard to all the circumstances of the case— (Amended 18 of 2012 s. 22) (a) the complainant, or a complaint of a substantially similar nature, has previously initiated an investigation as a result of which the Commissioner was of the opinion that there had been no contravention of a requirement under this Ordinance; (b) the act or practice specified in the complaint is trivial; (c) the complaint is frivolous or vexatious or is not made in good faith; (ca) the primary subject matter of the complaint, as shown by the act or practice specified in it, is not related to privacy of individuals in relation to personal data; or (Added 18 of 2012 s. 22) (d) any investigation or further investigation is for any other reason unnecessary.
s.39(3)	(3) 凡专员根据本条拒绝进行一项由投诉引发的调查，他须于收到该项投诉后的 45 日内，在切实可行范围内，尽快藉向投诉人送达一份附同第(4)款的文本的书面通知，告知该投诉人——(由 2012 年第 18 号第 22 条 增补) (a) 该项拒绝一事；及 (b) 拒绝的理由。 (3) Where the Commissioner refuses under this section to carry out an investigation initiated by a complaint, he shall, as soon as practicable but, in any case, not later than 45 days after receiving the complaint, by notice in writing served on the complainant accompanied by a copy of subsection (4), inform the complainant— (Amended 18 of 2012 s. 22) (a) of the refusal; and (b) of the reasons for the refusal.
s.39(4)	(4) 反对——(a) 第(3)款下的通知所指明的拒绝或第(3A)款下的通知所指明的终止而提出的上诉，可向行政上诉委员会提出；及 (b) 上述拒绝或终止而提出的上诉，可由获送达该项通知的投诉人提出；如投诉人是就某个人而属有关人士的有关人士，则可由该投诉人或该名个人提出。 (4) An appeal may be made to the Administrative Appeals Board— (a) against any refusal or termination specified in a notice under subsection (3) or (3A); and (b) by the complainant on whom the notice was served (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person, or either).
s.39(3a)	(3A) 如在一项由投诉引发的调查完成之前，专员决定终止该项调查，专员须在切实可行范围内，尽快向有关投诉人送达附第(4)款的文本的书面通知，将以下事宜告知该投诉人——(a) 该项决定；及 (b) 该项决定的理由。(由 2012 年第 18 号第 22 条 增补) (3A) If the Commissioner decides to terminate an investigation initiated by a complaint before its completion, the Commissioner must, as soon as practicable by notice in writing served on the complainant accompanied by a copy of subsection (4), inform the complainant— (a) of the decision; and (b) of the reasons for the decision. (Added 18 of 2012 s. 22)
s.50	50. 执行通知 (1) 如专员在完成一项调查后，认为有关资料使用者正在或已违反本条例之下的规定，专员可向该资料使用者送达书面通知，指示该资料使用者纠正该项违反，以及(如适当的)防止该项违反再发生。(由 2012 年第 18 号第 28 条 代替) (IA) 第(1)款所指明的执行通知 须——(a) 说明专员持有第(1)款所述的意见，以及专员持有该意见的理由；(b) 指明——(i) 专员认为正在或已遭违反的规定；及 (ii) 构成该项违反的作为或不作为；(c) 指明有关资料使用者须采取什么步骤(包括停止任何作为或行为)以纠正该项违反，以及(如适当的)防止该项违反再发生；(d) 指明须于何日或之前采取该等步骤；及 (e) 附有条款的文本。(由 2012 年第 18 号第 28 条 增补) (IB) 第(1A) (d) 款指明的日期，不得早于第(7)款指明的可针对有关通知提出上诉的限期届满之时。(由 2012 年第 18 号第 28 条 增补) (2) 在决定是否送达执行通知时，专员须考虑该通知所关的违反，是否已对或是否相当可能会对属该违反所关的个人资料的资料当事人的个人，做成损害或困扰。(由 2012 年第 18 号第 28 条 修订) (3) 执行通知所指明的纠正该通知所关的违反的步骤，以及(如适当的)防止该项违反再发生的步骤，可——(a) 在任何程度上，藉提述任何核准实务守则而拟订；及 (b) 按所需形式拟订，以让有关资料使用者可从不同的纠正方式中，以及(如适当的)防止方式中，作出选择。(由 2012 年第 18 号第 28 条 代替) (4) 除第(5)款另有规定外，执行通知所指明的采取该通知所指明的步骤的限期不得在第(7)款所指明的上诉限期完结前届满，而如有该等上诉提出，在该上诉有决定或被撤回前不需采取该等步骤。(5) 如专员认为因为特殊情况，执行通知所指明的步骤因事态紧急而应立即采取——(a) 他可在该通知中加入一项有该意思的陈述及他持该意见的理由；(b) 凡专员如此加入该项陈述，第(4)款即不适用，但该通知不得规定在该通知送达当日起计的 7 日期间届满前采取该等步骤。(6) 专员可藉送达有关资料使用者的书面通知，撤销执行通知。(7) 有关资料使用者可在执行通知送达后 14 日内，向行政上诉委员会提出上诉反对该通知。(8) 凡专员——(a) 在调查完成前的任何时间就有关资料使用者持第(1)款所述的意见；并 (b) 同时认为因为特殊情况，执行通知因事态紧急而应立即送达有关资料使用者，则即使该项调查未完成，他可如此送达该通知，而在该等情况下——(i) 专员须在不振作须加入该通知任何其他事宜的原则下，在该通知中指明他持(b)段所述的意见的理由；而 (ii) 本条例其他条文(包括本条)须据此解释。 50. Enforcement notices (1) If, following the completion of an investigation, the Commissioner is of the opinion that the relevant data user is contravening or has contravened a requirement under this Ordinance, the Commissioner may serve on the data user a notice in writing, directing the data user to remedy and, if appropriate, prevent any recurrence of the contravention. (Replaced 18 of 2012 s. 28) (1A) An enforcement notice under subsection (1) must— (a) state that the Commissioner is of the opinion referred to in subsection (1) and the reason for that opinion; (b) specify— (i) the requirement which, in the opinion of the Commissioner, is being or has been contravened; and (ii) the act or omission that constitutes the contravention; (c) specify the steps that the data user must take (including ceasing any act or practice) to remedy and, if appropriate, prevent any recurrence of the contravention; (d) specify the date on or before which the steps must be taken; and (e) be accompanied by a copy of this section. (Added 18 of 2012 s. 28) (1B) The date specified in subsection (1A) (d) must be a date which is not earlier than the expiry of the period specified in subsection (7) within which an appeal against the notice may be made. (Added 18 of 2012 s. 28) (2) In deciding whether to serve an enforcement notice the Commissioner shall consider whether the contravention to which the notice relates has caused or is likely to cause damage or distress to any individual who is the data subject of the data concerned. (Replaced 18 of 2012 s. 28) (3) The steps specified in an enforcement notice to remedy and, if appropriate, prevent any recurrence of any contravention to which the notice relates may be framed— (a) to any extent by reference to any approved code of practice; and (b) so as to afford the relevant data user a choice between different ways of remedying and, if appropriate, preventing any recurrence of the contravention. (Replaced 18 of 2012 s. 28) (4) Except as provided otherwise, an enforcement notice shall specify the steps to be taken and the period within which the steps are to be taken. (Replaced 18 of 2012 s. 28) (5) If the Commissioner is of the opinion that by reason of special circumstances the steps specified in an enforcement notice should be taken as a matter of urgency— (a) he may include a statement to that effect in the notice together with the reasons why he is of that opinion; (b) where such a statement is so included, subsection (4) shall not apply but the notice shall not require those steps to be taken before the end of the period of 7 days beginning with the date on which the notice was served. (6) The Commissioner may cancel an enforcement notice by notice in writing served on the relevant data user. (7) An appeal may be made to the Administrative Appeals Board against an enforcement notice by the relevant data user not later than 14 days after the notice was served. (8) Where the Commissioner— (a) forms an opinion referred to in subsection (1) in respect of the relevant data user at any time before the completion of an investigation; and (b) is also of the opinion that, by reason of special circumstances, an enforcement notice should be served on the relevant data user as a matter of urgency, he may so serve such notice notwithstanding that the investigation has not been completed and, in any such case— (i) the Commissioner shall, without prejudice to any other matters to be included in such notice, specify in the notice the reasons as to why he is of the opinion referred to in paragraph (b); and (ii) the other provisions of this Ordinance (including this section) shall be construed accordingly.
s.50(1)	(1) 如专员在完成一项调查后，认为有关资料使用者正在或已违反本条例之下的规定，专员可向该资料使用者送达书面通知，指示该资料使用者纠正该项违反，以及(如适当的)防止该项违反再发生。(由 2012 年第 18 号第 28 条 代替) (1) If, following the completion of an investigation, the Commissioner is of the opinion that the relevant data user is contravening or has contravened a requirement under this Ordinance, the Commissioner may serve on the data user a notice in writing, directing the data user to remedy and, if appropriate, prevent any recurrence of the contravention. (Replaced 18 of 2012 s. 28)
s.50(2)	(2) 在决定是否送达执行通知时，专员须考虑该通知所关的违反，是否已对或是否相当可能会对属该违反所关的个人资料的资料当事人的个人，做成损害或困扰。(由 2012 年第 18 号第 28 条 修订) (2) In deciding whether to serve an enforcement notice the Commissioner shall consider whether the contravention to which the notice relates has caused or is likely to cause damage or distress to any individual who is the data subject of any personal data to which the contravention relates. (Amended 18 of 2012 s. 28)
s.50(3)	(3) 执行通知所指明的纠正该通知所关的违反的步骤，以及(如适当的)防止该项违反再发生的步骤，可——(a) 在任何程度上，藉提述任何核准实务守则而拟订；及 (b) 按所需形式拟订，以让有关资料使用者可从不同的纠正方式中，以及(如适当的)防止方式中，作出选择。(由 2012 年第 18 号第 28 条 代替) (3) The steps specified in an enforcement notice to remedy and, if appropriate, prevent any recurrence of any contravention to which the notice relates may be framed— (a) to any extent by reference to any approved code of practice; and (b) so as to afford the relevant data user a choice between different ways of remedying and, if appropriate, preventing any recurrence of the contravention. (Replaced 18 of 2012 s. 28)
s.50(4)	(4) 除第(5)款另有规定外，执行通知所指明的采取该通知所指明的步骤的限期不得在第(7)款所指明的上诉限期完结前届满，而如有该等上诉提出，在该上诉有决定或被撤回前不需采取该等步骤。 (4) Subject to subsection (5), the period specified in an enforcement notice for taking the steps specified in it shall not expire before the end of the period specified in subsection (7) within which an appeal against the notice may be made and, if such an appeal is made, those steps need not be taken pending the determination or withdrawal of the appeal.
s.50(5)	(5) 如专员认为因为特殊情况，执行通知所指明的步骤因事态紧急而应立即采取——(a) 他可在该通知中加入一项有该意思的陈述及他持该意见的理由；(b) 凡专员如此加入该项陈述，第(4)款即不适用，但该通知不得规定在该通知送达当日起计的 7 日期间届满前采取该等步骤。 (5) If the Commissioner is of the opinion that by reason of special circumstances the steps specified in an enforcement notice should be taken as a matter of urgency— (a) he may include a statement to that effect in the notice together with the reasons why he is of that opinion; (b) where such a statement is so included, subsection (4) shall not apply but the notice shall not require those steps to be taken before the end of the period of 7 days beginning with the date on which the notice was served.
s.50(6)	(6) 专员可藉送达有关资料使用者的书面通知，撤销执行通知。 (6) The Commissioner may cancel an enforcement notice by notice in writing served on the relevant data user.
s.50(7)	(7) 有关资料使用者可在执行通知送达之日起 14 日内，向行政上诉委员会提出上诉反对该通知。 (7) An appeal may be made to the Administrative Appeals Board against an enforcement notice by the relevant data user not later than 14 days after the notice was served.
s.50(8)	(8) 凡专员——(a) 在调查完成前的任何时间就有关资料使用者持第(1)款所述的意见；并 (b) 同时认为因为特殊情况，执行通知因事态紧急而应立即送达有关资料使用者，则即使该项调查未完成，他可如此送达该通知，而在该等情况下——(i) 专员须在不振作须加入该通知任何其他事宜的原则下，在该通知中指明他持(b)段所述的意见的理由；而 (ii) 本条例其他条文(包括本条)须据此解释。 (8) Where the Commissioner— (a) forms an opinion referred to in subsection (1) in respect of the relevant data user at any time before the completion of an investigation; and (b) is also of the opinion that, by reason of special circumstances, an enforcement notice should be served on the relevant data user as a matter of urgency, he may so serve such notice notwithstanding that the investigation has not been completed and, in any such case— (i) the Commissioner shall, without prejudice to any other matters to be included in such notice, specify in the notice the reasons as to why he is of the opinion referred to in paragraph (b); and (ii) the other provisions of this Ordinance (including this section) shall be construed accordingly.
s.50(1a)	(1A) 第(1)款所指明的执行通知 须——(a) 说明专员持有第(1)款所述的意见，以及专员持有该意见的理由；(b) 指明——(i) 专员认为正在或已遭违反的规定；及 (ii) 构成该项违反的作为或不作为；(c) 指明有关资料使用者须采取什么步骤(包括停止任何作为或行为)以纠正该项违反，以及(如适当的)防止该项违反再发生；(d) 指明须于何日或之前采取该等步骤；及 (e) 附有条款的文本。(由 2012 年第 18 号第 28 条 增补) (1A) An enforcement notice under subsection (1) must— (a) state that the Commissioner is of the opinion referred to in subsection (1) and the reason for that opinion; (b) specify— (i) the requirement which, in the opinion of the Commissioner, is being or has been contravened; and (ii) the act or omission that constitutes the contravention; (c) specify the steps that the data user must take (including ceasing any act or practice) to remedy and, if appropriate, prevent any recurrence of the contravention; (d) specify the date on or before which the steps must be taken; and (e) be accompanied by a copy of this section. (Added 18 of 2012 s. 28)
s.50(1b)	(1B) 第(1A) (d) 款指明的日期，不得早于第(7)款指明的可针对有关通知提出上诉的限期届满之时。(由 2012 年第 18 号第 28 条 增补) (1B) The date specified in subsection (1A) (d) must be a date which is not earlier than the expiry of the period specified in subsection (7) within which an appeal against the notice may be made. (Added 18 of 2012 s. 28)

s.50A	50A. 关涉执行通知的罪行 (1) 资料使用者违反执行通知, 即属犯罪 — (a) 一经首次定罪 — (i) 可处第 5 级罚款及监禁 2 年; 及 (ii) 如罪行在定罪后持续, 可处每日罚款 \$1,000; 及 (b) 一经再次定罪 — (i) 可处第 6 级罚款及监禁 2 年; 及 (ii) 如罪行在定罪后持续, 可处每日罚款 \$2,000. (2) 在为第(1)款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已作出一切应作出的努力, 以遵从有关执行通知, 即可以此作为免责辩护。(3) 如资料使用者在遵从某执行通知之后, 故意作出某作为或有不作为, 违反本条例下的规定, 而该作为或不作为与根据 第 50(1A) (b) 条在该执行通知中指明者相同, 该资料使用者即属犯罪, 一经定罪 — (a) 可处第 5 级罚款及监禁 2 年; 及 (b) 如罪行在定罪后持续, 可处每日罚款 \$1,000. (由 2012 年第 18 号第 29 条增补) 50A. Offences relating to enforcement notices (1) A data user who contravenes an enforcement notice commits an offence and is liable— (a) on a first conviction— (i) to a fine at level 5 and to imprisonment for 2 years; and (ii) if the offence continues after the conviction, to a daily penalty of \$1,000; and (b) on a second or subsequent conviction— (i) to a fine at level 6 and to imprisonment for 2 years; and (ii) if the offence continues after the conviction, to a daily penalty of \$2,000. (2) In any proceedings for an offence under subsection (1), it is a defence for the data user charged to show that the data user exercised all due diligence to comply with the enforcement notice. (3) A data user who, having complied with an enforcement notice, intentionally does the same act or makes the same omission in contravention of the requirement under this Ordinance, as specified in the enforcement notice under section 50(1A) (b) , commits an offence and is liable on conviction— (a) to a fine at level 5 and to imprisonment for 2 years; and (b) if the offence continues after the conviction, to a daily penalty of \$1,000. (Added 18 of 2012 s. 29)
s.50A(1)	(1) 资料使用者违反执行通知, 即属犯罪 — (a) 一经首次定罪 — (i) 可处第 5 级罚款及监禁 2 年; 及 (ii) 如罪行在定罪后持续, 可处每日罚款 \$1,000; 及 (b) 一经再次定罪 — (i) 可处第 6 级罚款及监禁 2 年; 及 (ii) 如罪行在定罪后持续, 可处每日罚款 \$2,000. (1) A data user who contravenes an enforcement notice commits an offence and is liable— (a) on a first conviction— (i) to a fine at level 5 and to imprisonment for 2 years; and (ii) if the offence continues after the conviction, to a daily penalty of \$1,000; and (b) on a second or subsequent conviction— (i) to a fine at level 6 and to imprisonment for 2 years; and (ii) if the offence continues after the conviction, to a daily penalty of \$2,000.
s.50A(2)	(2) 在为第(1)款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已作出一切应作出的努力, 以遵从有关执行通知, 即可以此作为免责辩护。 (2) In any proceedings for an offence under subsection (1), it is a defence for the data user charged to show that the data user exercised all due diligence to comply with the enforcement notice.
s.50A(3)	(3) 如资料使用者在遵从某执行通知之后, 故意作出某作为或有不作为, 违反本条例下的规定, 而该作为或不作为与根据 第 50(1A) (b) 条在该执行通知中指明者相同, 该资料使用者即属犯罪, 一经定罪 — (a) 可处第 5 级罚款及监禁 2 年; 及 (b) 如罪行在定罪后持续, 可处每日罚款 \$1,000. (3) A data user who, having complied with an enforcement notice, intentionally does the same act or makes the same omission in contravention of the requirement under this Ordinance, as specified in the enforcement notice under section 50(1A) (b) , commits an offence and is liable on conviction— (a) to a fine at level 5 and to imprisonment for 2 years; and (b) if the offence continues after the conviction, to a daily penalty of \$1,000.
s.50B	50B. 关涉没有遵从专员的要求等的罪行 (1) 任何人如有以下情况, 即属犯罪 — (a) 该人无法法解释而妨碍、阻挠或抗拒专员或任何订明人员执行其在本部之下的职能(或行使其在本部之下的权力); (b) 该人无法法解释而没有遵从专员或任何订明人员根据本部作出的合法要求; 或 (c) 该人在专员或在任何订明人员执行本部之下的职能或行使本部之下的权力的过程中 — (i) 向专员或该人员作出该人知道属虚假或不相信属真实的陈述; 或 (ii) 以其他方式在知情下误导专员或该人员。(2) 任何人犯第(1)款所订罪行, 一经定罪, 可处第 3 级罚款及监禁 6 个月。(由 2012 年第 18 号第 29 条增补) 50B. Offences relating to failure to comply with requirements of Commissioner etc. (1) A person commits an offence if the person— (a) without lawful excuse, obstructs, hinders or resists the Commissioner or a prescribed officer in performing the functions or exercising the powers of the Commissioner or the officer under this Part; (b) without lawful excuse, fails to comply with any lawful requirement of the Commissioner or a prescribed officer under this Part; or (c) in the course of the performance or exercise by the Commissioner or a prescribed officer of functions or powers under this Part— (i) makes to the Commissioner or the officer a statement which the person knows to be false or does not believe to be true; or (ii) otherwise knowingly misleads the Commissioner or the officer. (2) A person who commits an offence under subsection (1) is liable on conviction to a fine at level 3 and to imprisonment for 6 months. (Added 18 of 2012 s. 29)
s.50B(1)	(1) 任何人如有以下情况, 即属犯罪 — (a) 该人无法法解释而妨碍、阻挠或抗拒专员或任何订明人员执行其在本部之下的职能(或行使其在本部之下的权力); (b) 该人无法法解释而没有遵从专员或任何订明人员根据本部作出的合法要求; 或 (c) 该人在专员或在任何订明人员执行本部之下的职能或行使本部之下的权力的过程中 — (i) 向专员或该人员作出该人知道属虚假或不相信属真实的陈述; 或 (ii) 以其他方式在知情下误导专员或该人员。 (1) A person commits an offence if the person— (a) without lawful excuse, obstructs, hinders or resists the Commissioner or a prescribed officer in performing the functions or exercising the powers of the Commissioner or the officer under this Part; (b) without lawful excuse, fails to comply with any lawful requirement of the Commissioner or a prescribed officer under this Part; or (c) in the course of the performance or exercise by the Commissioner or a prescribed officer of functions or powers under this Part— (i) makes to the Commissioner or the officer a statement which the person knows to be false or does not believe to be true; or (ii) otherwise knowingly misleads the Commissioner or the officer.
s.50B(2)	(2) 任何人犯第(1)款所订罪行, 一经定罪, 可处第 3 级罚款及监禁 6 个月。 (2) A person who commits an offence under subsection (1) is liable on conviction to a fine at level 3 and to imprisonment for 6 months.
s.64(1)	(1) 任何人披露未经资料使用者同意而取自该资料使用者的某资料当事人的任何个人资料, 而该项披露是出于以下意图的, 该人即属犯罪 — (a) 获取金钱得益或其他财产得益, 不论是为了令该人或另一人受惠而获取; 或 (b) 导致该当事人蒙受金钱损失或其他财产损失。 (1) A person commits an offence if the person discloses any personal data of a data subject which was obtained from a data user without the data user’ s consent, with an intent— (a) to obtain gain in money or other property, whether for the benefit of the person or another person; or (b) to cause loss in money or other property to the data subject.
s.64(3)	(3) 任何人犯第(1)款所订罪行, 一经定罪, 可处罚款 \$1,000,000 及监禁 5 年。(由 2021 年第 32 号第 6 条 修订) (3) A person who commits an offence under subsection (1) is liable on conviction to a fine of \$1,000,000 and to imprisonment for 5 years. (Amended 32 of 2021 s. 6)
s.64(3A)	(3A) 如任何人(披露者)在未获资料当事人的相关同意下, 披露该当事人的个人资料, 而 — (a) 披露者的意图, 是导致该当事人或其任何家人蒙受任何指明伤害; 或 (b) 披露者罔顾是否会(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害, 披露者即属犯罪。(由 2021 年第 32 号第 6 条增补) (3A) A person commits an offence if the person discloses any personal data of a data subject without the relevant consent of the data subject— (a) with an intent to cause any specified harm to the data subject or any family member of the data subject; or (b) being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject. (Added 32 of 2021 s. 6)
s.64(3B)	(3B) 任何人犯第(3A)款所订罪行, 一经定罪, 可处第 6 级罚款及监禁 2 年。(由 2021 年第 32 号第 6 条增补) (3B) A person who commits an offence under subsection (3A) is liable on conviction to a fine at level 6 and to imprisonment for 2 years. (Added 32 of 2021 s. 6)
s.64(3C)	(3C) 如 — (a) 任何人(披露者)在未获资料当事人的相关同意下, 披露该当事人的个人资料, 而 — (i) 披露者的意图, 是导致该当事人或其任何家人蒙受任何指明伤害; 或 (ii) 披露者罔顾是否会(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害; 及 (b) 该项披露导致该当事人或其任何家人蒙受任何指明伤害, 披露者即属犯罪。(由 2021 年第 32 号第 6 条 增补) (3C) A person commits an offence if— (a) the person discloses any personal data of a data subject without the relevant consent of the data subject— (i) with an intent to cause any specified harm to the data subject or any family member of the data subject; or (ii) being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject; and (b) the disclosure causes any specified harm to the data subject or any family member of the data subject. (Added 32 of 2021 s. 6)
s.64(3D)	(3D) 任何人犯第(3C)款所订罪行, 一经循公诉程序定罪, 可处罚款 \$1,000,000 及监禁 5 年。(由 2021 年第 32 号第 6 条 增补) (3D) A person who commits an offence under subsection (3C) is liable on conviction on indictment to a fine of \$1,000,000 and to imprisonment for 5 years. (Added 32 of 2021 s. 6)
s.64(4)	(4) 在第(1)、(3A)或(3C)款所订罪行的法律程序中, 被控告的人如确立以下事宜, 即为免责辩护 — (由 2021 年第 32 号第 6 条 代替) (a) 该人合理地相信, 有关披露对防止或侦测罪行属必要; (b) 任何成文法则、法律规则或法院命令规定作出或授权作出有关披露, 或根据任何成文法则或授权作出有关披露; (c) 该人合理地相信有关披露是 — (由 2021 年第 32 号第 6 条 修订) (i) 如属第(1)款所订罪行——在获得有关资料使用者的同意下作出的; 或 (ii) 如属第(3A)或(3C)款所订罪行——在获得有关资料当事人的相关同意下作出的; 或 (由 2021 年第 32 号第 6 条 修订) (d) 该人 — (i) 纯粹为合法的、第 61(3)条所界定的新闻活动(或与之直接相关的活动), 而披露有关个人资料; 及 (由 2021 年第 32 号第 6 条 代替) (ii) 有合理理由相信, 发表或播放该个人资料, 是符合公众利益的。 (4) In any proceedings for an offence under subsection (1), (3A) or (3C), it is a defence for the person charged to establish that— (Amended 32 of 2021 s. 6) (a) the person reasonably believed that the disclosure was necessary for the purpose of preventing or detecting crime; (b) the disclosure was required or authorized by or under any enactment, by any rule of law or by an order of a court; (c) the person reasonably believed that the disclosure was made with— (Amended 32 of 2021 s. 6) (i) for an offence under subsection (1)—the data user’ s consent; or (ii) for an offence under subsection (3A) or (3C)—the relevant consent of the data subject; or (Amended 32 of 2021 s. 6) (d) the person— (i) disclosed the personal data solely for the purpose of a lawful news activity as defined by section 61(3) or a directly related activity; and (Amended 32 of 2021 s. 6) (ii) had reasonable grounds to believe that the publishing or broadcasting of the personal data was in the public interest.
s.64(6)	(6) 在本条中 — 指明伤害 (specified harm) 就某人而言, 指 — (a) 对该人的滋扰、骚扰、缠扰、威胁或恐吓; (b) 对该人的身体伤害或心理伤害; (c) 导致该人合理地担心其安全或福祉的伤害; 或 (d) 该人的财产受损; 相关同意 (relevant consent) 就某资料当事人而言, 指 — (a) 如该当事人属 第 2(1)条中有关人士的定义(a)、(b)或(c)段所描述的个人——由该名个人的有关人士代该名个人给予的同意; 或 (b) 在其他情况下——该当事人的同意。(由 2021 年第 32 号第 6 条 增补) (6) In this section— relevant consent (相关同意), in relation to a data subject, means— (a) if the data subject is an individual described in paragraph (a), (b) or (c) of the definition of relevant person in section 2(1) —the consent of a relevant person of the individual on the individual’ s behalf; or (b) otherwise—the consent of the data subject; specified harm (指明伤害), in relation to a person, means— (a) harassment, molestation, pestering, threat or intimidation to the person; (b) bodily harm or psychological harm to the person; (c) harm causing the person reasonably to be concerned for the person’ s safety or well-being; or (d) damage to the property of the person. (Added 32 of 2021 s. 6)
s.64C	64C. 专员检控罪行 (1) 专员可用本身的名义检控以下罪行 — (a) 第 64(1) 或 (3A)、66E(1) 或 (5)、66I(1) 或 66O(1) 条所订罪行; 或 (b) 串谋犯上述罪行。 (2) 根据第(1)款检控的罪行, 须作为可循简易程序审讯的罪行, 由裁判官审讯。(3) 本条并不减损律政司司长在检控刑事罪行方面的权力。(由 2021 年第 32 号第 9 条 增补) 64C. Prosecution of offences by Commissioner (1) The Commissioner may prosecute in the name of the Commissioner— (a) an offence under section 64(1) or (3A), 66E(1) or (5), 66I(1) or 66O(1) ; or (b) an offence of conspiracy to commit such an offence. (2) Any offence prosecuted under subsection (1) must be tried before a magistrate as an offence that is triable summarily. (3) This section does not derogate from the powers of the Secretary for Justice in respect of the prosecution of criminal offences. (Added 32 of 2021 s. 9)
s.64C(1)	(1) 专员可用本身的名义检控以下罪行 — (a) 第 64(1) 或 (3A)、66E(1) 或 (5)、66I(1) 或 66O(1) 条所订罪行; 或 (b) 串谋犯上述罪行的罪行。 (1) The Commissioner may prosecute in the name of the Commissioner— (a) an offence under section 64(1) or (3A), 66E(1) or (5), 66I(1) or 66O(1) ; or (b) an offence of conspiracy to commit such an offence.
s.64C(2)	(2) 根据第(1)款检控的罪行, 须作为可循简易程序审讯的罪行, 由裁判官审讯。 (2) Any offence prosecuted under subsection (1) must be tried before a magistrate as an offence that is triable summarily.
s.64C(3)	(3) 本条并不减损律政司司长在检控刑事罪行方面的权力。 (3) This section does not derogate from the powers of the Secretary for Justice in respect of the prosecution of criminal offences.
s.65(1)	(1) 任何人在其受雇用中所作出的任何作为或所从事的任何行为, 就本条例而言须视为亦是由其雇主所作出或从事的, 不论其雇主是否知悉或批准他作出该作为或从事该行为。 (1) Any act done or practice engaged in by a person in the course of his employment shall be treated for the purposes of this Ordinance as done or engaged in by his employer as well as by him, whether or not it was done or engaged in with the employer’ s knowledge or approval.
s.65(3)	(3) 在根据本条例对任何人就其雇员被指称作出的作为或从事的行为(视属何情况而定)而提出的法律程序中, 该人如证明他已采取切实可行的步骤, 以防止该雇员作出该作为或从事该行为或在其受雇用过程中作出该类作为或从事该类行为, 即为免责辩护。 (3) In proceedings brought under this Ordinance against any person in respect of an act or practice alleged to have been done or engaged in, as the case may be, by an employee of his it shall be a defence for that person to prove that he took such steps as were practicable to prevent the employee from doing that act or engaging in that practice, or from doing or engaging in, in the course of his employment, acts or practices, as the case may be, of that description.
s.65(4)	(4) 为免生疑问, 现声明: 本条不就刑事法律程序而适用。 (4) For the avoidance of doubt, it is hereby declared that this section shall not apply for the purposes of any criminal proceedings.
s.66	66. 补偿 (1) 除第(4)款另有规定外, 任何个人如因符合以下说明的违反事项而蒙受损害, 则该名个人有权就该损害向有关的资料使用者申索补偿 — (a) 遭违反的是本条例下的规定; (b) 违反规定者是资料使用者; 及 (c) 该违反规定事项全部或部分关乎个人资料而该名个人是资料当事人。(2) 为免生疑问, 现声明: 第(1)款所提述的损害可以是或可包括对感情的伤害。(3) 在凭本条针对任何人提出的法律程序中, 如证明以下事项, 即为免责辩护 — (a) 该人已采取在所有情况下属合理所需的谨慎措施, 以避免有关的违反规定事项发生; 或 (b) 在因有关的个人资料不准确而发生的有关违反规定事项的个案中, 该个人资料准确地记录有关的资料使用者从资料当事人或第三者处接收到或取得的资料。(4) 凡因有关的个人资料不准确而发生第(1)款所提述的违反规定事项, 并因此而导致有关的个人蒙受该款所提述的损害, 则不得就紧接本条开始实施后 1 年期届满前的任何时间所发生的损害, 根据该款支付补偿。(5) 由某个人倚赖第(1)款提起的法律程序须在区域法院提起, 但可在原讼法庭取得的所有补救, 均可在该等法律程序中取得。(由

	2012 年第 18 号第 38 条 增补)
s.66(1)	66. Compensation (1) Subject to subsection (4), an individual who suffers damage by reason of a contravention— (a) of a requirement under this Ordinance; (b) by a data user; and (c) which relates, whether in whole or in part, to personal data of which that individual is the data subject, shall be entitled to compensation from that data user for that damage. (2) For the avoidance of doubt, it is hereby declared that damage referred to in subsection (1) may be or include injury to feelings. (3) In any proceedings brought against any person by virtue of this section it shall be a defence to show that— (a) he had taken such care as in all the circumstances was reasonably required to avoid the contravention concerned; or (b) in any case where the contravention concerned occurred because the personal data concerned was inaccurate, the data accurately record data received or obtained by the data user concerned from the data subject or a third party. (Amended 18 of 2012 s. 38) (4) Where an individual suffers damage referred to in subsection (1) by reason of a contravention referred to in that subsection which occurred because the personal data concerned was inaccurate, then no compensation shall be payable under that subsection in respect of so much of that damage that has occurred at any time before the expiration of 1 year immediately following the day on which this section commences...
s.66(2)	(1) 除第(4)款另有规定外，任何个人如因符合以下说明的违反事项而蒙受损害，则该个人有权就該损害向有关的资料使用者索偿— (a) 遭违反的是本条例下的规定；及 (c) 违反规定者是资料使用者；及 (c) 该违反规定事项全部或部分关乎个人资料而该个人是资料当事人。 (1) Subject to subsection (4), an individual who suffers damage by reason of a contravention— (a) of a requirement under this Ordinance; (b) by a data user; and (c) which relates, whether in whole or in part, to personal data of which that individual is the data subject, shall be entitled to compensation from that data user for that damage. (2) 为免生疑问，现声明：(1)款所述述的损害可以是或可包括对感情的伤害。 (2) For the avoidance of doubt, it is hereby declared that damage referred to in subsection (1) may be or include injury to feelings.
s.66(3)	(3) 在凭借本条针对任何人提出的法律程序中，如证明以下事项，即为免责辩护— (a) 该人已采取在所有情况下属合理所需的谨慎措施，以避免有关的违反规定事项发生；或 (b) 在因有关的个人资料不准确而发生的有关违反规定事项的个案中，该个人资料准确地记录有关的资料使用者从资料当事人或第三者处收到或取得的资料。 (3) In any proceedings brought against any person by virtue of this section it shall be a defence to show that— (a) he had taken such care as in all the circumstances was reasonably required to avoid the contravention concerned; or (b) in any case where the contravention concerned occurred because the personal data concerned was inaccurate, the data accurately record data received or obtained by the data user concerned from the data subject or a third party. (Amended 18 of 2012 s. 38)
s.66(4)	(4) 凡因有关的个人资料不准确而发生第(1)款所述述的违反规定事项，并因此而导致有关的个人蒙受該款所述述的损害，则不得就紧接本条开始实施后 1 年期届满前的任何时间所发生的损害，根据該款支付补偿。 (4) Where an individual suffers damage referred to in subsection (1) by reason of a contravention referred to in that subsection which occurred because the personal data concerned was inaccurate, then no compensation shall be payable under that subsection in respect of so much of that damage that has occurred at any time before the expiration of 1 year immediately following the day on which this section commences. (Amended 18 of 2012 s. 38)
s.66(5)	(5) 由某名个人倚賴第(1)款提起的法律程序须在区域法院提起，但可在原讼法庭取得的所有补救，均可在该等法律程序中取得。(由 2012 年第 18 号第 38 条 增补) (5) Proceedings brought by an individual in reliance on subsection (1) are to be brought in the District Court but all such remedies are obtainable in those proceedings as would be obtainable in the Court of First Instance. (Added 18 of 2012 s. 38)
s.66A	66A. 协助受屈人士取得资料等 (1) 以帮助某人 (受屈人士) 决定是否根据第 66 条 提起法律程序及(如该人如此行事)以最有效的方式拟订及展呈其论点为出发点，专员可订明— (a) 受屈人士用以就以下事宜访问答人的格式：答人作出任何有关作为的理由，以及属或可能属有关的任何其他事宜；及 (b) 答人如愿意的话可用以答复任何访问的格式。 (2) 如受屈人士访问(不论是否按照第(1)款提述的格式作出的)答人— (a) 有关的问题及答人的任何答复(不论是否按照该等表格作出的)在第(3)、(4)及(5)款的规限下，可在有关法律程序中获接纳为证据；及 (b) 如区域法院觉得答人故意地在无理理解的情况下，没有在一段合理期间内作出答复，或觉得答人的答复言词闪烁或含糊不清，区域法院可从此事作出它认为公正及公平的推论。 (3) 专员可— (a) 订明访问须于什么期间内送达，方可根据第 (2) (a) 款获接纳为证据；及 (b) 订明访问及答人的答复可用何种方式送达。 (4) 根据《区域法院条例》(第 336 章)订立的规则，可赋予受理第 66 条 所指的申索的区域法院在该项申索的排定聆讯日期之前，裁定一项访问或答复是否根据本条而属可获接纳的证据。 (5) 本条不损害规管区域法院所审理的法律程序中的非正审或初步事宜的任何其他成文法则或法律规则，并在规管证据可否在该等程序中获接纳的成文法则或法律规则的规限下，具有效力。 (6) 在本条中— 答人 (respondent) 包括将会成为答人的人。(由 2012 年第 18 号第 39 条 增补) 66A. Help for aggrieved persons in obtaining information, etc. (1) With a view to helping a person (the person aggrieved) to decide whether to institute proceedings under section 66 and, if the person does so, to formulate and present his or her case in the most effective manner, the Commissioner may prescribe— (a) forms by which the person aggrieved may question the respondent on the respondent’ s reasons for doing any relevant act, or on any other matter which is or may be relevant; and (b) forms by which the respondent may, if he or she so wishes, reply to any questions. (2) If the person aggrieved questions the respondent (whether or not in accordance with a form referred to in subsection (1))— (a) the question and any reply by the respondent (whether or not in accordance with such a form) are, subject to subsections (3), (4) and (5), admissible as evidence in the proceedings; and (b) if it appears to the District Court that the respondent, deliberately and without reasonable excuse, omitted to reply within a reasonable period or that the respondent’ s reply is evasive or equivocal, the Court may draw any inference from that fact it considers just and equitable to draw. (3) The Commissioner may— (a) prescribe the period within which questions must be served in order to be admissible under subsection (2) (a) ; and (b) prescribe the manner in which a question and any reply by the respondent may be served.
s.66A(1)	(1) 以帮助某人 (受屈人士) 决定是否根据第 66 条 提起法律程序及(如该人如此行事)以最有效的方式拟订及展呈其论点为出发点，专员可订明— (a) 受屈人士用以就以下事宜访问答人的格式：答人作出任何有关作为的理由，以及属或可能属有关的任何其他事宜；及 (b) 答人如愿意的话可用以答复任何访问的格式。 (1) With a view to helping a person (the person aggrieved) to decide whether to institute proceedings under section 66 and, if the person does so, to formulate and present his or her case in the most effective manner, the Commissioner may prescribe— (a) forms by which the person aggrieved may question the respondent on the respondent’ s reasons for doing any relevant act, or on any other matter which is or may be relevant; and (b) forms by which the respondent may, if he or she so wishes, reply to any questions.
s.66A(2)	(2) 如受屈人士访问(不论是否按照第(1)款提述的格式作出的)答人— (a) 有关的问题及答人的任何答复(不论是否按照该等表格作出的)在第(3)、(4)及(5)款的规限下，可在有关法律程序中获接纳为证据；及 (b) 如区域法院觉得答人故意地在无理理解的情况下，没有在一段合理期间内作出答复，或觉得答人的答复言词闪烁或含糊不清，区域法院可从此事作出它认为公正及公平的推论。 (2) If the person aggrieved questions the respondent (whether or not in accordance with a form referred to in subsection (1))— (a) the question and any reply by the respondent (whether or not in accordance with such a form) are, subject to subsections (3), (4) and (5), admissible as evidence in the proceedings; and (b) if it appears to the District Court that the respondent, deliberately and without reasonable excuse, omitted to reply within a reasonable period or that the respondent’ s reply is evasive or equivocal, the Court may draw any inference from that fact it considers just and equitable to draw.
s.66A(3)	(3) 专员可— (a) 订明访问须于什么期间内送达，方可根据第 (2) (a) 款获接纳为证据；及 (b) 订明访问及答人的答复可用何种方式送达。 (3) The Commissioner may— (a) prescribe the period within which questions must be served in order to be admissible under subsection (2) (a) ; and (b) prescribe the manner in which a question and any reply by the respondent may be served.
s.66A(4)	(4) 根据《区域法院条例》(第 336 章)订立的规则，可赋予受理第 66 条 所指的申索的区域法院在该项申索的排定聆讯日期之前，裁定一项访问或答复是否根据本条而属可获接纳的证据。 (4) Rules under the District Court Ordinance (Cap. 336) may empower the District Court entertaining a claim under section 66 to determine, before the date fixed for the hearing of the claim, whether a question or reply is admissible under this section or not.
s.66A(5)	(5) 本条不损害规管区域法院所审理的法律程序中的非正审或初步事宜的任何其他成文法则或法律规则，并在规管证据可否在该等程序中获接纳的成文法则或法律规则的规限下，具有效力。 (5) This section is without prejudice to any other enactment or rule of law regulating interlocutory and preliminary matters in proceedings before the District Court, and has effect subject to any enactment or rule of law regulating the admissibility of evidence in such proceedings.
s.66A(6)	(6) 在本条中— 答人 (respondent) 包括将会成为答人的人。 (6) In this section— respondent (a person) includes a prospective respondent.
s.66B	66B. 专员可就法律程序给予协助 (1) 根据第 66 条 可提起法律程序以寻求补偿的人可向专员提出申请，要求就該程序给予协助。 (2) 专员可考虑第(1)款所指的申请，如专员认为合适，可批准申请，在以下情况下，专员尤其可批准申请— (a) 有关个案带出一个原则性问题；或 (b) 在顾及有关个案的复杂性、申请人相对于答人或受牵涉的另一人的位置或任何其他事宜下，期望申请人在没有协助下处理有关个案，是不合理的。 (3) 专员根据本条给予的协助可包括— (a) 提供意见； (b) 安排由律师或大律师提供意见或协助； (c) 安排由任何人代表行事，包括通常由律师或大律师在法律程序的初步步骤或附带步骤中给予的协助，或在在达成执行和解以避免或结束法律程序中给予的协助；及 (d) 专员认为适当的其他方式的协助。 (4) 除了在根据按照《区域法院条例》(第 336 章)第 73F 条 订立的规则准许的范围内，第 (3) (c) 款不影响规管什么种类的人可在法律程序中出庭、进行法律程序、抗辩及向法院陈词的法律及常规。 (5) 如专员因根据本条向申请人提供协助而招致开支，该等开支以《法院规则》所订明的方式评定或评核者的追讨构成使专员受益的对以下项目的第一押记— (a) 须由任何其他人(不须凭借区域法院的判决或命令、协议或其他依据)就该项协助所关涉的事宜而给予该申请人的任何讼费或费用；及 (b) 在就该事宜达成避免或结束任何法律程序的妥协和解安排之下，该申请人所具有的权利(在该等权利关涉任何讼费或费用的范围内)。 (6) 第(5)款所设定的押记，受《法律援助条例》(第 91 章)下的押记所规限，亦受该条例中关于将任何款项存入根据该条例设立的法律援助辅助计划基金的条文所规限。 (7) 在本条中— 《法院规则》(relevant rules)指根据《区域法院条例》(第 336 章)订立的规则； 答人 (respondent) 包括将会成为答人的人。(由 2012 年第 18 号第 39 条 增补) 66B. Commissioner may grant assistance in respect of proceedings (1) A person who may institute proceedings to seek compensation under section 66 may make an application to the Commissioner for assistance in respect of those proceedings. (2) The Commissioner must consider an application under subsection (1) and may grant it if the Commissioner thinks fit to do so, in particular if— (a) the case raises a question of principle; or (b) it is unreasonable, having regard to the complexity of the case or the applicant’ s position in relation to the respondent or another person involved or any other matter, to expect the applicant to deal with the case unaided. (3) Assistance by the Commissioner under this section may include— (a) giving advice; (b) arranging for the giving of advice or assistance by a solicitor or counsel; (c) arranging for representation by any person, including all such assistance as is usually given by a solicitor or counsel in the steps preliminary or incidental to any proceedings, or in arriving at or giving effect to a compromise to avoid or bring to an end any proceedings; and (d) any other form of assistance which the Commissioner may consider appropriate. (4) Subsection (3) (c) does not affect the law and practice regulating the descriptions of persons who may appear in, conduct, defend and address a court in, any proceedings except to the extent permitted...
s.66B(1)	(1) 根据第 66 条 可提起法律程序以寻求补偿的人可向专员提出申请，要求就該程序给予协助。 (1) A person who may institute proceedings to seek compensation under section 66 may make an application to the Commissioner for assistance in respect of those proceedings.
s.66B(2)	(2) 专员可考虑第(1)款所指的申请，如专员认为合适，可批准申请，在以下情况下，专员尤其可批准申请— (a) 有关个案带出一个原则性问题；或 (b) 在顾及有关个案的复杂性、申请人相对于答人或受牵涉的另一人的位置或任何其他事宜下，期望申请人在没有协助下处理有关个案，是不合理的。 (2) The Commissioner must consider an application under subsection (1) and may grant it if the Commissioner thinks fit to do so, in particular if— (a) the case raises a question of principle; or (b) it is unreasonable, having regard to the complexity of the case or the applicant’ s position in relation to the respondent or another person involved or any other matter, to expect the applicant to deal with the case unaided.
s.66B(3)	(3) 专员根据本条给予的协助可包括— (a) 提供意见； (b) 安排由律师或大律师提供意见或协助； (c) 安排

	(6) The charge created by subsection (5) is subject to any charge under the Legal Aid Ordinance (Cap. 91) and to any provision in that Ordinance for payment of any sum into the Supplementary Legal Aid Fund established under that Ordinance.
s.66B(7)	(7) 在本条中——《法院规则》(relevant rules)指根据《区域法院条例》(第 336 章)订立的规则； 答辩人 (respondent)包括将会或答辩人的人。
s.66D	(7) In this section— relevant rules (《法院规则》) means any rules made under the District Court Ordinance (Cap. 336) ; respondent (答辩人) includes a prospective respondent. 66D. 专员要求提供材料及协助的权力 (1) 如专员就某项调查, 合理地怀疑某人——(a) 管有或控制(或可能管有或控制)与该项调查相关的材料; 或 (b) 可能在其他方面有能力就该项调查协助专员, 则本条适用。 (2) 专员可藉向上述的人发出书面通知, 要求该人——(a) 凡专员合理地相信, 某事宜(相关事宜)与有关指明调查相关——向专员提供该人管有或控制的、 关乎相关事宜的材料; (b) 在指明的时间及地点, 面见专员, 并回答关乎相关事宜的问题; (c) 回答关乎相关事宜的书面问题; (d) 作出关乎相关事宜的陈述; 或 (e) 向专员提供专员为该项指明调查而合理地要求的所有协助。 (3) 第(2)款所指的 通知, 须——(a) 符合指明格式; (b) 由专员或订明人员签署; 及 (c) 示明有关指明调查之标的事宜及目的。 (4) 专员亦可在上述通知内, 指明——(a) 有关材料须于何时何地提供; 及 (b) 该材料须以何种方式及形式提供。 (5) 根据第 (2) (a) 款要求某人提供材料的权力, 包括要求以下事宜的权力——(a) 如该材料并非以可阅读形式记录——以符合下述说明的形式, 交出该材料的复本——(i) 属可见及可阅读形式; 或 (ii) 能够轻易地以可见及可阅读形式从其中产生该复本的形式; 及 (b) 如该材料以电子形式储存——该人作出以下事情——(i) 就操作载有该材料的设备, 给予指示; 及 (ii) 提供适当系统, 以将该材料转为纸上书面形式。 (6) 根据第 (2) (a) 款要求某人提供材料的权力, 包括作出以下作为的权力——(a) (如该人有提供该材料)采取以下行动——(i) 复制该材料, 或摘录其内容; (ii) 在为有关指明调查而合理所需的期间内, 保留该材料; 或 (iii) 要求该人, 或要求专员合理地相信能够给予关于该材料的解释或进一步详情的另一人, 给予关于该材料的解释或进一步详情; 及 (b) (如该人没有提供该材料)要求该人(尽其所知所信)说明该材料在何处。 (7) 如专员根据第 (2) (a) 款行使权力, 要求某人向专员提供电子器材, 该权力只可在 第 66G 条 的 规 限 下 行 使。
s.66D(1)	66D. Commissioner’s powers to require materials and assistance (1) This section applies if the Commissioner reasonably suspects that, in relation to a specified investigation, a person—(a) has or may have possession or control of any material relevant to that investigation; or (b) may otherwise be able to assist the Commissioner in relation to that investigation. (2) The Commissioner may, by written notice given to the person, require the person—(a) to provide the Commissioner with any material in the person’s possession or control relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (b) to attend before the Commissioner at a specified time and place, and answer any question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (c) to answer any written question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (d) to make a statement relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; or (e) to give the Commissioner all the assistance that the Commissioner reasonably requires for the specified investigation. (3) A notice under subsection (2) must—(a) be in the specified form; (b) be signed by the Commissioner or a prescribed officer; and (c) in...
s.66D(2)	(1) 如专员就某项调查, 合理地怀疑某人——(a) 管有或控制(或可能管有或控制)与该项调查相关的材料; 或 (b) 可能在其他方面有能力就该项调查协助专员, 则本条适用。 (1) This section applies if the Commissioner reasonably suspects that, in relation to a specified investigation, a person—(a) has or may have possession or control of any material relevant to that investigation; or (b) may otherwise be able to assist the Commissioner in relation to that investigation.
s.66D(3)	(2) 专员可藉向上述的人发出书面通知, 要求该人——(a) 凡专员合理地相信, 某事宜(相关事宜)与有关指明调查相关——向专员提供该人管有或控制的、 关乎相关事宜的材料; (b) 在指明的时间及地点, 面见专员, 并回答关乎相关事宜的问题; (c) 回答关乎相关事宜的书面问题; (d) 作出关乎相关事宜的陈述; 或 (e) 向专员提供专员为该项指明调查而合理地要求的所有协助。 (2) The Commissioner may, by written notice given to the person, require the person—(a) to provide the Commissioner with any material in the person’s possession or control relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (b) to attend before the Commissioner at a specified time and place, and answer any question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (c) to answer any written question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; (d) to make a statement relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; or (e) to give the Commissioner all the assistance that the Commissioner reasonably requires for the specified investigation.
s.66D(4)	(3) 第(2)款所指的 通知, 须——(a) 符合指明格式; (b) 由专员或订明人员签署; 及 (c) 示明有关指明调查之标的事宜及目的。
s.66D(5)	(3) A notice under subsection (2) must—(a) be in the specified form; (b) be signed by the Commissioner or a prescribed officer; and (c) indicate the subject matter and purpose of the specified investigation. (4) 专员亦可在上述通知内, 指明——(a) 该材料须于何时何地提供; 及 (b) 该材料须以何种方式及形式提供。 (4) The Commissioner may also specify in the notice—(a) the time and place at which the material is to be provided; and (b) the way and form in which it is to be provided.
s.66D(6)	(4) 专员亦可在上述通知内, 指明——(a) 该材料须于何时何地提供; 及 (b) 该材料须以何种方式及形式提供。 (5) 根据第 (2) (a) 款要求某人提供材料的权力, 包括要求以下事宜的权力——(a) 如该材料并非以可阅读形式记录——以符合下述说明的形式, 交出该材料的复本——(i) 属可见及可阅读形式; 或 (ii) 能够轻易地以可见及可阅读形式从其中产生该复本的形式; 及 (b) 如该材料以电子形式储存——该人作出以下事情——(i) 就操作载有该材料的设备, 给予指示; 及 (ii) 提供适当系统, 以将该材料转为纸上书面形式。 (5) The power under subsection (2) (a) to require a person to provide material includes—(a) if the material is recorded otherwise than in a legible form, the power to require the production of its copy—(i) in a visible and legible form; or (ii) in a form from which it can readily be produced in a visible and legible form; and (b) if the material is stored electronically, the power to require the person—(i) to give directions on the operation of the equipment containing the material; and (ii) to provide the appropriate system for reducing the material into a written form on paper.
s.66D(7)	(5) 根据第 (2) (a) 款要求某人提供材料的权力, 包括作出以下作为的权力——(a) (如该人有提供该材料)采取以下行动——(i) 复制该材料, 或摘录其内容; (ii) 在为有关指明调查而合理所需的期间内, 保留该材料; 或 (iii) 要求该人, 或要求专员合理地相信能够给予关于该材料的解释或进一步详情的另一人, 给予关于该材料的解释或进一步详情; 及 (b) (如该人没有提供该材料)要求该人(尽其所知所信)说明该材料在何处。 (6) 根据第 (2) (a) 款要求某人提供材料的权力, 包括作出以下作为的权力——(a) (如该人有提供该材料)采取以下行动——(i) 复制该材料, 或摘录其内容; (ii) 在为有关指明调查而合理所需的期间内, 保留该材料; 或 (iii) 要求该人, 或要求专员合理地相信能够给予关于该材料的解释或进一步详情的另一人, 给予关于该材料的解释或进一步详情; 及 (b) (如该人没有提供该材料)要求该人(尽其所知所信)说明该材料在何处。 (6) The power under subsection (2) (a) to require a person to provide material includes—(a) if the material is provided, the power—(i) to make copies of, or to take extracts from, the material; (ii) to retain the material for a period reasonably required for the specified investigation; or (iii) to require the person, or another person whom the Commissioner reasonably believes is able to do so, to give an explanation of, or further particulars about, the material; and (b) if the material is not provided, the power to require the person to state, to the best of the person’s knowledge and belief, where it is.
s.66G	(7) 如专员根据第 (2) (a) 款行使权力, 要求某人向专员提供电子器材, 该权力只可在 第 66G 条 的 规 限 下 行 使。 (7) If the Commissioner exercises the power under subsection (2) (a) to require a person to provide the Commissioner with an electronic device, the power may only be exercised subject to section 66G . 66G. 可就处所及电子器材行使的权力 (1) 裁判官如经专员或任何订明人员宣誓而作的告发, 信纳有合理理由怀疑——(a) 有人已经, 正在或即将犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1)或 66O(1)条 所 订 罪 行; 及 (b) 有 以 下 情 况——(i) 在某处所内, 有就某项指明调查而言属证据的材料; 或 (ii) 有就某项指明调查而言属证据的材料, 或载有该等证据的材料, 储存于某电子器材内, 则可发出手令, 授权专员或任何订明人员(连同对协助获如此授权的专员或订明人员属必要任何人(不论是否警务人员)行使第(2)或(3)款(视属何情况而定)所述述的权力。 (2) 可就第 1) (b) (i) 款所述的处所行使的权力如下——(a) 进入和搜查该处所(在必要时, 使用在当时情况下属合理的武力进入和搜查); (b) 在该处所内, 进行有关指明调查; 及 (c) 如专员或任何订明人员合理地怀疑, 在该处所内的某材料就该项调查而言属证据, 或载有该等证据——检取、 移走和扣留该材料。 (3) 可就第 1) (b) (ii) 款所述的电子器材行使的权力如下——(a) 接达该器材; (b) 检取和扣留该器材; (c) 将该器材储存的任何材料解密; (d) 如专员或任何订明人员合理地怀疑, 该器材储存的某材料(相关材料), 就有有关指明调查而言属证据, 或载有该等证据——搜寻相关材料; (e) 使相关材料以可见及可阅读形式重现; (f) 将相关材料转为纸上书面形式; 及 (g) 复制相关材料, 或摘录其内容, 以及取去该等复本或摘录。 (5) 手令持续有效, 直至其发出日期之后的 14 日届满为止。 (6) 在手令下的权力的行使过程中, 指明人士须免费提供专员或任何订明人员为有关指明调查而合理地要求的设施及协助。 (7) 在手令下的权力的行使过程中, 如任何指明人士质疑行使该权力的权限, 专员或任何订明人员须出示该手令, 以供该指明人士查阅。 (8) 专员或任何订明人员如——(a) 合理地怀疑有人已经, 正在或即将犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1)或 66O(1)条 所 订 罪 行; 及 (b) 合 理 地 怀 疑 有 就 某 项 指 明 调 查 而 言 属 证 据 的 材 料, 或 有 载 有 该 等 证 据 的 材 料, 存 储 于 某 电 子 器 材 内; 及 (c) 信 纳 申 请 第(1)款所指的手令所造成的延搁, 相当可能会使接达该器材的目的不能达成, 或者由于任何原因, 作出上述申请, 并非合理地切实可行, 则可可在无手令下接达该器材。 (9) 作出拘捕(不论是否根据 第 66H 条 作出)的人根据普通法可就电子器材行使的权力, 不受第(1)及(8)款影响。 (10) 凡在行使接达电子器材的权力所处的情况中, 有在普通法下对某人的私隐的保障, 则专员或有关订明人员在行使第(8)款所指的权力时, 须顾及该等保障。 (11) 在本条中——指明人士 (specified person)指——(a) 如手令是就第 1) (b) (i) 款所述的处所发出的——在该处所内的人; 或 (b) 如手令是就第 1) (b) (ii) 款所述的电子器材发出的——管有或控制该器材的人; 处所 ... 66G. Powers exercisable in relation to premises and electronic devices (1) If a magistrate is satisfied by information on oath by the Commissioner or any prescribed officer that there are reasonable grounds for suspecting—(a) that an offence under section 64(1), (3A) or (3C), 66E(1) or (5), 66I(1) or 66O(1) has been, is being or is about to be committed; and (b) that—(i) there is in any premises any material that is or contains evidence for the purposes of a specified investigation; or (ii) any material that is or contains evidence for the purposes of a specified investigation is stored in an electronic device, the magistrate may issue a warrant (warrant) authorizing the Commissioner or any prescribed officer, together with any person (whether or not a police officer) who may be necessary to assist the Commissioner or the prescribed officer so authorized, to exercise the powers referred to in subsection (2) or (3), as the case may be. (2) The powers that may be exercised in relation to premises mentioned in subsection 1) (b) (i) are—(a) to enter and search the premises (by using any force that is reasonable in the circumstances if necessary); (b) to carry out the specified investigation in the premises; and (c) to seize, remove and detain any material in the premises that the Commissioner or any prescribed officer reasonably suspects to be or to contain evidence for... (1) 裁判官如经专员或任何订明人员宣誓而作的告发, 信纳有合理理由怀疑——(a) 有人已经, 正在或即将犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1)或 66O(1)条 所 订 罪 行; 及 (b) 有 以 下 情 况——(i) 在某处所内, 有就某项指明调查而言属证据的材料, 或载有该等证据的材料; 或 (ii) 有就某项指明调查而言属证据的材料, 或载有该等证据的材料, 储存于某电子器材内, 则可发出手令, 授权专员或任何订明人员(连同对协助获如此授权的专员或订明人员属必要任何人(不论是否警务人员)行使第(2)或(3)款(视属何情况而定)所述述的权力。
s.66G(1)	(1) 裁判官如经专员或任何订明人员宣誓而作的告发, 信纳有合理理由怀疑——(a) 有人已经, 正在或即将犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1)或 66O(1)条 所 订 罪 行; 及 (b) 有 以 下 情 况——(i) 在某处所内, 有就某项指明调查而言属证据的材料, 或载有该等证据的材料; 或 (ii) 有就某项指明调查而言属证据的材料, 或载有该等证据的材料, 储存于某电子器材内, 则可发出手令, 授权专员或任何订明人员(连同对协助获如此授权的专员或订明人员属必要任何人(不论是否警务人员)行使第(2)或(3)款(视属何情况而定)所述述的权力。 (1) If a magistrate is satisfied by information on oath by the Commissioner or any prescribed officer that there are reasonable grounds for suspecting—(a) that an offence under section 64(1), (3A) or (3C), 66E(1) or (5), 66I(1) or 66O(1) has been, is being or is about to be committed; and (b) that—(i) there is in any premises any material that is or contains evidence for the purposes of a specified investigation; or (ii) any material that is or contains evidence for the purposes of a specified investigation is stored in an electronic device, the magistrate may issue a warrant (warrant) authorizing the Commissioner or any prescribed officer, together with any person (whether or not a police officer) who may be necessary to assist the Commissioner or the prescribed officer so authorized, to exercise the powers referred to in subsection (2) or (3), as the case may be.
s.66G(2)	(2) 可就第 1) (b) (i) 款所述的处所行使的权力如下——(a) 进入和搜查该处所(在必要时, 使用在当时情况下属合理的武力进入和搜查); (b) 在该处所内, 进行有关指明调查; 及 (c) 如专员或任何订明人员合理地怀疑, 在该处所内的某材料就该项调查而言属证据, 或载有该等证据——检取、 移走和扣留该材料。 (2) The powers that may be exercised in relation to premises mentioned in subsection 1) (b) (i) are—(a) to enter and search the premises (by using any force that is reasonable in the circumstances if necessary); (b) to carry out the specified investigation in the premises; and (c) to seize, remove and detain any material in the premises that the Commissioner or any prescribed officer reasonably suspects to be or to contain evidence for the purposes of the specified investigation.
s.66G(3)	(3) 可就第 1) (b) (ii) 款所述的电子器材行使的权力如下——(a) 接达该器材; (b) 检取和扣留该器材; (c) 将该器材储存的任何材料解密; (d) 如专员或任何订明人员合理地怀疑, 该器材储存的某材料(相关材料), 就有有关指明调查而言属证据, 或载有该等证据——搜寻相关材料; (e) 使相关材料以可见及可阅读形式重现; (f) 将相关材料转为纸上书面形式; 及 (g) 复制相关材料, 或摘录其内容, 以及取去该等复本或摘录。 (3) The powers that may be exercised in relation to an electronic device mentioned in subsection 1) (b) (ii) are—(a) to access the device; (b) to seize and detain the device; (c) to decrypt any material stored in the device; (d) to search for any material stored in the device that the Commissioner or any prescribed officer reasonably suspects to be or to contain evidence for the purposes of the specified investigation (relevant material); (e) to reproduce the relevant material in visible and legible form; (f) to reduce the relevant material into a written form on paper; and (g) to make copies of, or take extracts from, the relevant material and take away such copies or extracts.
s.66G(4)	(4) 手令须符合 附表 6 第 3 条 所列的格式。 (4) The warrant must be in the form set out in Part 3 of Schedule 6 .
s.66G(5)	(5) 手令持续有效, 直至其发出日期之后的 14 日届满为止。 (5) The warrant continues in force until the expiry of 14 days after the date on which it is issued.
s.66G(6)	(5) 手令持续有效, 直至其发出日期之后的 14 日届满为止。 (6) 在手令下的权力的行使过程中, 指明人士须免费提供专员或任何订明人员为有关指明调查而合理地要求的设施及协助。 (6) When powers are exercised under the warrant, a specified person must, without charge, afford facilities and assistance reasonably required by the Commissioner or any prescribed officer for the purposes of the specified investigation.
s.66G(7)	(7) 在手令下的权力的行使过程中, 如任何指明人士质疑行使该权力的权限, 专员或任何订明人员须出示该手令, 以供该指明人士查阅。 (7) When powers are exercised under the warrant, the Commissioner or any prescribed officer must produce the warrant for inspection by a specified person who questions the authority to exercise the powers.
s.66G(8)	(7) 在手令下的权力的行使过程中, 如任何指明人士质疑行使该权力的权限, 专员或任何订明人员须出示该手令, 以供该指明人士查阅。 (8) 专员或任何订明人员如——(a) 合理地怀疑有人已经, 正在或即将犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1)或 66O(1)条 所 订 罪 行; 及 (b) 合 理 地 怀 疑 有 就 某 项 指 明 调 查 而 言 属 证 据 的 材 料, 或 有 载 有 该 等 证 据 的 材 料, 存 储 于 某 电 子 器 材 内; 及 (c) 信 纳 申 请 第(1)款所指的手令所造成的延搁, 相当可能会使接达该器材的目的不能达成, 或者由于任何原因, 作出上述申请, 并非合理地切实可行, 则可可在无手令下接达该器材。 (8) If the Commissioner or any prescribed officer—(a) reasonably suspects that an offence under section 64(1), (3A) or (3C), 66E(1) or (5), 66I(1) or 66O(1) has been, is being or is about to be committed; (b) reasonably suspects that any material that is or contains evidence for the purposes of a specified investigation is stored in an electronic device; and (c) is satisfied that a delay caused by an application for a warrant under subsection (1) is likely to defeat the purpose of accessing the device, or for any reason it is not reasonably practicable to make the application, the Commissioner or any prescribed officer may, without warrant, access the device.
s.66G(9)	(9) 作出拘捕(不论是否根据 第 66H 条 作出)的人根据普通法可就电子器材行使的权力, 不受第(1)及(8)款影响。 (9) Subsections (1) and (8) do not affect any power that may be exercised under the common law in relation to an electronic device by a person who has made an arrest (whether or not under section 66H).
s.66G(10)	(10) 凡在行使接达电子器材的权力所处的情况中, 有在普通法下对某人的私隐的保障, 则专员或有关订明人员在行使第(8)款所指的权力时, 须顾及该等保障。 (10)凡在行使接达电子器材的权力所处的情况中, 有在普通法下对某人的私隐的保障, 则专员或有关订明人员在行使第(8)款所指的权力时, 须顾及该等保障。

	(10) In exercising the power under subsection (8), the Commissioner or prescribed officer must have regard to the safeguards under the common law to protect the privacy of a person in the circumstances in which a power to access an electronic device is exercised.
s.66G(11)	(11) 在本条中 — 指明人士 (specified person) 指 — (a) 如手令是就第 1 (b) (i) 款所述的处所发出的 — 在该处内的人; 或 (b) 如手令是就第 1 (b) (ii) 款所述的电子器材发出的 — 管有或控制该器材的人; 处所 (premises) 具有 第 42(11)条 所给予的涵义。 (11) In this section— premises (处所) has the meaning given by section 42(11); specified person (指明人士) means— (a) in the case of a warrant being issued in relation to premises mentioned in subsection 1 (b) (i) —a person in the premises; or (b) in the case of a warrant being issued in relation to an electronic device mentioned in subsection 1 (b) (ii) —a person in possession or control of the device.
s.66H	66H. 截停、搜查和拘捕人的权力 (1) 获授权人员如合理地怀疑, 某人已犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1) 或 66O(1)条 所订罪行, 则可在无手令下截停、搜查和拘捕该人。 (2) 如任何人抗拒或企图逃避根据第(1)款进行的搜查或拘捕, 有关获授权人员可使用在当时情况下属合理的武力, 以进行搜查或拘捕。 (3) 获授权人员在根据第(1)款拘捕某人(被捕人)后, 可搜寻符合以下说明的物品, 并按管该物品 — (a) 在被捕人身上发现的, 或在拘捕地点或该地点附近发现的; 及 (b) 该人员合理地怀疑该物品 — (i) 如被捕人因某罪行而被拘捕 — 与该罪行相关; 或 (ii) 可有助了解被捕人的品性或活动。 (4) 有关获授权人员 须 — (a) 将被捕人带往专员的办事处, 作进一步查讯; 或 (b) 将被捕人带往警署, 以按照《警队条例》(第 232 章)处置。 (5) 有关获授权人员可要求被捕人 — (a) 说明其姓名及通讯地址; 及 (b) 出示其身分证明文件, 以供查阅。 (6) 被捕人不得被拘留超过 48 小时(自被捕之时起计)而不予落案起诉并带到裁判官前席应讯。 (7) 在本条中 — 身分证明文件 (proof of identity) 具有《入境条例》(第 115 章) 第 17B(1)条 所给予的涵义; 获授权人员 (authorized officer) 指 — (a) 专员; 或 (b) 专员为施行本条而授权的人。 66H. Powers to stop, search and arrest persons (1) An authorized officer may, without warrant, stop, search and arrest any person whom the officer reasonably suspects of having committed an offence under section 64(1), (3A) or (3C), 66E(1) or (5), 66I(1) or 66O(1). (2) If any person resists, or attempts to evade, a search or arrest effected under subsection (1), the authorized officer may use any force that is reasonable in the circumstances to effect the search or arrest. (3) If an authorized officer has arrested a person (arrested person) under subsection (1), the officer may search for and take possession of any thing that— (a) may be found on the arrested person or in or about the place at which the person has been arrested; and (b) the officer reasonably suspects— (i) is related to the offence for which the person has been arrested; or (ii) may throw light on the character or activities of the person. (4) The authorized officer must take the arrested person to— (a) an office of the Commissioner for further inquiries; or (b) a police station to be dealt with in accordance with the Police Force Ordinance (Cap. 232). (5) The authorized officer may require the arrested person to— (a) state the person’s name and correspondence address; and (b) produce the person’s proof of identity for inspection. (6) The arrested person must not be detained for more than 48 hours after...
s.66H(1)	(1) 获授权人员如合理地怀疑, 某人已犯 第 64(1)、(3A)或(3C)、66E(1)或(5)、66I(1) 或 66O(1)条 所订罪行, 则可在无手令下截停、搜查和拘捕该人。 (1) An authorized officer may, without warrant, stop, search and arrest any person whom the officer reasonably suspects of having committed an offence under section 64(1), (3A) or (3C), 66E(1) or (5), 66I(1) or 66O(1).
s.66H(2)	(2) 如任何人抗拒或企图逃避根据第(1)款进行的搜查或拘捕, 有关获授权人员可使用在当时情况下属合理的武力, 以进行搜查或拘捕。 (2) If any person resists, or attempts to evade, a search or arrest effected under subsection (1), the authorized officer may use any force that is reasonable in the circumstances to effect the search or arrest.
s.66H(3)	(3) 获授权人员在根据第(1)款拘捕某人(被捕人)后, 可搜寻符合以下说明的物品, 并按管该物品 — (a) 在被捕人身上发现的, 或在拘捕地点或该地点附近发现的; 及 (b) 该人员合理地怀疑该物品 — (i) 如被捕人因某罪行而被拘捕 — 与该罪行相关; 或 (ii) 可有助了解被捕人的品性或活动。 (3) If an authorized officer has arrested a person (arrested person) under subsection (1), the officer may search for and take possession of any thing that— (a) may be found on the arrested person or in or about the place at which the person has been arrested; and (b) the officer reasonably suspects— (i) is related to the offence for which the person has been arrested; or (ii) may throw light on the character or activities of the person.
s.66H(4)	(4) 有关获授权人员 须 — (a) 将被捕人带往专员的办事处, 作进一步查讯; 或 (b) 将被捕人带往警署, 以按照《警队条例》(第 232 章)处置。 (4) The authorized officer must take the arrested person to— (a) an office of the Commissioner for further inquiries; or (b) a police station to be dealt with in accordance with the Police Force Ordinance (Cap. 232).
s.66H(5)	(5) 有关获授权人员可要求被捕人 — (a) 说明其姓名及通讯地址; 及 (b) 出示其身分证明文件, 以供查阅。 (5) The authorized officer may require the arrested person to— (a) state the person’s name and correspondence address; and (b) produce the person’s proof of identity for inspection.
s.66H(6)	(6) 被捕人不得被拘留超过 48 小时(自被捕之时起计)而不予落案起诉并带到裁判官前席应讯。 (6) The arrested person must not be detained for more than 48 hours after the time the person is arrested without being charged and brought before a magistrate.
s.66H(7)	(7) 在本条中 — 身分证明文件 (proof of identity) 具有《入境条例》(第 115 章) 第 17B(1)条 所给予的涵义; 获授权人员 (authorized officer) 指 — (a) 专员; 或 (b) 专员为施行本条而授权的人。 (7) In this section— authorized officer (获授权人员) means— (a) the Commissioner; or (b) a person authorized by the Commissioner for the purposes of this section; proof of identity (身分证明文件) has the meaning given by section 17B(1) of the Immigration Ordinance (Cap. 115).
s.66K	66K. 标的披露的涵义 (1) 就本分部而言, 凡某人(披露者)在以下情况下披露资料当事人的个人资料(不论是在香港披露), 则该项披露即属标的披露 — (a) 在该项披露作出时, 该当事人 — (i) 属香港居民; 或 (ii) 身处香港; 及 (b) 披露者在未获该当事人的相关同意下, 披露上述个人资料, 而 — (i) 披露者的意图, 是导致该当事人或其任何家人蒙受任何指明伤害; 或 (ii) 披露者罔顾是否(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害。 (2) 在本条中 — 指明伤害 (specified harm) 具有 第 64(6)条 所给予的涵义; 相关同意 (relevant consent) 具有 第 64(6)条 所给予的涵义。 66K. Meaning of subject disclosure (1) For the purposes of this Division, a disclosure (whether or not in Hong Kong) of personal data of a data subject by a person is a subject disclosure if— (a) when the disclosure is made, the data subject — (i) is a Hong Kong resident; or (ii) is present in Hong Kong; and (b) the person discloses the personal data without the relevant consent of the data subject— (i) with an intent to cause any specified harm to the data subject or any family member of the data subject; or (ii) being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject. (2) In this section— relevant consent (相关同意) has the meaning given by section 64(6); specified harm (指明伤害) has the meaning given by section 64(6).
s.66K(1)	(1) 就本分部而言, 凡某人(披露者)在以下情况下披露资料当事人的个人资料(不论是在香港披露), 则该项披露即属标的披露 — (a) 在该项披露作出时, 该当事人 — (i) 属香港居民; 或 (ii) 身处香港; 及 (b) 披露者在未获该当事人的相关同意下, 披露上述个人资料, 而 — (i) 披露者的意图, 是导致该当事人或其任何家人蒙受任何指明伤害; 或 (ii) 披露者罔顾是否(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害。 (1) For the purposes of this Division, a disclosure (whether or not in Hong Kong) of personal data of a data subject by a person is a subject disclosure if— (a) when the disclosure is made, the data subject— (i) is a Hong Kong resident; or (ii) is present in Hong Kong; and (b) the person discloses the personal data without the relevant consent of the data subject— (i) with an intent to cause any specified harm to the data subject or any family member of the data subject; or (ii) being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject.
s.66K(2)	(2) 在本条中 — 指明伤害 (specified harm) 具有 第 64(6)条 所给予的涵义; 相关同意 (relevant consent) 具有 第 64(6)条 所给予的涵义。 (2) In this section— relevant consent (相关同意) has the meaning given by section 64(6); specified harm (指明伤害) has the meaning given by section 64(6).
s.66L	66L. 停止披露行动的涵义 (1) 就本分部而言, 停止披露行动就标的讯息而言, 指停止或限制该讯息而作出的标的披露的任何行动, 包括移除该讯息。 (2) 就第(1)款而言, 停止披露行动就属电子讯息的标的讯息而言, 包括作出以下作为的行动 — (a) 从该讯息发布所在的电子平台(相关平台)上, 将该讯息移除; (b) 停止或限制任何人 — (i) 透过相关平台, 接达该讯息; (ii) 接达相关平台上该讯息发布所在的部分, 提供主机服务; 或 (iii) 为整个相关平台, 提供主机服务。 (3) 在本条中 — 中介服务 (intermediary service) 的涵义如下 — (a) 某项服务如容许终端用户透过传输服务, 接达源自第三方的材料, 即属 中介服务; (b) 某项服务如属透过传输服务, 将源自第三方的材料传送到终端用户的服务, 即属 中介服务; 或 (c) 凡某项服务属显示搜索结果索引的服务(搜索服务), 而该索引是向透过传输服务而使用该项搜索服务作搜寻的终端用户显示的, 且每个相关搜尋结果, 将该用户连结至托管或存储位置与该索引所处位置有所不同的内容, 该项搜索服务即属 中介服务; 主机服务 (hosting service) 的涵义如下: 凡某人(托管人)曾在电子平台上寄发的存储材料, 而该人或另一人就该平台提供中介服务, 则托管该材料的服务, 即属 主机服务; 接达 (access) 包括 — (a) 在符合先决条件(包括使用密码)下的接达; (b) 藉播播技术接达; 及 (c) 藉常规要求接达; 传输服务 (carriage service) 指藉着导向电磁能、无导向电磁能或以上两者而传输通讯的服务; 电子平台 (electronic platform) 指在电子系统中提供的中介服务平台。例子 — (a) 网站; 及 (b) 网上应用程序。 66L. Meaning of cessation action (1) For the purposes of this Division, a cessation action, in relation to a subject message, is any action to cease or restrict the subject disclosure made by means of the message, including the removal of the message. (2) For subsection (1), a cessation action, in relation to a subject message that is an electronic message, includes an action to— (a) remove the message from the electronic platform on which the message is published (relevant platform); (b) cease or restrict access by any person to— (i) the message via the relevant platform; (ii) the part of the relevant platform on which the message is published; or (iii) the whole of the relevant platform; or (c) discontinue the hosting service for— (i) the part of the relevant platform on which the message is published; or (ii) the whole of the relevant platform. (3) In this section— access (接达) includes— (a) access that is subject to a pre-condition (including the use of a password); (b) access by way of push technology; and (c) access by way of a standing request; carriage service (传输服务) means a service for carrying communications by means of guided or unguided electromagnetic energy or both; electronic platform (电子平台) means a platform for intermediary service that is provided in an electronic system; Example— (a) a website; and (b) an online application. hosting service (主机服务) ...
s.66L(1)	(1) 就本分部而言, 停止披露行动就标的讯息而言, 指停止或限制该讯息而作出的标的披露的任何行动, 包括移除该讯息。 (1) For the purposes of this Division, a cessation action, in relation to a subject message, is any action to cease or restrict the subject disclosure made by means of the message, including the removal of the message.
s.66L(2)	(2) 就第(1)款而言, 停止披露行动就属电子讯息的标的讯息而言, 包括作出以下作为的行动 — (a) 从该讯息发布所在的电子平台(相关平台)上, 将该讯息移除; (b) 停止或限制任何人 — (i) 透过相关平台, 接达该讯息; (ii) 接达相关平台上该讯息发布所在的部分; 或 (iii) 接达整个相关平台; 或 (c) 终止 — (i) 为相关平台, 提供主机服务; 或 (ii) 为整个相关平台, 提供主机服务。 (2) For subsection (1), a cessation action, in relation to a subject message that is an electronic message, includes an action to— (a) remove the message from the electronic platform on which the message is published (relevant platform); (b) cease or restrict access by any person to— (i) the message via the relevant platform; (ii) the part of the relevant platform on which the message is published; or (iii) the whole of the relevant platform; or (c) discontinue the hosting service for— (i) the part of the relevant platform on which the message is published; or (ii) the whole of the relevant platform.
s.66L(3)	(3) 在本条中 — 中介服务 (intermediary service) 的涵义如下 — (a) 某项服务如容许终端用户透过传输服务, 接达源自第三方的材料, 即属 中介服务; (b) 某项服务如属透过传输服务, 将源自第三方的材料传送到终端用户的服务, 即属 中介服务; 或 (c) 凡某项服务属显示搜索结果索引的服务(搜索服务), 而该索引是向透过传输服务而使用该项搜索服务作搜寻的终端用户显示的, 且每个相关搜尋结果, 将该用户连结至托管或存储位置与该索引所处位置有所不同的内容, 该项搜索服务即属 中介服务; 主机服务 (hosting service) 的涵义如下: 凡某人(托管人)曾在电子平台上寄发的存储材料, 而该人或另一人就该平台提供中介服务, 则托管该材料的服务, 即属 主机服务; 接达 (access) 包括 — (a) 在符合先决条件(包括使用密码)下的接达; (b) 藉播播技术接达; 及 (c) 藉常规要求接达; 传输服务 (carriage service) 指藉着导向电磁能、无导向电磁能或以上两者而传输通讯的服务; 电子平台 (electronic platform) 指在电子系统中提供的中介服务平台。例子 — (a) 网站; 及 (b) 网上应用程序。 (3) In this section— access (接达) includes— (a) access that is subject to a pre-condition (including the use of a password); (b) access by way of push technology; and (c) access by way of a standing request; carriage service (传输服务) means a service for carrying communications by means of guided or unguided electromagnetic energy or both; electronic platform (电子平台) means a platform for intermediary service that is provided in an electronic system; Example— (a) a website; and (b) an online application. hosting service (主机服务) means a service of hosting stored material that has been posted on an electronic platform where the person who hosts such material, or another person, provides an intermediary service for the platform; intermediary service (中介服务) means— (a) a service that allows end-users to access materials originating from third parties through a carriage service; (b) a service of transmitting such materials to end-users through a carriage service; or (c) a service of displaying, to an end-user who uses the service to make a search through a carriage service, an index of search results, each of which links that end-user to content hosted or stored at a location that is separate from the location of the index of search results.
s.66M	66M. 达达停止披露通知 (1) 如专员有合理理由相信 — (a) 有标的讯息存在; 及 (b) 某名香港人士有能力就该讯息采取停止披露行动(不论是在香港采取), 则专员可向该人送达书面通知, 指示该人采取该停止披露行动。 (2) 此外, 如专员有合理理由相信 — (a) 有属电子讯息的标的讯息存在; 及 (b) 某非港人服务提供者有能力就该讯息采取停止披露行动(不论是在香港采取), 则专员可向该提供者送达书面通知, 指示该提供者采取该停止披露行动。 (3) 停止披露通知 须 — (a) 说明第(1)或(2)款所述的专员相信之事, 以及专员相信该事所据的理由; (b) 在合理地切实可行的范围内, 透过足以使有关停止披露行动得以采取的方式, 示明有关的讯息; (c) 指明须采取停止披露行动; (d) 指明须于何日之前采取该停止披露行动; 及 (e) 附有本条及 第 66N 及 66O 条 的文本。 (4) 专员可向向达达停止披露通知的人送达书面通知, 撤销该停止披露通知。 (5) 在本条中 — 非港人服务提供者 (non-Hong Kong service provider) 指已经或正在向任何香港人士提供服务的人(并非香港人士者)。不论服务是否在香港提供; 香港人士 (Hong Kong person) 指 — (a) 身处香港的个人; 或 (b) 符合以下说明的团体 — (i) 在香港成立为法人、设立或注册; 或 (ii) 在香港有业务地点。 66M. Service of cessation notice (1) If the Commissioner has reasonable ground to believe that— (a) there is a subject message; and (b) a Hong Kong person is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the person directing the person to take the cessation action. (2) In addition, if the Commissioner has reasonable ground to believe that— (a) there is a subject message that is an electronic message; and (b) a non-Hong Kong service provider is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the provider directing the provider to take the cessation action. (3) The cessation notice must— (a) state the Commissioner’s belief mentioned in subsection (1) or (2) and the ground for that belief; (b) identify, in so far as reasonably practicable, the subject message in a way that is sufficient to enable the cessation action to be taken; (c) specify the cessation action that must be taken; (d) specify the date on or before which the cessation action must be taken; and (e) be accompanied by a copy of this section and sections 66N and 66O. (4) The Commissioner may cancel a cessation notice by serving a written notice on the person on whom the cessation notice is served. (5) In this section— Hong Kong person (...)
s.66M(1)	(1) 如专员有合理理由相信 — (a) 有标的讯息存在; 及 (b) 某名香港人士有能力就该讯息采取停止披露行动(不论是在香港采取), 则专员可向该人送达书面通知, 指示该人采取该停止披露行动。 (1) If the Commissioner has reasonable ground to believe that— (a) there is a subject message; and (b) a Hong Kong person is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the person directing the person to take the cessation action.

s.66M(2)	(2) 此外，如专员有合理理由相信 — (a) 有属电子信息的标的讯息存在；及 (b) 某非港人服务提供者有能力就该讯息采取停止披露行动(不论是否在香港采取)，则专员可向该提供者送达书面通知，指示该提供者采取该停止披露行动。 (2) In addition, if the Commissioner has reasonable ground to believe that— (a) there is a subject message that is an electronic message; and (b) a non-Hong Kong service provider is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the provider directing the provider to take the cessation action.
s.66M(3)	(3) 停止披露通知 须 — (a) 阐明第(1)或(2)款所述的专员相信之事，以及专员相信该事所据的理由； (b) 在合理地切实可行的范围内，通过足以使有关停止披露行动得以采取的方式，示明有关的讯息； (c) 指明须采取的停止披露行动； (d) 指明须于何日或之前采取该停止披露行动；及 (e) 附有本条及 第 66N 及 66O 条 的文本。 (3) The cessation notice must— (a) state the Commissioner’ s belief mentioned in subsection (1) or (2) and the ground for that belief; (b) identify, in so far as reasonably practicable, the subject message in a way that is sufficient to enable the cessation action to be taken; (c) specify the cessation action that must be taken; (d) specify the date on or before which the cessation action must be taken; and (e) be accompanied by a copy of this section and sections 66N and 66O .
s.66M(4)	(4) 专员可藉向获送达停止披露通知的人送达书面通知，撤销该停止披露通知。 (4) The Commissioner may cancel a cessation notice by serving a written notice on the person on whom the cessation notice is served.
s.66M(5)	(5) 在本条中 — 非港人服务提供者 (non-Hong Kong service provider)指已经或正在向任何香港人士提供服务的人(并非香港人士者)，不论服务是否在香港提供； 香港人士 (Hong Kong person) 指 — (a) 身处香港的个人；或 (b) 符合以下说明的团体 — (i) 在香港成立为法团、设立或注册；或 (ii) 在香港有业务地点。 (5) In this section— Hong Kong person (香港人士) means— (a) an individual who is present in Hong Kong; or (b) a body of persons that— (i) is incorporated, established or registered in Hong Kong; or (ii) has a place of business in Hong Kong; non-Hong Kong service provider (非港人服务提供者) means a person (not being a Hong Kong person) that has provided or is providing any service (whether or not in Hong Kong) to any Hong Kong person.
s.66O	66O. 关于停止披露通知的罪行 (1) 获送达停止披露通知的人违反该通知，即属犯罪 — (a) 首次定罪 — 可处第 5 级罚款及监禁 2 年；如属持续罪行，则可就该罪行持续期间的每一日，另处罚款 \$1,000；及 (b) 其后每次定罪 — 可处第 6 级罚款及监禁 2 年；如属持续罪行，则可就该罪行持续期间的每一日，另处罚款 \$2,000。(2) 就某停止披露通知而被控犯第(1)款所订罪行的人，如确立 — (a) 该人对违反该停止披露通知有合理解释；或 (b) (在不局限(a)段的原则下)有以下情况 — (i) 在顾及有关的停止披露行动的性质、难度或复杂性后，期望该人遵从该停止披露通知是不合理的；(ii) 由于该人遵从该停止披露通知所需的科技并非该人合理可得，期望该人遵从该停止披露通知是不合理的；或 (iii) 由于有以下风险存在，期望该人遵从该停止披露通知是不合理的：对第三方招致相当程度损失，或以其他方式对第三方的权利造成相当程度损害，即为免责辩护。(3) 在以下情况下，就第(2)款所指的免责辩护而需要确立的事宜，须视作已由有关的人确立 — (a) 有足够证据，就该事宜带出争论点；及 (b) 控方没有提出足以排除合理疑点的证据，证明并非如此。 66O. Offence relating to cessation notice (1) If a person on whom a cessation notice is served contravenes the notice, the person commits an offence and is liable— (a) on a first conviction—to a fine at level 5 and to imprisonment for 2 years and, in the case of a continuing offence, to a further fine of \$1,000 for every day during which the offence continues; and (b) on each subsequent conviction—to a fine at level 6 and to imprisonment for 2 years and, in the case of a continuing offence, to a further fine of \$2,000 for every day during which the offence continues. (2) It is a defence for a person charged with an offence under subsection (1) in respect of a cessation notice to establish that— (a) the person had a reasonable excuse for contravening the cessation notice; or (b) without limiting paragraph (a), it was not reasonable to expect the person to comply with the cessation notice— (i) having regard to the nature, difficulty or complexity of the cessation action concerned; (ii) because the technology necessary for complying with the cessation notice was not reasonably available to the person; or (iii) because there was a risk of incurring substantial loss to, or otherwise substantially prejudicing the right of, a third party. (3) The person is taken to have established a matter that needs to be established for the purpose of a defence under subsection (2) if— (a) there...
s.66O(1)	(1) 获送达停止披露通知的人违反该通知，即属犯罪 — (a) 首次定罪 — 可处第 5 级罚款及监禁 2 年；如属持续罪行，则可就该罪行持续期间的每一日，另处罚款 \$1,000；及 (b) 其后每次定罪 — 可处第 6 级罚款及监禁 2 年；如属持续罪行，则可就该罪行持续期间的每一日，另处罚款 \$2,000。 (1) If a person on whom a cessation notice is served contravenes the notice, the person commits an offence and is liable— (a) on a first conviction—to a fine at level 5 and to imprisonment for 2 years and, in the case of a continuing offence, to a further fine of \$1,000 for every day during which the offence continues; and (b) on each subsequent conviction—to a fine at level 6 and to imprisonment for 2 years and, in the case of a continuing offence, to a further fine of \$2,000 for every day during which the offence continues.
s.66O(2)	(2) 就某停止披露通知而被控犯第(1)款所订罪行的人，如确立 — (a) 该人对违反该停止披露通知有合理解释；或 (b) (在不局限(a)段的原则下)有以下情况 — (i) 在顾及有关的停止披露行动的性质、难度或复杂性后，期望该人遵从该停止披露通知是不合理的；(ii) 由于该人遵从该停止披露通知所需的科技并非该人合理可得，期望该人遵从该停止披露通知是不合理的；或 (iii) 由于有以下风险存在，期望该人遵从该停止披露通知是不合理的：对第三方招致相当程度损失，或以其他方式对第三方的权利造成相当程度损害，即为免责辩护。 (2) It is a defence for a person charged with an offence under subsection (1) in respect of a cessation notice to establish that— (a) the person had a reasonable excuse for contravening the cessation notice; or (b) without limiting paragraph (a), it was not reasonable to expect the person to comply with the cessation notice— (i) having regard to the nature, difficulty or complexity of the cessation action concerned; (ii) because the technology necessary for complying with the cessation notice was not reasonably available to the person; or (iii) because there was a risk of incurring substantial loss to, or otherwise substantially prejudicing the right of, a third party.
s.66O(3)	(3) 在以下情况下，就第(2)款所指的免责辩护而需要确立的事宜，须视作已由有关的人确立 — (a) 有足够证据，就该事宜带出争论点；及 (b) 控方没有提出足以排除合理疑点的证据，证明并非如此。 (3) The person is taken to have established a matter that needs to be established for the purpose of a defence under subsection (2) if— (a) there is sufficient evidence to raise an issue with respect to the matter; and (b) the contrary is not proved by the prosecution beyond reasonable doubt.
Part VIII	NOT FOUND in Cap.486 NOT FOUND in Cap.486
s.52	52. 家居用途由个人持有并 — (a) 只与其私人事务、家庭事务或家居事务有关的个人资料；或 (b) 只是为消闲目的而如此持有的个人资料， 获豁免而不受各保障资料原则、第 4 和 5 部及第 36 和 38(b)条的条文所管限。(编辑修订 — 2013 年第 1 号编辑修订记录) 52. Domestic purposes Personal data held by an individual and— (a) concerned only with the management of his personal, family or household affairs; or (b) so held only for recreational purposes, is exempt from the provisions of the data protection principles, Parts 4 and 5 and sections 36 and 38(b) . (Amended 18 of 2012 s. 2 ; E.R. 1 of 2013)
s.52(a)	(a) 只与其私人事务、家庭事务或家居事务有关的个人资料；或
s.52(b)	(a) concerned only with the management of his personal, family or household affairs; or (b) 只是为消闲目的而如此持有的个人资料， (b) so held only for recreational purposes,
s.53	53. 雇佣 — 职工策划 包含与 — (a) 填补任何系列的现正空缺或可能会空缺的雇佣职位；或 (b) 终止任何组别的个人的雇用， 的职工策划建议有关的资讯的个人资料获豁免而不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限。 53. Employment—staff planning Personal data which consists of information relevant to any staff planning proposal to— (Amended 18 of 2012 s. 2) (a) fill any series of positions of employment which are presently, or may become, unfilled; or (b) cease any group of individuals’ employment, is exempt from the provisions of data protection principle 6 and section 18(1) (b) . (Amended 18 of 2012 s. 2)
s.53(a)	(a) 填补任何系列的现正空缺或可能会空缺的雇佣职位；或
s.53(b)	(a) fill any series of positions of employment which are presently, or may become, unfilled; or (b) 终止任何组别的个人的雇用， (b) cease any group of individuals’ employment,
s.55	55. 有关程序 (1) 属有关程序的标的之个人资料获豁免而不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，直至该程序完成为止。(2) 在本条中 — 有关程序 (relevant process) — (a) 除(b)段另有规定外，指任何程序，而个人资料是在该程序下由一个或多个的人为决定以下事宜(或为使以下事宜得予决定)予以考虑 — (i) 就 — (A) 雇用或委任以担任职位； (B) 在雇用或职位方面的晋升或继续留任； (C) 解雇或免除职位；或 (D) 授予任何合约、名衔(包括学术及专业资格)、奖学金、荣誉或其他利益。而言，有关的资料当事人的合适程度、是否合乎资格或具资历； (ii) 与有关的资料当事人有关的任何合约、名衔(包括学术及专业资格)、奖学金、荣誉或利益应否予以延续、修改或撤销；或 (iii) 应否为有关的资料当事人违反其雇用条款或委任以担任职位的条款而对他采取纪律行动； (b) 如在某程序中，针对该等决定提出上诉(不论是根据条例或其他依据提出)是不获容许的，则不包括该等程序；完成 (completion) , 就有关程序而言，指 有关程序 的定义(a)段所提述的有关决定的作出。 55. Relevant process (1) Personal data the subject of a relevant process is exempt from the provisions of data protection principle 6 and section 18(1) (b) until the completion of that process. (Amended 18 of 2012 s. 2) (2) In this section— completion (完成) , in relation to a relevant process, means the making of the determination concerned referred to in paragraph (a) of the definition of relevant process ; relevant process (有关程序)— (a) subject to paragraph (b), means any process whereby personal data is considered by one or more persons for the purpose of determining, or enabling there to be determined— (Amended 18 of 2012 s. 2) (i) the suitability, eligibility or qualifications of the data subject for— (A) employment or appointment to office; (B) promotion in employment or office or continuance in employment or office; (C) removal from employment or office; or (D) the awarding of contracts, awards (including academic and professional qualifications), scholarships, honours or other benefits; (ii) whether any contract, award (including academic and professional qualifications), scholarship, honour or benefit relating to the data subject should be continued, modified or cancelled; or (iii) whether any disciplinary action should be taken against the data subject for a breach of the terms of his employment or appointment to office; (b) does not include any such process where...
s.55(1)	(1) 属有关程序的标的之个人资料获豁免而不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，直至该程序完成为止。
s.55(2)	(1) 属有关程序的标的之个人资料获豁免而不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，直至该程序完成为止。(Amended 18 of 2012 s. 2) (2) 在本条中 — 有关程序 (relevant process) — (a) 除(b)段另有规定外，指任何程序，而个人资料是在该程序下由一个或多个的人为决定以下事宜(或为使以下事宜得予决定)予以考虑 — (i) 就 — (A) 雇用或委任以担任职位； (B) 在雇用或职位方面的晋升或继续留任； (C) 解雇或免除职位；或 (D) 授予任何合约、名衔(包括学术及专业资格)、奖学金、荣誉或其他利益。而言，有关的资料当事人的合适程度、是否合乎资格或具资历； (ii) 与有关的资料当事人有关的任何合约、名衔(包括学术及专业资格)、奖学金、荣誉或利益应否予以延续、修改或撤销；或 (iii) 应否为有关的资料当事人违反其雇用条款或委任以担任职位的条款而对他采取纪律行动； (b) 如在某程序中，针对该等决定提出上诉(不论是根据条例或其他依据提出)是不获容许的，则不包括该等程序；完成 (completion) , 就有关程序而言，指 有关程序 的定义(a)段所提述的有关决定的作出。 (2) In this section— completion (完成) , in relation to a relevant process, means the making of the determination concerned referred to in paragraph (a) of the definition of relevant process ; relevant process (有关程序)— (a) subject to paragraph (b), means any process whereby personal data is considered by one or more persons for the purpose of determining, or enabling there to be determined— (Amended 18 of 2012 s. 2) (i) the suitability, eligibility or qualifications of the data subject for— (A) employment or appointment to office; (B) promotion in employment or office or continuance in employment or office; (C) removal from employment or office; or (D) the awarding of contracts, awards (including academic and professional qualifications), scholarships, honours or other benefits; (ii) whether any contract, award (including academic and professional qualifications), scholarship, honour or benefit relating to the data subject should be continued, modified or cancelled; or (iii) whether any disciplinary action should be taken against the data subject for a breach of the terms of his employment or appointment to office; (b) does not include any such process where no appeal, whether under an Ordinance or otherwise, may be made against any such determination.
s.56	56. 个人评介 由资料使用者持有并包含符合以下说明的个人评介的个人资料 — (a) 由一名个人在其职业的正常过程以外作出的；及 (b) 与就现正空缺或可能会空缺的雇佣职位或其他职位的填补而言另一名个人的合适程度或其他条件有关的， 获豁免，而 — (i) 在任何情况下，不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，但如(a)段所提述的个人已以书面告知该资料使用者他不反对该评介被(b)段所提述的个人阅览(或用相似意思的字句)，则属例外；或 (ii) 在该评介是在本条开始实施之日或以后作出的情况下，不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，直至(b)段所提述的个人已获书面告知他已被接纳或已被拒绝以填补该雇佣职位或其他职位(或用相似意思的字句)为止， 以先发生者为准。 56. Personal references Personal data held by a data user which consists of a personal reference— (Amended 18 of 2012 s. 2) (a) given by an individual other than in the ordinary course of his occupation; and (b) relevant to another individual’ s suitability or otherwise to fill any position of employment or office which is presently, or may become, unfilled, is exempt from the provisions of data protection principle 6 and section 18(1) (b) — (Amended 18 of 2012 s. 2) (i) in any case, unless the individual referred to in paragraph (a) has informed the data user in writing that he has no objection to the reference being seen by the individual referred to in paragraph (b) (or words to the like effect); or (ii) in the case of a reference given on or after the day on which this section comes into operation, until the individual referred to in paragraph (b) has been informed in writing that he has been accepted or rejected to fill that position or office (or words to the like effect), whichever first occurs.
s.56(a)	(a) 由一名个人在其职业的正常过程以外作出的； 及
s.56(b)	(a) given by an individual other than in the ordinary course of his occupation; and (b) 与就现正空缺或可能会空缺的雇佣职位或其他职位的填补而言另一名个人的合适程度或其他条件有关的， (b) relevant to another individual’ s suitability or otherwise to fill any position of employment or office which is presently, or may become, unfilled,
s.56(i)	(i) 在任何情况下，不受第 6 保障资料原则及 第 18(1) (b) 条 的条文所管限，但如(a)段所提述的个人已以书面告知该资料使用者他不反对该评介被(b)段所提述的个人阅览(或用相似意思的字句)，则属例外；或

	(i) in any case, unless the individual referred to in paragraph (a) has informed the data user in writing that he has no objection to the reference being seen by the individual referred to in paragraph (b) (or words to the like effect); or (ii) 在该介绍是在本条开始实施之日或以后作出的情况下，不受第 6 保障资料原则及 第 18(1)(b) 条的条文所管限，直至(b)段所提述的个人已获书面告知他已被接纳或已被拒绝以填补该雇傭职位或其他职位(或用相似意思的字句)为止。
s.56(ii)	(ii) in the case of a reference given on or after the day on which this section comes into operation, until the individual referred to in paragraph (b) has been informed in writing that he has been accepted or rejected to fill that position or office (or words to the like effect).
s.57	57. 关于香港的保安等 (i) 凡个人资料是为保障关于香港的保安、防卫或国际关系的目的而由政府或代政府持有，则如第 6 保障资料原则及 第 18(1)(b) 条的条文适用于该资料，便相当可能会损害本款所述的任何事宜的话，该资料获豁免而不受该等条文所管限。 (由 2012 年第 18 号第 2 条 修订) (2) 凡 — (a) 个人资料是为第(1)款所提述的目的而使用(不论该资料是否为该等目的而持有)；及 (b) 第 3 保障资料原则的条文就该等使用而适用便相当可能会损害该款所提述的任何事宜，该资料获豁免而不受第 3 保障资料原则的条文所管限，而在为任何人违反任何该等条文而针对他进行的法律程序中，如该人证明他当时有合理理由相信不如此使用该资料便相当可能会损害任何该等事宜，即为免责辩护。(由 2012 年第 18 号第 2 条 修订) (3) 就任何个人资料是否需有第(1)款下的豁免或否曾在任何时间需有第(1)款下的豁免的问题，可由行政长官或政务司司长决定，而一份由行政长官或政务司司长签署并证明需有或曾在任何时间需有该项豁免的证明书，即为该事实的证据。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (4) 就第 2(款)而言，一份由行政长官或政务司司长签署的证明个人资料是为或曾为第(1)款所提述的任何目的而使用的证明书，即为该事实的证据。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (5) 行政长官或政务司司长可在第(3)或(4)款所提述的证明书，就该证明书所关涉的个人资料及为该证明书所指明的理由，指示专员不得进行视察或调查，而在此情况下，专员须遵从该项指示。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (6) 看来是第(3)或(4)款所提述的证明书的文件，须获收取为证据，而在没有相反证据的情况下，该文件须当作为该等证明书。(7) 在本条中 — 保安 (security) 包括防止或排拒无权进入香港及留在香港的人(包括按照《入境条例》(第 115 章)的条文被拘留的人)进入香港及留在香港；(由 1997 年第 80 号第 103(1) 条 修订) 国际关系 (international relations) 包括与任何国际组织的关系。
s.57(1)	57. Security, etc. in respect of Hong Kong (1) Personal data held by or on behalf of the Government for the purposes of safeguarding security, defence or international relations in respect of Hong Kong is exempt from the provisions of data protection principle 6 and section 18(1)(b) where the application of those provisions to the data would be likely to prejudice any of the matters referred to in this subsection. (Amended 18 of 2012 s. 2) (2) Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 2) (a) the use of the data is for any of the purposes referred to in subsection (1) (and whether or not the data is held for any of those purposes); and (Amended 18 of 2012 s. 2) (b) the application of those provisions in relation to such use would be likely to prejudice any of the matters referred to in that subsection, and in any proceedings against any person for a contravention of any of those provisions it shall be a defence to show that he had reasonable grounds for believing that failure to so use the data would have been likely to prejudice any of those matters. (3) Any question whether an exemption under subsection (1) is or at any time was required in respect of any personal data may be determined by the Chief Executive or Chief Secretary for Administration; and a certificate signed by the Chief Executive... (1) 凡个人资料是为保障关于香港的保安、防卫或国际关系的目的而由政府或代政府持有，则如第 6 保障资料原则及 第 18(1)(b) 条的条文适用于该资料，便相当可能会损害本款所述的任何事宜的话，该资料获豁免而不受该等条文所管限。(由 2012 年第 18 号第 2 条 修订) (1) Personal data held by or on behalf of the Government for the purposes of safeguarding security, defence or international relations in respect of Hong Kong is exempt from the provisions of data protection principle 6 and section 18(1)(b) where the application of those provisions to the data would be likely to prejudice any of the matters referred to in this subsection. (Amended 18 of 2012 s. 2)
s.57(2)	(2) 凡 — (a) 个人资料是为第(1)款所提述的目的而使用(不论该资料是否为该等目的而持有)；及 (b) 第 3 保障资料原则的条文就该等使用而适用便相当可能会损害该款所提述的任何事宜，该资料获豁免而不受第 3 保障资料原则的条文所管限，而在为任何人违反任何该等条文而针对他进行的法律程序中，如该人证明他当时有合理理由相信不如此使用该资料便相当可能会损害任何该等事宜，即为免责辩护。(由 2012 年第 18 号第 2 条 修订) (2) Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 2) (a) the use of the data is for any of the purposes referred to in subsection (1) (and whether or not the data is held for any of those purposes); and (Amended 18 of 2012 s. 2) (b) the application of those provisions in relation to such use would be likely to prejudice any of the matters referred to in that subsection, and in any proceedings against any person for a contravention of any of those provisions it shall be a defence to show that he had reasonable grounds for believing that failure to so use the data would have been likely to prejudice any of those matters.
s.57(3)	(3) 就任何个人资料是否需有第(1)款下的豁免或否曾在任何时间需有第(1)款下的豁免的问题，可由行政长官或政务司司长决定，而一份由行政长官或政务司司长签署并证明需有或曾在任何时间需有该项豁免的证明书，即为该事实的证据。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (3) Any question whether an exemption under subsection (1) is or at any time was required in respect of any personal data may be determined by the Chief Executive or Chief Secretary for Administration; and a certificate signed by the Chief Executive or Chief Secretary for Administration certifying that the exemption is or at any time was so required shall be evidence of that fact. (Amended L.N. 362 of 1997; 34 of 1999 s. 3)
s.57(4)	(4) 就第 2(款)而言，一份由行政长官或政务司司长签署的证明个人资料是为或曾为第(1)款所提述的任何目的而使用的证明书，即为该事实的证据。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (4) For the purposes of subsection (2), a certificate signed by the Chief Executive or Chief Secretary for Administration certifying that personal data is or has been used for any purpose referred to in subsection (1) shall be evidence of that fact. (Amended L.N. 362 of 1997; 34 of 1999 s. 3; 18 of 2012 s. 2)
s.57(5)	(5) 行政长官或政务司司长可在第(3)或(4)款所提述的证明书，就该证明书所关涉的个人资料及为该证明书所指明的理由，指示专员不得进行视察或调查，而在此情况下，专员须遵从该项指示。(由 1997 年第 362 号法律公告 修订；由 1999 年第 34 号第 3 条 修订) (5) The Chief Executive or Chief Secretary for Administration may, in a certificate referred to in subsection (3) or (4), in respect of the personal data to which the certificate relates and for the reasons specified in that certificate, direct the Commissioner not to carry out an inspection or investigation and, in any such case, the Commissioner shall comply with the direction. (Amended L.N. 362 of 1997; 34 of 1999 s. 3)
s.57(6)	(6) 看来是第(3)或(4)款所提述的证明书的文件，须获收取为证据，而在没有相反证据的情况下，该文件须当作为该等证明书。
s.57(7)	(6) A document purporting to be a certificate referred to in subsection (3) or (4) shall be received in evidence and, in the absence of evidence to the contrary, shall be deemed to be such a certificate. (7) 在本条中 — 保安 (security) 包括防止或排拒无权进入香港及留在香港的人(包括按照《入境条例》(第 115 章)的条文被拘留的人)进入香港及留在香港；(由 1997 年第 80 号第 103(1) 条 修订) 国际关系 (international relations) 包括与任何国际组织的关系。 (7) In this section— international relations (国际关系) includes relations with any international organization; security (保安) includes the prevention or preclusion of persons (including persons detained in accordance with the provisions of the Immigration Ordinance (Cap. 115) entering and remaining in Hong Kong who do not have the right to enter and remain in Hong Kong.
s.58	58. 罪行等 (1) 为 — (a) 罪行的防止或侦测；(b) 犯罪者的拘捕、检控或拘留；(c) 任何税项的评定或收取；(d) 任何人所作的非法或严重不当的行为，或不诚实的行为或舞弊行为的防止、排除或纠正(包括惩处)；(e) 防止或排除因 — (i) 任何人轻率的业务经营手法或活动；或 (ii) 任何人所作的非法或严重不当的行为、或不诚实的行为或舞弊行为，而引致的重大经济损失；(f) 确定有关的资料当事人的品格或活动是否相当可能对以下事情有重大不利影响 — (i) 由该资料使用者执行法定职能所关涉的事情；或 (ii) 与本段贷借第(3)款而适用的职能的执行有关的事情；或 (g) 本段贷借第(3)款而适用的职能的执行，而持有个人资料，在以下情况下获豁免而不受第 6 保障资料原则及 第 18(1)(b) 条的条文所管限 — (i) 该等条文适用于该资料便相当可能会损害本款所提述的任何事宜；或 (ii) 该等条文适用于该资料便相当可能会直接或间接识别该资料来源的人的身份。(由 2012 年第 18 号第 2 条 修订) (1A) 如 — (a) 与香港以外某地区的政府有订立根据《税务条例》(第 112 章) 第 49(1A) 条 有效的安排；而 (b) 该地区的某税项属该等安排中某条文之标的，而该条文是规定须披露关于该地区的税项资料的，则在第 (1)(c) 款中，税项 (tax) 包括该税项。(由 2010 年第 1 号第 9 条 增补) (2) 凡 — (a) 个人资料是为第(1)款所提述的目的而使用(不论该资料是否为该等目的而持有)；及 (b) 第 3 保障资料原则的条文就该等使用而适用便相当可能会损害该款所提述的任何事宜，则该资料获豁免而不受第 3 保障资料原则的条文所管限，而在为任何人违反任何该等条文而针对他进行的法律程序中，如该人证明他当时有合理理由相信不如此使用该资料便相当可能会损害任何该等事宜，即为免责辩护。(由 2012 年第 18 号第 2 条 修订) (3) 第(1)款 (f) (ii) 及 (g) 段适用于财经规管者的以下职能 — (a) 保障公众免受因以下事情导致的财政损失的职能 — (i) 属 — (A) 从事银行、保险、投资或其他财经服务的提供；(B) 从事公司的管理；(BA) 从事已根据《强制性公积金计划条例》(第 485 章) 注册的公积金计划的管理；(由 1998 年第 4 号第 14 条 增补) (C) 从事《职业退休计划条例》(第 426 章) 所指的职业退休计划的管理；或 (D) 公司股东、的人的不诚实行为、不聘任、不良行为或严重不当的行为；或 (ii) 已获或尚未获解除破产令的破产人的行为；(b) 维持或促进提供 (a) (i) (A) 段所提述的任何服务的任何体系的一般稳定性或有效运作的职能；或 (c) 为本款的施行而在第(4)款下的公告中指明的事项。(4) 行政长官可为第(3)款的施行藉宪报公告指明财经规管者的职能。(由 1999 年第 34 号第 3 条 修订) (5) 现声明 — (a) 第(3)款的施行不得损害第(1)款(a)、(b)、(c)、(d) 及 (f) (i) 段就财经规管者而施行的概括性；(b) 第(4)款下的公告是附属法例。(6) 在本条中 ...
s.58(1)	58. Crime, etc. (1) Personal data held for the purposes of— (a) the prevention or detection of crime; (b) the apprehension, prosecution or detention of offenders; (c) the assessment or collection of any tax or duty; (d) the prevention, preclusion or remedying (including punishment) of unlawful or seriously improper conduct, or dishonesty or malpractice, by persons; (e) the prevention or preclusion of significant financial loss arising from— (i) any imprudent business practices or activities of persons; or (ii) unlawful or seriously improper conduct, or dishonesty or malpractice, by persons; (f) ascertaining whether the character or activities of the data subject are likely to have a significantly adverse impact on any thing— (i) to which the discharge of statutory functions by the data user relates; or (ii) which relates to the discharge of functions to which this paragraph applies by virtue of subsection (3); or (g) discharging functions to which this paragraph applies by virtue of subsection (3), is exempt from the provisions of data protection principle 6 and section 18(1)(b) where the application of those provisions to the data would be likely to— (Amended 18 of 2012 s. 31) (i) prejudice any of the matters referred to in this subsection; or (ii) directly or indirectly identify the person who is the source of the data. (1A) In subsection (1)(c), tax (税项) includes ...
s.58(2)	(1) 为 — (a) 罪行的防止或侦测；(b) 犯罪者的拘捕、检控或拘留；(c) 任何税项的评定或收取；(d) 任何人所作的非法或严重不当的行为，或不诚实的行为或舞弊行为的防止、排除或纠正(包括惩处)；(e) 防止或排除因 — (i) 任何人轻率的业务经营手法或活动；或 (ii) 任何人所作的非法或严重不当的行为、或不诚实的行为或舞弊行为，而引致的重大经济损失；(f) 确定有关的资料当事人的品格或活动是否相当可能对以下事情有重大不利影响 — (i) 由该资料使用者执行法定职能所关涉的事情；或 (ii) 与本段贷借第(3)款而适用的职能的执行有关的事情；或 (g) 本段贷借第(3)款而适用的职能的执行，而持有个人资料，在以下情况下获豁免而不受第 6 保障资料原则及 第 18(1)(b) 条的条文所管限 — (i) 该等条文适用于该资料便相当可能会损害本款所提述的任何事宜；或 (ii) 该等条文适用于该资料便相当可能会直接或间接识别该资料来源的人的身份。(由 2012 年第 18 号第 2 条 修订) (1) Personal data held for the purposes of— (a) the prevention or detection of crime; (b) the apprehension, prosecution or detention of offenders; (c) the assessment or collection of any tax or duty; (d) the prevention, preclusion or remedying (including punishment) of unlawful or seriously improper conduct, or dishonesty or malpractice, by persons; (e) the prevention or preclusion of significant financial loss arising from— (i) any imprudent business practices or activities of persons; or (ii) unlawful or seriously improper conduct, or dishonesty or malpractice, by persons; (f) ascertaining whether the character or activities of the data subject are likely to have a significantly adverse impact on any thing— (i) to which the discharge of statutory functions by the data user relates; or (ii) which relates to the discharge of functions to which this paragraph applies by virtue of subsection (3); or (g) discharging functions to which this paragraph applies by virtue of subsection (3), is exempt from the provisions of data protection principle 6 and section 18(1)(b) where the application of those provisions to the data would be likely to— (Amended 18 of 2012 s. 31) (i) prejudice any of the matters referred to in this subsection; or (ii) directly or indirectly identify the person who is the source of the data.
s.58(3)	(2) 凡 — (a) 个人资料是为第(1)款所提述的目的而使用(不论该资料是否为该等目的而持有)；及 (b) 第 3 保障资料原则的条文就该等使用而适用便相当可能会损害该款所提述的任何事宜，则 该资料获豁免而不受第 3 保障资料原则的条文所管限，而在为任何人违反任何该等条文而针对他进行的法律程序中，如该人证明他当时有合理理由相信不如此使用该资料便相当可能会损害任何该等事宜，即为免责辩护。(由 2012 年第 18 号第 2 条 修订) (2) Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 31) (a) the use of the data is for any of the purposes referred to in subsection (1) (and whether or not the data is held for any of those purposes); and (Amended 18 of 2012 s. 31) (b) the application of those provisions in relation to such use would be likely to prejudice any of the matters referred to in that subsection, and in any proceedings against any person for a contravention of any of those provisions it shall be a defence to show that he had reasonable grounds for believing that failure to so use the data would have been likely to prejudice any of those matters. (3) 第(1)款 (f) (ii) 及 (g) 段适用于财经规管者的以下职能 — (A) 保障公众免受因以下事情导致的财政损失的职能 — (i) 属 — (A) 从事银行、保险、投资或其他财经服务的提供；(B) 从事公司的管理；(BA) 从事已根据《强制性公积金计划条例》(第 485 章) 注册的公积金计划的管理；(由 1998 年第 4 号第 14 条 增补) (C) 从事《职业退休计划条例》(第 426 章) 所指的职业退休计划的管理；或 (D) 公司股东、的人的不诚实行为、不聘任、不良行为或严重不当的行为；或 (ii) 已获或尚未获解除破产令的破产人的行为；(b) 维持或促进提供 (a) (i) (A) 段所提述的任何服务的任何体系的一般稳定性或有效运作的职能；或 (c) 为本款的施行而在第(4)款下的公告中指明的事项。 (3) Paragraphs (f) (ii) and (g) of subsection (1) apply to any functions of a financial regulator— (a) for protecting members of the public against financial loss arising from— (i) dishonesty, incompetence, malpractice or seriously improper conduct by persons— (A) concerned in the provision of banking, insurance, investment or other financial services; (B) concerned in the management of companies; (BA) concerned in the administration of provident fund schemes registered under the Mandatory Provident Fund Schemes Ordinance (Cap. 485); (Added 4 of 1998 s. 14) (C) concerned in the management of occupational retirement schemes within the meaning of the Occupational Retirement Schemes Ordinance (Cap. 426); or (D) who are shareholders in companies; or (ii) the conduct of discharged or undischarged bankrupts; (b) for maintaining or promoting the general stability or effective working of any of the systems which provide any of the services referred to in paragraph (a) (i) (A); or (c) specified for the purposes of this subsection in a notice under subsection (4).
s.58(4)	(4) 行政长官可为第(3)款的施行藉宪报公告指明财经规管者的职能。(由 1999 年第 34 号第 3 条 修订) (4) For the purposes of subsection (3), the Chief Executive may, by notice in the Gazette, specify a function of a financial regulator. (Amended 34 of 1999 s. 3)
s.58(5)	(5) 现声明 — (a) 第(3)款的施行不得损害第(1)款(a)、(b)、(c)、(d) 及 (f) (i) 段就财经规管者而施行的概括性；(b) 第(4)款下的公告是附属法例。 (5) It is hereby declared that— (a) subsection (3) shall not operate to prejudice the generality of the operation of paragraphs (a), (b), (c), (d) and (f) (i) of subsection (1) in relation to a financial regulator; (b) a notice under subsection (4) is subsidiary legislation.
s.58(6)	(6) 在本条中 — 犯罪者 (offender) 指干犯罪行的人； 罪行 (crime) 指 — (a) 香港法律所订的罪行；或 (b) (如个人资料是在与香港和香港以外地方的法律合作或执法合作有关的情况下持有或使用的) 该地方的法律所订的罪行。(由 2012 年第 18 号第 31 条 增补) (6) In this section— crime (罪行) means— (a) an offence under the laws of Hong Kong; or (b) if personal data is held or used in connection with legal or law enforcement cooperation between Hong Kong and a place outside Hong Kong, an offence under the laws of that place; offender (犯罪者) means a person who commits a crime. (Added 18 of 2012 s. 31)
s.58(1a)	(1A) 如 — (a) 与香港以外某地区的政府有订立根据《税务条例》(第 112 章) 第 49(1A) 条 有效的安排；而 (b) 该地区的某税项属该等安排中某条文之标的，而该条文是规定须披露关于该地区的税项资料的，则在第 (1)(c) 款中，税项 (tax) 包括该税项。(由 2010 年第 1 号第 9 条 增补)

	(1A) In subsection (1) (c), tax (税项) includes any tax of a territory outside Hong Kong if— (a) arrangements having effect under section 49(1A) of the Inland Revenue Ordinance (Cap. 112) are made with the government of that territory; and (b) that tax is the subject of a provision of the arrangements that requires disclosure of information concerning tax of that territory. (Added 1 of 2010 s. 9)
s.59	59. 健康 (1) 有关的资料当事人的身体健康或精神健康有关的个人资料, 获豁免而不受以下任何或所有条文所管限 — (由 2012 年第 18 号第 32 条 修订) (a) 第 6 保障资料原则及 第 18(1) (b) 条的条文; (b) 第 3 保障资料原则的条文, 但上述豁免仅在以下情况适用 — (i) 该等条文适用于该资料使相当可能会对对该资料当事人的身体健康或精神健康造成严重损害; 或 (由 2012 年第 18 号第 2 条 修订) (ii) 该等条文适用于该资料使相当可能会对任何其他个人的身体健康或精神健康造成严重损害。 (由 2012 年第 18 号第 2 条 修订) (2) 如第 3 保障资料原则的条文适用于关乎某资料当事人的身分或所在个人资料, 使相当可能会 — (a) 该资料当事人的身体或精神健康造成严重损害; 或 (b) 任何其他个人的身体或精神健康造成严重损害, 则该资料获豁免而不受该等条文所管限。 (由 2012 年第 18 号第 32 条 增补)
	59. Health (1) Personal data relating to the physical or mental health of the data subject is exempt from the provisions of either or both of— (Amended 18 of 2012 s. 32) (a) data protection principle 6 and section 18(1) (b); (b) data protection principle 3, in any case in which the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— (i) the data subject; or (ii) any other individual. (2) Personal data relating to the identity or location of a data subject is exempt from the provisions of data protection principle 3 if the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— (a) the data subject; or (b) any other individual. (Added 18 of 2012 s. 32)
s.59(1)	(1) 有关的资料当事人的身体健康或精神健康有关的个人资料, 获豁免而不受以下任何或所有条文所管限 — (由 2012 年第 18 号第 32 条 修订) (a) 第 6 保障资料原则及 第 18(1) (b) 条的条文; (b) 第 3 保障资料原则的条文, 但上述豁免仅在以下情况适用 — (i) 该等条文适用于该资料使相当可能会对对该资料当事人的身体健康或精神健康造成严重损害; 或 (由 2012 年第 18 号第 2 条 修订) (ii) 该等条文适用于该资料使相当可能会对任何其他个人的身体健康或精神健康造成严重损害。 (由 2012 年第 18 号第 2 条 修订)
s.59(2)	(1) Personal data relating to the physical or mental health of the data subject is exempt from the provisions of either or both of— (Amended 18 of 2012 s. 32) (a) data protection principle 6 and section 18(1) (b); (b) data protection principle 3, in any case in which the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— (i) the data subject; or (ii) any other individual. (2) 如第 3 保障资料原则的条文适用于关乎某资料当事人的身分或所在个人资料, 使相当可能会 — (a) 该资料当事人的身体或精神健康造成严重损害; 或 (b) 任何其他个人的身体或精神健康造成严重损害, 则该资料获豁免而不受该等条文所管限。 (由 2012 年第 18 号第 32 条 增补)
s.61(1)	(2) Personal data relating to the identity or location of a data subject is exempt from the provisions of data protection principle 3 if the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— (a) the data subject; or (b) any other individual. (Added 18 of 2012 s. 32)
	(1) 由 — (a) 其业务或部分业务包含新闻活动的资料使用者持有; 及 (b) 该使用者纯粹为该活动(及任何直接有关的活动)的目的而持有, 的 个人资料, 获豁免 而 — (i) 不受第 6 保障资料原则及 第 18(1) (b) 及 38(i) 条 的条文所管限, 除非及直至该资料已发表或播放(不论在何处或藉何方法); (ii) 不受 第 36 及 38(b) 条 的条文所管限。
s.61(2)	(1) Personal data held by a data user— (a) whose business, or part of whose business, consists of a news activity; and (b) solely for the purpose of that activity (or any directly related activity), is exempt from the provisions of— (Amended 18 of 2012 s. 2) (i) data protection principle 6 and sections 18(1) (b) and 38(i) unless and until the data is published or broadcast (wherever and by whatever means); (ii) sections 36 and 38(b) . (2) 在以下情况, 个人资料获豁免而不受第 3 保障资料原则的条文所管限 — (a) 该资料的使用包含向第(1)款所述透的资料使用者披露该资料; 及 (b) 作出该项披露的人有合理理由相信(并合理地相信)发表及播放(不论在何处及藉何方法)该资料(不论是否实际有发表或播放该资料)是符合公众利益的。
s.61(3)	(2) Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 2) (a) the use of the data consists of disclosing the data to a data user referred to in subsection (1); and (b) such disclosure is made by a person who has reasonable grounds to believe (and reasonably believes) that the publishing or broadcasting (wherever and by whatever means) of the data (and whether or not it is published or broadcast) is in the public interest. (3) 在本条中 — 新闻活动 (news activity) 指任何新闻工作活动, 并包括 — (a) 为向公众发布的目的而进行 — (i) 新闻的搜集; (ii) 关于新闻的文章或节目的制备或编辑; 或 (iii) 对新闻或时事所作的评析; 或 (b) 向公众发 布 — (i) 属新闻的或关于新闻的文章或节目; 或 (ii) 对新闻或时事所作的评析。
s.62	(3) In this section— news activity (新闻活动) means any journalistic activity and includes— (a) the— (i) gathering of news; (ii) preparation or compiling of articles or programmes concerning news; or (iii) observations on news or current affairs, for the purpose of dissemination to the public; or (b) the dissemination to the public of— (i) any article or programme of or concerning news; or (ii) observations on news or current affairs. 62. 统计及研究 在以下情况, 个人资料获豁免而不受第 3 保障资料原则的条文所管限 — (a) 该资料将会用于制备统计数字或进行研究; (b) 该资料不会用于任何其他目的; 及 (c) 所得的统计数字或研究成果不会以识辨各有关的资料当事人或其中任何人的身分的形式提供。 (由 2012 年第 18 号第 2 条 修订)
s.62(a)	62. Statistics and research Personal data is exempt from the provisions of data protection principle 3 where— (Amended 18 of 2012 s. 2) (a) the data is to be used for preparing statistics or carrying out research; (b) the data is not to be used for any other purpose; and (c) the resulting statistics or results of the research are not made available in a form which identifies the data subjects or any of them. (Amended 18 of 2012 s. 2)
s.62(b)	(a) 该资料将会用于制备统计数字或进行研究;
s.62(c)	(a) the data is to be used for preparing statistics or carrying out research;
	(b) 该资料不会用于任何其他目的; 及
	(b) the data is not to be used for any other purpose; and
	(c) 所得的统计数字或研究成果不会以识辨各有关的资料当事人或其中任何人的身分的形式提供。
	(c) the resulting statistics or results of the research are not made available in a form which identifies the data subjects or any of them.

Section	Text
s.2(1)	(1) 在本条例中, 除文意另有所指 外 — (a) 不具损害性的披露 (non-prejudicial disclosure) 就一项发明而言, 指该发明的披露, 而就决定该发明是否属现有技术的一部分而言, 该披露不在考虑之列; 反对或撤销专利的法律程序 (opposition or revocation proceedings) 就指定专利而言, 指根据指定专利当局的法律进行的法律程序, 而该法律有就在授予专利后的指明期限内撤销或修订指定专利之事作出规定; 《巴黎公约》 (Paris Convention) 指 1883 年 3 月 20 日在巴黎签订并经不时修改或修订的《保护工业产权公约》; (由 2001 年第 2 号第 2 条 修订) 巴黎公约国 (Paris Convention country) 指 — (a) 当其时在 附表 1 指明为已加入《巴黎公约》的任何国家; (b) 受依据(a)段而在 附表 1 指明的任何国家的权限所管辖或以任何该等国家为宗主国的地区或地方, 或由任何该等国家管辖的地区或地方, 而该等国家已代该地区或地方加入《巴黎公约》; 《日内瓦议定书》 (Protocol) 指世界贸易组织总理事会于 2005 年 12 月 6 日在日内瓦通过的修订《知识产权协议》的议定书, 该议定书的附件、《知识产权协议》的附件及该附件的附录; (由 2007 年第 21 号第 3 条 增补) 世界贸易组织 (WTO) 指于 1995 年 1 月 1 日在日内瓦根据《世界贸易组织协议》设立的世界贸易组织; (由 2007 年第 21 号第 3 条 增补) 世界贸易组织成员国、地区或地方 (WTO member country, territory or area) 指当其时在 附表 1 指明为已加入《世界贸易组织协议》的任何国家、地区或地方; 《世界贸易组织协议》 (World Trade Organisation Agreement) 指 1994 年在马拉喀什订立并经不时修改或修订的以该名称为名的协议; (由 2001 年第 2 号第 2 条 修订) 出口成员地 (exporting member) 指按照《总理事会决定》或《日内瓦议定书》制造供出口至合格资格进口成员地的专利制剂产品的世界贸易组织成员国、地区或地方; (由 2007 年第 21 号第 3 条 增补) 合格资格进口成员地 (eligible importing member) 指 — (a) 获联合国承认为属最低度发展国家的世界贸易组织成员国、地区或地方; 或 (b) 已就拟按照《总理事会决定》进口专利制剂一事向知识产权理事会给予书面通知的任何其他世界贸易组织成员国、地区或地方; (由 2007 年第 21 号第 3 条 增补) 《多哈宣言》 (Doha Declaration) 指世界贸易组织第四次部长级会议于 2001 年 11 月 14 日在卡塔尔的多哈通过的《与贸易有关的知识产权协议及公共卫生宣言》; (由 2007 年第 21 号第 3 条 增补) 有关文书或法例 (relevant instrument or legislation) 指 — (a) 《总理事会决定》; (b) 《日内瓦议定书》; 或 (c) 出口成员地或合格资格进口成员地(视属何情况而定)依据下述决定或议定书或为落实下述决定或议定书而订立的法 例 — (i) 《总理事会决定》...
s.9A	(1) In this Ordinance, unless the context otherwise requires— application for a patent (专利的申请) and patent application (专利申请) mean— (a) an application for a standard patent (R); (b) an application for a standard patent (O); or (c) an application for a short-term patent; (Added 17 of 2016 s. 5) application for a patent or other protection (专利或其他保护的申请) means an application for any of the following— (a) a patent; (b) the registration of a utility model; (c) a utility certificate; (d) an inventor’ s certificate; (Added 17 of 2016 s. 5) application for a short-term patent (短期专利的申请) and short-term patent application (短期专利申请) mean an application under Part 15 for a short-term patent; (Added 17 of 2016 s. 5) application for a standard patent (标准专利的申请) and standard patent application (标准专利申请) mean— (a) an application for a standard patent (R); or (b) an application for a standard patent (O); (Added 17 of 2016 s. 5) application for a standard patent (O) (原授标准专利的申请) and standard patent (O) application (原授标准专利申请) mean an application under Part 3 for a standard patent (O); (Added 17 of 2016 s. 5) certificate of substantive examination (实质审查证明书) means a certificate issued by the Registrar under section 127F in respect of a short-term patent; (Added 17 of 2016 s. 5) court (法院) means the Court of First Instance; (Amended 25 of 1998 s. 2) date of filing (提交日期) — (...)
s.9A(1)	9A. 可享专利发明 (1) 任何发明 如 — (a) 是新颖的; (b) 包含创造性; 及 (c) 能作工业应用, 即属可享专利。 (2) 以下项目不得视作 第(1)款 所指的 发明 — (a) 发现、科学理论或数学方法; (b) 美学上的创作; (c) 用以实行智力活动、进行游戏或进行业务的计划、规则或方法, 或用于电脑的程式; 及 (d) 显示资料。 (3) 第(2)款 只在任何专利或专利申请与该款提述的标的事项或活动有关的范围内, 豁免该事项或活动的可享专利性。 (4) 就 第(1)款 而言, 藉外科手术或治疗以医治人体或动物身体的方法, 或施行于人体或动物身体的诊断方法, 均不得视作能作工业应用的发明。然而, 本款不适用于供在任何该等方法中使用的产品, 尤其不适用于供在任何该等方法中使用的物质或合成物。 (5) 凡某发明的公布或实施, 是会违反公共秩序或道德的, 该发明即不属一项可享专利发明。然而, 任何发明的实施, 不得只因其在香港施行的任何法律所禁止, 而视作违反公共秩序或道德。 (6) 以下项目不属于可享专利 — (a) 植物或动物品种; 及 (b) 用作生产植物或动物的基本上属生物学的方法(微生物学方法或其产品除外)。
s.9A(2)	9A. Patentable inventions (1) An invention is patentable if it— (a) is new; (b) involves an inventive step; and (c) is susceptible of industrial application. (2) The following are not to be regarded as an invention for the purposes of subsection (1) — (a) a discovery, scientific theory or mathematical method; (b) an aesthetic creation; (c) a scheme, rule or method for performing a mental act, playing a game or doing business, or a program for a computer; and (d) a presentation of information. (3) Subsection (2) excludes the patentability of the subject-matter or activities referred to in that subsection only to the extent to which a patent or patent application relates to the subject-matter or activities as such. (4) A method for the treatment of the human or animal body by surgery or therapy, or a diagnostic method practised on the human or animal body, is not to be regarded as an invention that is susceptible of industrial application for the purposes of subsection (1). However, this subsection does not apply to a product, and in particular a substance or composition, for use in any such method. (5) An invention the publication or working of which would be contrary to public order (“ordre public”) or morality is not a patentable invention. However, the working of an invention is not to be regarded as so contrary only because it is prohibited by any law in force in Hong Kong...
s.9A(3)	(1) 任何发明 如 — (a) 是新颖的; (b) 包含创造性; 及 (c) 能作工业应用, 即属可享专利。
s.9A(4)	(1) An invention is patentable if it— (a) is new; (b) involves an inventive step; and (c) is susceptible of industrial application. (2) 以下项目不得视作 第(1)款 所指的 发明 — (a) 发现、科学理论或数学方法; (b) 美学上的创作; (c) 用以实行智力活动、进行游戏或进行业务的计划、规则或方法, 或用于电脑的程式; 及 (d) 显示资料。
s.9A(5)	(2) The following are not to be regarded as an invention for the purposes of subsection (1) — (a) a discovery, scientific theory or mathematical method; (b) an aesthetic creation; (c) a scheme, rule or method for performing a mental act, playing a game or doing business, or a program for a computer; and (d) a presentation of information. (3) 第(2)款 只在任何专利或专利申请与该款提述的标的的事项或活动有关的范围内, 豁免该事项或活动的可享专利性。
s.9A(6)	(3) Subsection (2) excludes the patentability of the subject-matter or activities referred to in that subsection only to the extent to which a patent or patent application relates to the subject-matter or activities as such. (4) 就 第(1)款 而言, 藉外科手术或治疗以医治人体或动物身体的方法, 或施行于人体或动物身体的诊断方法, 均不得视作能作工业应用的发明。然而, 本款不适用于供在任何该等方法中使用的产品, 尤其不适用于供在任何该等方法中使用的物质或合成物。
s.9B	(4) A method for the treatment of the human or animal body by surgery or therapy, or a diagnostic method practised on the human or animal body, is not to be regarded as an invention that is susceptible of industrial application for the purposes of subsection (1). However, this subsection does not apply to a product, and in particular a substance or composition, for use in any such method. (5) 凡某发明的公布或实施, 是会违反公共秩序或道德的, 该发明即不属一项可享专利发明。然而, 任何发明的实施, 不得只因其在香港施行的任何法律所禁止, 而视作违反公共秩序或道德。
s.9B(1)	(5) An invention the publication or working of which would be contrary to public order (“ordre public”) or morality is not a patentable invention. However, the working of an invention is not to be regarded as so contrary only because it is prohibited by any law in force in Hong Kong.
s.9B(2)	(6) 以下项目不属于可享专利 — (a) 植物或动物品种; 及 (b) 用作生产植物或动物的基本上属生物学的方法(微生物学方法或其产品除外)。
s.9B(3)	(6) The following are not patentable— (a) a plant or animal variety; and (b) an essentially biological process for the production of plants or animals (other than a microbiological process or its products).
s.9B(4)	9B. 新颖性 (1) 任何发明如不构成现有技术的一部分, 则须视作是新颖的。 (2) 就一项发明的专利申请(主体申请)而言, 现有技术包含在主体申请的关键日期之前, 提供予在香港境内或境外的公众人士的一切事物(不论是藉书面或口头说明、藉使用或以任何其他方法提供的)。 (3) 就主体申请而言, 现有技术亦包含就一项发明提交的以下申请的内容 — (a) 符合以下说明的、所提交的转录标准专利申请 — (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 其相应指定专利申请, 已在主体申请的关键日期当日或之后, 由指定专利当局发表; (b) 符合以下说明的、在指定专利当局所提交的指定专利申请 — (i) 其提交日期, 或如有人在指定专利当局声称具有优先权)指定专利当局所设定的优先权的日期, 是在主体申请的关键日期之前的; 及 (ii) 该项申请已在主体申请的关键日期当日或之后, 由指定专利当局发表; (c) 符合以下说明的、所提交并发表的原授标准专利申请 — (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 该项申请已在主体申请的关键日期当日或之后, 根据 第 37Q 条 发表; 及 (d) 符合以下说明的短期专利申请 — (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 该项短期专利申请导致一项短期专利已在主体申请的关键日期当日或之后, 根据 第 118 条 发表。 (4) 凡某项发明包含供在 第 9A(4) 条 提述的方法中使用的物质或合成物, 如该物质或合成物在该方法中的用途, 并不属现有技术的一部分, 则即使该物质或合成物属现有技术的一部分, 亦不阻止将该项发明视作是新颖的。 (5) 凡某项发明包含供在 第 9A(4) 条 提述的方法中作特定用途的物质或合成物, 如该物质或合成物在该方法中的特定用途, 并不属现有技术的一部分, 则即使该物质或合成物在该方法中的任何其他用途, 皆属现有技术的一部分, 亦不阻止将该项发明视作是新颖的。 (6) 如在生效日期之前, 就某项既有专利展开有效性法律程序, 则就该有效性法律程序而言, 在紧接该日期前有效的第 94 条, 继续适用于属该项专利标的之发明, 犹如该条并未废除一样。 (7) 如在生效日期当日或之后, 就某项既有专利展开有效性法律程序, 则就该有效性法律程序而言, 本条适用于属该项专利标的之发明, 犹如该项专利是在生效日期当日或之后批准一样。 (8)

	在本条中 —— * 生效日期 (commencement date)指《2016 年专利(修订)条例》(2016 年第 17 号)开始实施的日期; 有效性法律程序 (validity proceedings)指任何法律程序, 而在该法律程序中, 有对某项专利的有效性之争论根据 第 101(1)条 提出; 既有专利 (pre-existing patent)指在生效日期前批准的标准专利或短期专利。 9B. Novelty (1) An invention is to be regarded as new if it does not form part of the state of the art. (2) For a patent application for an invention (subject application), the state of the art comprises everything made available to the public (in Hong Kong or elsewhere), whether by means of a written or oral description, by use or in any other way before the material date of the subject application. (3) For the subject application, the state of the art also comprises the contents of the following applications for an invention— (a) a standard patent (R) application as filed— (i) the material date of which is before the material date of the subject application; and (ii) the corresponding designated patent application of which was published by the designated patent office on or after the material date of the subject application; (b) a designated patent application as filed in a designated patent office— (i) the date of filing of which or, if priority was claimed in the designated patent office, the date of priority accorded in the designated patent office, is before the material date of the subject application; and (ii) which was published by the designated patent office on or after the material date of the subject application; (c) a standard patent (O) application, as filed and as published— (i) the material date of which is before the material date of the subject applicati...
s.9B(1)	(1) 任何发明如不构成现有技术的一部分, 则须视为是新颖的。 (1) An invention is to be regarded as new if it does not form part of the state of the art.
s.9B(2)	(2) 就一项发明的专利申请(主体申请)而言, 现有技术包含在主体申请的关键日期之前, 提供予(在香港境内或境外的)公众人士的一切事物(不论是藉书面或口头的说明、藉使用或以任何其他方法提供的)。 (2) For a patent application for an invention (subject application), the state of the art comprises everything made available to the public (in Hong Kong or elsewhere), whether by means of a written or oral description, by use or in any other way before the material date of the subject application.
s.9B(3)	(3) 就主体申请而言, 现有技术亦包含就一项发明提交的以下申请的内容 —— (a) 符合以下说明的、所提交的转录标准专利申请 —— (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 其相应指定专利申请, 已在主体申请的关键日期当日或之后, 由指定专利当局发表; (b) 符合以下说明的、在指定专利当局所提交的指定专利申请 —— (i) 其提交日期, 或(如有人在指定专利当局声称具有优先权)指定专利当局所设定的优先权的日期, 是在主体申请的关键日期之前的; 及 (ii) 该项申请已在主体申请的关键日期当日或之后, 由指定专利当局发表; (c) 符合以下说明的、所提交并且发表的原授标准专利申请 —— (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 该项申请已在主体申请的关键日期当日或之后, 根据 第 37Q 条 发表; 及 (d) 符合以下说明的短期专利申请 —— (i) 其关键日期, 是在主体申请的关键日期之前的; 及 (ii) 该项短期专利申请导致一项短期专利已在主体申请的关键日期当日或之后, 根据 第 118 条 发表。 (3) For the subject application, the state of the art also comprises the contents of the following applications for an invention— (a) a standard patent (R) application as filed— (i) the material date of which is before the material date of the subject application; and (ii) the corresponding designated patent application of which was published by the designated patent office on or after the material date of the subject application; (b) a designated patent application as filed in a designated patent office— (i) the date of filing of which or, if priority was claimed in the designated patent office, the date of priority accorded in the designated patent office, is before the material date of the subject application; and (ii) which was published by the designated patent office on or after the material date of the subject application; (c) a standard patent (O) application, as filed and as published— (i) the material date of which is before the material date of the subject application; and (ii) because of which a short-term patent was published under section 118 on or after the material date of the subject application.
s.9B(4)	(4) 凡某项发明包含供在 第 9A(4)条 所述的方法中使用的物质或合成物, 如该物质或合成物在该方法中的用途, 并不属现有技术的一部分, 则即使该物质或合成物属现有技术的一部分, 亦不阻止将该项发明视为是新颖的。 (4) For an invention consisting of a substance or composition for use in a method referred to in section 9A(4), if the use of the substance or composition in any such method does not form part of the state of the art, then the fact that the substance or composition forms part of the state of the art does not prevent the invention from being regarded as new.
s.9B(5)	(5) 凡某项发明包含供在 第 9A(4)条 所述的方法中作特定用途的物质或合成物, 如该物质或合成物在该方法中的特定用途, 并不属现有技术的一部分, 则即使该物质或合成物, 以及该物质或合成物在该方法中的任何其他用途, 皆属现有技术的一部分, 亦不阻止将该项发明视为是新颖的。 (5) For an invention consisting of a substance or composition for a specific use in a method referred to in section 9A(4), if the specific use of the substance or composition in any such method does not form part of the state of the art, then the fact that the substance or composition, and any other use of the substance or composition in any such method, form part of the state of the art does not prevent the invention from being regarded as new.
s.9B(6)	(6) 如在生效日期前, 就某项既有专利展开有效性法律程序, 则就该有效性法律程序而言, 在紧接该日期前有效的 第 94 条, 继续适用于属该项专利标的之发明, 犹如该条并未废除一样。 (6) For the purpose of any validity proceedings commenced before the commencement date in relation to a pre-existing patent, section 94 as in force immediately before that date continues to apply to the invention, which is the subject of the patent, as if that section had not been repealed.
s.9B(7)	(7) 如在生效日期当日或之后, 就某项既有专利展开有效性法律程序, 则就该有效性法律程序而言, 本条适用于属该项专利标的之发明, 犹如该项专利是在生效日期当日或之后给予一样。 (7) For the purpose of any validity proceedings commenced on or after the commencement date in relation to a pre-existing patent, this section applies to the invention, which is the subject of the patent, as if the patent was granted on or after the commencement date.
s.9B(8)	(8) 在本条中 —— * 生效日期 (commencement date)指《2016 年专利(修订)条例》(2016 年第 17 号)开始实施的日期; 有效性法律程序 (validity proceedings)指任何法律程序, 而在该法律程序中, 有对某项专利的有效性之争论根据 第 101(1)条 提出; 既有专利 (pre-existing patent)指在生效日期前批准的标准专利或短期专利。 (8) In this section— * commencement date (生效日期) means the date on which the Patents (Amendment) Ordinance 2016 (17 of 2016) comes into operation; pre-existing patent (既有专利) means a standard patent or short-term patent granted before the commencement date; validity proceedings (有效性法律程序) means any proceedings in which the validity of a patent is put in issue under section 101(1) .
s.9C	9C. 创造性 (1) 如在顾及现有技术后, 某项发明对擅长有关技术的人而言, 并非明显的, 则该项发明须视作包含创造性。 (2) 为施行 第(1)款, 如现有技术亦包含 第 9B(3)条 所指的申请的内容, 则在决定是否已有创造性时, 不得考虑该等申请。 9C. Inventive step (1) An invention is to be regarded as involving an inventive step if, having regard to the state of the art, it is not obvious to a person skilled in the art. (2) For the purposes of subsection (1), if the state of the art also comprises the contents of the applications falling within section 9B(3), those applications are not to be considered in deciding whether there has been an inventive step.
s.9C(1)	(1) 如在顾及现有技术后, 某项发明对擅长有关技术的人而言, 并非明显的, 则该项发明须视作包含创造性。 (1) An invention is to be regarded as involving an inventive step if, having regard to the state of the art, it is not obvious to a person skilled in the art.
s.9C(2)	(2) 为施行 第(1)款, 如现有技术亦包含 第 9B(3)条 所指的申请的内容, 则在决定是否已有创造性时, 不得考虑该等申请。 (2) For the purposes of subsection (1), if the state of the art also comprises the contents of the applications falling within section 9B(3), those applications are not to be considered in deciding whether there has been an inventive step.
s.9D	9D. 工业应用 某项发明如能够在任何种类的工业(包括农业)中作出或使用, 则须视作能作工业应用。 9D. Industrial application An invention is to be regarded as susceptible of industrial application if it can be made or used in any kind of industry, including agriculture.
s.9E	9E. 专利的权利属于发明人 (1) 除 第(2) 及 (3)款 另有规定外, 专利的权利属于有关发明人或其所有权继承人。 (2) 如发明人是一名雇员, 则专利的权利归属, 须 —— (a) 按照该名雇员全时间或主要受雇所在的国家、地区或地方的法律而断定; 或 (b) (如不能确定该名雇员在哪个国家、地区或地方受雇, 但该名雇员隶属其雇主设于某国家、地区或地方的业务地点)按照该业务地点所在的国家、地区或地方的法律而断定。 (3) 如有 2 人或多于 2 人各自独立地作出某项发明, 则该项发明的专利的权利, 属于在该等人中, 其专利申请的关键日期属较早或最早者(视情况所需而定)。 (4) 凡标准专利申请不曾根据 第 20 或 37Q 条 发表, 第(3)款 不适用于该申请。 9E. Right to patent belongs to inventor (1) Subject to subsections (2) and (3), the right to a patent belongs to the inventor or the inventor’ s successor in title. (2) If the inventor is an employee, the right to the patent is to be determined— (a) in accordance with the law of the country, territory or area in which the employee is wholly or mainly employed; or (b) if the identity of the country, territory or area cannot be determined, in accordance with the law of the country, territory or area where the employer’ s place of business to which the employee is attached is located. (3) If 2 or more persons have made an invention independently of each other, the right to a patent for the invention belongs to the person whose patent application has the earlier or earliest material date (as the case requires). (4) Subsection (3) does not apply to a standard patent application that has not been published under section 20 or 37Q .
s.9E(1)	(1) 除 第(2) 及 (3)款 另有规定外, 专利的权利属于有关发明人或其所有权继承人。 (1) Subject to subsections (2) and (3), the right to a patent belongs to the inventor or the inventor’ s successor in title.
s.9E(2)	(2) 如发明人是一名雇员, 则专利的权利归属, 须 —— (a) 按照该名雇员全时间或主要受雇所在的国家、地区或地方的法律而断定; 或 (b) (如不能确定该名雇员在哪个国家、地区或地方受雇, 但该名雇员隶属其雇主设于某国家、地区或地方的业务地点)按照该业务地点所在的国家、地区或地方的法律而断定。 (2) If the inventor is an employee, the right to the patent is to be determined— (a) in accordance with the law of the country, territory or area in which the employee is wholly or mainly employed; or (b) if the identity of the country, territory or area cannot be determined, in accordance with the law of the country, territory or area where the employer’ s place of business to which the employee is attached is located.
s.9E(3)	(3) 如有 2 人或多于 2 人各自独立地作出某项发明, 则该项发明的专利的权利, 属于在该等人中, 其专利申请的关键日期属较早或最早者(视情况所需而定)。 (3) If 2 or more persons have made an invention independently of each other, the right to a patent for the invention belongs to the person whose patent application has the earlier or earliest material date (as the case requires).
s.9E(4)	(4) 凡标准专利申请不曾根据 第 20 或 37Q 条 发表, 第(3)款 不适用于该申请。 (4) Subsection (3) does not apply to a standard patent application that has not been published under section 20 or 37Q .
s.11A	11A. 不具损害性的披露 (1) 凡某项发明属一项转录标准专利申请的标的, 为施行 第 9B 条, 如该项发明的披露符合第(2)款指明的条件, 则在决定该项发明是否构成现有技术的一部分时, 该项披露不予考虑。 (2) 有关条件 —— (a) 上述披露, 在转录标准专利申请的当作提交日期前 6 个月内发生; 及 (b) 该项披露是以下事情所造成, 或属以下事情的后果 —— (i) 与申请人或该项发明当其时的所有人有关的明显滥用; 或 (ii) 该申请人或该项发明当其时的所有人, 已在某一订明的展览或会议上, 展示该项发明。 (3) 第 (2) (b) (i) 款 就只在以下情况下适用 —— (a) 在上述申请人提交相应指定专利申请时, 已按照指定专利当局关乎不具损害性的披露的法律, 述明上述发明已予如此展示; 及 (b) 根据 第 15(2) (f) 条 的指定专利申请的记录请求, 载有一项陈述, 表示关乎上述披露的订明详情。 11A. Non-prejudicial disclosure (1) For the purposes of section 9B, if the conditions specified in subsection (2) are satisfied, a disclosure of an invention that is the subject of a standard patent (R) application is not to be taken into consideration in determining whether the invention forms part of the state of the art. (2) The conditions are— (a) the disclosure occurred no earlier than 6 months before the deemed date of filing of the standard patent (R) application; and (b) the disclosure was due to, or in consequence of— (i) an evident abuse in relation to the applicant or a proprietor of the invention for the time being; or (ii) the fact that the applicant or a proprietor of the invention for the time being had displayed the invention at a prescribed exhibition or meeting. (3) Subsection (2) (b) (i) applies only if— (a) at the time of filing the corresponding designated patent application, the applicant stated, in accordance with the law of the designated patent office relating to non-prejudicial disclosure, that the invention had been so displayed; and (b) the request to record the designated patent application contains a statement that indicates the prescribed details relating to the disclosure, as required under section 15(2) (f) .
s.11A(1)	(1) 凡某项发明属一项转录标准专利申请的标的, 为施行 第 9B 条, 如该项发明的披露符合第(2)款指明的条件, 则在决定该项发明是否构成现有技术的一部分时, 该项披露不予考虑。 (1) For the purposes of section 9B, if the conditions specified in subsection (2) are satisfied, a disclosure of an invention that is the subject of a standard patent (R) application is not to be taken into consideration in determining whether the invention forms part of the state of the art.
s.11A(2)	(2) 有关条件 —— (a) 上述披露, 在转录标准专利申请的当作提交日期前 6 个月内发生; 及 (b) 该项披露是以下事情所造成, 或属以下事情的后果 —— (i) 与申请人或该项发明当其时的所有人有关的明显滥用; 或 (ii) 该申请人或该项发明当其时的所有人, 已在某一订明的展览或会议上, 展示该项发明。 (2) The conditions are— (a) the disclosure occurred no earlier than 6 months before the deemed date of filing of the standard patent (R) application; and (b) the disclosure was due to, or in consequence of— (i) an evident abuse in relation to the applicant or a proprietor of the invention for the time being; or (ii) the fact that the applicant or a proprietor of the invention for the time being had displayed the invention at a prescribed exhibition or meeting.
s.11A(3)	(3) 第 (2) (b) (i) 款 就只在以下情况下适用 —— (a) 在上述申请人提交相应指定专利申请时, 已按照指定专利当局关乎不具损害性的披露的法律, 述明上述发明已予如此展示; 及 (b) 根据 第 15(2) (f) 条 的指定专利申请的记录请求, 载有一项陈述, 表示关乎上述披露的订明详情。 (3) Subsection (2) (b) (i) applies only if— (a) at the time of filing the corresponding designated patent application, the applicant stated, in accordance with the law of the designated patent office relating to non-prejudicial disclosure, that the invention had been so displayed; and (b) the request to record the designated patent application contains a statement that indicates the prescribed details relating to the disclosure, as required under section 15(2) (f) .
s.54(1)	(1) 凡某一专利是授予 2 人或多于 2 人的, 除非有任何相反的协议, 否则他们每人须享有在该专利中相等的不可分割份数。 (1) Where a patent is granted to 2 or more persons each of them shall, subject to any agreement to the contrary, be entitled to an equal undivided share in the patent.

s.54(2)	(2) 凡有 2 人或多于 2 人为某一专利的所有人，则在符合本条的规定下及除任何协议已有相反规定外，他们每人均有权由其本人或其代理人为其本身的利益与在没有其他人同意亦无需向其他所有人交代的情况下，就有关发明作出任何若非因本款以及第 68 及 69 条的规定便会构成侵犯有关专利的作为；而任何该等作为不构成对有关专利的侵犯。 (2) Where 2 or more persons are proprietors of a patent, then, subject to this section and to any agreement to the contrary, each of them shall be entitled, by himself or his agent, to do in respect of the invention concerned, for his own benefit and without the consent of or the need to account to the other or others, any act which would apart from this subsection and sections 68 and 69 amount to an infringement of the patent concerned; and any such act shall not amount to an infringement of the patent concerned.
s.54(3)	(3) 除第 13、37H、37I、37J 及 55 条另作规定及除当其时有效的任何协议另有规定外，凡有 2 人或多于 2 人为某一专利的所有人，他们其中一人不得在没有得到另一人或其余的人的同意下——(由 2016 年第 17 号第 57 条 修订) (a) 申请修订该项专利的说明书，或申请撤销该项专利；或 (b) 批予在该项专利下的特许，或将该项专利中的份额转让或按揭。(由 2016 年第 17 号第 57 条 修订) (3) Subject to sections 13, 37H, 37I, 37J and 55 and to any agreement for the time being in force, where 2 or more persons are proprietors of a patent one of them shall not without the consent of the other or others— (Amended 17 of 2016 s. 57) (a) make an application for amending the specification of the patent or for revoking the patent; or (b) grant a licence under the patent, or assign or mortgage a share in the patent. (Amended 17 of 2016 s. 57)
s.57	57. 就雇员的发明而享有的权利 (1) 即使在任何法律规则中另有规定，就本条的目的和一切其他目的而言，一名雇员所作出的任何发明，如——(a) 是在该雇员的正常职务过程中作出的，或是在他的正常职务以外但属明确地指派他的职务过程中作出的，且两者的情况均可使人合理地预期某项发明可使其职务的执行中产生；或 (b) 是在该雇员的职务过程中作出的，且在作出该项发明时，因其职务的性质以及因其职务的性质而产生的特定责任，该雇员有特殊义务促进其雇主的主务利益，则该项发明在该雇员与其雇主之间须视为属于其雇主的主。 (2) 就上述目的而言，一名雇员所作出的任何其他发明，在该雇员与其雇主之间须视为属于该雇员的。 (3) 凡任何发明在某一雇员与其雇主之间无凭本条而属于该雇员的，则——(a) 该雇员或其代表或藉着该雇员提出申索的任何人人为谋求一项专利申请；或 (b) 任何人为实行或实施该项发明，而作的任何事情，均不得视为侵犯关乎该项发明的任何模型或文件中的任何受保护的布图设计(拓朴图)的权利，而该权利在该雇员与其雇主之间是由其雇主所享有的。 [比照 1977 c. 37 s. 39 U.K.] 57. Right to employees’ inventions (1) Notwithstanding anything in any rule of law, an invention made by an employee shall, as between him and his employer, be taken to belong to his employer for the purposes of this Ordinance and all other purposes if— (a) it was made in the course of the normal duties of the employee or in the course of duties falling outside his normal duties, but specifically assigned to him, and the circumstances in either case were such that an invention might reasonably be expected to result from the carrying out of his duties; or (b) the invention was made in the course of the duties of the employee and, at the time of making the invention, because of the nature of his duties and the particular responsibilities arising from the nature of his duties he had a special obligation to further the interests of the employer’s undertaking. (2) Any other invention made by an employee shall, as between him and his employer, be taken for those purposes to belong to the employee. (3) Where by virtue of this section an invention belongs, as between him and his employer, to an employee, nothing done— (a) by or on behalf of the employee or any person claiming under him for the purposes of pursuing an application for a patent; or (b) by any person for the purpose of performing or working the invention, shall be taken to infringe any protected layout- design (topograp...
s.57(1)	(1) 即使在任何法律规则中另有规定，就本条的目的和一切其他目的而言，一名雇员所作出的任何发明，如——(a) 是在该雇员的正常职务过程中作出的，或是在他的正常职务以外但属明确地指派他的职务过程中作出的，且两者的情况均可使人合理地预期某项发明可从其职务的执行中产生；或 (b) 是在该雇员的职务过程中作出的，且在作出该项发明时，因其职务的性质以及因其职务的性质而产生的特定责任，该雇员有特殊义务促进其雇主的主务利益，则该项发明在该雇员与其雇主之间须视为属于其雇主的。 (1) Notwithstanding anything in any rule of law, an invention made by an employee shall, as between him and his employer, be taken to belong to his employer for the purposes of this Ordinance and all other purposes if— (a) it was made in the course of the normal duties of the employee or in the course of duties falling outside his normal duties, but specifically assigned to him, and the circumstances in either case were such that an invention might reasonably be expected to result from the carrying out of his duties; or (b) the invention was made in the course of the duties of the employee and, at the time of making the invention, because of the nature of his duties and the particular responsibilities arising from the nature of his duties he had a special obligation to further the interests of the employer’s undertaking.
s.57(2)	(2) 就上述目的而言，一名雇员所作出的任何其他发明，在该雇员与其雇主之间须视为属于该雇员的。 (2) Any other invention made by an employee shall, as between him and his employer, be taken for those purposes to belong to the employee.
s.57(3)	(3) 凡任何发明在某一雇员与其雇主之间无凭本条而属于该雇员的，则——(a) 该雇员或其代表或藉着该雇员提出申索的任何人人为谋求一项专利申请；或 (b) 任何人为实行或实施该项发明，而作的任何事情，均不得视为侵犯关乎该项发明的任何模型或文件中的任何受保护的布图设计(拓朴图)的权利，而该权利在该雇员与其雇主之间是由其雇主所享有的。 [比照 1977 c. 37 s. 39 U.K.] (3) Where by virtue of this section an invention belongs, as between him and his employer, to an employee, nothing done— (a) by or on behalf of the employee or any person claiming under him for the purposes of pursuing an application for a patent; or (b) by any person for the purpose of performing or working the invention, shall be taken to infringe any protected layout- design (topography) right to which, as between him and his employer, his employer is entitled in any model or document relating to the invention. [c. 1977 c. 37 s. 39 U.K.]
s.15	15. 记录请求的提交 (1) 根据第 12(1) 条 有权就一项发明申请授予转录标准专利的任何人，可于自发表就该项发明而在指定专利当局提出的专利申请的日子后 6 个月内的任何时间，请求处长将该项指定专利申请的纪录记入注册纪录册内(在本条例中称为 记录请求)。 (由 2016 年第 17 号第 21 条 修订) (2) 每一上述请求须由申请人签署和以订明方式向处长提交，并须载有以下各 项——(a) 一份已发表的指定专利申请的影印本，包括与该指定专利申请一并发表的任何说明、权利要求、绘图、检查报告或摘要；(b) 凡指定专利申请书并无载有任何作为发明人的人的姓名或名称，则一项识别申请人所相信是发明人的人或人等的陈述；(c) 提出该项请求的人的姓名或名称及地址；(d) 如提交请求的人并非是在指定专利申请中指定为申请人的人，则一项解释他有权就有关发明申请授予转录标准专利的陈述以及支持该项陈述的订明文件；(由 2016 年第 17 号第 21 条 修订) (e) 如根据第 11B 条 声称具有优先权，而该优先权是基于该条所述的较早申请而在指定专利当局享有的，则须载有一项显示以下细节的陈述——(由 2001 年第 2 号第 3 条 修订；由 2016 年第 17 号第 21 条 修订) (i) 声称具有优先权的日期；(ii) 提交该项较早申请的所在国家；(f) 如在提交指定专利申请时已按照指定专利当局的法律就有关发明过往所作的披露提供权利要求，而该项披露就指定专利当局的法律而言属不具有损害性的披露，则须载有一项显示关于该项过往的披露的订明细节的陈述；及 (由 2001 年第 2 号第 3 条 代替) (g) 在香港供送该文件的地址。(3) 每一上述请求亦须符合本条例就以一种法定语文或兼以两种法定语文提供资料或将文件翻译成一种或两种法定语文的译本所订的规定。(4) 提交费及公告费须在最早向处长提交记录请求的任何部分后的 1 个月内予以缴付；如该两项费用的任何一项没有在该期限内或在根据第(5)款容许的较长期限内缴付，则转录标准专利的申请须当作被撤回。(由 2016 年第 17 号第 21 条 修订) (5) 规则可就未有在第(4)款所指定的时限内缴付提交费或公告费给予宽限期一事作出规定，使该等费用在宽限期内仍可有效地缴付。(6) 就在根据第 8 条 指定有关的指定专利当局的日子而发表的指定专利申请而言，第(1)款并不适用。(7) 本条不阻止任何记录请求符合第 17 条 规定的文件而提出。 [比照 EPC Art. 78; 1977 c. 37 s. 14 U.K.] 15. Filing of request to record (1) A person entitled under section 12(1) to apply for the grant of a standard patent (R) for an invention may, at any time within 6 months after the date of publication of an application in a designated patent office for a patent for the invention, request the Registrar to enter a record of that designated patent application in the register (in this Ordinance referred to as a request to record). (Amended 17 of 2016 s. 21) (2) Every such request shall be signed by the applicant and be filed with the Registrar in the prescribed manner and shall contain— (a) a photocopy of the designated patent application as published, that is to say, including any description, claims, drawings, search report or abstract published together with the designated patent application; (b) where the designated patent application does not contain the name of any person as being the inventor, a statement identifying the person or persons whom the applicant believes to be the inventor or inventors; (c) the name and address of the person making the request; (d) where the person filing the request is a person other than the person named as applicant in the designated patent application, a statement explaining his entitlement to apply for the grant of a standard patent (R) for the invention and prescribed documents supporting that statement; (Amended 17 of 2016 s. 21) (e...)
s.15(1)	(1) 根据第 12(1) 条 有权就一项发明申请授予转录标准专利的任何人，可于自发表就该项发明而在指定专利当局提出的专利申请的日子后 6 个月内的任何时间，请求处长将该项指定专利申请的纪录记入注册纪录册内(在本条例中称为 记录请求)。 (由 2016 年第 17 号第 21 条 修订) (1) A person entitled under section 12(1) to apply for the grant of a standard patent (R) for an invention may, at any time within 6 months after the date of publication of an application in a designated patent office for a patent for the invention, request the Registrar to enter a record of that designated patent application in the register (in this Ordinance referred to as a request to record). (Amended 17 of 2016 s. 21)
s.15(2)	(2) 每一上述请求须由申请人签署和以订明方式向处长提交，并须载有以下各 项——(a) 一份已发表的指定专利申请的影印本，包括与该指定专利申请一并发表的任何说明、权利要求、绘图、检查报告或摘要；(b) 凡指定专利申请书并无载有任何作为发明人的人的姓名或名称，则一项识别申请人所相信是发明人的人的姓名或名称及地址；(c) 提出该项请求的人的姓名或名称及地址；(d) 如提交请求的人并非是在指定专利申请中指定为申请人的人，则一项解释他有权就有关发明申请授予转录标准专利的陈述以及支持该项陈述的订明文件；(由 2016 年第 17 号第 21 条 修订) (e) 如根据第 11B 条 声称具有优先权，而该优先权是基于该条所述的较早申请而在指定专利当局享有的，则须载有一项显示以下细节的陈述——(由 2001 年第 2 号第 3 条 修订；由 2016 年第 17 号第 21 条 修订) (i) 声称具有优先权的日期；(ii) 提交该项较早申请的所在国家；(f) 如在提交指定专利申请时已按照指定专利当局的法律就有关发明过往所作的披露提供权利要求，而该项披露就指定专利当局的法律而言属不具有损害性的披露，则须载有一项显示关于该项过往的披露的订明细节的陈述；及 (由 2001 年第 2 号第 3 条 代替) (g) 在香港供送该文件的地址。 (2) Every such request shall be signed by the applicant and be filed with the Registrar in the prescribed manner and shall contain— (a) a photocopy of the designated patent application as published, that is to say, including any description, claims, drawings, search report or abstract published together with the designated patent application; (b) where the designated patent application does not contain the name of any person as being the inventor, a statement identifying the person or persons whom the applicant believes to be the inventor or inventors; (c) the name and address of the person making the request; (d) where the person filing the request is a person other than the person named as applicant in the designated patent application, a statement explaining his entitlement to apply for the grant of a standard patent (R) for the invention and prescribed documents supporting that statement; (Amended 17 of 2016 s. 21) (e) where priority is claimed under section 11B in respect of a right of priority enjoyed in the designated patent office on the basis of an earlier application as mentioned in that section, a statement that indicates the details of— (Amended 2 of 2001 s. 3; 17 of 2016 s. 21) (i) the date of priority claimed; (ii) the country in which the earlier application was filed; (iii) where at the time of filing the designated patent application a claim was made in acc...
s.15(3)	(3) 每一上述请求亦须符合本条例就以一种法定语文或兼以两种法定语文提供资料或将文件翻译成一种或两种法定语文的译本所订的规定。 (3) Every such request shall also comply with the requirements of this Ordinance as to the provision of information in, or the translation of documents into, one or both official languages.
s.15(4)	(4) 提交费及公告费须在最早向处长提交记录请求的任何部分后的 1 个月内予以缴付；如该两项费用的任何一项没有在该期限内或在根据第(5)款容许的较长期限内缴付，则转录标准专利的申请须当作被撤回。(由 2016 年第 17 号第 21 条 修订) (4) A filing fee and an advertisement fee shall be payable within 1 month after the earliest filing with the Registrar of any part of the request to record, and if either fee is not paid within that period or within such further period as may be allowed under subsection (5) the application for a standard patent (R) shall be deemed to be withdrawn. (Amended 17 of 2016 s. 21)
s.15(5)	(5) 规则可就未有在第(4)款所指定的时限内缴付提交费或公告费给予宽限期一事作出规定，使该等费用在宽限期内仍可有效地缴付。 (5) Rules may provide for a period of grace within which a filing fee or advertisement fee that has not been paid within the time limit specified in subsection (4) may still be validly paid.
s.15(6)	(6) 就在根据第 8 条 指定有关的指定专利当局的日子而发表的指定专利申请而言，第(1)款并不适用。 (6) Subsection (1) shall not apply in respect of a designated patent application published before the date on which the designated patent office was designated under section 8.
s.15(7)	(7) 本条不阻止任何记录请求符合第 17 条 规定的文件而提出。 [比照 EPC Art. 78; 1977 c. 37 s. 14 U.K.] (7) Nothing in this section shall preclude a request to record being initiated by documents complying with section 17.
s.23	23. 注册与批予请求的提交 (1) 凡在转录标准专利的申请中——(由 2016 年第 17 号第 28 条 修订) (a) 指定专利申请已记录于注册纪录册内，且记录请求已被发表，而该记录请求并没有被拒批，亦没有当作被撤回或放弃；及 (由 2016 年第 17 号第 28 条 修订) (b) 专利已在指定专利当局依据该指定专利申请获批予，则在符合第(2)款的规定下，申请人或其所有权利人可请求处长将如此批予的指定专利注册，并就已发表的指定专利的说明书内所示的发明批予转录标准专利(在本条例中称为 注册与批予请求)。 (由 2016 年第 17 号第 28 条 修订) (2) 第(1)款所指的注册与批予请求须由指定专利当局批予指定专利的日期或记录请求的发表日期(两者以较后者为准)后的 6 个月内提出。(3) 每一上述请求须以订明方式向处长提交，并须载有以下各 项——(a) 已发表的指定专利说明书的核实副本一份，包括由指定专利当局发表的说明、权利要求及任何绘图；(b) 如提交请求的人并非是在注册纪录册中指定为有关发明的转录标准专利申请的人，则一项解释前述的人有权就该项发明申请批予转录标准专利的陈述以及支持该陈述的订明文件；(由 2016 年第 17 号第 28 条 修订) (c) 凡记录请求载有一项根据第 15(2)(c) 条 作出的陈述，其意是有人声称基于在指定专利当局所声称具有的优先权利而具有优先权，则为所订明的已在指定专利当局提交而声称具有并证明该等优先权利的文件副本。(4) 每一上述请求亦须符合本条例就以一种法定语文或兼以两种法定语文提供资料或将文件翻成一种或两种法定语文的译本所订的规定。(5) 提交费及公告费须在最早提交注册与批予请求的任何部分后的 1 个月内予以缴付；如该两项费用的任何一项没有在该期限内或在根据第(6)款容许的较长期限内予以缴付，则转录标准专利的申请须当作已予撤回。(由 2016 年第 17 号第 28 条 修订) (6) 规则可就未有在第(5)款所指定的时限内缴付提交费或公告费给予宽限期一事作出规定，使该等费用在该宽限期内仍可有效地予以缴付。(7) 本条不阻止任何注册与批予请求按照第 24 条 而提出。 23. Filing of request for registration and grant (1) Where in an application for a standard patent (R)— (Amended 17 of 2016 s. 28) (a) a designated patent application has been recorded in the register and a request to record has been published and the request to record is not refused or deemed withdrawn or abandoned; and (Amended 17 of 2016 s. 28) (b) a patent has been granted in the designated patent office in pursuance of the designated patent application, the applicant or his successor in title may, subject to subsection (2), request the Registrar to register the designated patent so granted and to grant a standard patent (R) for the invention shown in the published specification of the designated patent (in this Ordinance referred to as a request for registration and grant). (Amended 17 of 2016 s. 28) (2) A request for registration and grant under subsection (1) shall be made within 6 months after the date of grant of the designated patent by the designated patent office or publication of the request to record, whichever is the later. (3) Every such request shall be filed with the Registrar in the prescribed manner and shall contain— (a) a verified copy of the published specification of the designated patent, including the description, the claims and any drawings published by the designated patent office; (b) if the person filing the request is a person other than...
s.23(1)	(1) 凡在转录标准专利的申请中——(由 2016 年第 17 号第 28 条 修订) (a) 指定专利申请已记录于注册纪录册内，且记录请求已被发表，而该记录请求并没有被拒批，亦没有当作被撤回或放弃；及 (由 2016 年第 17 号第 28 条 修订) (b) 专利已在指定专利当局依据该指定专利申请获批予，则在符合第(2)款的规定下，申请人或其所有权利人可请求处长将如此批予的指定专利注册，并就已发表的指定专利的说明书内所示的发明批予转录标准专利(在本条例中称为 注册与批予请求)。 (由 2016 年第 17 号第 28 条 修订) (1) Where in an application for a standard patent (R)— (Amended 17 of 2016 s. 28) (a) a designated patent application has been recorded in the register and a request to record has been published and the request to record is not refused or deemed withdrawn or abandoned; and (Amended 17 of 2016 s. 28) (b) a patent has been granted in the designated patent office in pursuance of the designated patent application, the applicant or his successor in title may, subject to subsection (2), request the Registrar to register the designated patent so granted and to grant a standard patent (R) for the invention shown in the published specification of the designated patent (in this Ordinance referred to as a request for registration and grant). (Amended 17 of 2016 s. 28)
s.23(2)	(2) 第(1)款所指的注册与批予请求须由指定专利当局批予指定专利的日期或记录请求的发表日期(两者以较后者为准)后的 6 个月内提出。 (2) (1)款所指的注册与批予请求须由指定专利当局批予指定专利的日期或记录请求的发表日期(两者以较后者为准)后的 6 个月内提出。

	(2) A request for registration and grant under subsection (1) shall be made within 6 months after the date of grant of the designated patent by the designated patent office or publication of the request to record, whichever is the later.
s.23(3)	(3) 每一上述请求须以书面方式向处长提交，并须载有以下各项——(a) 已发表的指定专利说明书的核实副本一份，包括由指定专利当局发表的说明、权利要求及任何绘图；(b) 如提交请求的人并非是在注册纪录册中指名有关发明的转录标准专利申请人的，则一解释前述的人有权就该项发明申请授予转录标准专利的陈述以及支持该陈述的证明文件；(由 2016 年第 17 号第 28 条 修订) (c) 凡记录请求载有一项根据第 15(2) (c) 条作出的陈述，其意是有人声称基于在指定专利当局所声称具有的优先权利而具有优先权，则为所订明的已在指定专利当局提交而声称具有并证明该等优先权利的文件副本。
s.23(4)	(3) Every such request shall be filed with the Registrar in the prescribed manner and shall contain— (a) a verified copy of the published specification of the designated patent, including the description, the claims and any drawings published by the designated patent office; (b) if the person filing the request is a person other than the person named in the register as the applicant for a standard patent (R) for the invention, a statement explaining the first-mentioned person’s entitlement to apply for the grant of a standard patent (R) for the invention and prescribed documents supporting that statement; (Amended 17 of 2016 s. 28) (c) where the request to record contains a statement under section 15(2) (c) to the effect that priority is claimed on the basis of a right of priority claimed in the designated patent office, such copies as may be prescribed of the documents filed in the designated patent office claiming and supporting such right of priority.
s.23(4)	(4) 每一上述请求亦须符合本条例就以一种法定语文或兼以两种法定语文提供资料或将文件翻译成一种或两种法定语文的译本所订的规定。
s.23(5)	(4) Every such request shall also comply with the requirements of this Ordinance as to the provision of information in, or the translation of documents into, one or both official languages. (5) 提交费及公告费须在最早提交注册与批准请求的任何部分后的 1 个月内予以缴付；如该两项费用的任何一项没有在该期限内或在根据第(6)款容许的较长期限内予以缴付，则转录标准专利的申请须当作已予撤回。(由 2016 年第 17 号第 28 条 修订)
s.23(6)	(5) A filing fee and an advertisement fee shall be payable within 1 month after the earliest filing of a part of the request for registration and grant, and if either fee is not paid within that period or within such further period as may be allowed under subsection (6) the application for a standard patent (R) shall be deemed to be withdrawn. (Amended 17 of 2016 s. 28)
s.23(6)	(6) 规则可就未有在第(5)款所指明的时限内缴付提交费或公告费给予宽限期一事作出规定，使该等费用在该宽限期内仍可有效地予以缴付。
s.23(7)	(6) Rules may provide for a period of grace within which a filing fee or advertisement fee that has not been paid within the time limit specified in subsection (5) may still be validly paid. (7) 本条不阻止任何注册与批准请求按照第 24 条而提出。
s.37C	(7) Nothing in this section shall preclude a request for registration and grant being initiated in accordance with section 24. 37C. 优先权利 (1) 如任何人已就一项发明提交 —— (a) 一项非香港申请；或 (b) 一项香港申请，则第(2)款适用。(2) 在符合订明条件的前提下，上述的人或其所有权继承人，在由最先非香港申请或香港申请的提交日期后的 12 个月内，就为同一发明而于其后提交的原授权标准专利申请而言，享有优先权利。(3) 为施行第(2)款 —— (a) 在某地方或为某地方提交每项非香港申请，如根据该地方的法则或根据有关双边或多边协议，属相等于正规国家提交，则须获承认为产生优先权利；(b) 如某项其后的非香港申请(后者)的标的的事项，与一项过往的最先非香港申请(前者)的标的的事项相同，且在同一地方或为同一地方提交，则只有在符合以下条件的前提下 —— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或拒绝；及 (ii) 在该日期，前者没有被用作作为声称具有优先权利的根据，后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的非香港申请因(b)段，被视作最先申请，则前者此后不可用作作为声称具有优先权利的根据。(4) 为施行第(2)款 —— (a) 每项香港申请的正规提交，须获承认为产生优先权利；(b) 如某项其后的香港申请(后者)的标的的事项，与一项过往的最先香港申请(前者)的标的的事项相同，则只有在符合以下条件的前提下 —— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或拒绝；及 (ii) 在该日期，前者没有被用作作为声称具有优先权利的根据，后者方就决定优先权的根据，视作最先申请；及 (c) 如某项其后的香港申请因(b)段，被视作最先申请，则前者此后不可用作作为声称具有优先权利的根据。(5) 凡因一项发明的非香港申请或香港申请，而产生某项优先权利，则该项优先权利的转让或以其他方式作出的转传，可连同该项申请进行，亦可独立地进行，而在第(2)款中提述某人的所有权继承人，须据此解释。(6) 在本条中 —— 正规国家提交 (regular national filing) 指一项申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)；香港申请的正规提交 (regular filing of a Hong Kong application) 指一项香港申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)。
s.37C(1)	37C. Priority right (1) Subsection (2) applies if a person has filed— (a) a non-Hong Kong application for an invention; or (b) a Hong Kong application for an invention. (2) The person or the person’s successor in title enjoys, for the purpose of filing a subsequent standard patent (O) application for the same invention, a right of priority for the period of 12 months after the date of filing of the first non-Hong Kong application or Hong Kong application, subject to compliance with the prescribed conditions. (3) For the purposes of subsection (2)— (a) every filing of a non-Hong Kong application that is equivalent to a regular national filing under the domestic legislation of the place in or for which the application is filed, or under bilateral or multilateral agreements, is to be recognized as giving rise to a right of priority; (b) a subsequent non-Hong Kong application for the same subject-matter as in a previous first non-Hong Kong application and filed in or for the same place is to be considered as the first application for the purpose of determining priority only if, on the date of filing the subsequent application, the previous application— (i) has been withdrawn, abandoned or refused, without being open to public inspection and without leaving any rights outstanding; and (ii) has not served as a basis for claiming a right of priority; and (c) if, because of para...
s.37C(2)	(1) 如任何人已就一项发明提交 —— (a) 一项非香港申请；或 (b) 一项香港申请，则第(2)款适用。 (1) Subsection (2) applies if a person has filed— (a) a non-Hong Kong application for an invention; or (b) a Hong Kong application for an invention.
s.37C(3)	(2) 在符合订明条件的前提下，上述的人或其所有权继承人，在由最先非香港申请或香港申请的提交日期后的 12 个月内，就为同一发明而于其后提交的原授权标准专利申请而言，享有优先权利。 (2) The person or the person’s successor in title enjoys, for the purpose of filing a subsequent standard patent (O) application for the same invention, a right of priority for the period of 12 months after the date of filing of the first non-Hong Kong application or Hong Kong application, subject to compliance with the prescribed conditions.
s.37C(3)	(3) 为施行第(2)款 —— (a) 在某地方或为某地方提交每项非香港申请，如根据该地方的法则或根据有关双边或多边协议，属相等于正规国家提交，则须获承认为产生优先权利；(b) 如某项其后的非香港申请(后者)的标的的事项，与一项过往的最先非香港申请(前者)的标的的事项相同，且在同一地方或为同一地方提交，则只有在符合以下条件的前提下 —— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或拒绝；及 (ii) 在该日期，前者没有被用作作为声称具有优先权利的根据，后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的非香港申请因(b)段，被视作最先申请，则前者此后不可用作作为声称具有优先权利的根据。 (3) For the purposes of subsection (2)— (a) every filing of a non-Hong Kong application that is equivalent to a regular national filing under the domestic legislation of the place in or for which the application is filed, or under bilateral or multilateral agreements, is to be recognized as giving rise to a right of priority; (b) a subsequent non-Hong Kong application for the same subject-matter as in a previous first non-Hong Kong application and filed in or for the same place is to be considered as the first application for the purpose of determining priority only if, on the date of filing the subsequent application, the previous application— (i) has been withdrawn, abandoned or refused, without being open to public inspection and without leaving any rights outstanding; and (ii) has not served as a basis for claiming a right of priority; and (c) if, because of paragraph (b), a subsequent non-Hong Kong application is considered as the first application, the previous non-Hong Kong application may not later serve as a basis for claiming a right of priority.
s.37C(4)	(4) 为施行第(2)款 —— (a) 每项香港申请的正规提交，须获承认为产生优先权利；(b) 如某项其后的香港申请(后者)的标的的事项，与一项过往的最先香港申请(前者)的标的的事项相同，则只有在符合以下条件的前提下 —— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或拒绝；及 (ii) 在该日期，前者没有被用作作为声称具有优先权利的根据，后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的香港申请因(b)段，被视作最先申请，则前者此后不可用作作为声称具有优先权利的根据。 (4) For the purposes of subsection (2)— (a) every regular filing of a Hong Kong application is to be recognized as giving rise to a right of priority; (b) a subsequent Hong Kong application for the same subject-matter as in a previous first Hong Kong application is to be considered as the first application for the purpose of determining priority only if, on the date of filing the subsequent application, the previous application— (i) has been withdrawn, abandoned or refused, without being open to public inspection and without leaving any rights outstanding; and (ii) has not served as a basis for claiming a right of priority; and (c) if, because of paragraph (b), a subsequent Hong Kong application is considered as the first application, the previous Hong Kong application may not later serve as a basis for claiming a right of priority.
s.37C(5)	(4) 为施行第(2)款 —— (a) 每项香港申请的正规提交，须获承认为产生优先权利；(b) 如某项其后的香港申请(后者)的标的的事项，与一项过往的最先香港申请(前者)的标的的事项相同，则只有在符合以下条件的前提下 —— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或拒绝；及 (ii) 在该日期，前者没有被用作作为声称具有优先权利的根据，后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的香港申请因(b)段，被视作最先申请，则前者此后不可用作作为声称具有优先权利的根据。 (5) 凡因一项发明的非香港申请或香港申请，而产生某项优先权利，则该项优先权利的转让或以其他方式作出的转传，可连同该项申请进行，亦可独立地进行，而在第(2)款中提述某人的所有权继承人，须据此解释。
s.37C(6)	(5) A right of priority that arises as a result of a non-Hong Kong application or Hong Kong application for an invention may be assigned or otherwise transmitted, either with the application or independently, and the reference in subsection (2) to a person’s successor in title is to be construed accordingly. (6) 在本条中 —— 正规国家提交 (regular national filing) 指一项申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)；香港申请的正规提交 (regular filing of a Hong Kong application) 指一项香港申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)。
s.39	(6) In this section— regular filing of a Hong Kong application (香港申请的正规提交) means a filing of a Hong Kong application that establishes the date on which the application was filed, whatever the outcome of the application may be; regular national filing (正规国家提交) means a filing that establishes the date on which an application was filed, whatever the outcome of the application may be. 39. 标准专利的有效期间 (1) 根据本条例批予的标准专利 —— (a) 须自官方公报刊登其批予的事实公告的日期起生效；及 (由 2001 年第 2 号第 14 条 修订) (b) 在符合第(2)款的规定下，须维持有效，直至 —— (由 2016 年第 17 号第 48 条 修订) (i) (就转录标准专利而言) 自该项专利的申请当作提交日期起计的 20 年期终止为止；(ii) (就原授标准专利而言) 自该项专利的申请当作提交日期起计的 20 年期终止为止。(由 2016 年第 17 号第 48 条 修订) (2) 如意欲在自第(3)款所指明的日期起计第 3 年或继后的任何一年届满后将任何标准专利再维持有效一年，则订明的续期费须在该第 3 年或继后的一年(视属何情况而定)届满前(但不得早于届满的日期前 3 个月)缴付；如该续期费没有如此缴付，则标准专利在该第 3 年或继后的一年届满时须停止有效。(3) 为施行第(2)款而指明的日期是 —— (由 2016 年第 17 号第 48 条 修订) (a) (就转录标准专利而言) 该标准专利的申请当作提交日期在批予该标准专利后的第一个周年日；(b) (就原授标准专利而言) 该标准专利的申请提交日期在批予该标准专利后的第一个周年日；(由 2016 年第 17 号第 48 条 修订) (4) 如续期费及任何订明的附加费已在第(2)款所指明的缴付续期费的期间终止后的 6 个月内缴付，则该标准专利须被视为犹如从未期满一样，而据此 —— (a) 在该进一步的期间内根据或关于该专利而作出的任何事情须属有效；(b) 假使该专利未曾期满便会构成对该专利的侵犯的任何作为，即构成该项侵犯；及 (c) 假使该专利未曾期满便会构成政府征用该项专利发明的任何作为，即构成该征用。(5) 处长可藉修订第(2)款所指明的期间，而缴付订明的续期费的最早日期是参照该期间而决定的。(行政长官会同行政会议可藉规例修订 —— (由 1999 年第 22 号第 3 条 修订) (a) 第 1) (b) 款所指明的期间，即某一标准专利须维持有效的期间；(b) 第(2)款所指明的期间，而任何标准专利如未予续期，则须参照该期间而停止有效。【比照 1977 c. 37 s. 25 U.K.]
s.39(1)	39. Term of standard patent (1) A standard patent granted under this Ordinance— (a) shall take effect from the date on which the fact of its grant is advertised in the official journal; and (Amended 2 of 2001 s. 14) (b) subject to subsection (2), shall remain in force until the end of the period of 20 years beginning with— (Amended 17 of 2016 s. 48) (i) for a standard patent (R), the deemed date of filing of the application for the patent; (ii) for a standard patent (O), the date of filing of the application for the patent. (Amended 17 of 2016 s. 48) (2) If it is desired to keep a standard patent in force for a further year after the expiry of the 3rd or any succeeding year from the date specified in subsection (3), the prescribed renewal fee shall be paid before the expiry of that 3rd or, as the case may be, succeeding year, but not earlier than a date 3 months before that expiry, and a standard patent shall cease to have effect at the expiry of that 3rd or succeeding year if the renewal fee is not so paid. (3) The date specified for the purpose of subsection (2) is— (Amended 17 of 2016 s. 48) (a) for a standard patent (R), the anniversary of the deemed date of filing of the application for the patent first occurring after the date of grant of the patent; (b) for a standard patent (O), the anniversary of the date of filing of the application for the patent first occurring...
s.39(2)	(1) 根据本条例批予的标准专利 —— (a) 须自官方公报刊登其批予的事实公告的日期起生效；及 (由 2001 年第 2 号第 14 条 修订) (b) 在符合第(2)款的规定下，须维持有效，直至 —— (由 2016 年第 17 号第 48 条 修订) (i) (就转录标准专利而言) 自该项专利的申请当作提交日期起计的 20 年期终止为止；(ii) (就原授标准专利而言) 自该项专利的申请当作提交日期起计的 20 年期终止为止。(由 2016 年第 17 号第 48 条 修订) (1) A standard patent granted under this Ordinance— (a) shall take effect from the date on which the fact of its grant is advertised in the official journal; and (Amended 2 of 2001 s. 14) (b) subject to subsection (2), shall remain in force until the end of the period of 20 years beginning with— (Amended 17 of 2016 s. 48) (i) for a standard patent (R), the deemed date of filing of the application for the patent; (ii) for a standard patent (O), the date of filing of the application for the patent. (Amended 17 of 2016 s. 48)
s.39(3)	(2) 如意欲在自第(3)款所指明的日期起计第 3 年或继后的任何一年届满后将任何标准专利再维持有效一年，则订明的续期费须在该第 3 年或继后的一年(视属何情况而定)届满前(但不得早于届满的日期前 3 个月)缴付；如该续期费没有如此缴付，则标准专利在该第 3 年或继后的一年届满时须停止有效。 (2) If it is desired to keep a standard patent in force for a further year after the expiry of the 3rd or any succeeding year from the date specified in subsection (3), the prescribed renewal fee shall be paid before the expiry of that 3rd or, as the case may be, succeeding year, but not earlier than a date 3 months before that expiry, and a standard patent shall cease to have effect at the expiry of that 3rd or succeeding year if the renewal fee is not so paid.
s.39(4)	(3) 为施行第(2)款而指明的日期是 —— (由 2016 年第 17 号第 48 条 修订) (a) (就转录标准专利而言) 该标准专利的申请当作提交日期在批予该标准专利后的第一个周年日；(b) (就原授标准专利而言) 该标准专利的申请提交日期在批予该标准专利后的第一个周年日。(由 2016 年第 17 号第 48 条 修订) (3) The date specified for the purpose of subsection (2) is— (Amended 17 of 2016 s. 48) (a) for a standard patent (R), the anniversary of the deemed date of filing of the application for the patent first occurring after the date of grant of the patent; (b) for a standard patent (O), the anniversary of the date of filing of the application for the patent first occurring after the date of grant of the patent. (Amended 17 of 2016 s. 48)
s.39(5)	(4) 续期费及任何订明的附加费已在第(2)款所指明的缴付续期费的期间终止后的 6 个月内缴付，则该标准专利须被视为犹如从未期满一样，而据此 —— (a) 在该进一步的期间内根据或关于该专利而作出的任何事情须属有效；(b) 假使该专利未曾期满便会构成对该专利的侵犯的任何作为，即构成该项侵犯；及 (c) 假使该专利未曾期满便会构成政府征用该项专利发明的任何作为，即构成该征用。 (4) If within 6 months after the end of the period specified in subsection (2) for payment of the renewal fee the renewal fee and any prescribed additional fee are paid, the standard patent shall be treated as if it had never expired, and accordingly— (a) anything done under or in relation to it during that further period shall be valid; (b) an act which would constitute an infringement of it if it had not expired shall constitute such an infringement; and (c) an act which would constitute Government use of the patented invention if the patent had not expired shall constitute that use.
s.39(6)	(5) 处长可藉规例修订第(2)款所指明的期间，而缴付订明的续期费的最早日期是参照该期间而决定的。 (5) The Registrar may by regulation amend the period specified in subsection (2) by reference to which the earliest date for payment of the prescribed renewal fee is determined.
s.39(6)	(6) 行政长官会同行政会议可藉规例修订 —— (由 1999 年第 22 号第 3 条 修订) (a) 第 1) (b) 款所指明的期间，即某一标准专利须维持有效的期间；(b) 第(2)款所指明的期间，而任何标准专利如未予续期，则须参照该期间而停止有效。【比照 1977 c. 37 s. 25 U.K.]

	(6) The Chief Executive in Council may by regulation amend— (Amended 22 of 1999 s. 3) (a) the period specified in subsection (1) (b) as being the period for which a standard patent shall remain in force; (b) the period specified in subsection (2) by reference to which a standard patent, if not renewed, shall cease to have effect.
s.91	91. 因应申请而撤销专利的权利 (1) 在符合本条例的规定下, 法院可因应任何人的申请而基于 (但亦只可基于) 任何以下理由由藉命令撤销就一项发明而授予的专利 — (a) 该项发明并非一项可享专利发明; (b) 该专利已授予一名无权获授予该专利的人; (c) 该专利的说明书没有以足够清楚和完整的方式披露该项发明至擅长有关技术的人能将其实行的程度; (由 2007 年第 136 号法律公告 修订) (d) 该专利的说明书中所披露的事项, 超出所提交的该专利的申请中所披露的事项, 或如该专利是因应根据 第 55(4) 条 提出的新的申请或在 第 22、 37Z 或 116 条 所述的情况下而授予的, 则超出所提交的较早的专利申请中所披露的事项; (e) 该专利所赋予的保护的范围已由该专利的申请或该专利的说明书的任何修订所扩大, 而该修订是无效的; (f) 该项专利, 是符合以下描述的 2 项专利的其中一项 — (i) 该 2 项专利, 是就同一发明人的同一发明而获授予的; 及 (ii) 该 2 项专利, 有相同的关键日期; (由 2016 年第 17 号第 81 条 废除) (g)-(h) (由 2016 年第 17 号第 81 条 废除) (i) 就转隶标准专利而言, 其相应指定专利已在予指定专利当局所进行订明的反对或撤销专利的法律程序后遭撤销。 (2) 根据本条作出的命令 — (a) 可以是无条件撤销有关专利的命令; 或 (b) (凡法院裁定第 (1) (a)、 (b)、 (c)、 (d)、 (e) 及 (f) 款所述理由的其中一项已予证明, 但只令该专利在有限范围内失效) 可以是以下命令: 除非在指明时间内将有关的说明书根据 第 102 条 予以修订至令法院满意的程度, 否则该专利应予撤销。 (3) (由 2016 年第 17 号第 81 条 废除) (4) 如专利的申请是在《2016 年专利(修订)条例》(2016 年第 17 号) 的生效日期 * 前提交的, 则在紧接该日期前有效的本条, 继续适用于就该项申请授予的专利。 (由 2016 年第 17 号第 81 条 增补) (由 2016 年第 17 号第 81 条 修订) [比照 1977 c. 37 s. 72 U.K.; EPC Art. 138] 91. Power to revoke patents on application (1) Subject to this Ordinance, the court may on the application of any person by order revoke a patent for an invention on (but only on) any of the following grounds, that is to say— (a) that the invention is not a patentable invention; (b) that the patent was granted to a person who was not entitled to be granted that patent; (c) that the specification of the patent does not disclose the invention in a manner sufficiently clear and complete for it to be performed by a person skilled in the art; (d) that the matter disclosed in the specification of the patent extends beyond that disclosed in the application for the patent as filed or, if the patent was granted on a new application filed under section 55(4) or as mentioned in section 22, 37Z or 116, in the earlier application for a patent as filed; (e) that the protection conferred by the patent has been extended by an amendment of the application for the patent or the specification of the patent which is invalid; (f) that the patent is one of 2 patents that— (i) are granted for the same invention made by the same inventor; and (ii) have the same material date; (Replaced 17 of 2016 s. 81) (g)-(h) (Repealed 17 of 2016 s. 81) (i) in the case of a standard patent (R), that the corresponding designated patent has been revoked following prescribed opposition or revocation proceedings ...
s.91(1)	(1) 在符合本条例的规定下, 法院可因应任何人的申请而基于 (但亦只可基于) 任何以下理由由藉命令撤销就一项发明而授予的专利 — (a) 该项发明并非一项可享专利发明; (b) 该专利已授予一名无权获授予该专利的人; (c) 该专利的说明书没有以足够清楚和完整的方式披露该项发明至擅长有关技术的人能将其实行的程度; (由 2007 年第 136 号法律公告 修订) (d) 该专利的说明书中所披露的事项, 超出所提交的该专利的申请中所披露的事项, 或如该专利是因应根据 第 55(4) 条 提出的新的申请或在 第 22、 37Z 或 116 条 所述的情况下而授予的, 则超出所提交的较早的专利中所披露的事项; (e) 该专利所赋予的保护的范围已由该专利的申请或该专利的说明书的任何修订所扩大, 而该修订是无效的; (f) 该项专利, 是符合以下描述的 2 项专利的其中一项 — (i) 该 2 项专利, 是就同一发明人的同一发明而获授予的; 及 (ii) 该 2 项专利, 有相同的关键日期; (由 2016 年第 17 号第 81 条 代替) (g)-(h) (由 2016 年第 17 号第 81 条 废除) (i) 就转隶标准专利而言, 其相应指定专利已在予指定专利当局所进行订明的反对或撤销专利的法律程序后遭撤销。 (1) Subject to this Ordinance, the court may on the application of any person by order revoke a patent for an invention on (but only on) any of the following grounds, that is to say— (a) that the invention is not a patentable invention; (b) that the patent was granted to a person who was not entitled to be granted that patent; (c) that the specification of the patent does not disclose the invention in a manner sufficiently clear and complete for it to be performed by a person skilled in the art; (d) that the matter disclosed in the specification of the patent extends beyond that disclosed in the application for the patent as filed or, if the patent was granted on a new application filed under section 55(4) or as mentioned in section 22, 37Z or 116, in the earlier application for a patent as filed; (e) that the protection conferred by the patent has been extended by an amendment of the application for the patent or the specification of the patent which is invalid; (f) that the patent is one of 2 patents that— (i) are granted for the same invention made by the same inventor; and (ii) have the same material date; (Replaced 17 of 2016 s. 81) (g)-(h) (Repealed 17 of 2016 s. 81) (i) in the case of a standard patent (R), that the corresponding designated patent has been revoked following prescribed opposition or revocation proceedings in the designated patent office.
s.91(2)	(2) 根据本条作出的命令 — (a) 可以是无条件撤销有关专利的命令; 或 (b) (凡法院裁定第 (1) (a)、 (b)、 (c)、 (d)、 (e) 及 (f) 款所述理由的其中一项已予证明, 但只令该专利在有限范围内失效) 可以是以下命令: 除非在指明时间内将有关的说明书根据 第 102 条 予以修订至令法院满意的程度, 否则该专利应予撤销。 (2) An order under this section may be— (a) an order for the unconditional revocation of the patent; or (b) where the court determines that one of the grounds mentioned in subsection (1) (a), (b), (c), (d), (e) and (f) has been established, but only so as to invalidate the patent to a limited extent, an order that the patent should be revoked unless within a specified time the specification is amended under section 102 to the satisfaction of the court.
s.91(3)	(3) (由 2016 年第 17 号第 81 条 废除) (3) (Repealed 17 of 2016 s. 81)
s.91(4)	(4) This section, as in force immediately before the commencement date * of the Patents (Amendment) Ordinance 2016 (17 of 2016), continues to apply to a patent the application for which is filed before that date. (Added 17 of 2016 s. 81) (4) This section, as in force immediately before the commencement date * of the Patents (Amendment) Ordinance 2016 (17 of 2016), continues to apply to a patent the application for which is filed before that date. (Added 17 of 2016 s. 81)
s.73	73. 防止直接使用发明 任何专利在其有效时均授予其所有人权利以阻止所有未获他同意的第三者在香港作出以下全部或任何一项作为 — (a) 就任何属该专利的标的的事项的产品而言 — (i) 制造、使用或进口该产品或将产品推出市场; 或 (ii) 电积该产品, 而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的; (b) 就任何属该专利的标的的事项的方法而言 — (i) 使用该方法; 或 (ii) 当第三者知道在没有该专利的所有人同意下而使用该方法是被禁止的, 或在当时的情况下该项禁止对一个合理的人而言是明显的, 但即提供该方法予人在香港使用; (c) 凡该项发明为一个方法, 则就就该方法而直接获得任何产品而言 — (i) 将该产品推出市场或使用或进口该产品; 或 (ii) 电积该产品, 而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的。 [比照 1992 No. 1 s. 40 Eire] 73. Prevention of direct use of invention A patent while it is in force shall confer on its proprietor the right to prevent all third parties not having his consent from doing in Hong Kong all or any of the following— (a) in relation to any product which is the subject- matter of the patent— (i) making, putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise; (b) in relation to any process which is the subject- matter of the patent— (i) using the process; or (ii) offering the process for use in Hong Kong when the third party knows, or it is obvious to a reasonable person in the circumstances, that the use of the process is prohibited without the consent of the proprietor of the patent; (c) where the invention is a process, then in relation to any product obtained directly by means of that process— (i) putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise. [cf. 1992 No. 1 s. 40 Eire]
s.73(a)	(a) 就任何属该专利的标的的事项的产品而言 — (i) 制造、使用或进口该产品或将产品推出市场; 或 (ii) 电积该产品, 而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的; (a) in relation to any product which is the subject- matter of the patent— (i) making, putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise;
s.73(b)	(b) 就任何属该专利的标的的事项的方法而言 — (i) 使用该方法; 或 (ii) 当第三者知道在没有该专利的所有人同意下而使用该方法是被禁止的, 或在当时的情况下该项禁止对一个合理的人而言是明显的, 但即提供该方法予人在香港使用; (b) in relation to any process which is the subject- matter of the patent— (i) using the process; or (ii) offering the process for use in Hong Kong when the third party knows, or it is obvious to a reasonable person in the circumstances, that the use of the process is prohibited without the consent of the proprietor of the patent;
s.73(c)	(c) 凡该项发明为一个方法, 则就就该方法而直接获得任何产品而言 — (i) 将该产品推出市场或使用或进口该产品; 或 (ii) 电积该产品, 而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的。 [比照 1992 No. 1 s. 40 Eire] (c) where the invention is a process, then in relation to any product obtained directly by means of that process— (i) putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise. [cf. 1992 No. 1 s. 40 Eire]
s.75	75. 对专利的效力的限制 任何专利所授予的权利不得扩大至以下作为 — (a) 为非商业目的而私下作出的作为; (b) 为实验目的而作出与有关专利发明的标的的事项有关的作为; (c) 按照注册医生或注册牙医开出的处方为个别病案在药房即时制备药物或与此制备药物有关的作为(而 注册医生 及 注册牙医 两词分别具有《医生注册条例》(第 161 章) 第 2 条 和《牙医注册条例》(第 156 章) 第 2(1) 条 给予 注册医生 及 注册牙医 的涵义); (d) 当在任何巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)注册的船只临时或意外地进入香港水域时 — (由 2024 年第 21 号第 78 条 修订) (i) 在该等船只上; 或 (ii) 在该等船只的船身内, 或其机械、 滑车索具、 传动装置或其他零件上, 使用属该专利的标的之发明, 但该项发明须是专为该等船只的需要而在香港水域内使用的; (e) 当巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)的飞机、 气垫船或陆上交通工具临时或意外地进入香港时 — (i) 在该等飞机、 气垫船或陆上交通工具的构造或操作上; 或 (ii) 在该等飞机、 气垫船或陆上交通工具的零件的构造或操作上, 使用属该专利的标的之发明; (f) 使用属《民航条例》(第 448 章) 第 10(4) 条 所适用的且已合法进入香港或正合法经过香港(包括香港上空及香港水域)的飞机, 或为该等飞机而将该等飞机的任何部分或零件输入香港, 或在香港使用或贮存该部分或零件。 (由 2024 年第 21 号第 78 条 修订) [比照 1992 No. 1 s. 42 Eire] 75. Limitation of effect of patent The rights conferred by a patent shall not extend to— (a) acts done privately for non-commercial purposes; (b) acts done for experimental purposes relating to the subject-matter of the relevant patented invention; (c) the extemporaneous preparation for individual cases in a pharmacy of a medicine in accordance with a medical prescription issued by a registered medical practitioner or registered dentist (which terms bear the meaning assigned to them by section 2 of the Medical Registration Ordinance (Cap. 161) and section 2(1) of the Dentists Registration Ordinance (Cap. 156) respectively) or acts concerning the medicine so prepared; (d) the use of the invention which is the subject of the patent— (i) on board vessels registered in any of the Paris Convention countries or WTO member countries, territories or areas, other than Hong Kong; or (ii) in the body of such vessels, or in the machinery, tackle, gear or other accessories of such vessels, when such vessels temporarily or accidentally enter the waters of Hong Kong, but only if the invention is used in such waters exclusively for the needs of the vessel; (Amended 21 of 2024 s. 78) (e) the use of the invention which is the subject of the patent in the construction or operation of— (i) aircraft, hovercraft or land vehicles of Paris Convention countries or WTO member countries, territories or areas, other than Hong Kong; or (ii) such aircraft, hovercraft or land vehicle accessories, when such aircraft, hovercraft or land vehicles temporarily or accidentally enter Hong Kong; (f) the use of an aircraft to which section 10(4) of the Civil Aviation Ordinance (Cap. 448) applies which has lawfully entered or is lawfully crossing Hong Kong (including the air space above it and its waters), or the importation into Hong Kong, or the use or storage there, of any part or accessory for such an aircraft. (Amended 21 of 2024 s. 78) [cf. 1992 No. 1 s. 42 Eire]
s.75(a)	(a) 为非商业目的而私下作出的作为; (a) acts done privately for non-commercial purposes;
s.75(b)	(b) 为实验目的而作出与有关专利发明的标的的事项有关的作为; (b) acts done for experimental purposes relating to the subject-matter of the relevant patented invention;
s.75(c)	(c) 按照注册医生或注册牙医开出的处方为个别病案在药房即时制备药物或与此制备药物有关的作为(而 注册医生 及 注册牙医 两词分别具有《医生注册条例》(第 161 章) 第 2 条 和《牙医注册条例》(第 156 章) 第 2(1) 条 给予 注册医生 及 注册牙医 的涵义); (c) the extemporaneous preparation for individual cases in a pharmacy of a medicine in accordance with a medical prescription issued by a registered medical practitioner or registered dentist (which terms bear the meaning assigned to them by section 2 of the Medical Registration Ordinance (Cap. 161) and section 2(1) of the Dentists Registration Ordinance (Cap. 156) respectively) or acts concerning the medicine so prepared;
s.75(d)	(d) 当在任何巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)注册的船只临时或意外地进入香港水域时 — (由 2024 年第 21 号第 78 条 修订) (i) 在该等船只上; 或 (ii) 在该等船只的船身内, 或其机械、 滑车索具、 传动装置或其他零件上, 使用属该专利的标的之发明, 但该项发明须是专为该等船只的需要而在香港水域内使用的; (d) the use of the invention which is the subject of the patent— (i) on board vessels registered in any of the Paris Convention countries or WTO member countries, territories or areas, other than Hong Kong; or (ii) in the body of such vessels, or in the machinery, tackle, gear or other accessories of such vessels, when such vessels temporarily or accidentally enter the waters of Hong Kong, but only if the invention is used in such waters exclusively for the needs of the vessel; (Amended 21 of 2024 s. 78)
s.75(e)	(e) 当巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)的飞机、 气垫船或陆上交通工具临时或意外地进入香港时 — (i) 在该等飞机、 气垫船或陆上交通工具的构造或操作上; 或 (ii) 在该等飞机、 气垫船或陆上交通工具的零件的构造或操作上, 使用属该专利的标的之发明; (e) the use of the invention which is the subject of the patent in the construction or operation of— (i) aircraft, hovercraft or land vehicles of Paris Convention countries or WTO member countries, territories or areas, other than Hong Kong; or (ii) such aircraft, hovercraft or land vehicle accessories, when such aircraft, hovercraft or land vehicles temporarily or accidentally enter Hong Kong;
s.75(f)	(f) 使用属《民航条例》(第 448 章) 第 10(4) 条 所适用的且已合法进入香港或正合法经过香港(包括香港上空及香港水域)的飞机, 或为该等飞机而将该等飞机的任何部分或零件输入香港, 或在香港使用或贮存该部分或零件。 (由 2024 年第 21 号第 78 条 修订) [比照 1992 No. 1 s. 42 Eire] (f) the use of an aircraft to which section 10(4) of the Civil Aviation Ordinance (Cap. 448) applies which has lawfully entered or is lawfully crossing Hong Kong (including the air space above it and its waters), or the importation into Hong Kong, or the use or storage there, of any part or accessory for such an aircraft. (Amended 21 of 2024 s. 78) [cf. 1992 No. 1 s. 42 Eire]
s.88(1)	(1) 在符合本条规定下, 凡某标准专利的申请已发表, 则自发表日期起直至该标准专利的批授予止, 申请人所具有的权利, 与他就假设该专利已于发表该项申请的日期获批授予则本会侵犯该专利的任何作为而具有提起法律程序以要求损害赔偿的权利相同。 (1) Subject to this section, where an application for a standard patent is published the applicant shall have, as from the date of publication and until the grant of the standard patent, the same right as he would have had, if the patent had been granted on the date of the publication of the application, to bring proceedings in the court for damages in respect of any act which would have infringed the patent.
s.88(3)	(3) 申请人只 — (a) 在上述标准专利已获批授予后; 及 (b) 在以下情况下: 假设该专利在(就转隶标准专利而言)记录请求的发表日期或(就原授标准专利而言)专利申请中的发表日期已获批授予, 则该项作为不单已侵犯该标准专利, 还已侵犯以在已予发表记录请求或已予发表的申请中的形式所载的权利要求(按在有关的说明或权利要求中所所述的说明或任何附图予以解释), (由 2016 年第 17 号第 76 条 修订) 方有权凭借本条就任何作为提起法律程序。 (3) The applicant shall be entitled to bring proceedings by virtue of this section in respect of any act only— (a) after the standard patent has been granted; and (b) if the act would, if the patent had been granted on the publication date of the request to record (or for a standard patent (R)) or the publication date of the patent application (for a standard patent (O)), have infringed not only the standard patent, but also the claims (as interpreted by the description and any drawings referred to in the description or claims) in the form in which they were contained in the published request to record or published application. (Amended 17 of 2016 s. 76)